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House of Representatives

The House met at 2 p.m. and was called to order by the Speaker pro tempore (Mr. JOHNSON of Georgia).

DESIGNATION OF THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
April 26, 2022.

I hereby appoint the Honorable HENRY C. JOHNSON, Jr. to act as Speaker pro tempore on this day.

NANCY PELOSI,
Speaker of the House of Representatives.

PRAYER

The Chaplain, the Reverend Margaret Grun Kibben, offered the following prayer:

Almighty God, we lift up our voices to You. We come into Your presence with singing. Granted, some of us can only make a joyful noise and others are hard-pressed to carry anything close to a melodious tune, but we rejoice knowing You are the one who made us. We each belong to You. In this we find our delight.

So may we serve You with gladness, that our voices would speak of Your infinite goodness. Give us gentle words to turn away the asperity of dissent and divisiveness. Restrain our harsh words that we would not contribute to quarrels nor fuel dispute.

We are the sheep of Your pasture. May we enter Your gates with praise. May we fill Your courts, this Chamber, with thanksgiving.

For You, the Lord, are good, and Your steadfast love endures forever. Your faithfulness is to all generations. In the joy of Your name we pray.

Amen.

THE JOURNAL

The SPEAKER pro tempore. Pursuant to section 11(a) of House Resolution 188, the Journal of the last day's proceedings is approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentlewoman from Ohio (Ms. KAPTUR) come forward and lead the House in the Pledge of Allegiance.

Ms. KAPTUR led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

TRANSATLANTIC TELECOMMUNICATIONS SECURITY ACT

(Ms. KAPTUR asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. KAPTUR. Mr. Speaker, I rise today to urge passage of the bipartisan Transatlantic Telecommunications Security Act that Congressman KINZINGER and I have introduced.

Central and Eastern European nations are working to develop the modern telecommunications infrastructure necessary to facilitate global connectivity in the 21st century. At the same time, China, through its Belt and Road Initiative, is strategically inducing dependence on its financing and technology to construct these projects, endangering liberty and security.

5G technology represents the future of global communications. We must not allow those who are hostile to freedom and democracy to dominate this technological space and undermine stability.

Our allies need American financing and partnership. Through the Transatlantic Telecommunications Security Act, let us construct and deploy the state-of-the-art networks that will spur economic prosperity and connect people and communities.

Mr. Speaker, I invite all my colleagues to join us in this bill. We must stand with our European allies against the threats posed by foreign adversaries. And please, help us pass the Transatlantic Telecommunications Security Act without delay.

TITLE 42

(Mr. JOYCE of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. JOYCE of Pennsylvania. Mr. Speaker, last week, I visited with the police officers in Johnstown, Pennsylvania, to hear firsthand about the drug epidemic that is facing communities in my district.

One of the officers told me a story of how just the night before, he recovered over 150 bags of heroin after receiving a 911 call for a man abusing a puppy on a public street. This story gets to the heart of what these deadly drugs do to our communities.

Instead of addressing this crisis by securing our border, President Biden has chosen to end title 42, a program that has helped our Border Patrol agents protect Americans.

Mr. Speaker, it is time to fight the drug epidemic that has allowed heroin, crack cocaine, and fentanyl to take the lives of so many Pennsylvanians, so many Americans.

It is time to secure our border and make title 42 the law of the land.

It is time to face the drug crisis head on.

It is time to protect all of our communities.

WE ARE A NATION OF IMMIGRANTS

(Mr. ESPAILLAT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Printed on recycled paper.

Mr. ESPAILLAT. Mr. Speaker, once again, we find ourselves in an unguided, misguided debate about the fundamental concept of our nation of immigrants. We find ourselves in a debate trying to deny what we really are, a nation of immigrants.

Mr. Speaker, let me remind you, on average, TPS holders have lived in the United States for over 22 years—many of them hailing from Latin American countries. Redesignating and designating TPS would be a wise thing for over 2 million people already residing in the United States of America.

Mr. Speaker, in addition, families often have to wait decades before they reunite with their family members; sometimes four decades, three decades, before they reunite with their children.

Mr. Speaker, 4 million people are waiting to reunite with their families. United families are stronger. United families make America stronger. Let's unite the families. That is a family value. Unity of the family is a family value that we must protect.

Mr. Speaker, we are a nation of immigrants.

EULOGY FOR FINANCIAL LITERACY MONTH

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Mr. Speaker, April is Financial Literacy Month, the perfect time to remind Americans just how financially irresponsible Democrats are. Democrats have used the pocketbooks of hardworking Americans to fund a multitrillion-dollar spending spree and now have the audacity to deny responsibility for the inflation crisis. This includes extending the student loan repayment moratorium three times, costing taxpayers over $150 billion.

Democrats are financially irresponsible and are dragging student borrowers along with them. In January, the administration announced it would no longer require borrowers to sign an online acknowledgment about their total student debt each year before taking out additional loans. We should make it easier for student borrowers to understand the gravity of taking out tens of thousands of dollars in student loan debt, not hiding it from them.

Mr. Speaker, Democrats' policies don't promote financial literacy, they promote financial illiteracy.

HONORING YARELIS HERNANDEZ

(Mrs. MILLER-MEEKS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. MILLER-MEEKS. Mr. Speaker, I rise today to honor the accomplishments of an engineer from my district.

Yarelis Hernandez of Clinton was recently recognized by the National Association of Manufacturers with the Women in Manufacturing STEP Ahead Awards. This award is awarded to women who have demonstrated exceptional leadership in the manufacturing field.

Diversity is a passion of Yarelis' as she serves on LyondellBasell's Diversity, Equity, and Leadership Council striving to implement diversity in the workforce.

In the community, Yarelis also sits on the local economic board leading development between schools and corporations to create jobs for Iowa students. Yarelis volunteers in the local Introduce a Girl to Engineering program, which is a mentorship for girls interested in STEM careers.

Yarelis' dedication to promoting diversity and STEM for young girls is why she is worthy of receiving such a prestigious award. I am so proud to represent distinguished women like Yarelis and cannot wait to see her continued impact in the district.

PRAYERS FOR OFFICER DREW BARR

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, the Midlands of South Carolina were shocked to learn of the shooting death Sunday of Cayce police officer, Andrew ''Drew'' Barr, age 27.

Killed in the line of duty, Officer Barr was a brave, dedicated public servant, who will always be cherished as a champion for law and order.

Officer Barr was familiar with danger. Shortly after graduating from the South Carolina Criminal Justice Academy in 2017, he and another Cayce police officer were shot during an incident that involved a car chase and foot pursuit. They were awarded medals for bravery.

''Our hearts are breaking in Cayce. Officer Drew Barr has been an important part of the Cayce family since 2016,'' heralded by Cayce Mayor Elise Partin.

''Officer Barr gave the ultimate sacrifice for us to make us safe,'' confirmed by Cayce Police Chief Chris Cowan.

Cayce is fortunate to have Mayor Partin, Chief Cowan, and a law-enforcement-experienced councilman, Tim James.

Our prayers for the family of Texas National Guardsman Bishop Evans, who is a hero for trying to protect the drug-infested southern border.

God bless Ukraine. God bless Volodymyr Zelenskyy.

PRESIDENT ULYSSES S. GRANT 200TH BIRTHDAY

(Mr. WENSTRUP asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WENSTRUP. Mr. Speaker, I rise today to recognize the 200th birthday of our 18th United States President, Ulysses S. Grant.

President Grant was born in Point Pleasant, located in Clermont County in Ohio's Second Congressional District. When Ulysses was a child, the Grant family moved to Brown County, also in Ohio's Second District, and there he was educated before accepting a nomination to the United States Military Academy at West Point.

Following his commissioning, Grant served in the Mexican-American War, and most notably, the Civil War, where he became Commanding General of the United States Army in 1864.

General Grant oversaw the surrender of General Lee at Appomattox Court House and served as Commanding General of the Army until he was elected President in 1868. He served two terms as President, overseeing the beginning of the Reconstruction Era in the United States.

President Grant is the General who ''saved the Union.'' He was a great leader who left his mark in American history. We should all seek to follow his example and leadership.

Mr. Speaker, I am honored to have President Grant's birthplace in Ohio's Second Congressional District, a true landmark of our Nation's history.

IN HONOR OF NATIONAL INFERTILITY AWARENESS WEEK

(Mrs. CHERFILUS-MCCORMICK asked and was given permission to address the House for 1 minute.)

Mrs. CHERFILUS-MCCORMICK. Mr. Speaker, I rise today on behalf of Florida's 20th Congressional District to recognize the necessary work of the National Infertility Association in honor of National Infertility Awareness Week. This week brings together millions of Americans who want to remove the stigma and the barriers that stand in the way of building families.

Mr. Speaker, one in eight couples have trouble getting pregnant or sustaining pregnancies, and many more people face barriers to building a family. Through national media, social media, and fundraising, the infertility community will take action to increase awareness of infertility in order to remove stigmas and improve access to healthy family-building options.

Mr. Speaker, I hope we do the same thing for infertility issues like we did for the Affordable Insulin Act.

TSA MASK MANDATE

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Mr. Speaker, last week, U.S. District Judge Kathryn Mizelle voided President Biden and the CDC's overbearing and unnecessary mask mandate for airplanes and public transportation.

After the announcement, I saw many videos online of many flyers and flight attendants joyously ripping off their masks to celebrate. I had urged, along

with many other colleagues in a couple of different letters to the President, to allow the mask mandate to expire a few months ago. So finally, I was relieved and pleased to hear of this announcement by the judge.

Our celebration was short-lived, however, as the Biden administration soon announced they would sue to try to repeal the judge's ruling and force back in place mask mandates for people traveling.

Science has repeatedly found that the masks are not nearly as effective at preventing the spread of COVID as they previously had thought. It really boils down to that government likes controlling people with this. They like scaring them. They like putting them in a box and saying, If you don't do this, you might die.

People, if they are forced into having mask mandates on public transportation once again, there is going to be a lot of anger coming out that no midterms or nothing else will save if they force this onto us.

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ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which the yeas and nays are ordered.

The House will resume proceedings on postponed questions at a later time.

SMALL BUSINESS DEVELOPMENT CENTERS IMPROVEMENT ACT OF 2022

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6445) to amend the Small Business Act to require an annual report on entrepreneurial development programs, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6445

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Small Business Development Centers Improvement Act of 2022''.

SEC. 2. ANNUAL REPORT ON ENTREPRENEURIAL DEVELOPMENT PROGRAMS.

Section 10 of the Small Business Act (15 U.S.C. 639) is amended by adding at the end the following new subsection:

''(i) ANNUAL REPORT ON ENTREPRENEURIAL DEVELOPMENT PROGRAMS.—

''(1) REPORT REQUIRED.—The Administrator shall include in the comprehensive annual report required under subsection (a) the following data:

''(A) A list of all entrepreneurial development activities undertaken during the fiscal year preceding the date of the report through a covered program, including—

''(i) a description and operating details for each such covered program and the activities performed under each such covered program;

''(ii) operating circulars, manuals, and standard operating procedures for each such covered program;

''(iii) a description of the process used to make awards relating to the provision of entrepreneurial development activities under each such covered program;

''(iv) a list of all recipients of awards under each such covered program and the amount of each such award; and

''(v) a list of contractors, including the name and location of such contractor, of an award recipient.

''(B) The total amount of funding obligated for a covered program and the entrepreneurial development activities conducted under each such covered program for the fiscal year preceding the date of the report.

''(C) The names and titles of the individuals responsible for carrying out a covered program.

''(D) For entrepreneurial development activities undertaken during the fiscal year preceding the date of the report through the Small Business Development Center Program established under section 21 (in this section referred to as the 'Program')—

''(i) the number of individuals counseled or trained through the Program;

''(ii) the total number of hours of counseling and training services provided through the Program;

''(iii) the demographics of participants in the Program, which shall include the gender, race, and age of each such participant;

''(iv) the number of participants in the Program who are veterans;

''(v) the number of new businesses started by participants in the Program;

''(vi) to the extent practicable, the number of jobs supported, created, or retained with assistance from the Program;

''(vii) the amount of capital secured by participants in the Program, including through loans and equity investment;

''(viii) the number of participants in the Program receiving financial assistance, including the type and dollar amount, under a loan program of the Administration;

''(ix) an estimate of gross receipts, including (to the extent practicable) a description of any change in revenue, of small business concerns assisted through the Program;

''(x) the number of referrals of individuals to other resources and programs of the Administration;

''(xi) the results of satisfaction surveys of participants in the Program, including a summary of any comments received from such participants; and

''(xii) any recommendations by the Administrator to improve the delivery of services by the Program.

''(2) DEFINITIONS.—In this subsection:

''(A) COVERED PROGRAM.—The term 'covered program' means a program authorized under section 7(j), 7(m), 8(a), 8(b)(1), 21, 22, 29, 32, or 34 of this Act.

''(B) ENTREPRENEURIAL DEVELOPMENT ACTIVITY.—The term 'entrepreneurial development activity' means an activity related to the delivery of entrepreneurial development services, entrepreneurial education, or support for the development and maintenance of business training services carried out through a covered program.''.

SEC. 3. MARKETING OF SERVICES.

Section 21 of the Small Business Act (15 U.S.C. 648) is amended by adding at the end the following:

''(o) NO PROHIBITION OF MARKETING OF SERVICES.—An applicant receiving a grant under this section may use up to 10 percent of their budget to market and advertise the services of such applicant to individuals and small business concerns.''.

SEC. 4. DATA COLLECTION BY THE SMALL BUSINESS DEVELOPMENT CENTER ASSOCIATION.

(a) IN GENERAL.—Section 21(a)(3)(A) of the Small Business Act (15 U.S.C. 648(a)(3)(A)) is amended—

(1) by striking ''as provided in this section and'' and inserting ''as provided in this section,''; and

(2) by inserting before the period at the end the following: '', and (iv) governing data collection activities related to applicants receiving grants under this section''.

(b) ANNUAL REPORT ON DATA COLLECTION.—Section 21 of the Small Business Act (15 U.S.C. 648), as amended by section 3 of this Act, is further amended by adding at the end the following:

''(p) ANNUAL REPORT ON DATA COLLECTION.—The Administrator shall annually submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate a report on any data collection activities related to the Small Business Development Center Program.''.

(c) WORKING GROUP TO IMPROVE DATA COLLECTION.—

(1) ESTABLISHMENT AND STUDY.—The Administrator of the Small Business Administration shall establish a group to be known as the ''Data Collection Working Group'' consisting of entrepreneurial development grant recipients, the associations and organizations representing such recipients, and officials from the Small Business Administration, to carry out a study to determine the best methods for conducting data collection activities and create or revise existing systems dedicated to data collection.

(2) REPORT.—Not later than the end of the 180-day period beginning on the date of the enactment of this Act, the Data Collection Working Group shall issue a report to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate containing the findings and determinations made in carrying out the study required under paragraph (1), including—

(A) recommendations for revising existing data collection practices for the Small Business Development Center Program; and

(B) a proposed plan for the Administrator of the Small Business Administration to implement such recommendations.

SEC. 5. FEES FROM PRIVATE PARTNERSHIPS AND COSPONSORSHIPS.

Section 21(a)(3) of the Small Business Act (15 U.S.C. 648(a)(3)) is amended by adding at the end the following:

''(D) FEES FROM PRIVATE PARTNERSHIPS AND COSPONSORSHIPS.—A small business development center that participates in a private partnership or cosponsorship, in which the Administrator or designee of the Administrator also participates, may collect fees or other income related to the operation of such private partnership or cosponsorship.''.

SEC. 6. EQUITY FOR SMALL BUSINESS DEVELOPMENT CENTERS.

Subclause (I) of section 21(a)(4)(C)(v) of the Small Business Act (15 U.S.C. 648(a)(4)(C)(v)(I)) is amended to read as follows:

''(I) IN GENERAL.—Of the amounts made available in any fiscal year to carry out this section, not more than $600,000 may be used by the Administration to pay expenses enumerated in subparagraphs (B) through (D) of section 20(a)(1).''.

SEC. 7. CONFIDENTIALITY REQUIREMENTS.

Section 21(a)(7)(A) of the Small Business Act (15 U.S.C. 648(a)(7)(A)) is amended—

(1) by striking ''or telephone number'' and inserting '', telephone number, or email address''; and

(2) by inserting '', or the nature or content of such assistance, to any State, local, or Federal agency, or to any third party'' after ''receiving assistance under this section''.

SEC. 8. LIMITATION ON AWARD OF GRANTS TO SMALL BUSINESS DEVELOPMENT CENTERS.

(a) IN GENERAL.—Section 21 of the Small Business Act (15 U.S.C. 648), as amended by section 4, is further amended—

(1) in subsection (a)(1)—

(A) by striking ''any women's business center operating pursuant to section 29,'';

(B) by striking ''or a women's business center operating pursuant to section 29''; and

(C) by striking ''and women's business centers operating pursuant to section 29''; and

(2) by adding at the end the following:

''(q) LIMITATION ON AWARD OF GRANTS.—Except for not-for-profit institutions of higher education, and notwithstanding any other provision of law, the Administrator may not award a grant or contract to, or enter into a cooperative agreement with, an entity under this section unless that entity—

''(1) received a grant or contract from, or entered into a cooperative agreement with, the Administrator under this section before the date of the enactment of this subsection; and

''(2) seeks to renew such a grant, contract, or cooperative agreement after such date.''.

(b) RULE OF CONSTRUCTION.—The amendments made by this section may not be construed as prohibiting a women's business center (as described under section 29 of the Small Business Act) from receiving a subgrant from an entity receiving a grant under section 21 of the Small Business Act.

SEC. 9. MANAGEMENT OF PROGRAM ACTIVITIES.

Section 21(a)(3) of the Small Business Act (15 U.S.C. 648(a)(3)), as amended by section 4, is further amended—

(1) in the matter preceding subparagraph (A), by striking ''upon, with full participation of both parties,'' and inserting ''upon with the full participation of all parties (including the association authorized in subparagraph (A)), and carried out'';

(2) in subparagraph (A), by striking ''and develop'' and inserting ''and negotiate the development of''; and

(3) in subparagraph (C)—

(A) by striking ''Whereas'';

(B) by inserting ''Program'' after ''Center'';

(C) by striking ''National'' and inserting ''national''; and

(D) by moving such subparagraph 2 ems to the left.

SEC. 10. AUTHORIZATION OF APPROPRIATIONS FOR FORMULA GRANTS RECEIVED BY STATES.

Section 21(a)(4)(C) of the Small Business Act (15 U.S.C. 648(a)(4)(C)) is amended—

(1) in clause (vii), by striking ''subparagraph'' and all that follows through the period at the end and inserting ''subparagraph $175,000,000 for each of fiscal years 2022 through 2025.''; and

(2) in clause (viii), by striking ''shall reserve not less than $1,000,000'' and inserting ''shall reserve not more than $2,000,000''.

SEC. 11. REQUIREMENTS RELATING TO MATCHING FUNDS.

Section 21(a)(4)(A) of the Small Business Act (15 U.S.C. 648(a)(4)(A)) is amended by adding at the end the following new sentence: ''Such matching funds shall be evidenced by good faith assertions from the applicant, and the expenditure of matching funds shall not be made a prerequisite of the reimbursement of Federal funds, notwithstanding the final reconciliation payment for the close-out of each award.''.

SEC. 12. CONTRACT PREREQUISITES.

Section 21(a)(5)(B) of the Small Business Act (15 U.S.C. 648(a)(5)(B)) is amended by striking the second sentence and inserting the following: ''Each contract shall be deemed approved under subparagraph (A) unless the Associate Administrator certifies in writing within 15 business days after award of the contract that the contract will not provide assistance to small business concerns and that performance of the contract will hinder the small business development center in carrying out the terms of the grant received by the small business development center under this section.''.

SEC. 13. DUTIES OF THE ASSOCIATE ADMINISTRATOR FOR SMALL BUSINESS DEVELOPMENT CENTERS.

Section 21(h)(2) of the Small Business Act (15 U.S.C. 648(h)(2)) is amended by adding at the end the following new subparagraph:

''(C) MARKETING.—The Associate Administrator for Small Business Development Centers shall market and advertise the Small Business Development Center Program and participants in such Program as a resource available to any Federal program providing assistance to small business concerns, including the FAST program established under section 34.''.

SEC. 14. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Missouri (Mr. LUETKEMEYER) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, before I begin, I thank all of our members for their tireless work on the bills before us today. As we head into National Small Business Week, the legislation we are passing today showcases the bipartisan nature of our committee and highlights how Congress supports the American entrepreneurial spirit.

I rise today in support of H.R. 6445, the Small Business Development Center Improvement Act of 2022, introduced by Representative GOLDEN from Maine and the late Representative Hagedorn from Minnesota.

I will take a moment to remember the late Representative Hagedorn and his work as a member of the Small Business Committee. Before and throughout his illness, Mr. Hagedorn maintained his steadfast commitment to small businesses. My thoughts continue to be with Mr. Hagedorn's family, friends, and staff.

Today's bill is a testament to his dedication to his community and small firms, and I am glad to honor his memory with this legislation.

H.R. 6445 strengthens SBA's largest resource partner, the Small Business Development Center, or SBDC, network, by modernizing the program to meet the needs of today's small businesses and entrepreneurs.

SBDCs deliver free face-to-face and virtual counseling and training in all aspects of business management to small business owners and entrepreneurs across the country. The services include: assisting entrepreneurs with developing a business plan, accessing capital, creating a marketing plan, procuring government contracts, strengthening cybersecurity protections, and entering into international trade.

Through their network of 62 lead centers, managing nearly 1,000 outreach locations, SBDCs assist small business owners and entrepreneurs throughout the country.

SBDCs are a remarkable investment of taxpayer dollars with every Federal dollar spent on the SBDC program generating $1.99 in Federal revenue, a nearly 100 percent return on investment.

To build on this success, H.R. 6445 increases the authorization level to $175 million for the next four fiscal years, allowing the program to grow and reach more of America's 30 million small firms.

The bill also clarifies that SBDCs, and the SBA, may actively market their services. In the Small Business Committee, we often say that SBDCs are the best-kept small business secret.

This bill will go a long way to ensuring more small employers and entrepreneurs are aware that free or low-cost counseling and training exists to help them on their path to success.

I thank the sponsors for leading this effort to modernize and improve the SBDC program and its many valuable services. I urge Members to support this bipartisan piece of legislation, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 6445, the Small Business Development Centers Improvement Act of 2022.

Before we begin, I will highlight next week's National Small Business Week celebration. This will be a time to honor and reflect upon some of America's hardest working businesses and their employees.

It is with this in mind that I am glad that we are gathering on the House floor today to discuss a number of bills that improve and enhance the Small Business Administration.

Importantly, all five bills that we will be discussing today have been favorably reported out of our committee

in a bipartisan manner. I thank the chair for working with me to advance these bills to the floor.

Small Business Development Centers provide valuable resources and free counseling to entrepreneurs across this great Nation. This Congress, I have heard from several small businesses who have benefited from the SBDC's services.

In my home State of Missouri, the Missouri Small Business Development Center helped a local brewery create a business plan and apply for a 504 loan to grow their business. They also helped a veteran-owned food shipping business scale up and find new partnerships during the pandemic.

They supported countless small businesses in accessing SBA's COVID relief programs such as the Paycheck Protection Program and Economic Injury Disaster loans. I am grateful for their wide range of services to entrepreneurs.

This important legislation will allow SBDCs to continue their important services and expand their network of small business beneficiaries through marketing.

This legislation also ensures SBDC's client information is protected and that cooperation, communication, and collaboration between SBA and SBDC networks is improved.

I thank Mr. GOLDEN for working on this legislation with the late Jim Hagedorn. As we all know, Jim was a champion for small businesses and a truly invaluable member of our Small Business Committee. He will certainly be missed. He leaves a huge hole on our side of the aisle with regard to support of small businesses, and we remember him today.

I also thank the chair for working with me in a bipartisan manner to advance this bill.

I urge my colleagues to ensure that SBDCs can continue serving our small business constituents and communities, and to support H.R. 6445, which was passed favorably out of our committee by a voice vote and passed the House in a similar form last Congress.

The Small Business Development Center network is critical in assisting our small business owners during their entrepreneurial business journey. H.R. 6445 will enhance and improve this journey and ensure the program remains strong and vibrant on behalf of America's small businesses.

I urge my colleagues to support H.R. 6445, and I yield back the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

There is no question that we need to support the cornerstone of the SBA's entrepreneurial programs, the Small Business Development Centers. SBDCs are SBA's premier resource partner with centers in communities across the country. Their free or low-cost counseling and training have helped sustain small businesses and entrepreneurs throughout the pandemic.

H.R. 6445 continues the long tradition of SBDC's work to meet the ever-evolving needs of America's entrepreneurs as they emerge from the pandemic. Strengthening the SBDC network will, in turn, provide the support our small businesses need in order to thrive.

Today's bill is endorsed by America's SBDCs, an association representing the 63 SBDC networks and their nearly 1,000 centers.

I thank Mr. GOLDEN and remember the late Mr. Hagedorn for their bipartisan work on this bill.

I urge my colleagues to vote ''yes,'' and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 6445.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

WOMEN'S BUSINESS CENTERS IMPROVEMENT ACT OF 2022

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6441) to amend the Small Business Act to improve the women's business center program, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6441

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Women's Business Centers Improvement Act of 2022''.

SEC. 2. AMENDMENTS TO WOMEN'S BUSINESS CENTER PROGRAM.

Section 29 of the Small Business Act (15 U.S.C. 656) is amended to read as follows:

''SEC. 29. WOMEN'S BUSINESS CENTER PROGRAM.

''(a) DEFINITIONS.—In this section:

''(1) ASSISTANT ADMINISTRATOR.—The term 'Assistant Administrator' means the Assistant Administrator of the Office of Women's Business Ownership established under subsection (k).

''(2) ELIGIBLE ENTITY.—The term 'eligible entity' means—

''(A) an organization described in section 501(c) of the Internal Revenue Code of 1986 and exempt from taxation under section 501(a) of such Code;

''(B) a State, regional, or local economic development organization, if the organization certifies that grant funds received under this section will not be commingled with other funds;

''(C) an institution of higher education (as defined in section 101 of the Higher Education Act of 1965), unless such institution is currently receiving a grant under section 21;

''(D) a development, credit, or finance corporation chartered by a State, if such corporation certifies that grant funds received under this section will not be commingled with other funds; or

''(E) any combination of entities listed in subparagraphs (A) through (D).

''(3) SMALL BUSINESS CONCERN OWNED AND CONTROLLED BY WOMEN.—The term 'small business concern owned and controlled by women' has the meaning given under section 3(n).

''(4) RESOURCE PARTNERS.—The term 'resource partners' means small business development centers, chapters of the Service Corps of Retired Executives (established under section 8(b)(1)(B)), and Veteran Business Outreach Centers (described under section 32).

''(5) WOMEN'S BUSINESS CENTER.—The term 'women's business center' means the location at which counseling and training on the management, operations (including manufacturing, services, and retail), access to capital, international trade, government procurement opportunities, and any other matter that is needed to start, maintain, or expand a small business concern owned and controlled by women.

''(6) WOMEN'S BUSINESS CENTER ASSOCIATION.—The term 'Women's Business Center Association' means a membership organization formed by women's business centers to pursue matters of common concern.

''(b) AUTHORITY.—

''(1) ESTABLISHMENT.—There is established a Women's Business Center Program under which the Administrator may enter into a cooperative agreement with an eligible entity to provide a grant to such eligible entity to operate one or more women's business centers for the benefit of small business concerns owned and controlled by women.

''(2) USE OF FUNDS.—A women's business center established using funds made available under this section shall be designed to provide entrepreneurial counseling and training that meets the needs of the small business concerns owned and controlled by women, especially such concerns owned and controlled by women who are both socially and economically disadvantaged (as defined under section 8(a)), and shall provide—

''(A) financial assistance, including counseling and training on how to—

''(i) apply for and secure business credit and investment capital;

''(ii) prepare and present financial statements; and

''(iii) manage cash flow and other financial operations of a small business concern;

''(B) management assistance, including counseling and training on how to plan, organize, staff, direct, and control each major activity and function of a small business concern; and

''(C) marketing assistance, including counseling and training on how to—

''(i) identify and segment domestic and international market opportunities;

''(ii) prepare and execute marketing plans;

''(iii) develop pricing strategies;

''(iv) locate contract opportunities;

''(v) negotiate contracts; and

''(vi) use various public relations and advertising techniques.

''(3) TYPES OF GRANTS.—

''(A) INITIAL GRANT.—The amount of an initial grant, which shall be for a 5-year term, provided under this subsection to an eligible entity shall be not more than $300,000 annually (as such amount is annually adjusted by the Administrator to reflect the change in inflation).

''(B) CONTINUATION GRANTS.—The Administrator may award a continuation grant, which shall be for a 5-year term, of not more than $300,000 annually (as such amount is annually adjusted by the Administrator to reflect the change in inflation) to an eligible entity that received an initial grant under subparagraph (A). There shall be no limitation on the number of continuation grants an eligible entity may receive under this section.

''(c) APPLICATION.—

''(1) INITIAL GRANTS AND CONTINUATION GRANTS.—To receive an initial grant or continuation grant under this section, an eligible entity shall submit an application to the Administrator in such form, in such manner, and containing such information as the Administrator may require, including—

''(A) a certification that the eligible entity—

''(i) has designated an executive director or program manager, who may be compensated using grant funds awarded under this section or other sources, to manage each women's business center for which a grant under subsection (b) is sought; and

''(ii) meets accounting and reporting requirements established by the Director of the Office of Management and Budget;

''(B) information demonstrating the experience and effectiveness of the eligible entity in—

''(i) providing entrepreneurial counseling and training described under subsection (b)(2);

''(ii) providing training and services to a representative number of women who are both socially and economically disadvantaged; and

''(iii) working with resource partners, offices of the Administration, and other public and private entities engaging in entrepreneurial and small business development; and

''(C) a 5-year plan that—

''(i) includes information relating to the assistance to be provided by each women's business center in the area in which each such center is located;

''(ii) describes the ability of the eligible entity to meet the needs of the market to be served by each women's business center;

''(iii) describes the ability of the eligible entity to obtain the matching funds required under subsection (e); and

''(iv) describes the ability of the eligible entity to provide entrepreneurial counseling and training described under subsection (b)(2), including to a representative number of women who are both socially and economically disadvantaged.

''(2) RECORD RETENTION.—

''(A) IN GENERAL.—The Administrator shall maintain a copy of each application submitted under this subsection for not less than 5 years.

''(B) PAPERWORK REDUCTION.—The Administrator shall take steps to reduce, to the maximum extent practicable, the paperwork burden associated with carrying out subparagraph (A).

''(d) SELECTION OF ELIGIBLE ENTITIES.—

''(1) IN GENERAL.—In selecting recipients of initial grants, the Administrator shall consider—

''(A) the experience of the applicant in providing entrepreneurial counseling and training;

''(B) the amount of time needed for the applicant to commence operation of a women's business center;

''(C) in consultation with a Women's Business Center Association, the capacity of the applicant to meet the accreditation standards established under subsection (k)(4) in a timely manner;

''(D) the ability of the applicant to sustain operations, including the applicant's ability to obtain matching funds under subsection (e), for a 5-year period;

''(E) the proposed location of a women's business center to be operated by the applicant and the location's proximity to Veteran Business Outreach Centers and to recipients of grants under section 8(b)(1) or 21;

''(F) the population density of the area to be served by the women's business center operated by the applicant; and

''(G) the advice and counsel of a Women's Business Center Association to determine areas with unmet needs and the likelihood that the recipient will become accredited.

''(2) SELECTION CRITERIA.—

''(A) RULEMAKING.—The Administrator shall issue regulations to specify the criteria for review and selection of applicants under this subsection.

''(B) MODIFICATIONS PROHIBITED AFTER ANNOUNCEMENT.—With respect to a public announcement of any opportunity to be awarded a grant under this section made by the Administrator pursuant to subsection (l)(1), the Administrator may not modify regulations issued pursuant to subparagraph (A) with respect to such opportunity unless required to do so by an Act of Congress or an order of a Federal court.

''(C) RULE OF CONSTRUCTION.—Nothing in this paragraph may be construed as prohibiting the Administrator from modifying the regulations issued pursuant to subparagraph (A) (after providing an opportunity for notice and comment) as such regulations apply to an opportunity to be awarded a grant under this section that the Administrator has not yet publicly announced pursuant to subsection (l)(1).

''(e) MATCHING REQUIREMENTS.—

''(1) IN GENERAL.—Subject to paragraph (5), upon approval of an application submitted under subsection (c), the eligible entity shall agree to obtain contributions from non-Federal sources—

''(A) in the first and second year of the term of an initial grant, if applicable, 1 non-Federal dollar for every 2 Federal dollars; and

''(B) in each subsequent year of the term of an initial grant, if applicable, or for the term of a continuation grant, 1 non-Federal dollar for each Federal dollar.

''(2) FORM OF MATCHING FUNDS.—Not more than one-half of non-Federal matching funds described under paragraph (1) may be in the form of in-kind contributions that are budget line items only, including office equipment and office space.

''(3) SOLICITATION.—Notwithstanding any other provision of law, an eligible entity may—

''(A) solicit cash and in-kind contributions from private individuals and entities to be used to operate a women's business center; and

''(B) use amounts made available by the Administrator under this section for the cost of such solicitation and management of the contributions received.

''(4) DISBURSEMENT OF FUNDS.—The Administrator may disburse an amount not greater than 25 percent of the total amount of a grant awarded to an eligible entity before such eligible entity obtains the matching funds described under paragraph (1).

''(5) FAILURE TO OBTAIN MATCHING FUNDS.—If an eligible entity fails to obtain the required matching funds described under paragraph (1), the eligible entity may not be eligible to receive advance disbursements pursuant to paragraph (4) during the remainder of the term, if applicable, of an initial grant awarded under this section. Before approving such eligible entity for a continuation grant under this section, the Administrator shall make a written determination, including the reasons for such determination, of whether the Administrator believes that the eligible entity will be able to obtain the requisite matching funding under paragraph (1) for such continuation grant.

''(6) WAIVER OF NON-FEDERAL SHARE.—

''(A) IN GENERAL.—Upon request by an eligible entity and in accordance with this paragraph, the Administrator may waive, in whole or in part, the requirement to obtain matching funds under paragraph (1) for a grant awarded under this section for the eligible entity for a 1-year term of the grant.

''(B) CONSIDERATIONS.—In determining whether to issue a waiver under this paragraph, the Administrator shall consider—

''(i) the economic conditions affecting the eligible entity;

''(ii) the demonstrated ability of the eligible entity to raise non-Federal funds; and

''(iii) the performance of the eligible entity under the initial grant.

''(C) LIMITATION.—The Administrator may not issue a waiver under this paragraph if the Administrator determines that granting the waiver would undermine the credibility of the Women's Business Center Program.

''(7) EXCESS NON-FEDERAL DOLLARS.—The amount of non-Federal dollars obtained by an eligible entity that is greater than the amount that is required to be obtained by the eligible entity under this subsection shall not be subject to the requirements of part 200 of title 2, Code of Federal Regulations, or any successor thereto, if such amount of non-Federal dollars—

''(A) is not used as matching funds for purposes of implementing the Women's Business Center Program; and

''(B) was not obtained by using funds granted under the Women's Business Center Program.

''(8) CARRYOVER.—An eligible entity may use excess non-Federal dollars described in paragraph (7) to satisfy the matching funds requirement under paragraph (1) for the subsequent 1-year grant term, if applicable, except that such amounts shall be subject to the requirements of part 200 of title 2, Code of Federal Regulations, or any successor thereto.

''(f) OTHER REQUIREMENTS.—

''(1) SEPARATION OF FUNDS.—An eligible entity shall—

''(A) operate a women's business center under this section separately from other projects, if any, of the eligible entity; and

''(B) separately maintain and account for any grant funds received under this section.

''(2) EXAMINATION OF ELIGIBLE ENTITIES.—

''(A) REQUIRED SITE VISIT.—Before receiving an initial grant under this section, each applicant shall have a site visit by an employee of the Administration, in order to ensure that the applicant has sufficient resources to provide the services for which the grant is being provided.

''(B) ANNUAL REVIEW.—An employee of the Administration shall—

''(i) conduct an annual programmatic and financial examination of each eligible entity, as described in subsection (g); and

''(ii) provide the results of such examination to the eligible entity.

''(3) REMEDIATION OF PROBLEMS.—

''(A) PLAN OF ACTION.—If an examination of an eligible entity conducted under paragraph (2)(B) identifies any problems, the eligible entity shall, within 45 calendar days of receiving a copy of the results of such examination, provide the Assistant Administrator with a plan of action, including specific milestones, for correcting such problems.

''(B) PLAN OF ACTION REVIEW BY THE ASSISTANT ADMINISTRATOR.—The Assistant Administrator shall review each plan of action submitted under subparagraph (A) within 30 calendar days of receiving such plan. If the Assistant Administrator determines that such plan—

''(i) will bring the eligible entity into compliance with all the terms of a cooperative agreement described in subsection (b), the Assistant Administrator shall approve such plan; or

''(ii) is inadequate to remedy the problems identified in the annual examination to

which the plan of action relates, the Assistant Administrator shall set forth such reasons in writing and provide such determination to the eligible entity within 15 calendar days of such determination.

''(C) AMENDMENT TO PLAN OF ACTION.—An eligible entity receiving a determination under subparagraph (B)(ii) shall have 30 calendar days from the receipt of the determination to amend the plan of action to satisfy the problems identified by the Assistant Administrator and resubmit such plan to the Assistant Administrator.

''(D) AMENDED PLAN REVIEW BY THE ASSISTANT ADMINISTRATOR.—Within 15 calendar days of the receipt of an amended plan of action under subparagraph (C), the Assistant Administrator shall either approve or reject such plan and provide such approval or rejection in writing to the eligible entity.

''(E) APPEAL OF ASSISTANT ADMINISTRATOR DETERMINATION.—

''(i) IN GENERAL.—If the Assistant Administrator rejects an amended plan under subparagraph (D), the eligible entity shall have the opportunity to appeal such decision to the Administrator, who may delegate such appeal to an appropriate officer of the Administration.

''(ii) OPPORTUNITY FOR EXPLANATION.—Any appeal described under clause (i) shall provide an opportunity for the eligible entity to provide, in writing, an explanation of why the eligible entity's amended plan remedies the problems identified in the annual examination conducted under paragraph (2)(B).

''(iii) NOTICE OF DETERMINATION.—The Administrator shall provide to the eligible entity a determination of the appeal, in writing, not later than 15 calendar days after the eligible entity files an appeal under this subparagraph.

''(iv) EFFECT OF FAILURE TO ACT.—If the Administrator fails to act on an appeal made under this subparagraph within the 15-day period specified under clause (iii), the eligible entity's amended plan of action submitted under subparagraph (C) shall be deemed to be approved.

''(4) TERMINATION OF GRANT.—

''(A) IN GENERAL.—The Administrator shall terminate a grant to an eligible entity under this section if the eligible entity fails to comply with—

''(i) a plan of action approved by the Assistant Administrator under paragraph (3)(B)(i); or

''(ii) an amended plan of action approved by the Assistant Administrator under paragraph (3)(D) or approved on appeal under paragraph (3)(E).

''(B) APPEAL OF TERMINATION.—An eligible entity shall have the opportunity to challenge the termination of a grant under subparagraph (A) on the record and after an opportunity for a hearing.

''(C) FINAL AGENCY ACTION.—A determination made pursuant to subparagraph (B) shall be considered final agency action for the purposes of chapter 7 of title 5, United States Code.

''(5) CONSULTATION WITH MAJORITY WOMEN'S BUSINESS CENTER ASSOCIATION.—If on the date of the enactment of this subsection, a majority of women's business centers that are operating pursuant to agreements with the Administration are members of an individual Women's Business Center Association, the Administrator shall—

''(A) recognize the existence and activities of such Association; and

''(B) consult with the Association on, and negotiate with the Association in the development of documents with respect to—

''(i) announcing the annual scope of activities pursuant to this section;

''(ii) requesting proposals to deliver assistance as provided in this section; and

''(iii) governing the general operations and administration of women's business centers, specifically including the development of regulations and a uniform negotiated cooperative agreement for use on an annual basis when entering into individual cooperative agreements with women's business centers.

''(6) ENFORCEMENT.—

''(A) GRANTS.—The Assistant Administrator shall develop policies and procedures to minimize the possibility of awarding a grant to an eligible entity that will operate a women's business center that likely will not remain in compliance with program and financial requirements.

''(B) INDIVIDUAL COOPERATIVE AGREEMENTS.—The Assistant Administrator shall enforce the terms of any individual cooperative agreement described in paragraph (5)(B)(iii).

''(g) PROGRAM EXAMINATION.—

''(1) IN GENERAL.—The Administration shall—

''(A) develop and implement an annual programmatic and financial examination of each eligible entity receiving a grant under this section, under which each such eligible entity shall provide to the Administration—

''(i) an itemized cost breakdown of actual expenditures for costs incurred during the preceding year; and

''(ii) documentation regarding the amount of matching assistance from non-Federal sources obtained and expended by the eligible entity during the preceding year in order to meet the requirements of subsection (e) and, with respect to any in-kind contributions described in subsection (e)(2) that were used to satisfy the requirements of subsection (e), verification of the existence and valuation of those contributions; and

''(B) analyze the results of each such examination and, based on that analysis, make a determination regarding the programmatic and financial viability of each women's business center operated by the eligible entity.

''(2) CONDITIONS FOR CONTINUED FUNDING.—In determining whether to award a continuation grant to an eligible entity, the Administrator—

''(A) shall consider the results of the most recent examination of the eligible entity under paragraph (1);

''(B) shall determine if—

''(i) the eligible entity has failed to provide, or provided inadequate, information under paragraph (1)(A); or

''(ii) the eligible entity has failed to provide any information required to be provided by a women's business center for purposes of the management report under subsection (m)(1), or the information provided by the center is inadequate; and

''(C) shall consider the accreditation status as described in subsection (k)(4).

''(3) ADDITIONAL OVERSIGHT.—The Assistant Administrator shall work with the Women's Business Center Association recognized under subsection (f)(5) (as applicable) to develop, implement, and maintain policies and procedures for conducting financial examinations under this subsection and to maintain internal controls that ensure that such financial examinations are conducted properly.

''(h) NOTICE AND COMMENT REQUIRED.—The Administrator may only make a change to the standards by which an eligible entity obtains or maintains grants under this section, the standards for accreditation, or any other requirement for the operation of a women's business center if the Administrator first provides notice and the opportunity for public comment, as set forth in section 553(b) of title 5, United States Code, without regard to any exceptions provided for under such section.

''(i) CONTRACT AUTHORITY.—

''(1) ELIGIBLE ENTITY.—An eligible entity that receives a grant under this section may enter into a contract with a Federal department or agency to provide specific assistance to small business concerns owned and controlled by women and other underserved small business concerns, if performance of such a contract does not hinder the ability of the eligible entity to carry out the terms of a grant received under this section.

''(2) ADMINISTRATOR.—The authority of the Administrator to enter into contracts shall be in effect for each fiscal year only to the extent and in the amounts as are provided in advance in appropriations Acts. After the Administrator has entered into a contract, either as a grant or a cooperative agreement, with any applicant under this section, the Administrator shall not suspend, terminate, or fail to renew or extend any such contract unless the Administrator provides the applicant with written notification setting forth the reasons therefore and affords the applicant an opportunity for a hearing, appeal, or other administrative proceeding under chapter 5 of title 5, United States Code.

''(j) PRIVACY REQUIREMENTS.—

''(1) IN GENERAL.—A women's business center may not disclose the name, address, or telephone number of any individual or small business concern receiving assistance under this section without the consent of such individual or small business concern, unless—

''(A) the Administrator orders such disclosure after the Administrator is ordered to make such a disclosure by a court in any civil or criminal enforcement action initiated by a Federal or State agency; or

''(B) the Administrator considers such a disclosure to be necessary for the purpose of conducting a financial audit of a women's business center, except that such a disclosure shall be limited to the information necessary for such audit.

''(2) ADMINISTRATION USE OF INFORMATION.—This subsection shall not—

''(A) restrict Administration access to women's business center data; or

''(B) prevent the Administration from using information about individuals who use women's business centers to conduct surveys of such individuals.

''(3) REGULATIONS.—The Administrator shall issue regulations to establish standards for disclosures for purposes of a financial audit described under paragraph (1)(B).

''(k) OFFICE OF WOMEN'S BUSINESS OWNERSHIP.—

''(1) ESTABLISHMENT.—There is established within the Administration an Office of Women's Business Ownership, which shall be responsible for the administration of the Administration's programs for the development of women's business enterprises (as defined in section 408 of the Women's Business Ownership Act of 1988). The Office of Women's Business Ownership shall be administered by an Assistant Administrator, who shall be appointed by the Administrator.

''(2) ASSISTANT ADMINISTRATOR OF THE OFFICE OF WOMEN'S BUSINESS OWNERSHIP.—

''(A) QUALIFICATION.—The position of Assistant Administrator shall be a Senior Executive Service position under section 3132(a)(2) of title 5, United States Code. The Assistant Administrator shall serve as a noncareer appointee (as defined in section 3132(a)(7) of that title).

''(B) DUTIES.—The Assistant Administrator shall administer the programs and services of the Office of Women's Business Ownership and perform the following functions:

''(i) Recommend the annual administrative and program budgets of the Office and eligible entities receiving a grant under the Women's Business Center Program.

''(ii) Review the annual budgets submitted by each eligible entity receiving a grant

under the Women's Business Center Program.

''(iii) Collaborate with other Federal departments and agencies, State and local governments, not-for-profit organizations, and for-profit organizations to maximize utilization of taxpayer dollars and reduce (or eliminate) any duplication among the programs overseen by the Office of Women's Business Ownership and those of other entities that provide similar services to women entrepreneurs.

''(iv) Maintain a clearinghouse to provide for the dissemination and exchange of information between women's business centers.

''(v) Serve as the vice chairperson of the Interagency Committee on Women's Business Enterprise and as the liaison for the National Women's Business Council.

''(3) MISSION.—The mission of the Office of Women's Business Ownership shall be to assist women entrepreneurs to start, grow, and compete in global markets by providing quality support with access to capital, access to markets, job creation, growth, and counseling by—

''(A) fostering participation of women entrepreneurs in the economy by overseeing a network of women's business centers throughout States and territories;

''(B) creating public-private partnerships to support women entrepreneurs and conduct outreach and education to small business concerns owned and controlled by women; and

''(C) working with other programs of the Administrator to—

''(i) ensure women are well-represented in those programs and being served by those programs; and

''(ii) identify gaps where participation by women in those programs could be increased.

''(4) ACCREDITATION PROGRAM.—

''(A) ESTABLISHMENT.—Not later than 270 days after the date of enactment of this paragraph, the Administrator shall publish standards for a program to accredit eligible entities that receive a grant under this section.

''(B) PUBLIC COMMENT; TRANSITION.—Before publishing the standards under subparagraph (A), the Administrator—

''(i) shall provide a period of not less than 60 days for public comment on such standards; and

''(ii) may not terminate a grant under this section absent evidence of fraud or other criminal misconduct by the recipient.

''(C) CONTRACTING AUTHORITY.—The Administrator may provide financial support, by contract or otherwise, to a Women's Business Center Association to provide assistance in establishing the standards required under subparagraph (A) or for carrying out an accreditation program pursuant to such standards.

''(5) CONTINUATION GRANT CONSIDERATIONS.—

''(A) IN GENERAL.—In determining whether to award a continuation grant under this section, the Administrator shall consider the results of the annual programmatic and financial examination conducted under subsection (g) and the accreditation program.

''(B) ACCREDITATION REQUIREMENT.—After the end of the 2-year period beginning on the date of enactment of this subsection, the Administration may not award a continuation grant under this section unless the applicable eligible entity has been approved under the accreditation program conducted pursuant to this subsection, except that the Assistant Administrator for the Office of Women's Business Ownership may waive such accreditation requirement, in the discretion of the Assistant Administrator, upon a showing that the eligible entity is making a good faith effort to obtain accreditation.

''(6) ANNUAL CONFERENCE.—Each women's business center shall participate in annual professional development at an annual conference facilitated by a Women's Business Center Association.

''(l) NOTIFICATION REQUIREMENTS UNDER THE WOMEN'S BUSINESS CENTER PROGRAM.—The Administrator shall provide the following:

''(1) A public announcement of any opportunity to be awarded grants under this section, to include the selection criteria under subsection (d) and any applicable regulations.

''(2) To any applicant for a grant under this section that failed to obtain such a grant, an opportunity to debrief with the Administrator to review the reasons for the applicant's failure.

''(3) To an eligible entity that receives an initial grant under this section, if a site visit or review of the eligible entity is carried out by an officer or employee of the Administration (other than the Inspector General), a copy of the site visit report or evaluation, as applicable, within 30 calendar days of the completion of such visit or evaluation.

''(m) ANNUAL MANAGEMENT REPORT.—

''(1) IN GENERAL.—The Administrator shall prepare and submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate an annual report on the effectiveness of women's business centers operated through a grant awarded under this section.

''(2) CONTENTS.—Each report submitted under paragraph (1) shall include—

''(A) information concerning, with respect to each women's business center established pursuant to a grant awarded under this section, the most recent analysis of the annual programmatic and financial examination of the applicable eligible entity, as required under subsection (g)(1)(B), and the subsequent determination made by the Administration under that subsection;

''(B) the number of persons counseled and trained through the Women's Business Center Program;

''(C) the total number of hours of counseling and training through the Program;

''(D) the demographics of Program participants to include gender, race, and age of each such participant;

''(E) the number of Program participants who are veterans;

''(F) the number of new businesses started by participants in the Program;

''(G) to the extent practicable, the number of jobs supported, created or retained with assistance from women's business centers;

''(H) the amount of capital secured by participants in the Program, including through loans and equity investment;

''(I) the number of participants in the Program receiving financial assistance, including the type and dollar amount, under the loan programs of the Administration;

''(J) an estimate of gross receipts, including to the extent practicable a description of any change in revenue of small business concerns assisted through the Program;

''(K) to the maximum extent practicable, increases or decreases in revenues for the assisted small business concerns;

''(L) the number of referrals made to other resources and programs of the Administration;

''(M) the results of satisfaction surveys of participants, including a summary of any comments received from such participants; and

''(N) any recommendations by the Administrator to improve the delivery of services by women's business centers.

''(n) AUTHORIZATION OF APPROPRIATIONS.—

''(1) IN GENERAL.—There are authorized to be appropriated to the Administration to carry out this section, to remain available until expended, $31,500,000 for each of fiscal years 2022 through 2025.

''(2) USE OF AMOUNTS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), amounts made available under this subsection for fiscal year 2022, and each fiscal year thereafter, may only be used for grant awards and may not be used for costs incurred by the Administration in connection with the management and administration of the program under this section.

''(B) EXCEPTIONS.—Of the amount made available under this subsection for a fiscal year, the following amounts shall be available for costs incurred by the Administration in connection with the management and administration of the program under this section:

''(i) For the first fiscal year beginning after the date of the enactment of this subparagraph, 2.65 percent.

''(ii) For the second fiscal year beginning after the date of the enactment of this subparagraph and each fiscal year thereafter through fiscal year 2025, 2.5 percent.

''(3) EXPEDITED ACQUISITION.—Notwithstanding any other provision of law, the Administrator may use such expedited acquisition methods as the Administrator determines to be appropriate to carry out this section, except that the Administrator shall ensure that all small business sources are provided a reasonable opportunity to submit proposals.

''(4) ACCREDITATION AND ANNUAL CONFERENCE.—Not less than $500,000 of the amounts appropriated pursuant to paragraph (1) for a fiscal year shall be available for purposes of carrying out subsection (k), of which no less than $50,000 shall be available to support an annual conference described under subsection (k)(6).''.

SEC. 3. EFFECT ON EXISTING GRANTS.

(a) TERMS AND CONDITIONS.—A nonprofit organization receiving a grant under section 29(m) of the Small Business Act (15 U.S.C. 656(m)), as in effect on the day before the date of enactment of this Act, shall continue to receive the grant under the terms and conditions in effect for the grant on the day before the date of enactment of this Act, except that the nonprofit organization may not apply for a continuation of the grant under section 29(m)(5) of the Small Business Act (15 U.S.C. 656(m)(5)), as in effect on the day before the date of enactment of this Act.

(b) LENGTH OF CONTINUATION GRANT.—The Administrator of the Small Business Administration may award a grant under section 29 of the Small Business Act, as amended by this Act, to a nonprofit organization receiving a grant under section 29(m) of the Small Business Act (15 U.S.C. 656(m)), as in effect on the day before the date of enactment of this Act, for the period—

(1) beginning on the day after the last day of the grant agreement under such section 29(m); and

(2) ending at the end of the third fiscal year beginning after the date of enactment of this Act.

SEC. 4. REGULATIONS.

Not later than 270 days after the date of the enactment of this Act, the Administrator of Small Business Administration shall issue such rules as are necessary to carry out section 29 of the Small Business Act (15 U.S.C. 656), as amended by this Act, and ensure that a period of public comment for such rules is not less than 60 days.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Missouri (Mr.

LUETKEMEYER) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 6441, the Women's Business Center Improvement Act of 2022. This bill will modernize and strengthen the Small Business Administration's Women's Business Center program to better serve America's women entrepreneurs and women-owned small businesses.

I thank Ms. DAVIDS and Ms. TENNEY for their meaningful work to ensure women entrepreneurs across the country have continued access to vital counseling and training.

WBCs are a critic component of SBA's Resource Partner ecosystem, assisting women in communities across the country, particularly those that are socially and economically disadvantaged.

The WBC program forms more than 130 centers nationwide and offers a full range of counseling and training services for all stages of business development. Many of the WBCs provide multilingual services, maintain evening and weekend hours to accommodate clients who work full time, and provide childcare.

In fiscal year 2020, with the additional funding provided by the CARES Act, the WBC program increased their reach by 22 percent and trained and advised more than 82,000 clients, helping them create nearly 30,000 small businesses.

As we all know, women were particularly hard-hit by the pandemic. Women-owned businesses closed at higher rates than their male counterparts as women disproportionately left the workforce to be the primary caregivers for their families.

That is why I am pleased to support the Women's Business Centers Improvement Act of 2022, which increases the program's annual authorization level and increases the cap on individual center grants. By doing so, more established centers can expand their reach to greater numbers of women.

Mr. Speaker, I urge Members to support this bipartisan bill, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume, and I rise in support of H.R. 6441, the Women's Business Centers Improvement Act of 2022.

Women's Business Centers, WBCs, support over 150,000 women entrepreneurs each year through training, mentoring, business development, and financing opportunities. This legislation, H.R. 6441, will bring increased oversight to the WBC program and long overdue modernizations.

This legislation improves collaboration with the SBA's Office of Women's Business Ownership and requires the SBA to provide an annual report to Congress to measure the effectiveness of the WBC program.

We have found that we have got some problems with some of the WBC offices, and this legislation will help weed out the bad actors by requiring SBA to develop policies and procedures to reduce the possibility of awarding grants to a WBC that will likely not remain in compliance with the program.

This important legislation will not only ensure the integrity of the WBC program, but also support female entrepreneurs in their business ventures.

□ 1430

Mr. LUETKEMEYER. Mr. Speaker, I thank Ms. DAVIDS and Ms. TENNEY for working in a bipartisan manner to ensure this bill reached the House floor. I thank the chair for advancing this bill.

I encourage all of my colleagues to support H.R. 6441, which was unanimously reported out of our committee and has previously passed the House floor in a similar form.

Mr. Speaker, I reserve the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield 3 minutes to the gentlewoman from Kansas (Ms. DAVIDS), the chair of the Subcommittee on Economic Growth, Tax, and Capital Access.

Ms. DAVIDS of Kansas. Mr. Speaker, I thank Chairwoman VELÁZQUEZ and our ranking member for all the work they are doing on the House Committee on Small Business.

I rise today to urge my colleagues to stand up for the small business owners in their community and vote for my bill to support the Women's Business Centers.

Women are the engine of our economy. Women-owned businesses employ 9.4 million people nationwide, contributing $1.2 trillion to our economy each year. When we invest in the success of women, we are giving our entire economy a boost.

Women's Business Centers are an effective resource that reach more than 88,000 entrepreneurs each year through training, mentorship, and counseling. In 2020 alone, the WBC program increased its outreach by 22 percent and helped start and sustain more than 30,000 small businesses.

To put it clearly, during the pandemic, they increased their outreach. That is a solid record of success made even more impressive by the commitment to stepping up when they were needed the most.

I have visited with the local Kansas City Women's Business Center in Overland Park. They serve the Kansas City metro area and the entire State of Kansas. I have also spoken with women who have used their services, folks like Lenora, who started Technology Group Solutions 15 years ago with the help of the Kansas City Women's Business Center. She now oversees more than 80 employees in three States.

She told me that she hears from women who don't have the network or access to capital that they need to get their businesses off the ground. She sends them to the WBC because when Lenora first started her business, the center helped fill those gaps, paving the way for her to grow what is now a multimillion-dollar company.

Other women I have spoken with specifically cite the WBC's evening and weekend hours and that they offer childcare during training sessions. It is those tailored services that have made these centers such a crucial contributor to the success of so many businessowners.

My bill, which we are voting on today, will enhance the WBC program to ensure that women entrepreneurs all across the country have access to counseling and training services. I have seen it in action, and it is why I introduced and strongly support this bipartisan piece of legislation.

It would raise the cap on grants for the first time since the program began and create an accreditation system to help establish standards of excellence, ensuring that our funds are being spent wisely to help growing entrepreneurs.

The Kansas City Women's Business Center served more than 800 clients last year. How many more businesses could they grow? How many more aspiring entrepreneurs could they reach with more resources?

I am proud to have introduced this important piece of legislation alongside Congresswoman TENNEY, and I urge a ''yes'' vote.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as she may consume to the gentlewoman from New York (Ms. TENNEY), a strong advocate for small businesses and the ranking member of the Small Business Subcommittee for Underserved, Agricultural, and Rural Business Development.

Ms. TENNEY. Mr. Speaker, I rise today in strong support of H.R. 6441, the Women's Business Centers Improvement Act, legislation that I am honored to lead with my colleague, Representative SHARICE DAVIDS.

Female entrepreneurs and women-owned businesses play a critical role in our Nation's economy. As a longtime small business owner myself, and the owner of a woman-owned business, I understand the challenges women-owned small businesses face, especially in rural communities.

The Women's Business Center program at the Small Business Administration has been helping women overcome obstacles and build thriving businesses for over 30 years. With more than 150 locations across the Nation, the Women's Business Center program provides over 150,000 female small business owners annually with resources

and guidance, helping them to identify opportunities for growth.

The bipartisan Women's Business Centers Improvement Act will strengthen the Women's Business Center program, increase authorized funding, and enact commonsense taxpayer protections and oversight provisions to safeguard public dollars and ensure that the program efficiently serves the American people.

Additionally, the bill will expand the cap on grants made available under this program, which will better support our women entrepreneurs. These improvements will help the Women's Business Centers program run efficiently and expand into more communities, like those underserved communities particularly in my district and Ms. DAVIDS' district and all across New York and our Nation.

I urge my colleagues to support this bipartisan women-owned small businesses bill and vote ''yes'' on H.R. 6441.

Ms. VELÁZQUEZ. Mr. Speaker, I yield 2 minutes to the gentlewoman from Pennsylvania (Ms. HOULAHAN).

Ms. HOULAHAN. Mr. Speaker, I rise today in support of the Women's Business Centers Improvement Act, and I thank Representatives DAVIDS and TENNEY for their work on this very important and bipartisan piece of legislation.

As our small business owners continue to recover from the pandemic, Congress must do everything it can to ensure access to quality entrepreneurial development resources.

Underscoring the need for this bill, a recent study in partnership with the Association of Women's Business Centers found that profits for female business owners dropped by 26 percent from 2020 to 2021, with average profits of about $47,000 less than male-owned firms.

The economic pressures of the pandemic have hit women-owned businesses particularly hard, including increasing operating expenses due to supply chain disruptions and rising costs.

As an entrepreneur myself, I recognize the challenges women business leaders face every day and especially in this moment. It is why I stand before you to talk about the importance of passing the Women's Business Centers Improvement Act.

This legislation will make needed improvements to the Small Business Administration's successful Women's Business Center program. The bill will also strengthen the Office of Women's Business Ownership and will improve coordination between the Association of Women's Business Centers and the SBA.

Furthermore, this legislation allows Congress to increase funding for Women's Business Center programs, which I have been proud to advocate for with my colleague, Representative MARIE NEWMAN.

With these additional resources, the SBA will be able to advise and train more women entrepreneurs. I have seen the demand for such programs right in my community of Chester and Berks Counties.

In fact, this bipartisan effort is especially impactful for our Commonwealth of Pennsylvania, which has one of the highest numbers of women-owned businesses in the Nation. The time is now to build on that success.

I thank Small Business Committee Chair VELÁZQUEZ and Ranking Member LUETKEMEYER again for helping to bring this important bill to a vote before the House today. I urge my colleagues to join me and vote ''yes'' today on this bipartisan bill to support our small business owners.

Mr. LUETKEMEYER. Mr. Speaker, the WBC program has delivered for women-owned small businesses for many years. This legislation reauthorizes the program, increases accountability and oversight, and ensures the program continues to serve our entrepreneurs in the future.

I urge my colleagues to support H.R. 6441, and I yield back the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself the balance of my time.

Women are vital members of the Nation's critical small business community and the American economy. H.R. 6441 will modernize and strengthen SBA's WBC program so it can meet the moment and provide the necessary resources to women, particularly the ones driven out of the workforce during the pandemic.

Not only have Ms. DAVIDS and Ms. TENNEY continued to work to improve the WBC program, but they have expanded upon our efforts last Congress by addressing the challenges highlighted during the public health emergency. I thank them for this effort.

I urge my colleagues to vote ''yes,'' and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 6441.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

SCORE FOR SMALL BUSINESS ACT OF 2022

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6450) to amend the Small Business Act to reauthorize the SCORE program, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6450

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''SCORE for Small Business Act of 2022''.

SEC. 2. SCORE PROGRAM PROVISIONS AND REQUIREMENTS.

Section 8 of the Small Business Act (15 U.S.C. 637) is amended—

(1) in subsection (b)(1)(B)—

(A) by striking ''a Service Corps of Retired Executives (SCORE)'' and inserting ''the SCORE program described in subsection (c)''; and

(B) by striking ''SCORE may'' and inserting ''the SCORE Association (as defined in subsection (c)) may''; and

(2) by striking subsection (c) and inserting the following:

''(c) SCORE PROGRAM.—

''(1) DEFINITIONS.—In this subsection:

''(A) SCORE ASSOCIATION.—The term 'SCORE Association' means the Service Corps of Retired Executives Association or any successor or other organization that enters into a cooperative agreement (as described under paragraph (2)) with the Administrator to operate the SCORE program.

''(B) SCORE FOUNDATION.—The term 'SCORE Foundation' means an organization with a mission to support the SCORE Association and volunteers of the SCORE program.

''(C) SCORE PROGRAM.—The term 'SCORE program' means the SCORE program authorized by subsection (b)(1)(B).

''(2) COOPERATIVE AGREEMENT.—The Administrator shall enter into a cooperative agreement with the SCORE Association to carry out the SCORE program, which shall include the following requirements:

''(A) ADMINISTRATOR DUTIES.—The Administrator shall—

''(i) every 2 years, conduct a financial examination of the SCORE Association to ensure that any costs paid for with Federal funds are allowable, allocable, and reasonable;

''(ii) review and approve contracts entered into by the SCORE Association to provide goods or services for the SCORE program of a value greater than an amount determined by the Administrator;

''(iii) maintain a system through which the SCORE Association provides documentation relating to such contracts; and

''(iv) within 30 days of the receipt of a quarterly report on the achievements of the SCORE program submitted by the SCORE Association, reconcile differences between such report and the performance results of the SCORE program reported in a management information system of the Office of Entrepreneurial Development.

''(B) SCORE ASSOCIATION DUTIES.—The SCORE Association shall—

''(i) manage nationwide chapters of the SCORE program;

''(ii) provide annual training to employees of the SCORE Association on generating and using program income from the SCORE program;

''(iii) submit documentation to the Administrator verifying such annual training is completed;

''(iv) separate funds donated to the SCORE Association from program income and funds received pursuant to a cooperative agreement; and

''(v) maintain and enforce requirements for volunteers participating in the SCORE program, including requirements that each such volunteer shall—

''(I) based on the business experience and knowledge of the volunteer—

''(aa) provide personal counseling, mentoring, and coaching on the process of starting, expanding, managing, buying, and selling a business at no cost to individuals who own, or aspire to own, small business concerns; and

''(bb) facilitate free or low-cost education workshops for individuals who own, or aspire to own, small business concerns; and

''(II) as appropriate, use tools, resources, and expertise of other organizations to carry out the SCORE program.

''(C) JOINT DUTIES.—The Administrator, in consultation with the SCORE Association, shall ensure that the SCORE program and each chapter of the SCORE program—

''(i) develop and implement plans and goals to effectively and efficiently provide services to individuals in rural areas, economically disadvantaged communities, or other traditionally underserved communities, including plans for virtual, remote, and web-based initiatives, chapter expansion, partnerships, and the development of new skills by volunteers participating in the SCORE program; and

''(ii) reinforce an inclusive culture by recruiting diverse volunteers for the chapters of the SCORE program.

''(3) ONLINE COMPONENT.—In addition to providing in-person services, the SCORE Association shall maintain and expand online counseling services including webinars, electronic mentoring platforms, and online toolkits to further support entrepreneurs.

''(4) ACCOUNTING.—The SCORE Association shall—

''(A) maintain a centralized accounting and financing system for each chapter of the SCORE program;

''(B) maintain a uniform policy and procedures to manage Federal funds received pursuant to a cooperative agreement described in paragraph (2); and

''(C) maintain an employee of the SCORE Association to serve as a compliance officer to ensure expenditures of the SCORE program are fully compliant with any law, regulation, or cooperative agreement relating to the SCORE program.

''(5) COMPENSATION.—

''(A) SALARIES.—The salary of an employee of the SCORE Association may not exceed the equivalent of the maximum rate of pay allowable for an individual in the career Senior Executive Service employed at the Administration.

''(B) PERFORMANCE AWARDS.—The SCORE Association may spend up to 5 percent of the aggregate salaries of employees of the SCORE Association on individual performance awards to employees of the SCORE Association, to be disbursed before the last day of the fiscal year, if not later than 60 days before such disbursement the SCORE Association submits to the Administrator a report on the number and amount of such awards to be disbursed.

''(C) SCORE FOUNDATION.—A member of the Board of Directors of the SCORE Association or an employee of the SCORE Association may not simultaneously serve on the Board of Directors of, or receive compensation from, the SCORE Foundation without written approval from the Administrator.

''(6) WHISTLEBLOWER PROTECTION REQUIREMENTS.—The SCORE Association shall—

''(A) annually update all manuals or other documents applicable to employees and volunteers of the SCORE Association or the SCORE program to include requirements relating to reporting procedures and protectors for whistleblowers; and

''(B) conduct an annual training for employees and volunteers of the SCORE Association or the SCORE program on the requirements described in paragraph (1) and encourage the use of the hotline established by the Office of the Inspector General of the Small Business Administration to submit whistleblower reports.

''(7) PUBLISHED MATERIALS.—The SCORE Association shall ensure all published materials include written acknowledgment of Small Business Administration support of the SCORE program if such materials are paid for in whole or in part by Federal funds.

''(8) PRIVACY REQUIREMENTS.—

''(A) IN GENERAL.—Neither the Administrator nor the SCORE Association may disclose the name, address, or telephone number of any individual or small business concern receiving assistance from the SCORE Association without the consent of such individual or small business concern, unless—

''(i) the Administrator is ordered to make such a disclosure by a court in any civil or criminal enforcement action initiated by a Federal or State agency; or

''(ii) the Administrator determines such a disclosure is necessary for the purpose of conducting a financial audit of the SCORE program, in which case disclosure shall be limited to the information necessary for the audit.

''(B) ADMINISTRATOR USE OF INFORMATION.—This paragraph shall not—

''(i) restrict the access of the Administrator to SCORE program activity data; or

''(ii) prevent the Administrator from using SCORE program client information to conduct client surveys.

''(C) STANDARDS.—

''(i) IN GENERAL.—The Administrator shall, after the opportunity for notice and comment, establish standards for—

''(I) disclosures with respect to financial audits described under subparagraph (A)(ii); and

''(II) conducting client surveys, including standards for oversight of the surveys and for dissemination and use of client information.

''(ii) MAXIMUM PRIVACY PROTECTION.—The standards issued under this subparagraph shall, to the extent practicable, provide for the maximum amount of privacy protection.

''(9) ANNUAL REPORT.—Not later than 180 days after the date of the enactment of this subsection and annually thereafter, the Administrator shall submit to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives a report on the performance and effectiveness of the SCORE program, which may be included as part of another report submitted to such Committees by the Administrator, and which shall include—

''(A) the total number and the number of unique clients counseled or trained under the SCORE program;

''(B) the number of hours of counseling provided under the SCORE program;

''(C) the number of local workshops provided under the SCORE program;

''(D) the number of clients attending online and local workshops provided under the SCORE program;

''(E) to the extent practicable, the demographics of SCORE program clients and volunteers, which shall include the gender, race, and age of each such client or volunteer;

''(F) with respect to businesses assisted under the SCORE program, the cost to create a job, the cost to create a business, and return on investment;

''(G) the number of referrals of SCORE program clients to other resources and programs of the Administration;

''(H) the number of SCORE program clients receiving financial assistance, including the type and dollar amount, under loan programs of the Administration;

''(I) the results of SCORE program client satisfactory surveys, including a summary of any comments received from such clients;

''(J) the number of new businesses started up by SCORE program clients;

''(K) the number of such new businesses realizing revenue growth;

''(L) to the extent practicable, the number of jobs created with assistance from the SCORE program;

''(M) the total cost of the SCORE program;

''(N) any recommendations of the Administrator to improve the SCORE program; and

''(O) an explanation of how the SCORE program has been integrated with—

''(i) small business development centers;

''(ii) women's business centers (described under section 29);

''(iii) Veteran Business Outreach Centers 20 (described under section 32);

''(iv) other offices of the Administration; and

''(v) other public and private entities engaging in entrepreneurial and small business development.''.

SEC. 3. AUTHORIZATION OF APPROPRIATIONS FOR THE SCORE PROGRAM.

Section 20 of the Small Business Act (15 U.S.C. 631 note) is amended by adding at the end the following new subsection:

''(i) SCORE PROGRAM.—There are authorized to be appropriated to the Administrator to carry out the SCORE program authorized by section 8(b)(1) such sums as are necessary for the Administrator to make grants or enter into cooperative agreements in a total amount that does not exceed $13,500,000 in each of fiscal years 2022 and 2023.''.

SEC. 4. REPORTING REQUIREMENTS.

(a) STUDY AND REPORT ON THE FUTURE ROLE OF THE SCORE PROGRAM.—

(1) STUDY.—The SCORE Association shall carry out a study on the future role of the SCORE program and develop a strategic plan for how the SCORE program will meet the needs of small business concerns during the 5-year period beginning on the date of the enactment of this Act, with specific objectives for the first, third, and fifth years of such 5-year period.

(2) REPORT.—Not later than the end of the 6-month period beginning on the date of the enactment of this Act, the SCORE Association shall submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate a report containing—

(A) all findings and determination made in carrying out the study required under paragraph (1);

(B) the strategic plan developed under paragraph (1); and

(C) an explanation of how the SCORE Association plans to achieve the strategic plan, assuming both stagnant and increased funding levels.

(b) ADMINISTRATOR REPORT ON LEASED SPACE.—Not later than 1 year after the date of the enactment of this Act, the Administrator of the Small Business Administration shall submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate a report containing an assessment of the cost of leased space that is donated to the SCORE Association.

(c) ONLINE COMPONENT REPORT.—Not later than 3 months after the last day of the first full fiscal year following the date of the enactment of this Act, the SCORE Association shall submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate a report on the effectiveness of the online counseling services required under paragraph (3) of section 8(c) of the Small Business Act, as added by section 2 of this Act, including a description of—

(1) how the SCORE Association determines electronic mentoring and webinar needs, develops training for electronic mentoring, establishes webinar criteria curricula, and

evaluates webinar and electronic mentoring results;

(2) the internal controls that are used and a summary of the topics covered by the webinars; and

(3) performance metrics, including the number of small business concerns counseled by, the number of small business concerns created by, the number of jobs created and retained by, and the funding amounts directed towards such online counseling services.

SEC. 5. TECHNICAL AND CONFORMING AMENDMENTS.

(a) SMALL BUSINESS ACT.—The Small Business Act (15 U.S.C. 631 et seq.) is amended—

(1) in section 7 (15 U.S.C. 636)—

(A) in subsection (b)(12)—

(i) in the paragraph heading, by inserting ''PROGRAM'' after ''SCORE''; and

(ii) in subparagraph (A), by striking ''Service Corps of Retired Executives'' and inserting ''SCORE program''; and

(B) in subsection (m)(3)(A)(i)(VIII), by striking ''Service Corps of Retired Executives'' and inserting ''SCORE program''; and

(2) in section 22 (15 U.S.C. 649)—

(A) in subsection (b)—

(i) in paragraph (1), by striking ''Service Corps of Retired Executives'' and inserting ''SCORE program''; and

(ii) in paragraph (3), by striking ''Service Corps of Retired Executives'' and inserting ''SCORE program''; and

(B) in subsection (c)(12), by striking ''Service Corps of Retired Executives'' and inserting ''SCORE program''.

(b) OTHER LAWS.—

(1) SMALL BUSINESS REAUTHORIZATION ACT OF 1997.—Section 707 of the Small Business Reauthorization Act of 1997 (15 U.S.C. 631 note) is amended by striking ''Service Corps of Retired Executives (SCORE) program'' and inserting ''SCORE program (as defined in section 8(c)(1) of the Small Business Act)''.

(2) VETERANS ENTREPRENEURSHIP AND SMALL BUSINESS DEVELOPMENT ACT OF 1999.—Section 301 of the Veterans Entrepreneurship and Small Business Development Act of 1999 (15 U.S.C. 657b note) is amended by striking ''Service Core of Retired Executives'' and inserting ''SCORE program''.

(3) MILITARY RESERVIST AND VETERAN SMALL BUSINESS REAUTHORIZATION AND OPPORTUNITY ACT OF 2008.—Section 3(5) of the Military Reservist and Veteran Small Business Reauthorization and Opportunity Act of 2008 (15 U.S.C. 636 note) is amended by striking ''the Service Corps of Retired Executives'' and inserting ''the SCORE program''.

(4) CHILDREN'S HEALTH INSURANCE PROGRAM REAUTHORIZATION ACT OF 2009.—Section 621 of the Children's Health Insurance Program Reauthorization Act of 2009 (15 U.S.C. 657p) is amended—

(A) in subsection (a), by striking paragraph (4) and inserting the following:

''(4) the term 'SCORE program' means the SCORE program authorized by section 8(b)(1)(B) of the Small Business Act (15 U.S.C. 637(b)(1)(B));''; and

(B) in subsection (b)(4)(A)(iv), by striking ''Service Corps of Retired Executives'' and inserting ''SCORE program''.

(5) ENERGY POLICY AND CONSERVATION ACT.—Section 337(d)(2)(A) of the Energy Policy and Conservation Act (42 U.S.C. 6307(d)(2)(A)) is amended by striking ''Service Corps of Retired Executives (SCORE)'' and inserting ''SCORE program''.

SEC. 6. DEFINITIONS.

In this Act:

(1) ADMINISTRATION; ADMINISTRATOR.—The terms ''Administration'' and ''Administrator'' mean, respectively, the Small Business Administration and the Administrator thereof.

(2) SCORE ASSOCIATION; SCORE PROGRAM.—The terms ''SCORE Association'' and ''SCORE program'' have the meaning given those terms, respectively, under section 8(c)(1) of the Small Business Act, as added by section 2 of this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Missouri (Mr. LUETKEMEYER) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York (Ms. VELÁZQUEZ).

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 6450, the SCORE for Small Business Act of 2022.

America's nearly 30 million small businesses represent more than 99 percent of all businesses. Since its inception, the SBA has undertaken efforts to connect new entrepreneurs and small business owners with more experienced businessmen and -women.

SCORE, one component of SBA's resource partner ecosystem, is uniquely situated to make these connections. SCORE'S expansive network consists of entrepreneurs, business leaders, and executives who volunteer as mentors to small businesses and entrepreneurs, both in person and online.

SCORE volunteers provide personalized advice and pull from their personal business experience to help the next generation of business leaders. Providing consultation on topics such as business plan development, strategic marketing, and financing ideas, SCORE ensures their clients receive comprehensive counseling and training while meeting their individualized needs.

In 2020, through SCORE'S network of over 250 chapters and 10,000 volunteers, the program helped create over 45,000 new businesses and over 74,000 new jobs. In addition, SCORE had a return on Federal investment of over $67 for every $1 of Federal appropriations.

Increasing funding for SCORE is important to its continued success, and I am pleased that H.R. 6450 increases its authorization to $13.5 million for 2 fiscal years.

H.R. 6450 not only reauthorizes this essential program but also takes necessary steps to restore integrity, accounting, and performance to the program.

The measures in the bill to expand and promote client and volunteer diversity will ensure SCORE can reach all of America's small business owners and entrepreneurs, no matter their background or location.

I commend Representatives YOUNG KIM and ANGIE CRAIG for working together to make sure that the SCORE program is strengthened while maintaining efficient and effective operations.

Mr. Speaker, I urge Members to support this legislation, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

I rise in support today of H.R. 6450, the SCORE for Small Business Act.

SCORE is the largest network of free private-sector volunteer mentors. They provide entrepreneurs with trainings on starting a business; succession planning; and management, finance, and marketing tools.

SCORE mentors have helped small businesses pivot their business model during the pandemic. They have shared marketing and data analytics expertise to help entrepreneurs grow their customer base and counseled numerous startups on the first steps to begin a business.

In addition to reauthorizing the program, H.R. 6450 takes important strides to add new program safeguards, data standards, and reporting requirements.

I am confident the provisions of this bill will support small business, improve SBA's and Congress' oversight of the SCORE program, and ensure that the integrity of the SCORE Association is restored and maintained.

Congresswoman KIM is a great advocate for small businesses and their resource partners, and I appreciate her work on this legislation. I also thank Ms. CRAIG and the chair for advancing this legislation.

H.R. 6450 was favorably reported out of the Committee on Small Business unanimously and passed the House last Congress in a similar form. I urge my colleagues to similarly pass the bill today on the House floor.

Mr. Speaker, I reserve the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as she may consume to the gentlewoman from California (Mrs. KIM), the ranking member on the Small Business Subcommittee of Innovation, Entrepreneurship, and Workforce Development; a small business owner herself; and a great advocate for small businesses.

□ 1445

Mrs. KIM of California. Mr. Speaker, I thank Mr. LUETKEMEYER and Chairwoman VELÁZQUEZ for their leadership on the Small Business Committee.

Mr. Speaker, I rise in strong support of my legislation, H.R. 6450, the SCORE for Small Business Act of 2022. This bipartisan bill reauthorizes the SCORE program for fiscal years 2022 and 2023, and it will allow SCORE to expand counseling and training through online

webinars, electronic mentoring platforms, and online toolkits to better serve small businesses and entrepreneurs across U.S. communities, including the rural and underserved areas.

Additionally, this bill would better protect taxpayers' dollars through oversight mechanisms. Since 1964, SCORE has helped over 11 million entrepreneurs to establish, expand, or service a small business. Since the COVID–19 pandemic began early 2020, SCORE has seen a 30 percent increase in demand for their services. Despite challenges faced, 89 percent of SCORE clients stayed in business throughout 2020.

In 2021, the SCORE chapter in Orange County in my district helped start 269 new small businesses and create nearly 4,000 jobs. In 2019, prior to the pandemic, Orange County SCORE delivered 11,154 total services. In 2021, they delivered 25,146 total services. This is a 125 percent increase and over double the rate of pre-pandemic levels.

Thanks to the volunteers and mentors in SCORE, countless small businesses in my district have been able to keep their businesses running and keep their employees on their payroll.

Mr. Speaker, I thank my colleague, Representative CRAIG, for her partnership on this. I urge all my colleagues to vote ''yes'' on H.R. 6450 and allow SCORE to continue this public-private partnership to support small businesses across the country.

Ms. VELÁZQUEZ. Mr. Speaker, I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, small businesses consistently highlight the importance of resources to grow their business and serve their communities.

The private sector driven SCORE mentorship program is an important tool for small businesses seeking assistance and guidance during these challenging economic times.

Mr. Speaker, I encourage my colleagues to support H.R. 6450, and I yield back the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the SCORE program has made good progress improving the transparency, accountability, and efficacy of their organization. Today's legislation builds upon that progress so that a critical program can succeed well into the future.

SCORE is unique among SBA's resource partners in that they connect clients directly with successful business mentors who have firsthand experience and knowledge to help them with their unique situations.

H.R. 6450 will expand SCORE's ability to reach more small business owners and entrepreneurs, particularly those in underserved and rural communities while maintaining the program improvements SCORE has worked hard to develop.

Mr. Speaker, I thank my colleagues for their bipartisan support of the SCORE program. I urge my colleagues to vote ''yes'', and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 6450.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

ONE STOP SHOP FOR SMALL BUSINESS COMPLIANCE ACT OF 2021

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4877) to amend the Small Business Act to require the Small Business and Agriculture Regulatory Enforcement Ombudsman to create a centralized website for compliance guides, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4877

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''One Stop Shop for Small Business Compliance Act of 2021''.

SEC. 2. CENTRALIZED WEBSITE FOR COMPLIANCE GUIDES.

Section 30 of the Small Business Act (15 U.S.C. 657) is amended by adding at the end the following new subsections:

''(e) CENTRALIZED WEBSITE.—Not later than 6 months after the date of the enactment of this subsection, the Ombudsman shall maintain a publicly available website that includes—

''(1) hyperlinks to small entity compliance guides described under section 212(a)(1) of the Small Business Regulatory Enforcement Fairness Act of 1996; and

''(2) with respect to each such small entity compliance guide, the contact information for an individual who can offer assistance to small entities with respect to the rules that are the subject of such guide.

''(f) REPORT ON AGENCY COMPLIANCE.—The Ombudsman shall include in the annual report required under subsection (b)(2)(C) an assessment of agency compliance with the requirements of section 212 of the Small Business Regulatory Enforcement Fairness Act of 1996 for the year covered by such annual report.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Missouri (Mr. LUETKEMEYER) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 4877, the One Stop Shop for Small Business Compliance Act of 2021, which will require SBA's Office of the National Ombudsman to maintain a centralized website for regulatory compliance guides.

Federal agencies are required by the Small Business Regulatory Enforcement Fairness Act to publish small entity compliance guides for each rule requiring a regulatory flexibility analysis.

These compliance guides are meant to explain Federal rules in easy-to-understand terms for small businesses and help them comply with Federal regulations that protect our environment, health, and consumer safety. However, small businesses do not always have the resources to navigate multiple agencies' websites to find these guides.

H.R. 4877 will ensure the Office of the National Ombudsman maintains an updated centralized website containing links to each agency's small business compliance guides and their relevant points of contact.

This simple step will significantly reduce the administrative burden on entrepreneurs, make compliance easier, and allow them to spend more time doing what they do best—running their businesses and creating jobs.

Mr. Speaker, I thank Representatives DELGADO and VAN DUYNE for working in a bipartisan manner to advance this bill to assist small businesses across the country.

Mr. Speaker, I urge my colleagues to support this bipartisan bill, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 4877, the One Stop Shop for Small Business Compliance Act of 2021.

Federal agencies are required to publish small business compliance guides for certain regulations. Presently, these guides are housed in different agency websites making it difficult for small businesses to find and utilize.

This bipartisan legislation will create a one-stop-shop that will make it easier for small businesses to comply with Federal regulations. This bill will also require the centralized website to list contact information for the appropriate agency staff who could provide regulatory assistance to small businesses.

Mr. Speaker, I commend the gentleman from New York (Mr. DELGADO) and the gentlewoman from Texas (Ms. VAN DUYNE) for working in tandem to bring this issue to the forefront.

H.R. 4877 passed out of committee by a voice vote and similar language passed the House floor in the 116th Congress. I encourage all Members to support this legislation.

Mr. Speaker, I reserve the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield 3 minutes to the gentleman from New York (Mr. DELGADO).

Mr. DELGADO. Mr. Speaker, we all know that the past couple of years have been difficult on small businesses. COVID–19 upended life as we knew it. While America is turning a corner from the perspective of public health, the pandemic's aftershocks are still raising costs, scrambling supply chains, and disrupting labor markets.

That is what I heard from folks in Cooperstown last month when I invited the SBA administrator to tour Main Street with me. That is what I heard a few days ago when I visited small businesses in Tannersville in Greene County. That is what I regularly hear from small businessowners at my townhall meetings across the district. That is why Congress should be doing everything it can to reduce burdens on small business owners. That is what my bipartisan bill, the One Stop Shop for Small Business Compliance Act, would do.

In 1996, Congress passed a law requiring Federal agencies to publish easy-to-use regulation compliance guides for small businesses; a good idea that was poorly implemented.

The problem is, these guides are housed on different agency websites, making it difficult for small businesses to find and utilize them. If you want to find something for OSHA, you have to go to the OSHA website. If you want to find FTC's compliance guide, you go look around at FTC.gov. These guides are scattered across countless government websites.

My bill is simple, it would require the Small Business Administrator's Office of the National Ombudsman to create a centralized website that houses all Federal agency compliance guides in one place.

By creating a one-stop-shop online, we make these guides more accessible for small business owners who often lack the resources to hire staff to focus on compliance issues. The platform would also list contact information for the appropriate agency staff who could provide regulatory assistance to small businesses.

Small businesses are essential elements of the economic and social fabric of upstate New York. I am proud to cosponsor this legislation which will make it easier, not harder, for folks back home to run their businesses and access resources from the Federal Government.

Mr. Speaker, I thank Congresswoman BETH VAN DUYNE for her partnership on this bipartisan, commonsense legislation. I thank Chairwoman VELÁZQUEZ and Ranking Member LUETKEMEYER for their support, and I urge my colleagues to support this bill.

Mr. LUETKEMEYER. Mr. Speaker, in closing, having the rules of the road clearly and succinctly in one location for all small business owners is instrumental. The One Stop Shop for Small Business Compliance Act of 2021 will ensure this occurs at the SBA.

Mr. Speaker, I thank the Chair for advancing this legislation that better informs the Nation's small businesses, and I urge my colleagues to support it.

Mr. Speaker, I yield back the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, in closing, small employers have experienced great hardships throughout the pandemic, but today we have the opportunity to make it easier, not harder, to comply with Federal regulations.

The ombudsman's centralized website will streamline the compliance process for small businesses and ensure they have the most accurate and updated information.

I thank the committee members for their diligence in advancing this piece of legislation. I urge my colleagues to vote ''yes'', and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 4877.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

□ 1500

SMALL BUSINESS ADVOCACY IMPROVEMENTS ACT OF 2022

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6454) to clarify the primary functions and duties of the Office of Advocacy of the Small Business Administration, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6454

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Small Business Advocacy Improvements Act of 2022''.

SEC. 2. AMENDMENT TO PRIMARY FUNCTIONS AND DUTIES OF THE OFFICE OF ADVOCACY OF THE SMALL BUSINESS ADMINISTRATION.

(a) PRIMARY FUNCTIONS.—Section 202 of Public Law 94–305 (15 U.S.C. 634b) is amended—

(1) in paragraph (1), by inserting ''and the international economy'' after ''economy'';

(2) in paragraph (9), by striking ''complete'' and inserting ''compete''; and

(3) in paragraph (12), by striking ''serviced-disabled'' and inserting ''service-disabled''.

(b) DUTIES.—Section 203(a) of Public Law 94–305 (15 U.S.C. 634c) is amended—

(1) in paragraph (5), by striking ''and'' at the end;

(2) in paragraph (6), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(7) represent the views and interests of small businesses before foreign governments and international entities for the purpose of contributing to regulatory and trade initiatives which may affect small businesses.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Missouri (Mr. LUETKEMEYER) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 6454, the Small Business Advocacy Improvements Act of 2022.

Established in 1976, SBA's Office of Advocacy is the independent voice for small businesses within the Federal Government. The office oversees the enforcement of the Regulatory Flexibility Act and is a source for statistics and research on matters pertaining to small businesses. Over the years, the Office of Advocacy's responsibilities have expanded, and participation in international regulatory cooperation and trade initiatives that impact small businesses is becoming increasingly important.

H.R. 6454 makes it clear that the Office of Advocacy has the authority to examine international economic data and represent small businesses in international discussions, particularly in trade negotiations.

I thank the ranking member and Mr. CARTER for their bipartisan work on this bill.

Mr. Speaker, I urge my colleagues to support this legislation, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 6454, the Small Business Advocacy Improvements Act of 2022.

The Nation's regulatory environment directly impacts small businesses and America's entrepreneurs. With limited resources and staff, small business owners are often wearing many hats throughout the entire workday, including ensuring compliance with all Federal regulations. Now more than ever, small businesses, entrepreneurs, and startups need a strong advocate in Washington supporting them when it comes to regulations.

My bill, which was favorably reported out of committee by a voice vote, will improve and enhance the Office of Advocacy. H.R. 6454 will ensure the office is able to speak on international and trade matters.

In addition to passing out of committee earlier this year, this legislation also passed the House floor by voice vote in the 116th Congress. Congress has the ability to structurally enhance an executive branch office that

operates independently and reinforce it on behalf of small businesses.

I thank my colleague, Representative TROY CARTER from Louisiana, for working with me in a bipartisan manner to improve the SBA's Office of Advocacy. I also thank the chair for helping bring this legislation forward.

Mr. Speaker, I recommend a ''yes'' vote on this bill that puts America's small businesses first.

Mr. Speaker, I have no further speakers, I am prepared to close, and I reserve the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I am prepared to close, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, as I mentioned earlier, the Nation is getting ready to celebrate National Small Business Week. This will be a time to honor and recognize Main Street USA. Additionally, it will be a time to hear from them about what is impacting their operations and what Congress can do to further support them.

The five small business bills before us today take steps to enhance and support programs at the Small Business Administration, which is the sole Federal agency that was created to assist the Nation's smallest firms.

Mr. Speaker, I thank the chair for working in a bipartisan manner to advance all these bills. I urge a ''yes'' vote on all of them, including H.R. 6454, and I yield back balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, SBA's Office of Advocacy works to ensure that small business interests are heard at all levels of government because, too often, their voices are drowned out by larger companies with sophisticated legal departments and armies of lobbyists.

Now as the world becomes more and more connected, participating in the global economy is vital to small businesses' success. In order to do that, they need a strong voice advocating on their behalf. H.R. 6454 will allow the office to advocate on behalf of small businesses in international discussions, trade negotiations, and examine international economic data.

Mr. Speaker, I urge my colleagues to vote ''yes,'' and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 6454.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

BROWN V. BOARD OF EDUCATION NATIONAL HISTORICAL PARK EXPANSION AND REDESIGNATION ACT

Mr. GRIJALVA. Mr. Speaker, I move to suspend the rules and pass the bill (S. 270) to amend the Act entitled ''Act to provide for the establishment of the Brown v. Board of Education National Historic Site in the State of Kansas, and for other purposes'' to provide for inclusion of additional related sites in the National Park System, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 270

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Brown v. Board of Education National Historical Park Expansion and Redesignation Act''.

SEC. 2. REDESIGNATION OF THE BROWN V. BOARD OF EDUCATION NATIONAL HISTORICAL PARK.

(a) IN GENERAL.—The Brown v. Board of Education National Historic Site established by section 103(a) of Public Law 102–525 (106 Stat. 3439) shall be known and designated as the ''Brown v. Board of Education National Historical Park''.

(b) REFERENCES.—Any reference in any law, regulation, document, record, map, or other paper of the United States to the Brown v. Board of Education National Historic Site shall be considered to be a reference to the ''Brown v. Board of Education National Historical Park''.

(c) CONFORMING AMENDMENTS.—Title I of Public Law 102–525 (106 Stat. 3438) is amended—

(1) in the title heading, by striking ''**HISTORIC SITE**'' and inserting ''**HISTORICAL PARK**'';

(2) in sections 101(2) and 103(a), by striking ''National Historic Site'' each place it appears and inserting ''National Historical Park'';

(3) in the section heading for each of sections 103 and 105, by striking ''**HISTORIC SITE**'' each place it appears and inserting ''**HISTORICAL PARK**''; and

(4) by striking ''historic site'' each place it appears and inserting ''historical park''.

SEC. 3. EXPANSION OF THE BROWN V. BOARD OF EDUCATION NATIONAL HISTORICAL PARK AND ESTABLISHMENT OF AFFILIATED AREAS.

(a) PURPOSE.—The purpose of this section is to honor the civil rights stories of struggle, perseverance, and activism in the pursuit of education equity.

(b) DEFINITIONS.—Section 101 of Public Law 102–525 (106 Stat. 3438) (as amended by section 2(c)) is amended—

(1) in the matter preceding paragraph (1), by striking ''As used in this title—'' and inserting ''In this title:'';

(2) in paragraph (1), by striking ''the term'' and inserting the ''The term'';

(3) in each of paragraphs (1) and (2), by inserting a paragraph heading, the text of which is comprised of the term defined in that paragraph;

(4) by redesignating paragraphs (1) and (2) as paragraphs (3) and (2), respectively, and moving the paragraphs so as to appear in numerical order; and

(5) by inserting before paragraph (2) (as so redesignated) the following:

''(1) AFFILIATED AREA.—The term 'affiliated area' means a site associated with a court case included in Brown v. Board of Education of Topeka described in paragraph (8), (9), or (10) of section 102(a) that is designated as an affiliated area of the National Park System by section 106(a).''.

(c) FINDINGS.—Section 102(a) of Public Law 102–525 (106 Stat. 3438) is amended—

(1) by redesignating paragraphs (3) and (4) as paragraphs (5) and (6), respectively;

(2) by inserting after paragraph (2), the following:

''(3) The Brown case was joined by 4 other cases relating to school segregation pending before the Supreme Court (Briggs v. Elliott, filed in South Carolina, Davis v. County School Board of Prince Edward County, filed in Virginia, Gebhart v. Belton, filed in Delaware, and Bolling v. Sharpe, filed in the District of Columbia) that were consolidated into the case of Brown v. Board of Education of Topeka.

''(4) A 1999 historic resources study examined the 5 cases included in Brown v. Board of Education of Topeka and found that each case—

''(A) is nationally significant; and

''(B) contributes unique stories to the case for educational equity.''; and

(3) by inserting after paragraph (6) (as so redesignated), the following:

''(7) With respect to the case of Briggs v. Elliott—

''(A) Summerton High School in Summerton, South Carolina, the all-White school that refused to admit the plaintiffs in the case—

''(i) has been listed on the National Register of Historic Places in recognition of the national significance of the school; and

''(ii) is used as administrative offices for Clarendon School District 1; and

''(B) the former Scott's Branch High School, an 'equalization school' in Summerton, South Carolina constructed for African-American students in 1951 to provide facilities comparable to those of White students, is now the Community Resource Center owned by Clarendon School District 1.

''(8) Robert Russa Moton High School, the all-Black school in Farmville, Virginia, which was the location of a student-led strike leading to Davis v. County School Board of Prince Edward County—

''(A) has been designated as a National Historic Landmark in recognition of the national significance of the school; and

''(B) is now the Robert Russa Moton Museum, which is administered by the Moton Museum, Inc., and affiliated with Longwood University.

''(9) With respect to the case of Belton v. Gebhart—

''(A) Howard High School in Wilmington, Delaware, an all-Black school to which the plaintiffs in the case were forced to travel—

''(i) has been designated as a National Historic Landmark in recognition of the national significance of the school; and

''(ii) is now the Howard High School of Technology, an active school administered by the New Castle County Vocational-Technical School District;

''(B) the all-White Claymont High School, which denied admission to the plaintiffs, is now the Claymont Community Center administered by the Brandywine Community Resource Council, Inc.; and

''(C) the Hockessin School #107C (Hockessin Colored School)—

''(i) is the all-Black school in Hockessin, Delaware, that 1 of the plaintiffs in the case was required to attend with no public transportation provided; and

''(ii) is now used as a community facility by Friends of Hockessin Colored School #107, Inc.

''(10) John Philip Sousa Junior High School in the District of Columbia, the all-

White school that refused to admit plaintiffs in Bolling v. Sharpe—

''(A) has been designated as a National Historic Landmark in recognition of the national significance of the school;

''(B) is now known as the 'John Philip Sousa Middle School'; and

''(C) is owned by the District of Columbia Department of General Services and administered by the District of Columbia Public Schools.''.

(d) PURPOSES.—Section 102(b)(3) of Public Law 102–525 (106 Stat. 3438) is amended—

(1) by inserting '', protection,'' after ''preservation'';

(2) by striking ''the city of Topeka'' and inserting ''Topeka, Kansas, Summerton, South Carolina, Farmville, Virginia, Wilmington, Claymont, and Hockessin, Delaware, and the District of Columbia''; and

(3) by inserting ''and the context of Brown v. Board of Education'' after ''civil rights movement''.

(e) BOUNDARY ADJUSTMENT.—Section 103 of Public Law 102–525 (106 Stat. 3439) is amended by adding at the end the following:

''(c) BOUNDARY ADJUSTMENT.—

''(1) ADDITIONS.—In addition to the land described in subsection (b), the historical park shall include the land and interests in land, as generally depicted on the map entitled 'Brown v. Board of Education National Historical Park Boundary Additions and Affiliated Areas', numbered 462/178,449, and dated February 2022, and more particularly described as—

''(A) the Summerton High School site in Summerton, Clarendon County, South Carolina;

''(B) the former Scott's Branch High School site in Summerton, Clarendon County, South Carolina; and

''(C) approximately 1 acre of land adjacent to Monroe Elementary School in Topeka, Shawnee County, Kansas.

''(2) MAP.—The map described in paragraph (1) shall be on file and available for public inspection in the appropriate offices of the National Park Service.''.

(f) PROPERTY ACQUISITION.—Section 104 of Public Law 102–525 (106 Stat. 3439) is amended—

(1) in the first sentence, by striking ''section 103(b)'' and inserting ''subsections (b) and (c) of section 103'';

(2) in the second sentence, by striking ''States of Kansas'' and inserting ''State of Kansas or South Carolina''; and

(3) in the proviso—

(A) by striking '': *Provided, however*, That the'' and inserting ''. The''; and

(B) by inserting ''or by condemnation of any land or interest in land within the boundaries of the historical park'' after ''without the consent of the owner''.

(g) GENERAL MANAGEMENT PLAN.—Section 105 of Public Law 102–525 (106 Stat. 3439) is amended by striking subsection (c) and inserting the following:

''(c) AMENDMENT TO GENERAL MANAGEMENT PLAN.—The Secretary shall prepare and submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives an amendment to the management plan for the historical park to include the portions of the historical park in Summerton, Clarendon County, South Carolina.''.

(h) AFFILIATED AREAS.—Public Law 102–525 (106 Stat. 3438) is amended—

(1) by redesignating section 106 as section 107; and

(2) by inserting after section 105 the following:

''SEC. 106. ESTABLISHMENT OF THE BROWN V. BOARD OF EDUCATION AFFILIATED AREAS.

''(a) IN GENERAL.—On the date on which the Secretary determines that an appropriate management entity has been identified for the applicable affiliated area, as generally depicted on the map described in section 103(c)(1), the following shall be established as affiliated areas of the National Park System:

''(1) The Robert Russa Moton Museum in Farmville, Virginia.

''(2) The Delaware Brown v. Board of Education Civil Rights Sites, to include—

''(A) the former Howard High School in Wilmington, Delaware;

''(B) Claymont High School in Claymont, Delaware; and

''(C) Hockessin Colored School #107 in Hockessin, Delaware.

''(3) The John Philip Sousa Middle School in the District of Columbia.

''(b) ADMINISTRATION.—Each affiliated area shall be managed in a manner consistent with—

''(1) this title; and

''(2) the laws generally applicable to units of the National Park System.

''(c) MANAGEMENT PLANS.—

''(1) IN GENERAL.—The Secretary, in consultation with the management entity for the applicable affiliated area, shall develop a management plan for each affiliated area.

''(2) REQUIREMENTS.—A management plan under paragraph (1) shall—

''(A) be prepared in consultation and coordination with interested State, county, and local governments, management entities, organizations, and interested members of the public associated with the affiliated area;

''(B) identify, as appropriate, the roles and responsibilities of the National Park Service and the management entity in administering and interpreting the affiliated area in a manner that does not interfere with existing operations and continued use of existing facilities; and

''(C) require the Secretary to coordinate the preparation and implementation of the management plan and interpretation of the affiliated area with the historical park.

''(3) PUBLIC COMMENT.—The Secretary shall—

''(A) hold not less than 1 public meeting in the general proximity of each affiliated area on the proposed management plan, which shall include opportunities for public comment; and

''(B)(i) publish the draft management plan on the internet; and

''(ii) provide an opportunity for public comment on the draft management plan.

''(4) SUBMISSION.—Not later than 3 years after the date on which funds are made available to carry out this section, the Secretary shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives the management plan for each affiliated area developed under paragraph (1).

''(d) COOPERATIVE AGREEMENTS.—The Secretary may provide technical and financial assistance to, and enter into cooperative agreements with, the management entity for each affiliated area to provide financial assistance for the marketing, marking, interpretation, and preservation of the applicable affiliated area.

''(e) LAND USE.—Nothing in this section affects—

''(1) land use rights of private property owners within or adjacent to an affiliated area, including activities or uses on private land that can be seen or heard within an affiliated area; or

''(2) the authority of management entities to operate and administer the affiliated areas.

''(f) LIMITED ROLE OF THE SECRETARY.—

''(1) IN GENERAL.—Nothing in this section authorizes the Secretary—

''(A) to acquire land in an affiliated area; or

''(B) to assume financial responsibility for the operation, maintenance, or management of an affiliated area.

''(2) OWNERSHIP.—Each affiliated area shall continue to be owned, operated, and managed by the applicable public or private owner of the land in the affiliated area.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of S. 270, the Brown v. Board of Education National Historic Site Expansion Act. This bipartisan bill would rename the Brown v. Board of Education National Historic Site in the State of Kansas as the Brown v. Board of Education National Historic Park.

It would also expand the park to include four affiliated sites in South Carolina, Virginia, Delaware, and the District of Columbia relating to court cases on school desegregation that were consolidated into the Supreme Court case of Brown v. Board of Education of Topeka, an acknowledgment that I think is important of the entire list of plaintiffs in that historic court decision.

This legislative effort will continue to elevate the important stories and education of the civil rights movement through these affiliated sites and national historic park designation.

This bipartisan bill passed the Senate with an amendment by voice vote in April. The House companion legislation is sponsored by our colleague from South Carolina, the majority whip, Representative JAMES CLYBURN.

Earlier this Congress, the House Natural Resources Committee held a hearing on his bill and ordered it favorably reported by unanimous consent.

Mr. Speaker, I thank Representative CLYBURN for championing this bill, and I urge my colleagues to support its adoption. I reserve the balance of my time.

Mr. BENTZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I acknowledge that last week we celebrated National Park Week. Each April we celebrate our national parks and invite every American

to get out and actually experience them.

My home State of Oregon harbors five units of the National Park System: Crater Lake National Park, Fort Vancouver National Historic Site, the John Day Fossil Beds National Monument, Nez Perce National Historical Park, and Oregon Caves National Monument and Preserve. I look forward to at least the next century of visitors discovering Oregon's parks and everything Oregon has to offer.

In recent years the National Park Service has made a concerted effort to provide a more inclusive look at American history to ensure that our parks tell the stories of all Americans. I applaud the National Park Service for its effort to make all Americans feel welcome and included in our National Park System.

S. 270, the Brown v. Board of Education Historic Site Expansion Act, adds to the Brown v. Board of Education National Historic Site currently located in Topeka, Kansas, so that it would include additional sites in South Carolina, Virginia, Delaware, and the District of Columbia each as an affiliated area.

This bill will help to recognize and preserve sites associated with the Brown v. Board of Education of Topeka case, which resulted in a landmark Supreme Court ruling that racial segregation of public schools is unconstitutional. We owe a huge debt of gratitude to the students, parents, and lawyers whose extraordinary courage and vision led to the dismantling of the separate but equal doctrine.

Mr. Speaker, I urge adoption of S. 270, and I look forward to its being signed into law. I reserve the balance of my time.

Mr. GRIJALVA. Mr. Speaker, I yield such time as he may consume to the gentleman from South Carolina (Mr. CLYBURN.)

Mr. CLYBURN. Mr. Speaker, I thank the gentleman for yielding me this time.

Mr. Speaker, I rise today in support of S. 270, the Brown v. Board of Education National Historic Site Expansion Act. I thank Senator CHRIS COONS for his leadership securing the Senate's unanimous support for passage of this important legislation earlier this month. I am proud to lead the legislation here in the House along with our bipartisan cosponsors, Congresswoman LISA BLUNT ROCHESTER, Congresswoman ELEANOR HOLMES NORTON, and Congressman BOB GOOD.

As a former teacher of history and a student of history, I believe in the value of learning from our past. Many Americans don't know that the landmark Brown v. Board of Education Supreme Court decision, that desegregated public schools in 1954, combined legal challenges from four States and the District of Columbia. I represent one of those States and was fortunate to know some of the petitioners from Clarendon County, South Carolina, who challenged the separate but equal laws. Many of their photographs hang in my congressional office.

In 2004, I wrote, in cooperation with the Palmetto Conservation Foundation, the book ''Uncommon Courage: The Story of Briggs v. Elliott, South Carolina's Unsung Civil Rights Battle.'' That same year, I was proud to lead the effort to present the Congressional Gold Medal of Honor to the leaders of that challenge—Harry and Eliza Briggs, Levi Pearson, and Reverend Joseph A. DeLaine.

Their case, Briggs v. Elliott, was the first of those cases that later became Brown v. Board. The subsequent cases were in Delaware, Virginia, Washington, D.C., and, of course, Topeka, Kansas.

Today there is a National Parks site that was created by Congress in 1992 in Topeka that tells the story of the ordinary people who took this extraordinary action to ensure their children had equal educational opportunities. However, the other communities involved in this historic effort have no National Park Service presence acknowledging their contributions.

This legislation will right that wrong. It expands the Brown v. Board of Education National Historic Site to include locations in each of the communities that were part of the lawsuit. When writing this legislation, I worked with the National Trust Fund for Historic Preservation who engaged with the communities that would be impacted to solicit their input.

□ 1515

With the enactment of this legislation, the Brown v. Board of Education National Historic Site will become more than the Monroe School building in Topeka. It will add the Summerton School and Scott's Branch School in Summerton, South Carolina, to represent the Briggs v. Elliott case; the Hockessin Colored School No. 107 and Howard High School in Wilmington, Delaware, to represent Belton v. Gebhart; the former Robert Russa Moton High School, now a museum, in Farmville, Virginia, to represent Davis v. County School Board of Prince Edward County; and the John Philip Sousa Junior High School in the District of Columbia to represent Boiling v. Sharpe.

Each of these sites will tell the story of how these communities fought to overturn the 1896 Plessy v. Ferguson decision that established the separate but equal doctrine. When Brown v. Board of Education overturned that decision and ended generations of inadequate education for Black children, constitutional scholar Louis H. Pollak hailed it as ''probably the most important American Government act of any kind since the Emancipation Proclamation.''

Mr. Speaker, I urge all Members of this august body to follow the Senate's lead and vote in favor of expanding the Brown v. Board of Education National Historic Site to ensure that all the communities that contributed to this landmark decision receive proper recognition.

Having geographically dispersed historic sites that tell this great story will enable more students to learn from the past and understand the importance of making America's greatness accessible and affordable to all.

Mr. BENTZ. Mr. Speaker, I urge support of this bill, and I yield back the balance of my time.

Mr. GRIJALVA. Mr. Speaker, let me thank Representative CLYBURN for his comments and for reaffirming that our national identity is driven by our history and that history is something that all of us need to learn.

Mr. Speaker, I urge support of this legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, S. 270.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

HIGHLANDS CONSERVATION REAUTHORIZATION ACT OF 2022

Mr. GRIJALVA. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 2793) to reauthorize the Highlands Conservation Act, to authorize States to use funds from that Act for administrative purposes, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2793

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Highlands Conservation Reauthorization Act of 2022''.

SEC. 2. REAUTHORIZATION OF THE HIGHLANDS CONSERVATION ACT.

The Highlands Conservation Act (Public Law 108–421; 118 Stat. 2375) is amended—

(1) in section 3—

(A) by amending paragraph (1) to read as follows:

''(1) HIGHLANDS REGION.—The term 'Highlands region' means—

''(A) the area depicted on the map entitled 'The Highlands Region', dated June 2004, updated after the date of enactment of the Highlands Conservation Reauthorization Act of 2022 to comprise each municipality included on the list of municipalities included in the Highlands region as of that date of enactment, and maintained in the headquarters of the Forest Service in Washington, District of Columbia; and

''(B) a municipality approved by the Director of the United States Fish and Wildlife Service under section 4(e).'';

(B) in paragraph (3), by amending subparagraph (B) to read as follows:

''(B) identified by a Highlands State as having high conservation value using the best available science and geographic information systems; and'';

(C) in paragraph (4)(A), by striking ''; or'' and inserting '', including a political subdivision thereof; or''; and

(D) by striking paragraphs (5) through (7);

(2) in section 4—

(A) in subsection (a)(1), by striking ''in the Study'' and all that follows through the end of the paragraph and inserting ''using the best available science and geographic information systems; and'';

(B) in subsection (c), by amending paragraph (5) to read as follows:

''(5) provides that land conservation partnership projects will be consistent with areas identified as having high conservation value in accordance with the purposes described in section 2 in the Highlands region.'';

(C) in subsection (e), by striking ''fiscal years 2005 through 2021'' and inserting ''fiscal years 2023 through 2029'';

(D) by redesignating subsection (e) as subsection (g); and

(E) by inserting after subsection (d) the following:

''(e) REQUEST FOR INCLUSION OF ADDITIONAL MUNICIPALITY.—The Director of the United States Fish and Wildlife Service may, at the request of a Highlands State, with the concurrence of the municipality, approve the inclusion of a municipality within the State as part of the Highlands region.

''(f) LIMITATION ON ADMINISTRATIVE EXPENSES.—

''(1) FEDERAL ADMINISTRATION.—The Secretary of the Interior may not expend more than $300,000 for the administration of this Act in each fiscal year.

''(2) STATE ADMINISTRATION.—A State that receives funds under this section for a land conservation partnership project may not use more than 5 percent of the funds to administer the land conservation partnership project.'';

(3) in section 5—

(A) in subsection (a), by striking ''the Study, Update, and any future study that the Forest Service may undertake in'';

(B) in subsection (b)—

(i) in paragraph (1), by striking '', including a Pennsylvania and Connecticut Update''; and

(ii) in paragraph (2), by striking ''the findings'' and all that follows through the end of the paragraph and inserting ''with stakeholders regarding implementation of the program; and''; and

(C) in subsection (c), by striking ''2005 through 2014'' and inserting ''2023 through 2029''; and

(4) in section 6, by adding at the end the following:

''(f) APPRAISAL METHODOLOGY.—

''(1) IN GENERAL.—With respect to an appraisal related to a land acquisition carried out under this Act, a Highlands State shall use an appraisal methodology approved by the Secretary of the Interior.

''(2) ALTERNATIVE APPRAISAL METHODOLOGY.—A Highlands State may petition the Secretary of the Interior to consider an alternative appraisal methodology when there is a conflict, in any Highlands State, between—

''(A) an appraisal methodology approved by the Secretary of the Interior under paragraph (1); and

''(B) applicable State law.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 2793, the Highlands Conservation Reauthorization Act, is led by my colleague, Representative SEAN PATRICK MALONEY. The bill reauthorizes funding for the U.S. Fish and Wildlife Service and the U.S. Forest Service to protect and conserve the Highlands region.

The beautiful Highlands region spans 3.4 million acres across Connecticut, New Jersey, New York, and Pennsylvania.

This area has retained its splendor due in part to the passage of the Highlands Conservation Act of 2004, which authorized the Fish and Wildlife Service and the Forest Service to work with State and local governments and NGOs to conserve this ecosystem.

Since 2004, $28 million in Federal funds, matched by $53 million in non-Federal funds, have permanently protected almost 13,000 acres of land. These lands protect clean, safe drinking water; sustain healthy forests and wildlife populations; encourage productive agriculture; and provide quality recreation opportunities for the public.

I commend my colleague for his leadership on this bipartisan bill to reauthorize the Highlands Conservation Act and ensure the continued success of this program.

Mr. Speaker, I urge my colleagues to support the legislation, and I reserve the balance of my time.

Mr. BENTZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 2793, a bipartisan bill sponsored by Congressman SEAN PATRICK MALONEY of New York, to reauthorize the Highlands Conservation Act.

The stated purpose of the Highlands Conservation Act, which was signed into law in 2004, is ''to recognize the importance of the water, forest, agricultural, wildlife, recreational, and cultural resources of the Highlands region,'' which, as was indicated, spans some 3.4 million acres across Connecticut, New York, New Jersey, and Pennsylvania, ''and the national significance of the Highlands region to the United States.''

Under the current authorization, the Governors of these States identify conservation partnership projects in the region and submit a list annually to the Secretary of the Interior, who is tasked with working with the Secretary of Agriculture to submit a final list to Congress for approval and funding.

H.R. 2793 would reauthorize the Highlands Conservation Act and allow municipalities to enter into conservation agreements with the Department of the Interior. This bill is the product of bipartisan negotiations with the Committee on Natural Resources.

Mr. Speaker, I urge adoption of this bill, and I reserve the balance of my time.

Mr. GRIJALVA. Mr. Speaker, I yield such time as he may consume to the gentleman from New York (Mr. SEAN PATRICK MALONEY) and thank him for being the driving force in bringing this legislation to this point.

Mr. SEAN PATRICK MALONEY of New York. Mr. Speaker, I thank my good friend for all of his work.

I rise, Mr. Speaker, to support my bill, the Highlands Conservation Reauthorization Act, which would extend the Highlands Conservation Program for an additional 7 years, through 2029.

If you have hiked through any of the public lands in the Hudson Valley, chances are you have enjoyed the experience and benefited from the land conserved and protected by the Highlands Conservation Program. Even if you have looked upon the extraordinary works of art in the Hudson River School of painting, the most famous American school of painting, you will see these lands in the Hudson Highlands and wonder, as we who are lucky enough to live there do, at their beauty.

For nearly two decades, the Highlands Conservation Act has been a critical resource for the protection of these lands throughout a 5,500-square-mile area of the Highlands region covering New York, New Jersey, Connecticut, and Pennsylvania.

It includes many of our great State parks in my district, including Harriman State Park, Bear Mountain State Park, Schunemunk Mountain State Park, Storm King State Park, Hudson Highlands State Park, and Clarence Fahnestock Memorial State Park, to name a few.

The bill funds vital projects to safeguard our water supplies, conserve our forests, protect wildlife, expand outdoor public recreation opportunities, and save agricultural resources.

Over the past 18 years, the Highlands Conservation Act has delivered on its promise. It facilitated the permanent protection of nearly 13,000 acres of land, land that contributes to clean drinking water, protection of wildlife, expansion of recreation opportunities, and, of course, the sustainable economic growth that we all want.

Since 2007, New York has received over $14 million through the Highlands Conservation Act, funding that supported 18 specific projects conserving 4,000 acres throughout my district in the Hudson Valley.

For example, in 2015, the act helped incorporate over 230 acres of land into the Clarence Fahnestock Memorial State Park in Putnam County, right down the street from where I live. I spend a lot of time there. It is absolutely beautiful.

In 2016, funds from the Highlands Conservation Act helped conserve nearly 700 acres of land linking the western

Hudson Highlands to Schunemunk Mountain State Park in Orange County, and so much more.

It is also responsible for the addition of 1,200 acres that make up the Fishkill Ridge portion of the Hudson Highlands State Park.

More than 25 million Americans live within just an hour's drive of the Highlands region. By passing this bill today, we can ensure that the Highlands are protected and remain a beautiful natural resource for them and for our entire country for generations to come.

Mr. Speaker, the Highlands Conservation Program has been an extremely effective program not just for my district but for the entire region and our country. The entire conservation community should congratulate itself today.

I want to mention a few local people: Mark Zakutansky with the Appalachian Mountain Club; Ned Sullivan and Andy Bicking with Scenic Hudson; Katrina Shindledecker and Michelle Smith with the Hudson Highlands Land Trust; and Tim Abbott with the Housatonic Valley Association. I thank them all for their extraordinary work.

Mr. BENTZ. Mr. Speaker, I urge adoption of this bill, and I yield back the balance of my time.

Mr. GRIJALVA. Mr. Speaker, I urge my colleagues to support the legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, H.R. 2793, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

COMMISSION TO STUDY THE POTENTIAL CREATION OF A NATIONAL MUSEUM OF ASIAN PACIFIC AMERICAN HISTORY AND CULTURE ACT

Mr. GRIJALVA. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3525) to establish the Commission to Study the Potential Creation of a National Museum of Asian Pacific American History and Culture, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3525

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Commission To Study the Potential Creation of a National Museum of Asian Pacific American History and Culture Act''.

SEC. 2. ESTABLISHMENT OF COMMISSION.

(a) IN GENERAL.—There is established the Commission to Study the Potential Creation of a National Museum of Asian Pacific American History and Culture (hereafter in this Act referred to as the ''Commission'').

(b) MEMBERSHIP.—The Commission shall be composed of 8 members, of whom—

(1) 2 members shall be appointed by the majority leader of the Senate;

(2) 2 members shall be appointed by the Speaker of the House of Representatives;

(3) 2 members shall be appointed by the minority leader of the Senate; and

(4) 2 members shall be appointed by the minority leader of the House of Representatives.

(c) QUALIFICATIONS.—Members of the Commission shall be appointed to the Commission from among individuals, or representatives of institutions or entities, who possess—

(1)(A) a demonstrated commitment to the research, study, or promotion of Asian Pacific American history, art, political or economic status, or culture; and

(B)(i) expertise in museum administration;

(ii) expertise in fundraising for nonprofit or cultural institutions;

(iii) experience in the study and teaching of Asian Pacific American history;

(iv) experience in studying the issue of the representation of Asian Pacific Americans in art, life, history, and culture at the Smithsonian Institution; or

(v) extensive experience in public or elected service;

(2) experience in the administration of, or the planning for, the establishment of, museums; or

(3) experience in the planning, design, or construction of museum facilities.

(d) DEADLINE FOR INITIAL APPOINTMENT.—The initial members of the Commission shall be appointed not later than the date that is 90 days after the date of enactment of this Act.

(e) VACANCIES.—A vacancy in the Commission—

(1) shall not affect the powers of the Commission; and

(2) shall be filled in the same manner as the original appointment was made.

(f) CHAIRPERSON.—The Commission shall, by majority vote of all of the members, select 1 member of the Commission to serve as the Chairperson of the Commission.

(g) PROHIBITION.—No employee of the Federal Government may serve as a member of the Commission.

SEC. 3. DUTIES OF THE COMMISSION.

(a) REPORTS.—

(1) PLAN OF ACTION.—The Commission shall submit to the President and Congress a report containing the recommendations of the Commission with respect to a plan of action regarding the feasibility of establishing and maintaining a National Museum of Asian Pacific American History and Culture in Washington, DC, and its environs (hereafter in this Act referred to as the ''Museum'').

(2) REPORT ON ISSUES.—The Commission shall submit to the President and Congress a report that addresses the following issues:

(A) The availability and cost of collections to be acquired and housed in the Museum.

(B) The impact of the Museum on existing Asian Pacific American history-related museums.

(C) In consultation with the Smithsonian Institution, develop criteria for evaluating possible locations for the Museum in Washington, DC, and its environs.

(D) The feasibility of the Museum becoming part of the Smithsonian Institution, taking into account the Museum's potential impact on the Smithsonian's existing facilities maintenance backlog, collections storage needs, and identified construction or renovation costs for new or existing museums.

(E) The governance and organizational structure from which the Museum should operate.

(F) Best practices for engaging Asian Pacific Americans in the development and design of the Museum.

(G) The cost of constructing, operating, and maintaining the Museum.

(3) DEADLINE.—The reports required under paragraphs (1) and (2) shall be submitted not later than the date that is 18 months after the date of the first meeting of the Commission.

(b) FUNDRAISING PLAN.—

(1) IN GENERAL.—The Commission shall develop a fundraising plan that will address the ability to support the establishment, operation, and maintenance of the Museum through contributions from the public.

(2) CONSIDERATIONS.—In developing the fundraising plan under paragraph (1), the Commission shall consider issues relating to funding the operations and maintenance of the Museum in perpetuity without reliance on appropriations of Federal funds.

(3) INDEPENDENT REVIEW.—The Commission shall obtain an independent review of the viability of the plan developed under paragraph (1) and such review shall include an analysis as to whether the plan is able to achieve the level of resources necessary to fund the construction of the Museum and the operations and maintenance of the Museum in perpetuity without reliance on appropriations of Federal funds.

(4) SUBMISSION.—The Commission shall submit the plan developed under paragraph (1) and the review conducted under paragraph (3) to the Committees on House Administration, Natural Resources, and Appropriations of the House of Representatives and the Committees on Rules and Administration, Energy and Natural Resources, and Appropriations of the Senate.

(c) LEGISLATION TO CARRY OUT PLAN OF ACTION.—Based on the recommendations contained in the report submitted under paragraphs (1) and (2) of subsection (a), the Commission shall submit for consideration to the Committees on House Administration, Natural Resources, and Appropriations of the House of Representatives and the Committees on Rules and Administration, Energy and Natural Resources, and Appropriations of the Senate recommendations for a legislative plan of action on the feasibility of establishing and constructing the Museum.

(d) NATIONAL CONFERENCE.—Not later than 18 months after the date on which the initial members of the Commission are appointed under section 2, the Commission may, in carrying out the duties of the Commission under this section, convene a national conference relating to the Museum, to be comprised of individuals committed to the advancement of the life, art, history, and culture of Asian Pacific Americans.

SEC. 4. ADMINISTRATIVE PROVISIONS.

(a) COMPENSATION.—

(1) IN GENERAL.—A member of the Commission—

(A) shall not be considered to be a Federal employee for any purpose by reason of service on the Commission; and

(B) shall serve without pay.

(2) TRAVEL EXPENSES.—A member of the Commission shall be allowed a per diem allowance for travel expenses, at rates consistent with those authorized under subchapter I of chapter 57 of title 5, United States Code.

(3) GIFTS, BEQUESTS, AND DEVISES.—The Commission may solicit, accept, use, and dispose of gifts, bequests, or devises of money, services, or real or personal property for the purpose of aiding or facilitating the work of the Commission.

(4) FEDERAL ADVISORY COMMITTEE ACT.—The Commission shall not be subject to the Federal Advisory Committee Act (5 U.S.C. App.).

(b) TERMINATION.—The Commission shall terminate on the date that is 30 days after the date on which the final versions of the reports required under section 3 are submitted.

(c) FUNDING.—

(1) IN GENERAL.—The Commission shall be solely responsible for acceptance of contributions for, and payment of the expenses of, the Commission.

(2) PROHIBITION.—No Federal funds may be obligated to carry out this Act.

(d) DIRECTOR AND STAFF OF COMMISSION.—

(1) DIRECTOR AND STAFF.—

(A) IN GENERAL.—The Commission may employ and compensate an executive director and any other additional personnel that are necessary to enable the Commission to perform the duties of the Commission.

(B) RATES OF PAY.—Rates of pay for persons employed under subparagraph (A) shall be consistent with the rates of pay allowed for employees of a temporary organization under section 3161 of title 5, United States Code.

(2) NOT FEDERAL EMPLOYMENT.—Any individual employed under this section shall not be considered a Federal employee for the purpose of any law governing Federal employment.

(3) TECHNICAL ASSISTANCE.—

(A) IN GENERAL.—Subject to subparagraph (B), on request of the Commission, the head of a Federal agency may provide technical assistance to the Commission.

(B) PROHIBITION.—No Federal employees may be detailed to the Commission.

SEC. 5. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 3525, the Commission To Study the Potential Creation of a National Museum of Asian Pacific American History and Culture Act, introduced by my friend and colleague, Representative GRACE MENG.

This legislation would establish a commission to study and report on the potential creation of a national museum of Asian Pacific American history and culture in the District of Columbia and its surrounding areas.

The establishment of this commission is a first step in acknowledging the long history, role, and contributions of Asian Americans in American culture.

I thank Representative MENG for championing this piece of legislation. I urge my colleagues to support its adoption, and I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON HOUSE ADMINISTRATION,
Washington, DC, March 30, 2022.

Hon. RAÚL M. GRIJALVA,
Chairman, Committee on Natural Resources, Washington, DC.

DEAR CHAIRMAN GRIJALVA: I am writing to you concerning H.R. 3525. There are certain provisions in the legislation which fall within the Rule X jurisdiction of the Committee on House Administration.

In the interest of permitting your committee to proceed expeditiously to floor consideration, the Committee on House Administration agrees to forego action on the bill. This is done with the understanding that the Committee on House Administration's jurisdictional interests over this and similar legislation are in no way diminished or altered. In addition, the Committee reserves its right to seek conferees on any provisions within its jurisdiction which are considered in a House-Senate conference and requests your support if such a request is made.

I would appreciate your response confirming this understanding with respect to H.R. 3525 and ask that a copy of our exchange of letters on this matter be included in your committee report on the bill and in the Congressional Record during consideration of the bill on the House floor.

Sincerely,

ZOE LOFGREN,
Chairperson.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON NATURAL RESOURCES,
Washington, DC, April 5, 2022.

Hon. ZOE LOFGREN,
Chair, Committee on House Administration, House of Representatives, Washington, DC.

DEAR CHAIR LOFGREN, I write to you concerning H.R. 3525, the ''Commission To Study the Potential Creation of a National Museum of Asian Pacific American History and Culture Act.''

I appreciate your willingness to work cooperatively on this legislation. I recognize that the bill contains provisions that fall within the jurisdiction of the Committee on House Administration. I acknowledge that your Committee will not formally consider H.R. 3525 and agree that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your Committee's Rule X jurisdiction. I am pleased to support your request to name members of the Committee on House Administration to any conference committee to consider such provisions.

I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. I appreciate your cooperation regarding this legislation and look forward to continuing to work with you as this measure moves through the legislative process.

Sincerely,

RAÚL M. GRIJALVA,
Chair, House Natural Resources Committee.

□ 1530

Mr. BENTZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 3525, offered by Representative MENG, to authorize a commission to study the potential creation of a National Museum of Asian Pacific American History and Culture.

My home State of Oregon has a proud and growing Asian-American and Pacific-Islander population. Oregon is home to many cultural centers, museums, gardens, and historic sites related to Asian-American and Pacific-Islander heritage.

This commission would be tasked with preparing a report for Congress and the President providing recommendations regarding the feasibility of establishing and maintaining a National Museum of Asian Pacific American History and Culture in Washington, D.C.

The commission would be required to consider several factors, including the availability and cost of the collections to be acquired, the cost of constructing, operating, and maintaining the museum, and the feasibility of the museum becoming part of the Smithsonian Institution.

While I support this bill, I am concerned about the significant financial and operational challenges that adding an additional national museum to the Smithsonian's portfolio could pose.

Just 2 years ago, Congress authorized the establishment of the National Museum of the American Latino and American Women's History Museum. In addition to constructing two new museums, the Smithsonian is facing a facilities maintenance backlog approaching $1 billion; identified collection storage needs; a $900 million renovation of the National Air and Space Museum expected to conclude this year; and ongoing rehabilitation of other historic structures on the National Mall.

I appreciate Chair GRIJALVA's willingness to address Republican concerns about the Smithsonian's capacity. At markup, an amendment was adopted to require the commission to consider the potential impact on the Smithsonian's existing maintenance backlog and identified construction or renovation costs for new or existing museums.

Additionally, I appreciate an amendment adopted at markup to prohibit the use of Federal funds for the commission. These are good governance amendments that will strengthen the commission's work and eventual report.

I appreciate our friends on the other side of the aisle taking this bill through regular order and working with Republicans to address our concerns.

Mr. Speaker, I urge adoption of the bill, and I reserve the balance of my time.

Mr. GRIJALVA. Mr. Speaker, I yield such time as she may consume to the gentlewoman from New York (Ms. MENG), the sponsor of the legislation.

Ms. MENG. Mr. Speaker, I rise today to speak in favor of H.R. 3525, a bill I authored to establish a commission to study the potential creation of a National Museum of Asian Pacific American History and Culture.

I want to first thank Chairman GRIJALVA and Ranking Member WESTERMAN of the House Committee on Natural Resources, Congressman BENTZ, and Chairman NEGUSE and Ranking Member FULCHER of the Subcommittee on National Parks, Forests, and Public Lands for their work with me on bringing this bill to the floor.

Second, I thank Speaker PELOSI, Leader HOYER, and Whip CLYBURN for their support on this historic legislation. I also acknowledge and thank Chairperson LOFGREN of the Committee on House Administration for her support in moving this bill forward.

I first introduced this bill in the 114th Congress, and during that Congress, we witnessed the opening of the National Museum of African American History and Culture that our former colleague, the legendary John Lewis, spearheaded for decades.

Since then, we have seen legislation establishing the National Museum of the American Latino and the Smithsonian American Women's History Museum signed into law.

Our communities and caucuses have stood together in each of these efforts, and it is a joy to see this AAPI museum study bill arrive at this point today.

America is filled with diverse stories of achievement and moments of tragedy. Within our shared history, there are countless tales of Asian Americans and Pacific Islanders, or AAPIs, contributing to every facet of our Nation.

As far back as the 1700s, AAPIs have shaped American society. From the Chinese laborers who helped build the transcontinental railroad, a vital piece of U.S. infrastructure, to the thousands of AAPIs who fought for fair working conditions for agricultural workers during the Hawaii sugar strike of 1946, AAPIs have and continue to shape this Nation's history.

Yet, those contributions are often unheard of and simply forgotten. It is time to change that. A national museum dedicated to collecting, preserving, and displaying these tales is long overdue.

Museums provide a space to reflect on our past, assess our present, and dream of the future that we are working toward.

My bill is one step closer to the creation of a national museum dedicated to our AAPI American history. The commission established through this legislation will be comprised of experts in their respective fields who will be responsible for studying the feasibility of creating a national museum and providing recommendations to Congress on whether to, and how to establish a national museum.

Additionally, the commission will study logistical questions of exhibit curation, fundraising capacity, cost of creating and maintaining such an institution, and whether or not this museum should be part of the Smithsonian Institution.

AAPIs are the fastest growing ethnic group in America, and the contributions of this community have shaped our Nation's infrastructure, economy, culture, and so much more. We must never forget that AAPI history is also American history.

Today's consideration of H.R. 3525 is a necessary step to ensure the full face of American diversity across our entire country is displayed.

Mr. Speaker, I urge all of my colleagues to support this legislation.

Mr. BENTZ. Mr. Speaker, I reserve the balance of my time.

Mr. GRIJALVA. Mr. Speaker, I yield 3 minutes to the gentleman from New Jersey (Mr. KIM).

Mr. KIM of New Jersey. Mr. Speaker, I rise today in support of H.R. 3525, the Commission to Study the Potential Creation of a National Museum of Asian Pacific American History and Culture Act.

The contributions of Asian Americans and Pacific Islanders to this great Nation have been enormous. The history of AAPIs is rich, but this history is rarely talked about, and the contributions often go unknown or unrecognized. I am often asked how someone can learn about AAPI history, and admittedly, I don't know as much as I should.

Now more than ever, with the rise in hate crimes like the Atlanta shootings and other acts of violence in New York City and throughout the country, we keep hearing this phrase, ''You don't belong here.''

I have heard that throughout my life and, sadly, my two little boys, 4 years old and 6 years old, have already heard hurtful words that have labeled them in ways they don't yet understand.

Like many, I don't want my kids to understand who they are through sources of hate and discrimination. I want them to feel pride, pride in who they are, pride in AAPIs, and pride in our place in this Nation.

Our story is not just an Asian-American story. It is an American story. The history is not just an Asian-American history, it is American history, and this history isn't just for AAPIs to learn, it is for all of us. Together, through learning, we can come together, creating greater understanding, a closer knit community, celebrating the richness of this Nation.

Mr. BENTZ. Mr. Speaker, I have no further speakers, and I am prepared to close.

Mr. GRIJALVA. Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. CÁRDENAS).

Mr. CÁRDENAS. Mr. Speaker, I rise today in support of H.R. 3525 to commission a study for the creation of a National Museum of Asian Pacific American History and Culture Act.

Asian Americans have been contributing to the fabric of our United States of America from its earliest days, helping to build, shape, and defend our great country.

This long-overdue museum will serve as a gateway for everyone to see, feel, and understand the countless true stories of Asian Americans, stories of perseverance, dedication, and beating the odds to achieve their dreams. Those from trailblazers like Larry Itliong, a Filipino-American labor leader who organized with Latino civil rights leaders like Cesar Chavez and Dolores Huerta.

My father worked in the fields, and I remember when I was a little boy, he told me once, ''When I worked in the fields, I wanted to work harder than everyone else. The people who always worked as hard as me and challenged me were my Filipino colleagues working in the fields.'' I quoted him in English, although my father spoke to me in Spanish.

Or people like Constance Wu, Awkwafina, and Ali Wong, whose contributions to the arts have positively impacted millions of Americans. These stories and so many more deserve to be told and understood.

Mr. Speaker, I am proud to support this bill. I can't wait to see the day this museum is on The Mall with the National Museum of the American Latino, the American Women's History Museum, the National Museum of African American History and Culture, and the National Museum of the American Indian.

I would also like to take a point of privilege to say thank you to GRACE MENG, who at one time was the only Asian-American legislator in the legislature in New York. Not the first one, but she was there by herself, and she was a caucus of one, and she is now in the United States Congress, serving our community proudly and representing her community proudly as well.

Mr. BENTZ. Mr. Speaker, I just want to say how important this bill is, in part because of the incredibly valuable folks we have in my part of my State, including the Kitamuras, the Nagakis, the Maedas, the Nambas, the Saitos, the Itos, the Tanakas, the Teramuras, and many others, all of whom are absolutely wonderful parts of our community.

They are also incredibly conservative, and I am sure will be happy to see the portions of this bill that reflect the agreement to make sure that we are able to pay for whatever it is that we do. They are truly deserving of this recognition.

Mr. Speaker, I urge adoption of this bill, and I yield back the balance of my time.

Mr. GRIJALVA. Mr. Speaker, this legislation is important. It comes at the right time. It is an affirmation of the inclusiveness, diversity, and the equal status of all of us as Americans.

I am very proud to support this. I urge its adoption, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by

the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, H.R. 3525, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

GREAT LAKES FISH AND WILDLIFE RESTORATION REAUTHORIZATION ACT OF 2022

Mr. GRIJALVA. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5973) to reauthorize the Great Lakes Fish and Wildlife Restoration Act of 1990, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5973

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Great Lakes Fish and Wildlife Restoration Reauthorization Act of 2022''.

SEC. 2. REAUTHORIZATION OF THE GREAT LAKES FISH AND WILDLIFE RESTORATION ACT OF 1990.

(a) REPORTS.—Section 1008 of the Great Lakes Fish and Wildlife Restoration Act of 1990 (16 U.S.C. 941f) is amended—

(1) in subsection (a), in the matter preceding paragraph (1)—

(A) by inserting ''and not later than December 31, 2027,'' after ''2021,'';

(B) by striking ''Committee on Resources'' and inserting ''Committee on Natural Resources''; and

(C) by inserting '', with respect to the period covered by the report'' after ''describes''; and

(2) in subsection (b), in the matter preceding paragraph (1), by striking ''2016 through 2020'' and inserting ''2023 through 2028''.

(b) REAUTHORIZATION.—Section 1009(a) of the Great Lakes Fish and Wildlife Restoration Act of 1990 (16 U.S.C. 941g(a)) is amended, in the matter preceding paragraph (1), by striking ''2016 through 2021'' and inserting ''2023 through 2028''.

(c) ADMINISTRATIVE COSTS.—Section 1009(a)(1)(B) of the Great Lakes Fish and Wildlife Restoration Act of 1990 (16 U.S.C. 941g(a)(1)(B)) is amended by striking ''5'' and inserting ''3''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration today.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Mr. Speaker, I yield myself such time as I may consume.

H.R. 5973, the Great Lakes Fish and Wildlife Reauthorization Act, is sponsored by the gentlewoman from Michigan (Mrs. DINGELL), my friend and colleague from the Natural Resources Committee.

□ 1545

This bill reauthorizes funding for the U.S. Fish and Wildlife Service to combat pollution, invasive species, and habitat loss in the Great Lakes region.

The Great Lakes Basin is the largest body of fresh water on the planet, holding 18 percent of the world's freshwater supply. Some 35 million people across 8 States and Canada depend on the basin for drinking water, jobs, and recreation.

The Great Lakes are also a habitat to more than 500 migratory bird species, more than 140 species of fish, and many endangered and threatened species.

However, agricultural and industrial waste pose a threat to the water quality in the basin. There are extensive populations of harmful invasive species. And wildlife species are at risk due to habitat loss.

Fortunately, since 1990, the Fish and Wildlife Service has worked with local communities and NGOs to restore the Great Lakes Basin by tackling pollution, removing invasive species, and restoring essential habitats.

Congress has reauthorized funding for this important program three times, and I urge them to do so again today so that the Fish and Wildlife Service can continue the excellent work that they are doing in protecting that extraordinary and necessary ecosystem.

I commend my colleague, Representative DINGELL, for her work on this important bipartisan bill.

Mr. Speaker, I urge its adoption, and I reserve the balance of my time.

Mr. BENTZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 5973, a bill sponsored by our colleague, Representative DEBBIE DINGELL from Michigan, to reauthorize the Great Lakes Fish and Wildlife Restoration Act.

Under the authorities provided by this law, the U.S. Fish and Wildlife Service developed six common Great Lakes fish and wildlife restoration goals in collaboration with State and local partners. To date, 81 fish and wildlife restoration grant projects have been funded through this cooperative effort.

This law has been reauthorized three times, most recently in 2016. The bill we are considering today would extend these authorities until 2027 without increasing funding authorization.

We appreciate Congresswoman DINGELL's commitment not to move this bill until the Fish and Wildlife Service provided a mandatory report to Congress. In late March, we finally received this report, which allowed us to evaluate the current program and its progress toward meeting its goals.

I commend Congresswoman DINGELL for her leadership on this legislation, and I urge adoption of the measure.

Mr. Speaker, I reserve the balance of my time.

Mr. GRIJALVA. Mr. Speaker, I yield such time as she may consume to the gentlewoman from Michigan (Mrs. DINGELL).

Mrs. DINGELL. Mr. Speaker, I thank the chairman for his incredible support, and I thank my Republican colleague for his kind words and how we work together.

Mr. Speaker, I rise in support of the Great Lakes Fish and Wildlife Restoration Reauthorization Act. This bipartisan legislation, which I am leading with my other colleagues, Congressman DARIN LAHOOD, Congressman PAUL TONKO, and Congressman DAVID JOYCE, supports fish and wildlife conservation efforts in the Great Lakes.

Since 1998, the Great Lakes Fish and Wildlife Restoration Act has provided critical resources for coordinating conservation efforts across the Great Lakes ecosystem. This longstanding bipartisan backing underscores the efficacy of the proven conservation mechanisms in this legislation, including collaborative, private-public partnerships that maximize the impact of Federal funding to make landscape-level improvements to our fish and wildlife habitats.

A recently released report on the program by the Department of the Interior, found that as a result of the fish and wildlife grant program authorized by the Great Lakes Fish and Wildlife Restoration Act, that significant progress has been made in addressing the six Great Lakes' restoration goals specified in the legislation.

This includes control of sea lamprey populations across the Great Lakes, progress on the restoration of lake trout in Lake Huron leading to reducing stocking targets, and other species recovery efforts vital to sustaining the very unique ecosystem of the Great Lakes Basin.

However, continued work is required to protect the Great Lakes for future generations given the environmental pressures that this region faces.

To this end, the Great Lakes Fish and Wildlife Restoration Act would authorize funding for the Great Lakes Fish and Wildlife Restoration Act for 5 years, from fiscal years 2022 through 2027, at the current funding levels.

This legislation has broad bipartisan support, as well as the backing of a variety of groups dedicated to safeguarding the Great Lakes, including Ducks Unlimited and the Great Lakes Fishery Commission.

These Great Lakes are 90 percent of the freshwater in the United States. We must protect them.

Mr. Speaker, I urge all of my colleagues to support this important legislation, which will ensure our Great Lakes are protected for many generations to come.

Mr. BENTZ. Mr. Speaker, I urge adoption of this bill, and I yield back the balance of my time

Mr. GRIJALVA. Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, H.R. 5973, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

MULTINATIONAL SPECIES CONSERVATION FUNDS SEMIPOSTAL STAMP REAUTHORIZATION ACT OF 2021

Mr. GRIJALVA. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6023) to require the United States Postal Service to continue selling the Multinational Species Conservation Funds Semipostal Stamp until all remaining stamps are sold, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6023

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Multinational Species Conservation Funds Semipostal Stamp Reauthorization Act of 2021''.

SEC. 2. REAUTHORIZATION; REQUIREMENT TO SELL ALL STAMPS.

(a) IN GENERAL.—Section 2(c) of the Multinational Species Conservation Funds Semipostal Stamp Act of 2010 (39 U.S.C. 416 note; Public Law 111–241) is amended—

(1) in paragraph (2)—

(A) by striking ''of at least 6 years,''; and

(B) by inserting before the period at the end the following: ''and ending not earlier than the date on which the United States Postal Service provides notice to Congress under paragraph (5)''; and

(2) by adding at the end the following:

''(5) REQUIREMENT TO SELL ALL STAMPS PRINTED.—

''(A) IN GENERAL.—The United States Postal Service shall sell each copy of the Multinational Species Conservation Fund Semipostal Stamp that the United States Postal Service prints under this Act.

''(B) NOTIFICATION OF CONGRESS.—The United States Postal Service shall notify the Committee on Homeland Security and Governmental Affairs in the Senate, the Committee on Environment and Public Works of the Senate, the Committee on Oversight and Reform of the House of Representatives, and the Committee on Natural Resources of the House of Representatives when all copies of the Multinational Species Conservation Fund Semipostal Stamp printed under this Act have been sold.''.

(b) RETROACTIVE APPLICABILITY.—The amendments made by subsection (a) shall take effect as if enacted on the day after the date of enactment of the Multinational Species Conservation Funds Semipostal Stamp Reauthorization Act of 2013 (Public Law 113–165; 128 Stat. 1878).

SEC. 3. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 6023, the Multinational Species Conservation Funds Semipostal Stamp Reauthorization Act is led by my friend and colleague on the Committee on Natural Resources, Representative JIM COSTA.

The Multinational Species Conservation Fund Semipostal Stamps are a unique way for Americans to contribute to important conservation projects. Semipostal stamps are postage stamps sold at higher rates than standard stamps. When purchasing this type of stamp, Americans elect to contribute the extra charge to a specific fund or cause—in this case, the conservation of threatened species worldwide.

African and Asian elephants, great apes, turtles, rhinos, and tigers are threatened from decades of habitat loss, poaching, pollution, and climate change. These stamps support efforts to tackle poaching, improve community engagement and outreach, restore habitat, and raise public awareness about wildlife trafficking. In fact, between 2011 and 2017, these stamps raised almost $4 million for conservation projects.

However, the U.S. Postal Service has had to stop selling them when the program's authorization ran out. Approximately 49 million stamps remained. Annual appropriations bills have been directing the Postal Service to continue selling the stamps but in a piecemeal fashion. This bill would fix it once and for all.

The bill directs the U.S. Postal Service to sell all the rest of these stamps. In doing so, we can continue to support the ongoing conservation efforts for endangered species around the world.

Let me thank Representative COSTA for his work on the legislation, urge support for it, and I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON OVERSIGHT AND REFORM,
Washington, DC, February 28, 2022.

Hon. RAÚL M. GRIJALVA,
Chairman, Committee on Natural Resources, Washington, DC.

DEAR CHAIRMAN GRIJALVA: I write concerning H.R. 6023, the Multinational Species Conservation Funds Semipostal Stamp Reauthorization Act. This bill contains provisions within the jurisdiction of the Committee on Oversight and Reform. As a result of your having consulted with me concerning the provisions of the bill that fall within our Rule X jurisdiction, I agree to forgo consideration of the bill, so the bill may proceed expeditiously to the House floor.

The Committee takes this action with our mutual understanding that by foregoing consideration of H.R. 6023, we do not waive any jurisdiction over the subject matter contained in this or similar legislation, and we will be appropriately consulted and involved as the bill or similar legislation moves forward so we may address any remaining issues within our Rule X jurisdiction. Further, I request your support for the appointment of conferees from the Committee on Oversight and Reform during any House-Senate conference on this or related legislation.

Finally, I would appreciate a response confirming this understanding and ask that a copy of our exchange of letters on this matter be included in the bill report filed by the Committee on Natural Resources as well as in the Congressional Record during floor consideration thereof.

Sincerely,

CAROLYN B. MALONEY,
Chairwoman, Committee on Oversight and Reform.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON NATURAL RESOURCES,
Washington, DC, April 5, 2022.

Hon. CAROLYN B. MALONEY,
Chair, Committee on Oversight and Reform, House of Representatives, Washington, DC.

DEAR CHAIR MALONEY: I write to you concerning H.R. 6023, the ''Multinational Species Conservation Funds Semipostal Stamp Reauthorization Act.''

I appreciate your willingness to work cooperatively on this legislation. I recognize that the bill contains provisions that fall within the jurisdiction of the Committee on Oversight and Reform. I acknowledge that your Committee will not formally consider H.R. 6023 and agree that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your Committee's Rule X jurisdiction. Additionally, the Committee on Natural Resources confirms our mutual understanding that the Committee on Oversight and Reform will be appropriately consulted and involved as the bill or similar legislation moves forward including the appointment of conferees during any House-Senate conference involving this or similar legislation.

I will ensure that our exchange of letters is included in the bill report, if any, and in the Congressional Record during floor consideration of the bill. I appreciate your cooperation regarding this legislation and look forward to continuing to work with you as this measure moves through the legislative process.

Sincerely,

RAÚL M. GRIJALVA,
Chair, House Natural Resources Committee.

Mr. BENTZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 6023, a bipartisan bill sponsored by

Representative JIM COSTA of California to reauthorize the Multinational Species Conservation Funds Semipostal Stamp Reauthorization Act of 2013 and to require the U.S. Postal Service to sell all remaining Multinational Species Conservation Fund Semipostal Stamps.

The Multinational Species Conservation Funds Semipostal Stamp Act of 2010 first directed the Postal Service to issue this stamp to support the U.S. Fish and Wildlife Service Multinational Species Conservation Fund, which provides grants, as previously outlined by the previous speaker.

According to the Fish and Wildlife Service, stamp sales have raised more than $5.7 million for the fund as of 2019. The authorization for offering the stamp expired in 2017, at which point the Postal Service suspended the sale, despite having more than 49 million printed and unsold stamps on hand.

H.R. 6023 would direct the Postal Service to sell the remainder of these stamps and report to Congress when all have been sold.

Mr. Speaker, I commend Mr. COSTA for his leadership on this legislation. I urge adoption of this bill, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, H.R. 6023, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

NATIONAL LIBERTY MEMORIAL PRESERVATION ACT

Mr. GRIJALVA. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6201) to extend the authority for the establishment of a commemorative work to honor enslaved and free Black persons who served in the American Revolution, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6201

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''National Liberty Memorial Preservation Act''.

SEC. 2. EXTENSION OF AUTHORITY FOR ESTABLISHMENT OF COMMEMORATIVE WORK.

Notwithstanding section 8903(e) of title 40, United States Code, the authority provided by section 2860 of the Military Construction Authorization Act for Fiscal Year 2013 (division B of Public Law 112–239; 126 Stat. 2164; 40 U.S.C. 8903 note) shall continue to apply through September 30, 2027.

SEC. 3. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 6201, the National Liberty Memorial Preservation Act, introduced by my friend and colleague, Representative BONNIE WATSON COLEMAN.

This legislation would extend the authority for the establishment of a commemorative work to honor enslaved and free Black persons who served in the American Revolution. Extending this authorization would allow the congressionally authorized National Mall Liberty Fund D.C. to continue fundraising and construction of this memorial near the National Mall in Washington, D.C.

Mr. Speaker, I thank Representative WATSON COLEMAN for championing this bill. I urge my colleagues to support its adoption, and I reserve the balance of my time.

Mr. BENTZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 6201 offered by Representative WATSON COLEMAN would extend the authorization for the establishment of a memorial to honor the approximately 5,000 enslaved and free Black Revolutionary War patriots who served as soldiers or provided civilian assistance during the American Revolution.

In 2014, Congress authorized the National Liberty Memorial to be established in Area 1 in Washington, D.C., which is defined by the Commemorative Works Act as a location just off the National Mall.

Under the Commemorative Works Act, sponsoring organizations are provided a 7-year period to construct the memorial, which unfortunately has expired.

The subject matter of this memorial is extremely important, and I support extending the authority for the National Mall Liberty Fund D.C. to continue its valuable work to construct a lasting memorial in our Nation's Capital to honor the brave enslaved and free Black Revolutionary War patriots that fought to secure American independence.

Mr. Speaker, I urge adoption of the bill, and I reserve the balance of my time.

□ 1600

Mr. GRIJALVA. Madam Speaker, I yield such time as she may consume to the gentlewoman from New Jersey (Mrs. WATSON COLEMAN), the sponsor of the legislation.

Mrs. WATSON COLEMAN. Madam Speaker, I thank Chair GRIJALVA for bringing my bipartisan, bicameral bill to the floor. And I thank my Republican colleagues for supporting the same.

H.R. 6201, the National Liberty Memorial Preservation Act, would extend authorization of the National Liberty Memorial, a monument to honor the Black and Indigenous soldiers who risked everything in the name of the American experiment.

If not for the sacrifices of Black and Indigenous soldiers, we may not be the independent Nation that we are today. By the time the Continental Army marched to victory in Yorktown, these soldiers made up a quarter of George Washington's forces.

I am willing to bet that many Americans don't know this because, until recently, I certainly didn't. That is because, at best, the teaching of the Revolutionary War fails to highlight the contributions of soldiers of color and, at worst, it actively whitewashes them.

To wipe these soldiers from the story of our independence is to falsify the historical record. In our current moment, where fundamental truths about our history are under attack, we must right this wrong. Black and Indigenous soldiers sacrificed too much to be erased from the narrative of our Nation's war for independence. I authored the National Liberty Memorial Preservation Act on their behalf.

I thank Congresswoman HINSON and Senators MURPHY and GRASSLEY for joining me in introducing this legislation. I also thank National Liberty Memorial Fund D.C. for agreeing to build the memorial.

I hope that, in addition to educating the public and honoring soldiers of color, this memorial will illustrate the importance of teaching the complete, honest truth about our history. I hope that it allows Black children, like my granddaughter, to grow up in an America where the trials and tribulations and triumphs of their ancestors are recognized. By telling the full story of our past, we can pave the way for a more inclusive future.

I am very proud to support and urge the passage of this bicameral and bipartisan legislation. And I do pray that my colleagues, Democratic and Republican alike, will vote ''yes'' on the National Liberty Memorial Preservation Act.

Mr. BENTZ. Madam Speaker, I urge adoption of this bill, and I yield back the balance of my time.

Mr. GRIJALVA. Madam Speaker, I urge support for the legislation, and I yield back the balance of my time.

The SPEAKER pro tempore (Ms. JACKSON LEE). The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, H.R. 6201, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

ALASKA SALMON RESEARCH TASK FORCE ACT

Mr. GRIJALVA. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 6651) to establish an Alaska Salmon Research Task Force.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6651

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Alaska Salmon Research Task Force Act''.

SEC. 2. PURPOSES.

The purposes of this Act are—

(1) to ensure that Pacific salmon trends in Alaska regarding productivity and abundance are characterized and that research needs are identified;

(2) to prioritize scientific research needs for Pacific salmon in Alaska;

(3) to address the increased variability or decline in Pacific salmon returns in Alaska by creating a coordinated salmon research strategy; and

(4) to support collaboration and coordination for Pacific salmon conservation efforts in Alaska.

SEC. 3. SENSE OF CONGRESS.

It is the sense of Congress that—

(1) salmon are an essential part of Alaska's fisheries, including subsistence, commercial, and recreational uses, and there is an urgent need to better understand the freshwater and marine biology and ecology of salmon, a migratory species that crosses many borders, and for a coordinated salmon research strategy to address salmon returns that are in decline or experiencing increased variability;

(2) salmon are an essential element for the well-being and health of Alaskans; and

(3) there is a unique relationship for people of Indigenous heritage who rely on salmon for subsistence and traditional and cultural practices.

SEC. 4. ALASKA SALMON RESEARCH TASK FORCE.

(a) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Secretary of Commerce, in consultation with the Governor of Alaska, shall convene an Alaska Salmon Research Task Force (referred to in this section as the ''Research Task Force'') to—

(1) review existing Pacific salmon research;

(2) identify applied research needed to better understand the increased variability and declining salmon returns in some regions of Alaska; and

(3) support sustainable management of salmon in Alaska.

(b) COMPOSITION AND APPOINTMENT.—

(1) IN GENERAL.—The Research Task Force shall be composed of not fewer than 13 and not more than 19 members, who shall be appointed under paragraphs (2) and (3).

(2) APPOINTMENT BY SECRETARY.—The Secretary of Commerce shall appoint members to the Research Task Force as follows:

(A) One representative from each of the following:

(i) The National Oceanic and Atmospheric Administration who is knowledgeable about salmon and salmon research efforts from the Alaska Region.

(ii) The North Pacific Fishery Management Council.

(iii) The United States section of the Pacific Salmon Commission.

(B) Not less than 2 and not more than 5 representatives from each of the following categories, at least 1 of whom shall represent Alaska Natives who possess personal knowledge of, and direct experience with, subsistence uses in rural Alaska, to be appointed with due regard to differences in regional perspectives and experience:

(i) Residents of Alaska who possess personal knowledge of, and direct experience with, subsistence uses in rural Alaska.

(ii) Alaska fishing industry representatives throughout the salmon supply chain, including from—

(I) directed commercial fishing;

(II) recreational fishing;

(III) charter fishing;

(IV) seafood processors;

(V) salmon prohibited species catch (bycatch) users; or

(VI) hatcheries.

(C) 5 representatives who are academic experts in salmon biology, salmon management, salmon ecology (marine and freshwater), or comprehensive marine research planning in the North Pacific.

(3) APPOINTMENT BY THE GOVERNOR OF ALASKA.—The Governor of Alaska shall appoint to the Research Task Force one representative from the State of Alaska who is knowledgeable about the State of Alaska's salmon management and research efforts.

(c) DUTIES.—

(1) REVIEW.—The Research Task Force shall—

(A) conduct a review of Pacific salmon science relevant to understanding and managing salmon returns in Alaska, including an examination of—

(i) traditional ecological knowledge of salmon populations and their ecosystems;

(ii) marine carrying capacity and density dependent constraints, including an examination of interactions with other salmon species, and with forage base in marine ecosystems;

(iii) life-cycle and stage-specific mortality;

(iv) genetic sampling and categorization of population structure within salmon species in Alaska;

(v) methods for predicting run-timing and stock sizes;

(vi) oceanographic models that provide insight into stock distribution, growth, and survival;

(vii) freshwater, estuarine, and marine processes that affect survival of smolts;

(viii) climate effects on freshwater and marine habitats;

(ix) predator/prey interactions between salmon and marine mammals or other predators; and

(x) salmon productivity trends in other regions, both domestic and international, that put Alaska salmon populations in a broader geographic context; and

(B) identify scientific research gaps in understanding the Pacific salmon life-cycle in Alaska.

(2) REPORT.—Not later than 1 year after the date the Research Task Force is convened, the Research Task Force shall submit to the Secretary of Commerce, the Committee on Commerce, Science, and Transportation of the Senate, the Committee on Environment and Public Works of the Senate, the Subcommittee on Commerce, Justice, Science, and Related Agencies of the Committee on Appropriations of the Senate, the Committee on Natural Resources of the House of Representatives, the Subcommittee on Commerce, Justice, Science, and Related Agencies of the Committee on Appropriations of the House of Representatives, and the Alaska State Legislature, and make publicly available, a report—

(A) describing the review conducted under paragraph (1); and

(B) that includes—

(i) recommendations on filling knowledge gaps that warrant further scientific inquiry; and

(ii) findings from the reports of work groups submitted under subsection (d)(2)(C).

(d) ADMINISTRATIVE MATTERS.—

(1) CHAIRPERSON AND VICE CHAIRPERSON.—The Research Task Force shall select a Chair and Vice Chair by vote from among the members of the Research Task Force.

(2) WORK GROUPS.—

(A) IN GENERAL.—The Research Task Force—

(i) not later than 30 days after the date of the establishment of the Research Task Force, shall establish a work group focused specifically on salmon returns in the AYK (Arctic-Yukon-Kuskoskim) regions of Western Alaska; and

(ii) may establish additional regionally or stock focused work groups within the Research Task Force, as members determine appropriate.

(B) COMPOSITION.—Each work group established under this subsection shall—

(i) consist of not less than 5 individuals who—

(I) are knowledgeable about the stock or region under consideration; and

(II) need not be members of the Research Task Force; and

(ii) be balanced in terms of stakeholder representation, including commercial, recreational, and subsistence fisheries, as well as experts in statistical, biological, economic, social, or other scientific information as relevant to the work group's focus.

(C) REPORTS.—Not later than 9 months after the date the Research Task Force is convened, each work group established under this subsection shall submit a report with the work group's findings to the Research Task Force.

(3) COMPENSATION.—Each member of the Research Task Force shall serve without compensation.

(4) ADMINISTRATIVE SUPPORT.—The Secretary of Commerce shall provide such administrative support as is necessary for the Research Task Force and its work groups to carry out their duties, including support for virtual or in-person participation and travel expenses.

(e) FEDERAL ADVISORY COMMITTEE ACT.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Research Task Force.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, H.R. 6651, the Alaska Salmon Research Task Force Act, establishes a task force of fisheries scientists and Alaskan stakeholders to study, address, and prevent salmon fishery disasters in Alaska.

Led by the late dean of the House, our colleague and friend, Representative Don Young, this bill is a perfect example of how he fought for what is best for Alaska.

Salmon are a vital part of the Alaskan way of life. Their cultural, economic, nutritional, and recreational impact cannot be overstated. But, over the past decade, there have been several fishery disasters that have put those very salmon at risk.

These financial, ecological, and cultural strains have created an increasingly dire situation for the Alaskan communities that rely on salmon, especially Native Alaskan communities.

This bill creates the Alaska Salmon Research Task Force, a group of members from the National Oceanic and Atmospheric Administration, the North Pacific Fishery Management Council, and Alaskan stakeholders, to ensure that Alaskans are at the forefront of the Alaskan salmon research efforts taking place in their backyards.

I believe the bill is a fitting tribute to our departed friend. It elevates Alaskan voices, especially Native Alaskans, and it brings stakeholders together to build consensus and find a practical solution to this pressing issue in our 49th State.

I urge my colleagues to support this legislation to safeguard Alaskan salmon fisheries for generations to come.

Madam Speaker, I reserve the balance of my time.

Mr. BENTZ. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise in support of H.R. 6651, the Alaska Salmon Research Task Force Act, sponsored by our late colleague, the dean of the House, Representative Don Young of Alaska.

The day before his passing, Congressman Don Young was in our Natural Resources Committee room discussing the need for this legislation.

Since 2018 alone, the National Oceanic and Atmospheric Administration has issued 14 fisheries disasters determinations in Alaska. This bill seeks scientific answers and recommendations to solve these declining salmon runs.

Specifically, the bill would require the Secretary of Commerce, in consultation with the Governor of Alaska, to create an Alaska Salmon Research Task Force composed of up to 19 individuals representing various sectors of the salmon economy and culture.

The intent of the task force is to create a coordinated salmon research strategy, and support collaboration and coordination in salmon conservation efforts. The task force must also produce a report and recommendations within 1 year of convening.

If Mr. Young were here today, I am certain that he would remind us that salmon are important to Alaskans due to their cultural, economic, and recreational value. I urge my colleagues to honor the late dean of the House by supporting this bill.

Madam Speaker, I urge adoption of this bill, and I yield back the balance of my time.

Mr. GRIJALVA. Madam Speaker, I urge support of the legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, H.R. 6651.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

AMERICAN FISHERIES ADVISORY COMMITTEE ACT

Mr. GRIJALVA. Madam Speaker, I move to suspend the rules and pass the bill (S. 497) to establish the American Fisheries Advisory Committee to assist in the awarding of fisheries research and development grants, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 497

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''American Fisheries Advisory Committee Act''.

SEC. 2. AMERICAN FISHERIES ADVISORY COMMITTEE.

(a) ESTABLISHMENT.—Section 2 of the Act of August 11, 1939 (15 U.S.C. 713c–3), is amended—

(1) by redesignating subsection (e) as subsection (f); and

(2) by inserting after subsection (d) the following:

''(e) AMERICAN FISHERIES ADVISORY COMMITTEE.—

''(1) DEFINITIONS.—In this subsection:

''(A) COMMITTEE.—The term 'Committee' means the American Fisheries Advisory Committee established under paragraph (2).

''(B) FISHING COMMUNITY.—The term 'fishing community' means harvesters, marketers, growers, processors, recreational fishermen, charter fishermen, and persons providing them with goods and services.

''(C) MARKETING AND PROMOTION.—The term 'marketing and promotion' means an activity aimed at encouraging the consumption of seafood or expanding or maintaining commercial markets for seafood.

''(D) PROCESSOR.—The term 'processor' means any person in the business of preparing or packaging seafood (including seafood of the processor's own harvesting) for sale.

''(E) SEAFOOD.—The term 'seafood' means farm-raised and wild-caught fish, shellfish, or marine algae harvested in the United States or by a United States flagged vessel for human consumption.

''(2) ESTABLISHMENT.—Not later than 90 days after the date of the enactment of the American Fisheries Advisory Committee Act, the Secretary shall establish 6 regions within the American Fisheries Advisory Committee as follows:

''(A) Region 1 shall consist of Alaska, Hawaii, the Commonwealth of the Northern Mariana Islands, and the Territories of Guam and American Samoa.

''(B) Region 2 shall consist of Maine, New Hampshire, Massachusetts, Rhode Island, and Connecticut.

''(C) Region 3 shall consist of Texas, Alabama, Louisiana, Mississippi, Florida, Arkansas, Puerto Rico, and the Territory of the Virgin Islands of the United States.

''(D) Region 4 shall consist of California, Washington, Oregon, and Idaho.

''(E) Region 5 shall consist of New Jersey, New York, Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia.

''(F) Region 6 shall consist of Michigan, Minnesota, Wisconsin, Illinois, Indiana, Ohio, and Pennsylvania.

''(3) MEMBERSHIP.—The Committee shall be composed of the following members:

''(A) REGIONAL REPRESENTATION.—Each of the regions listed in subparagraphs (A) through (F) of paragraph (2) shall be represented on the Committee by 3 members—

''(i) who are appointed by the Secretary;

''(ii) who reside in a State or territory in the region that the member will represent;

''(iii) of which—

''(I) one shall have experience as a seafood harvester or processor;

''(II) one shall have experience as recreational or commercial fisher or have experience growing seafood; and

''(III) one shall be an individual who represents the fisheries science community or the relevant Regional Fishery Management Council; and

''(iv) that are selected so that the members of the Committee have experience or expertise with as many seafood species as practicable.

''(B) AT-LARGE MEMBERS.—The Secretary shall appoint to the Committee at-large members as follows:

''(i) One individual with experience in food distribution, marketing, retail, or food service.

''(ii) One individual with experience in the recreational fishing industry supply chain, such as fishermen, manufacturers, retailers, and distributors.

''(iii) One individual with experience in the commercial fishing industry supply chain, such as fishermen, manufacturers, retailers, and distributors.

''(iv) One individual who is an employee of the National Marine Fisheries Service with expertise in fisheries research.

''(C) BALANCED REPRESENTATION.—In selecting the members described in subparagraphs (A) and (B), the Secretary shall seek to maximize on the Committee, to the extent practicable, a balanced representation of expertise in United States fisheries, seafood production, and science.

''(4) MEMBER TERMS.—The term for a member of the Committee shall be 3 years, except that the Secretary shall designate staggered terms for the members initially appointed to the Committee.

''(5) RESPONSIBILITIES.—The Committee shall be responsible for—

''(A) identifying needs of the fishing community that may be addressed by a project funded with a grant under subsection (c);

''(B) developing the request for proposals for such grants;

''(C) reviewing applications for such grants; and

''(D) selecting applications for approval under subsection (c)(2)(B).

''(6) CHAIR.—The Committee shall elect a chair by a majority of those voting, if a quorum is present.

''(7) QUORUM.—A simple majority of members of the Committee shall constitute a quorum, but a lesser number may hold hearings.

''(8) MEETINGS.—

''(A) FREQUENCY.—The Committee shall meet not more than 2 times each year.

''(B) LOCATION.—The meetings of the Committee shall rotate between the geographic regions described under paragraph (2).

''(C) MINIMIZING COSTS.—The Committee shall seek to minimize the operational costs associated with meetings, hearings, or other business of the Committee, including through the use of video or teleconference.

''(9) DESIGNATION OF STAFF MEMBER.—The Secretary shall designate a staff member to coordinate the activities of the Committee and to assist with administrative and other functions as requested by the Committee.

''(10) PER DIEM AND EXPENSES AND FUNDING.—

''(A) IN GENERAL.—A member of the Committee shall serve without compensation, but shall be reimbursed in accordance with section 5703 of title 5, United States Code, for reasonable travel costs and expenses incurred in performing duties as a member of the Committee.

''(B) FUNDING.—The costs of reimbursements under subparagraph (A) and the other costs associated with the Committee shall be paid from funds made available to carry out this section (which may include funds described in subsection (f)(1)(B)), except that no funds allocated for grants under subsection (f)(1)(A) shall be expended for any purpose under this subsection.

''(11) CONFLICT OF INTEREST.—The conflict of interest and recusal provisions set out in section 302(j) of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1852(j)) shall apply to any decision by the Committee and to all members of the Committee as if each member of the Committee is an affected individual within the meaning of such section 302(j), except that in addition to the disclosure requirements of section 302(j)(2)(C) of such Act (16 U.S.C. 1852(j)(2)(C)), each member of the Committee shall disclose any financial interest or relationship in an organization or with an individual that is applying for a grant under subsection (c) held by the member of the Committee, including an interest as an officer, director, trustee, partner, employee, contractor, agent, or other representative.

''(12) TECHNICAL REVIEW OF APPLICATIONS.—

''(A) IN GENERAL.—Prior to review of an application for a grant under subsection (c) by the Committee, the Secretary shall obtain an independent written technical evaluation from 3 or more appropriate Federal, private, or public sector experts (such as industry, academia, or governmental experts) who—

''(i) have subject matter expertise to determine the technical merit of the proposal in the application;

''(ii) shall independently evaluate each such proposal; and

''(iii) shall certify that the expert does not have a conflict of interest concerning the application that the expert is reviewing.

''(B) GUIDANCE.—Not later than 180 days after the date of enactment of the American Fisheries Advisory Committee Act, the Secretary shall issue guidance related to carrying out the technical evaluations under subparagraph (A). Such guidance shall include criteria for the elimination by the National Oceanic and Atmospheric Administration of applications that fail to meet a minimum level of technical merit as determined by the review described in subparagraph (A).''.

(b) ROLE IN APPROVAL OF GRANTS.—Section 2(c)(3) of the Act of August 11, 1939 (15 U.S.C. 713c–3(c)(3)), is amended to read as follows:

''(3)(A) No application for a grant under this subsection may be approved unless the Secretary—

''(i) is satisfied that the applicant has the requisite technical and financial capability to carry out the project; and

''(ii) based on the recommendations of the American Fisheries Advisory Committee established in subsection (e), evaluates the proposed project as to—

''(I) soundness of design;

''(II) the possibilities of securing productive results;

''(III) minimization of duplication with other fisheries research and development projects;

''(IV) the organization and management of the project;

''(V) methods proposed for monitoring and evaluating the success or failure of the project; and

''(VI) such other criteria as the Secretary may require.

''(B) If the Secretary fails to provide funds to a grant selected by the American Fisheries Advisory Committee, the Secretary shall provide a written document to the Committee justifying the decision.''.

SEC. 3. EXPANSION OF SPECIFIED PURPOSES OF FISHERIES RESEARCH AND DEVELOPMENT PROJECTS GRANTS PROGRAM TO INCLUDE FISHERIES RESEARCH AND DEVELOPMENT PROJECTS.

Section 2(c)(1) of the Act of August 11, 1939 (15 U.S.C. 713c–3(c)(1)), is amended by inserting ''fisheries science, recreational fishing,'' before ''harvesting,''.

SEC. 4. PUBLIC AVAILABILITY OF GRANTS PROPOSALS.

Section 2(c) of the Act of August 11, 1939 (15 U.S.C. 713c–3(c)), is amended by adding at the end the following:

''(6) Any person awarded a grant under this subsection shall make publicly available a title and abstract of the project to be carried out by the grant funds that serves as the public justification for funding the project that includes a statement describing how the project serves to enhance United States fisheries, including harvesting, processing, marketing, and associated infrastructures, if applicable.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the matter under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise today in support of S. 497, the American Fisheries Advisory Committee Act, led by Senator SULLIVAN and the late Representative Don Young.

This legislation establishes a committee to manage awards for fisheries research and development grants. This important funding, provided under a grant program at NOAA, helps maintain sustainable, competitive fisheries and working waterfronts.

The fishery advisory committee would be comprised of representatives from the different coastal regions of the United States and would include members of the seafood harvesting and processing industries. This structure ensures that research and funding decisions are informed by those who work and live in each region.

The inclusion of seafood harvesters and processors, recreational and commercial fishers and growers, and members of the fishery science community as representatives for each region will promote equitable, sustainable, and science-based fisheries management, ensuring longevity and productivity of this vital industry.

I urge support of the legislation, and I reserve the balance of my time.

Mr. BENTZ. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise in support of S. 497, the American Fisheries Advisory Committee Act, introduced by Senator DAN SULLIVAN of Alaska.

This legislation is simple: It directs the National Oceanic and Atmospheric Administration to reestablish an American Fisheries Advisory Committee for the purpose of selecting grant projects that meet the research needs and priorities of the commercial fishing industry.

This committee will include a board of experts, with members chosen regionally and across all sectors of the fishing industry, and will help provide significant input on how research grants will be focused on fishing communities.

One goal of this bill is to keep fishing communities healthy and viable through local collaboration. I urge my colleagues to support this bill, which was introduced in the House our late colleague, Representative Don Young, and commend Representative YOUNG and Senator SULLIVAN for their efforts.

Madam Speaker, I urge adoption of this bill, and I yield back the balance of my time.

Mr. GRIJALVA. Madam Speaker, I have the same response as the gentleman, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, S. 497.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. GRIJALVA. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3(s) of House Resolution 8, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this motion are postponed.

DON YOUNG ALASKA NATIVE HEALTH CARE LAND TRANSFERS ACT OF 2022

Mr. GRIJALVA. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 441) to provide for the conveyance of certain property to the Tanana Tribal Council located in Tanana, Alaska, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 441

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Don Young Alaska Native Health Care Land Transfers Act of 2022''.

SEC. 2. DEFINITIONS.

For the purposes of this Act:

(1) CONSORTIA.—The term ''Consortia'' means the Alaska Native Tribal Health Consortium and Southeast Alaska Regional Health Consortium.

(2) COUNCIL.—The term ''Council'' means the Tanana Tribal Council located in Tanana, Alaska.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

SEC. 3. CONVEYANCES OF PROPERTY.

(a) CONVEYANCE OF PROPERTY TO THE TANANA TRIBAL COUNCIL.—

(1) IN GENERAL.—As soon as practicable, but not later than 180 days, after the date of the enactment of this Act, the Secretary shall convey to the Council all right, title, and interest of the United States in and to the property described in paragraph (2) for use in connection with health and social services programs.

(2) PROPERTY DESCRIBED.—The property referred to in paragraph (1), including all land, improvements, and appurtenances, described in this paragraph is the property included in U.S. Survey No. 5958 in the village of Tanana, Alaska, within surveyed lot 12, T. 4 N., R. 22 W., Fairbanks Meridian, Alaska, containing approximately 11.25 acres.

(b) CONVEYANCE OF PROPERTY TO THE SOUTHEAST ALASKA REGIONAL HEALTH CONSORTIUM.—

(1) IN GENERAL.—As soon as practicable, but not later than 2 years, after the date of the enactment of this Act, the Secretary shall convey to the Southeast Alaska Regional Health Consortium located in Sitka, Alaska, all right, title, and interest of the United States in and to the property described in paragraph (2) for use in connection with health and social services programs.

(2) PROPERTY DESCRIBED.—The property referred to in paragraph (1), including all land and appurtenances, described in this paragraph is the property included in U.S. Survey 1496, lots 4 and 7, partially surveyed T. 55 S., R. 63 E., Copper River Meridian, containing approximately 10.87 acres in Sitka, Alaska.

(c) CONVEYANCE OF PROPERTY TO THE ALASKA NATIVE TRIBAL HEALTH CONSORTIUM.—

(1) IN GENERAL.—As soon as practicable, but not later than 1 year, after the date of the enactment of this Act, the Secretary shall convey to the Alaska Native Tribal Health Consortium located in Anchorage, Alaska, all right, title, and interest of the United States in and to the property described in paragraph (2) for use in connection with health programs.

(2) PROPERTY DESCRIBED.—The property referred to in paragraph (1), including all land, improvements, and appurtenances, is the following:

(A) Lot 1A in Block 31A, East Addition, Anchorage Townsite, United States Survey No. 408, Plat No. 96–117, recorded on November 22, 1996, in the Anchorage Recording District.

(B) Block 32C, East Addition, Anchorage Townsite, United States Survey No. 408, Plat No. 96–118, recorded on November 22, 1996, in the Anchorage Recording District.

SEC. 4. CONDITIONS OF THE CONVEYANCE OF THE PROPERTIES.

(a) CONDITIONS.—The conveyance of the properties under section 3—

(1) shall be made by warranty deed; and

(2) shall not—

(A) require any consideration from the Consortia or the Council for the property;

(B) impose any obligation, term, or condition on the Consortia or the Council regarding the property; or

(C) allow for any reversionary interest of the United States in the property.

(b) EFFECT ON ANY QUITCLAIM DEED.—The conveyance by the Secretary of title by warranty deed under subsection (a)(1) shall, on the effective date of the conveyance, supersede and render of no future effect any quitclaim deed to the properties described in section 3 executed by the Secretary and the Consortia or the Council.

SEC. 5. ENVIRONMENTAL LIABILITY.

(a) LIABILITY.—

(1) IN GENERAL.—Notwithstanding any other provision of law, neither the Consortia nor the Council shall be liable for any soil, surface water, groundwater, or other contamination resulting from the disposal, release, or presence of any environmental contamination on any portion of the property described in section 3 that occurred on or before the date on which the Consortia or the Council controlled, occupied, and used the properties.

(2) ENVIRONMENTAL CONTAMINATION.—An environmental contamination described in paragraph (1) includes any oil or petroleum products, hazardous substances, hazardous materials, hazardous waste, pollutants, toxic substances, solid waste, or any other environmental contamination or hazard as defined in any Federal or State of Alaska law.

(b) EASEMENT.—The Secretary shall be accorded any easement or access to the property conveyed under this Act as may be reasonably necessary to satisfy any retained obligation or liability of the Secretary.

(c) NOTICE OF HAZARDOUS SUBSTANCE ACTIVITY AND WARRANTY.—In carrying out this section, the Secretary shall comply with section 120(h) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9620(h)).

(d) LIMITATION ON APPLICABILITY.—The provisions in this section apply only to the property conveyances specifically required by this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona (Mr. GRIJALVA) and the gentleman from Oregon (Mr. BENTZ) each will control 20 minutes.

The Chair recognizes the gentleman from Arizona.

GENERAL LEAVE

Mr. GRIJALVA. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the matter under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

Mr. GRIJALVA. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, H.R. 441, the Don Young Alaska Native Health Care Land Transfers Act of 2022, serves as a testament to the legacy of advocacy that the late dean of the House and our friend, Don Young of Alaska, provided Alaska Natives.

This particular legislation was something that he was urging—as recently as right before his passing, before we all left—upon me to move as quickly as possible, and I am glad that we have been able to get it to this point.

This legislation directs the U.S. Department of Health and Human Services to convey certain parcels of land to the Tanana Tribal Council, the Southeast Alaska Regional Health Consortium, and the Alaska Native Tribal Health Consortium for the purpose of expanding social and healthcare services.

□ 1615

Together, these three nonprofit entities support the Alaska Native communities as Tribal health and social service providers in both urban and rural settings.

The Tanana Tribal Council, located in Tanana, Alaska, provides outpatient services to Alaska Natives. Since the council is rurally located, healthcare services are often underfunded and harder to come by.

This legislation's conveyance of approximately 11.25 acres of land to the council will allow it to build a new facility and expand existing services to its Indian Health Service beneficiaries, thereby increasing the quality of care available.

The Southeast Alaska Regional Health Consortium delivers care to Alaska Natives as one of the oldest and largest Native-run healthcare organizations in the United States. The consortium operates the Mt. Edgecumbe Hospital, a 25-bed critical access facility located in Sitka, Alaska, which is in serious need of renovation due to its age and current condition.

This legislation's conveyance of roughly 10.87 acres of land to the consortium will facilitate the planned modernization of the hospital by granting the consortium title to the acreage.

The Alaska Native Tribal Health Consortium serves the healthcare needs of thousands of Alaska Native and American Indian patients in south-central Alaska. The consortium provides medical services at the Alaska Native Medical Center in Anchorage, Alaska, and provides wellness programs, disease research and prevention, rural provider trainings, as well as water and sanitation systems construction.

This legislation will grant the consortium ownership over two parcels of land totaling approximately 3.5 acres, thus allowing the consortium to streamline its operations and conduct building refurbishments without reliance on the Federal Government.

My late friend and colleague, Representative Don Young, championed these three land transfers, now combined into H.R. 441, to promote health equity among rural Alaska Natives. His work on behalf of Indian Country never ceased throughout his time in Congress.

I am grateful that we are here today to support this legislation and these three critical Tribal health entities in Alaska, a reminder of the support that Indian Country received from Don Young.

I urge my colleagues to support the bill and call for its swift passage, and I reserve the balance of my time.

Mr. BENTZ. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise in strong support of H.R. 441, as amended, that will direct the Secretary of Health and Human Services, acting through the Indian Health Service, to convey by warranty deed and for health-related activities certain parcels of Federal land to the Tanana Tribal Council, the Southeast Alaska Regional Health Consortium, and the Alaska Native Tribal Health Consortium.

This amended text is a compilation of three separate Indian healthcare land transfer bills for the State of Alaska introduced by the late Congressman Don Young. All three of these bills were favorably reported out of the Committee on Natural Resources by unanimous consent during this Congress.

The first land transfer directed under this act includes 10.25 acres of land in Tanana, Alaska. In 1995, the Tanana Tribal Council assumed responsibility for healthcare services from the Indian Health Service. The parcel of land the Tribe is seeking title to encompasses a portion of a former Indian Health Service hospital site. The council intends to use the land to construct a new community wellness clinic, expand eldercare, and develop nursing services.

The second transfer includes 10.87 acres of land that is part of the Mt. Edgecumbe Hospital campus in Sitka, Alaska. The Southeast Alaska Regional Health Consortium is a Native-run nonprofit health organization that assumed responsibility for providing healthcare services from the Indian Health Service in 1976 and currently operates its Mt. Edgecumbe Hospital in Sitka. The consortium intends to use the parcel to support future hospital expansion and replacement.

The third land transfer under this act includes 3.5 acres of land that is part of the Alaska Native Medical Center campus in Anchorage. In 1999, the Alaska Native Tribal Health Consortium assumed responsibility for healthcare services from the Indian Health Service, and the consortium provides comprehensive medical services at the Alaska Native Medical Center.

The ANTHC is the largest Native-run nonprofit health organization in the United States, serving more than 178,000 Native Alaskans. Gaining title to the parcels will enable the ANTHC to streamline its operations, update and refurbish, and expand the hospital's capacity to offer health services to patients outside of Anchorage.

Before I conclude, I will take a moment to again recognize all the hard work Congressman Young put into serving his constituents and, notably, his work for Native people in Alaska during his tenure in Congress. I think it is more than appropriate that we are renaming this legislation after the late dean of the House, further memorializing his efforts for Native Alaskans. Mr. Young will be deeply missed by all of us.

Madam Speaker, I urge adoption of this bill, and I yield back the balance of my time.

Mr. GRIJALVA. Madam Speaker, I thank Representative BENTZ for his work on these pieces of legislation today and acknowledge his work on Representative MENG's H.R. 3525, in particular. There were difficult things to navigate there, and we appreciate the effort on his part. Hopefully, we were as cooperative.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill, H.R. 441, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The title of the bill was amended so as to read: ''A bill to provide for the conveyance of certain property to the Tanana Tribal Council located in Tanana, Alaska, the conveyance of certain property to the Southeast Alaska Regional Health Consortium located in Sitka, Alaska, and the conveyance of certain property to the Alaska Native Tribal Health Consortium located in Anchorage, Alaska, and for other purposes.''.

A motion to reconsider was laid on the table.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until approximately 6:30 p.m. today.

Accordingly (at 4 o'clock and 22 minutes p.m.), the House stood in recess.

□ 1831

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Ms. PORTER) at 6 o'clock and 31 minutes p.m.

AMERICAN FISHERIES ADVISORY COMMITTEE ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on the motion to suspend the rules and pass the bill (S. 497) to establish the American Fisheries Advisory Committee to assist in the awarding of fisheries research and development grants, and for other purposes on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Arizona (Mr. GRIJALVA) that the House suspend the rules and pass the bill.

The vote was taken by electronic device, and there were—yeas 404, nays 11, not voting 14, as follows:

[Roll No. 126]

YEAS—404

Adams
Aderholt
Aguilar
Allen
Allred
Amodei
Armstrong
Arrington
Auchincloss
Axne
Babin
Bacon
Baird
Balderson
Banks
Barr
Barragán
Beatty
Bentz
Bera
Bergman
Beyer
Bice (OK)
Bilirakis
Bishop (GA)
Bishop (NC)
Blumenauer
Blunt Rochester
Boebert
Bonamici
Bost
Bourdeaux
Boyle, Brendan F.
Brady
Brooks
Brown (MD)
Brown (OH)
Brownley
Buchanan
Buck
Bucshon
Burchett
Burgess
Bush
Bustos
Butterfield
Calvert
Cammack
Carbajal
Cárdenas
Carey
Carl
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Case
Casten
Castor (FL)
Castro (TX)
Cawthorn
Chabot
Cheney
Cherfilus-McCormick
Chu
Cicilline
Clark (MA)
Clarke (NY)
Cleaver
Cline
Cloud
Clyburn
Clyde
Cohen
Cole
Comer
Connolly
Cooper
Correa
Costa
Courtney
Craig
Crawford
Crenshaw
Crist
Cuellar
Curtis
Davids (KS)
Davidson
Davis, Danny K.
Davis, Rodney
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Donalds
Duncan
Dunn
Ellzey
Emmer
Escobar
Eshoo
Espaillat
Estes
Evans
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Foster
Foxx
Frankel, Lois
Franklin, C. Scott
Fulcher
Gaetz
Gallagher
Gallego
Garamendi
Garbarino
Garcia (CA)
Garcia (IL)
Garcia (TX)
Gibbs
Gimenez
Gohmert
Golden
Gomez
Gonzales, Tony
Gonzalez, Vicente
Gooden (TX)
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Griffith
Grothman
Guest
Guthrie
Harder (CA)
Harris
Harshbarger
Hartzler
Hayes
Hern
Herrell
Herrera Beutler
Hice (GA)
Higgins (LA)
Higgins (NY)
Hill
Himes
Hinson
Hollingsworth
Horsford
Houlahan
Hoyer
Hudson
Huffman
Huizenga
Issa
Jackson
Jackson Lee
Jacobs (CA)
Jacobs (NY)
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Johnson (TX)
Jones

Jordan
Joyce (OH)
Joyce (PA)
Kahele
Kaptur
Katko
Keating
Keller
Kelly (IL)
Kelly (MS)
Kelly (PA)
Khanna
Kildee
Kilmer
Kim (CA)
Kim (NJ)
Kind
Kinzinger
Kirkpatrick
Krishnamoorthi
Kuster
Kustoff
LaHood
LaMalfa
Lamb
Lamborn
Langevin
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Leger Fernandez
Lesko
Letlow
Levin (CA)
Levin (MI)
Lieu
Lofgren
Long
Lowenthal
Lucas
Luetkemeyer
Luria
Lynch
Mace
Malinowski
Malliotakis
Maloney, Sean
Mann
Manning
Mast
Matsui
McBath
McCarthy
McCaul
McClain
McCollum
McEachin
McGovern
McKinley
McNerney
Meeks
Meijer
Meng
Mfume
Miller (IL)
Miller (WV)
Miller-Meeks
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moore (WI)
Morelle
Moulton
Mrvan
Mullin
Murphy (FL)
Murphy (NC)
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Newman
Norcross
O'Halleran
Obernolte
Ocasio-Cortez
Omar
Owens
Palazzo
Pallone
Palmer
Panetta
Pappas
Pascrell
Payne
Pence
Perlmutter
Peters
Pfluger
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Reed
Reschenthaler
Rice (NY)
Rice (SC)
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Ross
Rouzer
Roybal-Allard
Ruiz
Ruppersberger
Rush
Rutherford
Salazar
Sánchez
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sessions
Sewell
Sherman
Sherrill
Simpson
Sires
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Soto
Spanberger
Spartz
Speier
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stevens
Stewart
Strickland
Suozzi
Swalwell
Takano
Taylor
Tenney
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tlaib
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Upton
Valadao
Van Drew
Van Duyne
Vargas
Veasey
Velázquez
Wagner
Walorski
Waltz
Wasserman Schultz
Waters
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yarmuth
Zeldin

NAYS—11

Biggs
Good (VA)
Gosar
Greene (GA)
Massie
McClintock
Norman
Perry
Posey
Rosendale
Roy

NOT VOTING—14

Bass
Bowman
Budd
Cartwright
Crow
Doyle, Michael F.
Gonzalez (OH)
Grijalva
Loudermilk
Maloney, Carolyn B.
McHenry
Meuser
Ryan
Walberg

□ 1904

Messrs. BRADY, PETERS, and Mrs. BOEBERT changed their vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. BOWMAN. Madam Speaker, had I been present, I would have voted "yea" on rollcall No. 126.

Mrs. CAROLYN B. MALONEY of New York. Madam Speaker, I was caught in traffic. Had I been present, I would have voted "yea" on rollcall No. 126.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 8, 117TH CONGRESS

Brown (OH) (Jeffries)
Brownley (Correa)
Butterfield (Evans)
Carey (Balderson)
Castro (TX) (Correa)
Craig (Pallone)
Crist (Wasserman Schultz)
DeFazio (Blumenauer)
DeSaulnier (Beyer)
García (IL) (Pressley)
Gohmert (Weber (TX))
Gonzalez, Vicente (Correa)
Jackson (Nehls)
Johnson (TX) (Jeffries)
Kelly (IL) (Jeffries)
Lamb (Pallone)
Lawrence (Stevens)
Lawson (FL) (Evans)
Levin (MI) (Beyer)
Lowenthal (Beyer)
Morelle (Jeffries)
Murphy (FL) (Deutch)
Ocasio-Cortez (Escobar)
O'Halleran (Stanton)
Payne (Pallone)
Ross (Beyer)
Sires (Pallone)
Smith (WA) (Beyer)
Spartz (Miller-Meeks)
Strickland (Jeffries)
Suozzi (Beyer)
Taylor (Van Duyne)
Torres (NY) (Correa)
Trahan (Beyer)
Trone (Ruppersberger)
Waltz (Gimenez)

BACK THE BLUE

(Mr. ROSENDALE asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROSENDALE. Madam Speaker, I rise today to remember the 73 police officers who lost their lives in the line of duty last year across our Nation.

Law enforcement officers put their lives on the line every day to keep our communities safe and protect those who cannot protect themselves. Supporting our brave men and women in law enforcement should not be a polarizing issue, but unfortunately, activist groups and politicians have called to defund the police and, in some cases, inspired and encouraged violence against the thin blue line.

Already in 2022, shootings of police officers have spiked 43 percent across our country. Sadly, we will only see more officers killed from antipolice rhetoric spewed by the radical left.

The absence of law enforcement means our communities are less safe and enables crime to surge, and thugs will roam the streets freely without consequence.

I stand here tonight to say, without reservation, that I back the blue, and I will continue to do everything I can to get them the resources they need to do their jobs and make America safe again.

CELEBRATING JOHN E. QUATROCHE'S 100TH BIRTHDAY

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Madam Speaker, I rise today to celebrate Dr. John E. Quatroche's 100th birthday on May 2 of this year.

Mr. Quatroche is a longtime resident of Punxsutawney, Pennsylvania. He is an accomplished veterinarian and a World War II veteran.

At 22 years old, John enlisted in the Army Air Corps, which is now the United States Air Force. He was a transport pilot and flew C–47s. Throughout his service, he had many jobs, but one of the most important was towing gliders during the last airdrops of the Second World War.

After service, John returned to Punxsutawney, earning his veterinary degree, and he served as a local veterinarian for nearly 60 years.

I had the privilege of being with John and his wife, Irene, on Sunday. We celebrated his birthday a little early as a part of Loyalty Day in Punxsutawney.

John, congratulations on this magnificent milestone. I pray that God will continue to richly bless you; your wife, Irene; and your family. Happy birthday.

VETERAN OF THE MONTH CORPORAL RAY SIMS

(Mr. BURCHETT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BURCHETT. Madam Speaker, I rise to honor Corporal Ray Sims, an American hero who served during the Korean war. Corporal Sims enlisted in the United States Army and was sent to South Korea following his initial training.

On January 31, 1951, his company was attempting to drive the enemy from an excellent defensive position on Hill 592. During the mission, Corporal Sims noticed a hostile emplacement containing an automatic weapons crew. Corporal Sims realized that the attention of the enemy gunners needed to be distracted so another element could flank and destroy the bunker.

He moved forward with his rocket launcher and fired upon the enemy. Corporal Sims successfully distracted the enemy but was wounded during his efforts. He kept firing on the position despite his injuries, which allowed his company to flank and capture the position.

It took 18 months of surgeries and rehabilitation for Corporal Sims to fully recover from the wounds he received that day. For his bravery, Corporal Sims was awarded the Bronze Star with valor, Purple Heart, National Defense Service Medal, United Nations Service Medal, and Korean War Service Medal.

Our country's heroes are the men and women of our Armed Forces, Madam Speaker—not the ones who throw the football or catch the baseball or shoot the basket—like Ray Sims, who served and sacrificed for our freedom. He is a real hero.

It is my honor to recognize Corporal Ray Sims as Tennessee's Second District April 2022 Veteran of the Month.

□ 1915

DEMOCRACY OVER AUTOCRACY

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Madam Speaker, I was pleased to join the Hoyer codel to Europe, which included a number of countries and also the border between Poland and Ukraine. That is why I am stunned by the remarks of Foreign Minister Lavrov, who indicates that, ''Russia warns of nuclear war risks as Ukraine talks go on.''

Let me speak directly to Foreign Minister Lavrov. Maybe Russia should stop the bestiality, the cruelty, the brutality of this war, the killing of children and seniors, and leaving people to starve, and leaving their soldiers on the battlefield.

It is important that peace talks have an opportunity but saber-rattling gets you nowhere. And frankly, you would be as much afraid of a nuclear outright war than anyone else. Ukraine has a right to be a sovereign-free nation. Their children have a right to grow up free in this world, and democracy has a right to exist over autocracy.

I believe this is Putin's war, a senseless, vile, and violent war.

Thank you to the strength of the people of Ukraine. It is important that the Biden administration do as they have done. We should applaud them for what they are doing, as well as acknowledge what Germany is now doing in providing the air-to-ground weapons.

Stand with Ukraine and stop the saber-rattling.

Russia, stop the war.

TRAGEDY AND CRISIS AT OUR BORDER

(Mr. MEUSER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MEUSER. Madam Speaker, we have a continued tragedy and crisis at our border.

Since President Biden took office, over 2.2 million illegal immigrants have been apprehended at the southern border. In March alone, there were over 220,000 illegal encounters at our border, a 600 percent or so increase since 2020.

Madam Speaker, the Biden administration's complete disregard for their obligation to secure our border is having tragic impacts on America and in the great Commonwealth of Pennsylvania.

Madam Speaker, in fact, today in a briefing on title 42, the Biden administration did not lay out a plan on how they were going to prevent an overwhelming surge at our southern border from lifting of title 42, but instead describe their efforts to increase the number of accommodations, buses, and secret plane flights that have occurred in my district, and they will need to move the mass number of illegals coming into our country.

These are reckless, inhumane policies. They need to be stopped. They need to be corrected. And this House—both Republicans and Democrats—need to stand up for our citizens.

CRISIS AT OUR BORDER

(Mr. GROTHMAN asked and was given permission to address the House for 1 minute.)

Mr. GROTHMAN. Madam Speaker, I would like to report on what I did during my time off. I spent time at the Mexican border, both in San Diego and Yuma, and received a further shock, if that is possible, on what I think is the most important story facing America today. Indeed, every reporter or every major news organization ought to have somebody making daily reports on the border.

Two weeks ago tonight, in Yuma, I saw two groups—about 80 people—crossing the border. So you understand, those people were from Colombia, Venezuela, Peru, Cuba, Bangladesh, India, and Uzbekistan. In other words, the whole world is coming here.

Because of the huge amount of paperwork, the average Border Patrol agent reports to work, and unlike immediately guarding the border, like they should, 70 percent of them are doing paperwork. At the end of their shift, 90 percent are doing paperwork.

For that reason, it is not surprising the confiscation of drugs is going down—not because there are less drugs coming into our country and killing 100,000 people a year. The reason so few drugs are being confiscated is we have a shortage of Border Patrol agents and they have got to spend all their time doing paperwork.

Madam Speaker, I beg the rest of my colleagues to go to the border and learn about this.

VFW POST 660

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Madam Speaker, I rise today to recognize the 90th birthday of the Veterans of Foreign Wars Post 660 in Savannah.

Post 660 is the oldest veteran service organization in Savannah and has helped the veteran community tremendously through fellowship, charity, and patriotism.

The VFW Organization traces its roots back to 1899 when veterans of the Spanish-American War and the Philippine Insurrection founded local organizations to secure rights and benefits for their service.

Since then, the VFW has aided countless veterans in their post-service life and continue to carry on the legacy of service. Post 660 in Savannah has been a prime example of what the organization was founded on and what it set out to do. The VFW has raised money for memorials, such as the Vietnam and Korean War memorials in Washington, D.C.

It has also worked with the Veteran's Administration to craft the GI Bill for the 20th century. These feats are only a few that speak to the impact this organization has had on our community and our country.

I thank and congratulate VFW Post 660 for their 90 years of service to Savannah's veterans, and I look forward to the years to come.

PAYING TRIBUTE TO MADELEINE ALBRIGHT

The SPEAKER pro tempore (Ms. JACOBS of California). Under the Speaker's announced policy of January 4, 2021, the gentlewoman from Michigan (Ms. SLOTKIN) is recognized for 60 minutes as the designee of the majority leader.

GENERAL LEAVE

Ms. SLOTKIN. Madam Speaker, I ask for unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous materials on the subject of the Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Michigan?

There was no objection.

Ms. SLOTKIN. Madam Speaker, I yield to the gentlewoman from Ohio (Ms. KAPTUR).

UKRAINE DEMOCRACY DEFENSE LEND-LEASE ACT

Ms. KAPTUR. Madam Speaker, I rise tonight to urge passage of the Lend-Lease Act for Ukraine. I think Madeleine Albright would like this very much.

Putin's unprovoked war on the sovereign nation of Ukraine is an attack on freedom-loving people around our globe. Not since the costly tragic wars of the 20th century has the world seen such a test of liberty's survival.

The Lend-Lease is an uncommon tool for uncommon times. These are uncommon times.

Justice Franklin Roosevelt marshaled U.S. arms for the aid of our allies in World War II. We must now marshal those same resources to defeat a tyrant seeking to rebuild his fallen, tyrannical empire.

Ukraine is the scrimmage line for liberty on the European Continent. If the world allows Putin to claw Ukraine under his command, our Central and Eastern European allies may very well be next.

The time to act is now. Pass the Lend-Lease Act. Arm Ukraine. Defeat the Russian war machine. The fate of liberty rests in the balance. This is our watch in freedom's defense. Let us meet this test.

Madam Speaker, I thank the gentlewoman very much for yielding time.

Ms. SLOTKIN. Madam Speaker, I rise today to pay tribute to one of our country's greatest public servants and diplomats.

Madeleine Albright was a stateswoman, a trailblazer, and someone who has been a friend and mentor to me and to so many other women in national security.

I appreciate Speaker PELOSI and Majority Leader HOYER for creating this Special Order hour and allowing me to host it here and allow Members of Congress from across this entire body to contribute some remarks, some recognition, for a woman who has done so much to change the course of history in the United States.

I think it is particularly important because not only was she our first Secretary of State, not only was she at the U.N., not only does she have a storied history in national security in the executive branch, she was also here in Congress as a Congressional aide, a chief of staff, a national security staffer, that made her mark in this body as well.

She was also a national security staffer at the White House, one of the first women to represent our country in the United Nations and, of course, our very first female Secretary of State. Her remarkable career and achievements are made all the more astonishing by the fact that she first came to this country as a refugee, having first left Czechoslovakia to escape the Nazis and then again to flee communist rule in Eastern Europe after the Second World War.

Secretary Albright would be the first one to tell you that her story would only be possible in the United States, the country she loved and served even long after her time in government had come to an end.

She left her stamp at the U.N. and at the State Department with her intelligence, her passion for human rights, and her unwavering commitment to democratic ideals. On the world stage, she stood up to dictators, shined the light on human rights abuses, and championed diplomacy and democracy.

Even though she had always been an idol for me as a young woman in national security, I actually didn't get a chance to meet her until 2018, until I became a Member of Congress. But the years that I have spent getting to know her since then have been incredibly important to me.

I think what many of us will recognize and remember is the class of 2018—that large group that were elected in 2018 to come into this body—it had the most women that had ever been elected; one of the most diverse classes that had ever been elected; one of the classes that contained the largest number of national security people; people that were veterans; and people that were former intelligence community folks—like myself. Madeleine Albright was the speaker when we all traveled to Williamsburg for our orientation, our session to get to know each other and how to be a Member of Congress.

I met her there, along with her wonderful chief of staff, Jacob Freedman, and basically had the honor of hosting her and walking her around the room. What I remember very clearly is that she had admiration coming at her from every corner: young, old, early parts of their career, later parts of their career, and, importantly, Democrat and Republican.

One of the fondest memories I have from that first year with her was when she actually took me up on an offer to come to Michigan in early 2020, right before the pandemic really began. We did a road trip around Michigan together.

I will go into that in just a moment, but I note that the Speaker has just arrived on the floor.

We did this road trip across mid-Michigan. She was already over 80 years old. She took me up on this offer. She spoke at Michigan State University. She spoke at Oakland University. She did events for folks at restaurants and in private homes. We had her on an incredibly busy schedule. She kept us on our toes, and she was never short of a kind word or a borderline saucy joke the entire time. No matter where we went, her presence was electric.

One of my proudest moments was when we brought in all the honor students from the Rochester and Rochester Hills area. These are young people, still in high school. I actually questioned whether they would have a connection to this woman who had been the first female Secretary of State long before some of them were born. It took about 1 second for her to get a complete rock star welcome. All the students who came out were desperate to talk to her about service, about being the first female Secretary of State, about how to think about leading in their own careers, and all the barriers that she had shattered.

At a separate event at Oakland University, the reception was no less boisterous. We had, I think, up to 500 people. We were oversold; people from across the community wanted to come in. And even at a moment of deep polarization for our country, here was a woman who seemed to supersede politics.

For us in Michigan, with so many Michiganders who left the Balkans to come to the United States and resettled in Michigan, she, with that community, is truly a hero. It is now etched firmly into the history books that Secretary Albright was the driving force behind engaging the United States and ending the genocide in the Balkans.

She understood that while America is not perfect, the world is better off with a strong American leadership role in that world. She used her moral authority to bring American might into that conflict and then later negotiated the peace that, ever-tenuous, still holds today.

Her visit to Michigan was filled with people whose fates were quite literally changed by her having a seat at the table as Secretary of State, and being able to see that up close was a truly remarkable experience for me and for all the people who came to greet her.

I would be remiss if I didn't point out that as someone who has spent her career in national security, there just aren't that many senior women we have to look up to for guidance, for mentorship. There are very few women who had navigated the complicated waters of working and leading in male-dominated fields.

Not only did Secretary Albright blaze a new trail for women in national security, she also raised the bar for all of those who would succeed her. She became the gold standard. Despite all the accomplishments and accolades, this was a woman who never let ego cloud her actions.

□ 1930

She was humble and gracious with everyone I saw her meet and engage with in Michigan, students, parents, perfect strangers. She was generous with her wisdom and insights, but never full of herself.

For her, the work she did in government was always about serving the country that she loved, the country that welcomed her and her family as refugees when she was just 11 year old.

Her preferred way of continuing to serve after leaving office was by teaching the next generation of national security leaders. Her passion for her students at Georgetown University was evident to everyone around her, and it is no exaggeration to say that an entire generation of rising public servants are better prepared for the challenges of the 21st century thanks to her guiding hand.

So this is how I will remember her: As a down-to-earth, warm, saucy leader who meant something to perfect strangers and world leaders alike. I am so grateful for the years that I had to get to know her and for the chance to introduce her to the next generation in my State.

As we mourn the loss of this incredible humanitarian, we also celebrate the life and achievements of a woman whose impact, both here at home and in the farthest corners of the globe, will be felt for many years to come.

Madam Speaker, I yield to the gentlewoman from California (Ms. PELOSI), the Speaker of the House.

Ms. PELOSI. Madam Speaker, I thank Congresswoman SLOTKIN for arranging for this Special Order and for just speaking so beautifully about Madeleine Albright, a person that we all loved so very, very much for so many years. And to hear the gentlewoman, a new Member, a relatively new Member of Congress, but a woman in national security making her own mark in a significant way, recognize the greatness of Madeleine, it is just a joy to us to see another generation of women leaders in security speaking about Madeleine.

Madeleine Albright was a stateswoman. She was a champion of national security in our country. She was

the embodiment of the American Dream; her family coming when she was 11 years old, a refugee to our shores. Her personal story is the makings of novels and movies and the rest.

But she was fresh and frisky, and she had a sense of humor that was wonderful. And I remember the night that there was a debate in St. Louis for the Presidential, when President Clinton was running for President; we had dinner after the debate. And I said well, Madeleine, would you like—are you interested in participating in the administration?

I was a relatively new Member of Congress at the time. And she said, I am not going—I don't want to go overseas. I said, I know what you want. You want to be Ambassador to the U.N. Because that would be of the stature, and yet she did not want to go overseas. She wanted to be home for all kinds of different reasons. And what a magnificent Ambassador she was for us to the United Nations.

And then, as it would turn out, to become the first woman to be Secretary of State. This is such an exalted position. Thomas Jefferson was Secretary of State. And Madeleine Albright was Secretary of State.

And as Congresswoman SLOTKIN said, she had boundless energy. She would be—well, she was on the campaign trail after serving as Secretary of State, on the campaign trail, and she was, as the gentlewoman said, a rock star. She was a major attraction. People loved to see her.

I want to say, because my husband loved her so much, my husband, Paul, who was the chairman of the board of the Georgetown School of Foreign Service for a couple of decades I think. It seemed like a long time. He worshipped at the shrine of Madeleine Albright. When she would call me, if he had the phone first, I would have a hard time getting it away from him because he thought they were the best of friends. She was my girlfriend in addition to being someone I admired so greatly.

And she would always call the day before your birthday because she wanted to be the first one to wish you happy birthday which, of course, I was looking forward to this year. And instead, we would get this very sad news, with all the dignity of Madeleine Albright, with all of the warmth and greatness of her, be with her family, right up to the end.

Alice, Anne, and Katherine, thank you for sharing your mother with us; and again, to sister, Kathy, and brother, John.

Another thing I want to mention about her is I don't know how many of you were at the funeral of Brzezinski, National Security Advisor Brzezinski. Two people spoke at his funeral in the church. Some of us spoke afterward in the more informal setting. But two people spoke at his funeral; President Jimmy Carter and Secretary Madeleine Albright. And what a beautiful compliment to speak for another great American patriot born overseas and coming to America to make his mark.

And she spoke so beautifully about America and about patriotism, about civic responsibility, and of the contribution he made; that she was chosen to make that speech with the President was really so clearly appropriate and great to hear her speak.

Now, she had a collection of pins, and she would always say, when she would go to give testimony or whatever it is, ''read my pins.'' Sometimes it would be an American eagle. We never knew what it might be. And she even toured the country with her pins, and people showed up to see Madeleine's pins, because she had something about her that was—she knew how to connect with people. You know, this great intellect and the rest.

I will just go back to Paul in closing to say this: She taught at Georgetown for 40 years, for 40 years. The gentlewoman mentioned this next generation of young diplomats and the rest. They took such pride in her leadership, her service, her being a professor there, that they were cooking up how they were going to observe her 40 years and this or that; and again, she had other plans, to be in heaven and look down on all of us.

How wonderful it is that tomorrow, many of her friends from Congress and—she made us all feel as if we were her best friends. I mean, I thought so.

So many of her loved ones, whether they were diplomats or people in service, would be there to praise her as an Ambassador to the United Nations and Secretary of State, she represented our Nation with great poise and distinction and brilliance on the world stage and worked relentlessly to keep Americans safe and America secure.

As a trusted voice on foreign policy, and those jobs, and beyond, and beyond, because her influence extended long after her actual service in public office, but also as a professor, she was quick to sound the alarm at the rise of autocracy. As you know, she wrote about that in her book, at home and abroad, a prescient warning that remains an important guide and resource today.

And then, as a professor at Georgetown, which we, the Pelosi family, take great pride. My husband went there; my kids went there; I have an honorary degree there, and we all feel associated with Madeleine.

She shaped the next generation of leadership by sharing her hard-earned wisdom and experience.

So tomorrow, many of her loved ones, whether it is from government, politics, security, academic world, friendship, girlfriends, hair dressers, wherever we met together, her family, first and foremost, which she loved so much, will join Madeleine's family and her loved ones to pay our final respects at her memorial at the glorious Washington National Cathedral.

I said final respects. I meant final respects for tomorrow. We will be paying our respects to her in many things that are being planned already. The presence of so many Members and diplomats at her memorial, and two Presidents of the United States to speak at her service, will be another testament to the monumental impact she made on our Nation and the world.

I wish everyone would read the op-ed that another Secretary of State, a national figure, Hillary Clinton, wrote about Madeleine Albright. They were kindred spirits. They loved each other very much. They worked together with great respect for each other and for our country in such a beautiful way.

Please, if you can, go to The New York Times and read what the Secretary of State—I think she may be speaking tomorrow, too. I don't know what the program is. I think she may be speaking tomorrow, too.

So God truly blessed America with the life and the service and the leadership and the goodness of Madeleine Albright. May she forever rest in peace.

And again, I thank Congresswoman SLOTKIN for affording us all the opportunity to pay our respects to our dear Madam Ambassador, Madam Secretary, Madeleine Albright.

Ms. SLOTKIN. Madam Speaker, I thank the Speaker for that personal tribute.

I yield to the gentleman from Maryland (Mr. HOYER), the majority leader.

Mr. HOYER. Madam Speaker, I thank the gentlewoman from Michigan for yielding. And the Speaker pro tem, Ms. JACOBS, how proud Madeleine Albright would be of the two of you standing here, presiding here, and giving tribute to an extraordinary woman who must have been, particularly for women—she was for me as well, but particularly for women, an extraordinary example of success, of focus, of intellect, of achievement. And I thank the gentlewoman from Michigan (Ms. SLOTKIN) for taking this Special Order.

Madam Speaker, tomorrow, as the Speaker just said, at the National Cathedral, really the cathedral—America's cathedral, many of us will gather to remember and celebrate the extraordinary life of former Secretary of State Madeleine Albright.

Secretary Albright was a dear and valued friend for over 35 years. As the chair of the Helsinki Commission, I worked closely with her on issues related to human rights and foreign affairs for years, for a decade that I was chair.

Secretary Albright was a diplomat, a teacher, and a mentor to so many who now serve in our diplomatic corps and the world of foreign policy.

She was an author who used her pen and her voice to urge us both to see the untapped possibilities in our world, and not to ignore the dangers that confronted our country, our freedom, and our democracy.

Perhaps most of all, Secretary Albright was someone who never forgot the experience of being a refugee and a survivor of war and genocide. It gave

her great insight and determination to confront the enemies of freedom and human rights.

Her family fled Czechoslovakia when it fell under the oppression of Nazi occupation. Her determination was spurred as well when Czechoslovakia fell under Stalin's heel. That experience pushed her to spend her life working to keep others safe from those evils and to ensure that the world's democracies, led by America, took action to help those fleeing conflict and danger.

In 2018, she released a masterful book that everyone ought to read: ''Fascism: A warning.''

She said in that book: ''Throughout his time in office,'' she wrote of Vladimir Putin, ''He has stockpiled power at the expense of provincial governors, the legislature, the courts, the private sector, and the press. A suspicious number of those who have found fault with him have later been jailed on dubious charges or murdered in circumstances never explained.''

She saw then very clearly the threat that he and others pose to democracy in our time.

I miss her wise words. Luckily, she wrote a lot of them down and those were some that we certainly ought to remember; those insights, as Ukraine's brave fighters battle a new tyranny and another criminal dictator.

After she died, just days following Vladimir Putin's criminal and unprovoked invasion of Ukraine, former Secretary of State Hillary Clinton, whom the Speaker just mentioned, said: ''As has happened so often, the man with the guns was wrong, and Madeleine was right.''

Right now, as the world confronts Putin's aggression, as we and our fellow democracies stand up to authoritarianism and tyranny, we do so better prepared, Madam Speaker, because of the warning and lessons that Secretary Albright gave us.

□ 1945

In many ways, the most fitting tribute to her memory is the unity we and our allies are demonstrating in the face of Putin's threat to democracy, decency, and international law.

Before Secretary Albright's death, President Biden had committed $424 million toward his Presidential Initiative for Democratic Renewal, which drew heavily on Secretary Albright's proposals and sought to tackle the challenges she identified in her book, ''Fascism: A Warning.'' ''It is easier,'' she wrote, ''to remove tyrants and destroy concentration camps than to kill the ideas that gave them birth.''

This is a war of ideas, and America must lead the fight for democracy.

Now, Secretary Albright's legacy is felt throughout the global alliance of our democratic allies and partners confronting Vladimir Putin and Russia together, where billions of dollars in both military and humanitarian assistance are being mustered and deployed in defense of democracy and human rights, the cause for which she lived and of which she spoke so eloquently.

After Secretary Albright died, I spoke at length with my foreign policy adviser, Mariah Sixkiller, who was a part of the group that met at Secretary Albright's home for 15 years for discussions about American leadership around the world. I asked Mariah to write a few words of her recollections. She told me: ''I was honored to be at her table for 15 years and to learn from this great stateswoman. She was,'' as the gentlewoman from Michigan has pointed out, ''witty, wise, bold, and brilliant, even until her final days,'' even, as the gentlewoman from Michigan said, someone as old as 80.

Mariah Sixkiller went on to say: ''She had the perfect combination of good humor and unique charm.'' Our Speaker just reflected that, as the gentlewoman from Michigan did. ''She made us laugh even at the hardest times.''

All of us who knew her and who worked with her during her time in government remember that characteristic wit and charm, along with her keen intellect and her vision of a more perfect Union and a more perfect, peaceful world.

Madam Speaker, I particularly admire the dedication she had to the mission of standing up for the rights of women and girls worldwide.

As the first woman to serve as Secretary of State, a successor to Thomas Jefferson and so many other extraordinary leaders who have served in that post—including, of course, Secretary Clinton—at a time when women were still having to prove they belonged in boardrooms and around Cabinet tables dominated by men, she felt a unique responsibility to be a voice for girls and women striving to be all they could be, undefined by gender alone. And she was that voice.

She knew that when women had more political, social, and economic freedoms, societies are better off in every way. Democracies, she believed, are stronger, and democratization is more successful when women and girls can pursue opportunities in safety, equality, and freedom. The fight for women's rights never ended for her.

Even as recently as just a few months ago, Secretary Albright was working furiously to push for more action to help women and girls in Afghanistan.

We left Afghanistan. We left Afghanistan with the hopes that there would be some civilized action by the Taliban. Sadly, we have seen that they returned to their old ways of discrimination and putting down, disallowing young women to go to school to prepare themselves for leadership. Secretary Albright was active and, as a matter of fact, the leader of the National Democratic Institute, which she chaired and which argued strenuously for the rights of those girls and those women.

That was the last time we spoke directly, as we worked together to help save these courageous Afghans who dedicated themselves to the goal of creating a democratic future in their country.

In the final months of her life, Secretary Albright wrote down some reflections to be included in a new memoir. Discussing what she perceived to be her own shortcomings, she shared this: ''My parents taught me what the best teachers tell us all: that it is no sin to make a mistake but unpardonable not to try to make the most of our talents.''

Fortunately for America and people around the globe, Madam Speaker, Secretary Albright made the most of the many, many, the legion of talents which she had and with which she was gifted.

One of the greatest was as a teacher. As the Speaker said, she was a teacher for 40 years, and I would correct the Speaker and say she was a teacher for at least 60-plus years. Although probably prior to 20, she was a teacher as well. She taught thousands of students over the course of an almost 40-year career in academia.

As a professor in the practice of diplomacy at the Georgetown University School of Foreign Service, Secretary Albright helped train and launch the careers of so many who are leaders today for America's foreign policy and national security.

That is why so many of us are going to honor her tomorrow, and we will not ever forget what she contributed to this country, a perfect example of how important it is to accept and have come to this country the brightest minds, the most committed people. What an extraordinary example she was of the enrichment that immigration has given to this country.

Moreover, she had an unwavering belief that women in the field of foreign policy must support each other.

Mariah didn't give that quote. I know Mariah is listening right now. Mariah Sixkiller was my national security adviser, and she worked with me. Very frankly, Mariah knew what I believed before I believed it. She was extraordinary. The inspiration that Secretary Albright gave to Mariah is still fired up in her eyes, in her speech, and in her thinking.

Secretary Albright served as a mentor to scores of other young women who were students, as well as her colleagues at the State Department, and she strove to ensure that these women got a seat at the table.

Secretary Albright's legacy will live through these women who have followed in her footsteps and become the Foreign Service officers and ambassadors working hard on behalf of the American people today and for a long time to come.

Madam Speaker, we are so fortunate to have their talents in service to our country as a result of Secretary Albright's example and advocacy. I, again, repeat, as I am sure she is watching, she is so proud—I hope of our

friendship—but so proud of Congresswoman SLOTKIN and so proud of Congresswoman JACOBS as they rise on her behalf as leaders of this country.

Tomorrow, we will bid Secretary Albright farewell, but our country and its leaders would be wise to keep her close in our hearts and in our minds in the weeks, months, and years ahead.

In many ways, the battle underway between democracy and despotism is one that Secretary Albright so presciently foresaw. That battle, which currently rages in Ukraine, reminds us, as she did, that the price of liberty is, in fact, eternal vigilance.

We face a torturous road ahead, one that will demand our energy, our faith, our perseverance, and our courage, all of which Secretary Albright displayed throughout her life.

She believed that democracy would surely prevail, but she knew that that result required our constant attention. When democracy prevails, as surely it must, it will be in no small part due to her work, her contributions, and her service.

God blessed America with an extraordinary woman whose name was Madeleine Albright, and that name will be remembered for a long, long time to come.

Ms. SLOTKIN. Thank you, Mr. Leader, for those words.

I know we have a few other Members of Congress who are trying to make it here, and so I will just say a couple more things as we wait for them to come in.

When I was with Secretary Albright and brought her to Michigan, we were on this road trip. I think most people know she is not a tall woman. No one ever would describe her as a tall woman. She was quite petite. I drove her around in my Ford Escape, and we had to kind of help her into the front seat.

It happened to be what is called Paczki Day in Michigan, Fat Tuesday. It is when we all eat these jelly doughnuts full of powdered sugar on top. We brought a box of those in the car, and she indulged me and tried a paczki that day.

We just had hours in the car driving around my very large district and got to talking. I think that one of the best things you can have when you are a younger person learning from someone who has really broken glass ceilings is you have time with them to just hear stories about what life was like.

She told me that her one regret in life is that she never ran for Congress. She never ran for office. She was a chief of staff up here, a legislative assistant. She was adjacent to campaigns pretty much her entire adult life, but she never actually ran herself.

I can only imagine how successful she would have been as an elected leader because, as Speaker PELOSI mentioned, she had that thing where she could connect deeply with anyone from any background. Not all Members of Congress elected today have that, and she had it in spades.

She had an ability, despite all the amazing things she had done, to connect with real people, with strangers. I think people understood that she was confident because she had seen a lot of things in her life, and the woman had a code.

She had a code that she believed in, a principled place with which she engaged in the world. When you meet someone who has a code, you don't have to question whether they are kind of like a leaf blowing in the wind, that they will bend to whatever whim. You have the confidence to know that this person is going to make decisions based on character and integrity. She really had that, and it kind of oozed out of her. People could see that and feel that.

I know that this body would have been much strengthened should she had ever decided to run for office. I am sorry that we all didn't get to see that, but she helped so many of us who were seeking elected office.

Then, just to add to what the majority leader said about her famous quote, that there is a special place in hell for women who don't help women—I think we have all seen that quote. I think most women understand exactly what that means, but let me just give you an example for many of us, particularly in national security, of what that really meant.

When I joined the CIA as a young CIA officer in 2003, I was put on the Iraq desk. We were in the middle of the Iraq war, and I would often go and brief the senior-most folks at the CIA on kind of what was happening on a daily basis. I would often go with mostly male colleagues into these rooms and brief very senior folks.

At the time, there were a couple—just a couple—of very senior women at the CIA. They had clawed their way to the top. I think at that point, the most senior woman was the number three at the CIA, and there were a few other senior women in the analytics side of the house.

I would go in and brief, and I remember very clearly going in with all of my male colleagues, my peers, and this very senior woman kind of had it out for the only other woman in the room. There was a generation of women who were basically so sort of tough in making it to the top that they really internalized this idea that there could only be one senior woman. There could only be one woman who was in the shop with the boys. So any other woman that came there was a threat, and you were going to put your sights on that woman.

I remember my male colleagues saying, man, like, she just has it out for you. It was a thing that a lot of us in national security grew up with. Now, I am happy to say that, a few years later, that generation largely retired, and in came the next generation of senior leaders who believed in lifting women up.

But when Madeleine Albright gives that famous quote, that there is a special place in hell for women who don't help women, she knows of what she speaks. It is not a general statement. It is something that I know she specifically had to deal with as a woman who was a leader on the Hill, a leader in the executive branch.

□ 2000

And it is very hard when you are trained a certain way to change your approach and say I am not going to repeat that kind of aggressive focus on women, and I am going to learn from my experience and do something different. I think she really embodied that. That was a very real thing that was still going on until relatively recently in national security circles.

Lastly, as we wait for Mr. MALINOWSKI, somewhere in the ether, he texted me to say that he was on his way. I will say that I noted that Secretary Albright died just about exactly a month after the start of the Russian invasion of Ukraine. I know that in her final days she was watching, I am sure with rapt attention, what was happening in the world.

As has been said many times tonight, she really was a person thinking ahead that this competition between democracy and autocracy was not over. It was not something of the past, it was not a Cold War-era phenomenon that didn't exist anymore. It was very alive, like a bone in the throat.

It gives me great peace that despite the terrible things that are going on and watching the suffering of the Ukrainian people that Madeleine Albright spent her life trying to push back on the kind of violence and dictatorship that we see active right now. Her words and lessons are helping us parse through what to do in a place like Ukraine.

We have a history in places like Europe, particularly the Balkans, in using American willpower and military power to help get us through these conflicts because she laid that predicate by pushing in her era when she was Secretary of State.

Despite the fact that she didn't get to see the end of this conflict, I know that she would feel confident that whether it is in a few weeks or a few months, whatever time it takes, that the principles of democracy and freedom are not things you can just snuff out with the barrel of a gun. I am sure she would have felt that deeply as she was watching in her final days the events taking place in the world.

Madam Speaker, I yield to the gentleman from New Jersey (Mr. MALINOWSKI).

Mr. MALINOWSKI. Madam Speaker, when people sometimes ask me to name an unusual fun fact about myself, something that no one would quite believe would be true, I sometimes say that at a younger point in my life I had a chance to write and negotiate a four act parody performance of ''West Side Story'' with the Russian Government. I owe that experience to Secretary Madeleine Albright.

I was a young speech writer at the State Department when she became Secretary of State. I was so thrilled to have that opportunity because here I was an immigrant from Poland when it was a Communist country. Our new Secretary of State was an immigrant from Czechoslovakia, leaving that country under duress with her family when it became a Communist country. I felt a kinship with this extraordinary American, a sense that we saw the world in similar terms.

I saw her in every part of the world stand up for our country, for our values, for our interest. I saw her face down dictators and comfort their victims. I saw her sense of fun.

In 1997, we were on our way to a meeting of the Association of Southeast Asian Nations, ASEAN, in Malaysia, and we learned a couple of days in advance that there was a tradition that every delegation would put on a skit at the end of this diplomatic meeting, something very, very unusual. We heard, furthermore, that the United States had developed a reputation for really sucking at the skit. That was not acceptable to Madeleine Albright.

She was going to go and stand up for democracy in Burma and Cambodia and have a standoff with the Chinese over the South China Sea, but we were also going to win the skit. So she assigned me to write a brand new version of ''Don't Cry for me Argentina'' from ''Evita,'' which became ''Don't Cry for Me ASEANs.'' We all got up there and performed it, not really knowing what the reaction would be. It was reviewed in Playbill on Broadway. It was such a surprising hit.

We learned something really interesting, in diplomacy you can actually say anything, no matter how sensitive, no matter how potentially offensive to your diplomatic partners around the world, if you make it rhyme and you put it in a song.

So the next year we got even more ambitious, and we went to the Russians, and said, Would you like to do ''West Side Story'' with us? They said, Yes. So my job over the most stressful week of my life, counting my last two elections, was to negotiate into long hours of the night with the Russian diplomats the jokes that we would make in this four-act production of ''West Side Story.''

We didn't think that they would do it until the last minute. The night before the performance, at midnight, the foreign minister of Russia, Yevgeny Primakov, who had been the head of their KGB, stumbled in with his aides into Secretary Albright's suite completely drunk, and said, We are ready to rehearse. We knew that we had it.

Those were obviously simpler days, better days, when we could fight with the Russians on all kinds of issues, but still find fellowship and some friendship and some opportunity to laugh together.

Times have changed. When I look at what is happening right now to the brave people of Ukraine and the evil that Russia has unleashed on them, and so many other terrible things that the government of Vladimir Putin has done in recent years, I thank goodness for what Secretary of State Madeleine Albright did in the 1990s, particularly her role in leading the first expansion of the NATO alliance.

She understood and saw, before most people, that it would be unjust to stay allied with Europe's old democracies, France, Germany, the United Kingdom forever, but Europe's new democracies never, simply because they had once, against their will, had been subjugated by the Soviet Union.

She also saw it would be unwise, in fact reckless, to allow these Eastern European democracies to stay in a gray zone of insecurity, to signal to Russia that it could, in effect, do what it wanted in this zone, that America would not defend these countries.

She said then of NATO expansion that it was basically about expanding the part of Europe where wars do not happen. By making clear that we, the United States, will fight, if necessary, to defend our allies there, we would make the necessity of doing so actually far less likely. She was right.

Not a single member of NATO, old or new, has ever been attacked on European soil to this day. The only countries Russia has attacked are countries that do not have NATO's defense guarantee.

I think one reason she saw these things is because as an immigrant to America, as an immigrant from tyranny, she saw America from the inside but also from the outside. She saw what America means—what the idea of America means to a human rights defender in Burma, to a dissident in China, to a refugee from violence in Kosovo or Bosnia. She comforted so many of those people and convinced them that America was on their side.

She believed America is a special country, indeed, an indispensable country. She understood that our influence in the world comes not just from the example of our power, but from the power of our example at home.

In her last years, when I would see her, she would often tell me that one of her greatest regrets was she never had a chance to run for office. She was jealous of those of us who had worked with her over the years who decided to run for Congress because she understood that we can't do anything for others if we are not safe and strong at home in our own great, American democracy.

Years ago, when I worked for her she gave a commencement address, and I will just close with these words that she spoke: ''There is no certain roadmap to success, either for individuals or for generations. Ultimately, it is a matter of judgment, a question of choice. In making that choice, let us remember that there is not a page of American history, of which we are proud, that was authored by a chronic complainer or prophet of despair. We are doers. We have a responsibility, as others have had in theirs, not to be prisoners of history, but to shape history; a responsibility to fill the role of pathfinder, and to build with others a global network of purpose and law that will protect our citizens, defend our interests, preserve our values, and bequeath to future generations a legacy as proud as the one that we honor today.

''To that mission, I pledge my own best efforts and summon yours.''

We pledge our best efforts to that mission here today, and we summon those of everybody who is watching this evening.

Ms. SLOTKIN. Madam Speaker, I thank the gentleman for those moving remarks.

As I conclude here, I just want to thank everyone who came to speak, and I feel extremely proud that these remarks and just a taste of the Secretary's legacy will be kept forever in the official RECORD of the people's House.

Madam Speaker, I yield back the balance of my time.

ADJOURNMENT

The SPEAKER pro tempore. Pursuant to section 11(b) of House Resolution 188, the House stands adjourned until 10 a.m. tomorrow morning for morning-hour debate and noon for legislative business.

Thereupon (at 8 o'clock and 11 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, April 27, 2022, at 10 a.m. for morning-hour debate.

NOTICE OF PROPOSED RULEMAKING

U.S. CONGRESS,
OFFICE OF CONGRESSIONAL WORKPLACE RIGHTS,
Washington, DC, April 26, 2022.

Hon. NANCY PELOSI,
Speaker of the House of Representatives,
The Capitol, Washington, DC.

DEAR MADAM SPEAKER: Section 203(c)(1) of the Congressional Accountability Act (CAA), 2 U.S.C. 1313(c)(1), requires the Board of Directors of the Office of Congressional Workplace Rights (''the Board'') to issue regulations implementing Section 203 of the CAA relating to the Fair Labor Standards Act of 1938 (''FLSA''), 29 U.S.C. 206 et seq., made applicable to the legislative branch by the CAA. 2 U.S.C. 1313(a)(1).

Section 304(b)(1) of the CAA, 2 U.S.C. 1384(b)(1), requires that the Board issue a general notice of proposed rulemaking by transmitting ''such notice to the Speaker of the House of Representatives and the President Pro Tempore of the Senate for publication in the Congressional Record on the first day of which both Houses are in session following such transmittal.''

On behalf of the Board, I am hereby transmitting the attached notice of proposed rulemaking to the Speaker of the House of Representatives. I request that this notice be published in the House section of the Congressional Record on the first day on which both Houses are in session following receipt of this transmittal. In compliance with Section 304(b)(2) of the CAA, a comment period

of 30 days after the publication of this notice of proposed rulemaking is being provided before adoption of the rules.

Any inquiries regarding this notice should be addressed to Teresa James, Acting Executive Director of the Office of Congressional Workplace Rights, 110 Second Street, S.E., Room LA-200, Washington, DC 20540-1999; telephone: 202-724-9250.

Sincerely,

BARBARA CHILDS WALLACE,
Chair of the Board of Directors, Office of Congressional Workplace Rights.

Attachment.

FROM THE BOARD OF DIRECTORS OF THE OFFICE OF CONGRESSIONAL WORKPLACE RIGHTS

Implementing Certain Substantive Rights and Protections of the Fair Labor Standards Act of 1938, as Required by Section 203 of the Congressional Accountability Act of 1995 (CAA), 2 U.S.C. 1313.

NOTICE OF PROPOSED RULEMAKING

Background:

The purpose of this Notice is to initiate the process for replacing existing legislative branch Fair Labor Standards Act (FLSA) overtime substantive regulations under section 203 of the Congressional Accountability Act (CAA), 2 U.S.C. 1302 et seq., which were adopted by the Board and approved by the House and the Senate in 1996, with new regulations that substantially mirror the overtime exemption regulations promulgated by the Secretary of Labor thereafter and presently in effect. These modifications are necessary in order to bring existing legislative branch FLSA overtime regulations in line with multiple regulatory changes that have occurred since 1996. The regulations that presently implement the FLSA for the Legislative Branch are woefully out of date because the Secretary of Labor's updated FLSA regulations do not automatically apply to employing offices and employees covered by the CAA. As a result, the employees of the Legislative Branch are presently held to FLSA overtime standards that are no longer realistic in today's economy.

Do FLSA overtime pay requirements apply via the CAA to Legislative Branch employing offices?

Yes. Section 203(a)(1) of the CAA states: ''[t]he rights and protections established by subsections (a)(1) and (d) of section 6, section 7, and section 12(c) of the [FLSA] . . . (29 U.S.C. 206(a)(1), 207, 212(c)) shall apply to covered employees.'' Section 7 of the FLSA, 29 U.S.C. 207, includes the requirements regarding the payment of time and one half overtime pay to employees.

Are there existing overtime exemption regulations already in force under the CAA?

Yes. In 1996, the Board of Directors of the Office of Compliance—now the Office of Congressional Workplace Rights—promulgated the existing CAA overtime exemption regulations based on Department of Labor's regulations that were in effect at the time. Those regulations were adopted pursuant to the CAA section 304 procedure outlined herein below. Those regulations are found at Parts H541 (applicable to the House of Representatives), S541 (applicable to the Senate), and C541 (applicable to the other employing offices covered by section 203 of the CAA) of the FLSA Regulations of the (then) Office of Compliance. Those regulations remain in force in the Legislative Branch until replaced by new regulations. The 1996 FLSA Substantive regulations can be accessed via the Office of Congressional Workplace Rights web site: www.ocwr.gov.

What is the history of the FLSA overtime salary threshold test?

Historically, the salary threshold test contained in the Department of Labor's regulations has been a fixed amount that has not changed with inflation. In 2004, the Department of Labor promulgated regulations increasing the salary threshold test so that employees with low salaries would not be deprived of overtime pay. Thus, in 2004, the Board of Directors adopted and submitted for publication in the Congressional Record amendments to its 1996 substantive regulations regarding the FLSA overtime exemptions. 150 Cong. Rec. H7850–07, S9917–01 (daily ed. September 29, 2004).

The 2004 Amendments to the Legislative Branch substantive regulations adopted by the Board mirrored new overtime exemption regulations promulgated by the Department of Labor, Vol. 69 of the Federal Register, No. 79, at pp. 22122 et seq., which substantially changed the prior overtime exemptions. More specifically, the 2004 FLSA amendments adopted by the Board of Directors reflected the new Part 541 in the updated DOL regulations then in effect, which restructured much of the regulatory framework for determining whether a particular employee is exempt from FLSA overtime requirements. The 2004 changes included: (1) eliminating the ''short'' and ''long tests and revising the standard duties test for each exemption category; (2) significantly increasing the salary level under DOL's revised standard duties test to $455 per week for executive, administrative, and professional employee exemptions and (3) creating a ''highly compensated executive'' category in which employees who are paid total annual compensation of at least $100,000 (which must include at least $455 per week paid on a salary or fee basis) are exempt from the FLSA's overtime requirements if they customarily and regularly perform at least one of the exempt duties or responsibilities of an executive, administrative, or professional employee identified in the standard tests for exemption.

However, because Congress did not approve the 2004 amendments adopted by the Board, the 2004 DOL regulations containing FLSA exemption updates were not made applicable to the Legislative Branch. The regulations proposed by the Board in this Notice of Proposed Rulemaking incorporate the 2004 amendments previously adopted by the Board after public notice and comment, and further update the overtime exemption regulations to mirror further Department of Labor changes in 2016, 2019, and 2020.

Why is this Notice being issued?

Over the past 25 years, the Secretary of Labor has substantially rewritten and expanded Part 541 and has repeatedly increased the salary threshold test. However, the Secretary of Labor's regulations do not automatically apply to employing offices and employees covered by the CAA. Because the 2004 amendments adopted by the Board were not approved by Congress, unlike the Department of Labor's current regulations, the present salary threshold test within the Legislative Branch sets the salary below the poverty level. Specifically, the 1996 Substantive Regulations has a salary basis test of ''not less than $155 per week'' which is an annual salary of less than $8000.00 per year. In other sections of the 1996 Substantive Regulations that remain applicable to the Legislative Branch, the salary basis test is ''not less than $250 per week'' which is yearly salary of approximately $13,000.00. This Notice is being issued, in part, to modify this substantially lower salary test set by the 1996 FLSA Substantive Regulations that are financially outdated and yet remain in effect.

This Notice of Proposed Rulemaking is occasioned by the promulgation of new overtime exemption regulations by the Secretary of Labor at Vol. 69 of the Federal Register, No. 79, at pp. 22122 et seq., on August 23, 2004; Vol. 81 of the Federal Register, at pp. 32391 et seq., on May 23, 2016; Vol. 84 of the Federal Register, at pp. 51230 et seq., on September 27, 2019; and Vol. 85 of the Federal Register, at pp. 34970–01 et seq., on June 8, 2020. The new regulations of the Secretary of Labor as set out at 29 U.S.C. Part 541, reflect the substantial restructuring of overtime exemptions described above, which to date have not yet been made applicable to the Legislative Branch.

Is the Board proposing to adopt the current Department of Labor Regulations verbatim?

The Board has deliberated regarding the question of whether ''good cause'' exists pursuant to section 203(c)(2) of the CAA, 2 U.S.C. 1313(c)(2), for varying these proposed regulations from the Department of Labor regulations. The Board reconsidered comments submitted in response to the Notice of Proposed Rulemaking in 2004 and now agrees that subsections that refer to occupations that do not apply in any manner to the Congressional branch, e.g., §541.101—Business owner and Subpart F—Outside Sales Employees, should not be retained as part of the regulations adopted and/or approved for the Legislative branch. Substantive Regulations that are focused solely on occupations existing within the Legislative Branch would be more effective for the implementation of the rights and protections under this section. As a result, these sections are delineated with bold brackets in this Notice.

Why are there separate sets of existing FLSA regulations for the House of Representatives, the Senate, and the other employing offices covered by the CAA?

Section 304(a)(2)(B) of the CAA, 2 U.S.C. 1384(a)(2)(B), requires that the substantive rules of the Board of Directors ''shall consist of 3 separate bodies of regulations, which shall apply, respectively, to—(i) the Senate and employees of the Senate; (ii) the House of Representatives and employees of the House of Representatives; and (iii) the other covered employees and employing offices.'' In 1996, the House of Representatives (H. Res. 400) and the Senate (S. Res. 242) each adopted by resolution the FLSA regulations applicable to each body. The Senate and House of Representatives adopted by concurrent resolution (S. Con. Res. 51) the regulations applicable to other employing offices and employees.

Are there substantive differences in the proposed regulations for the House of Representatives, the Senate, and the other employing offices?

No. While there are some differences in other parts of the existing FLSA regulations applicable to the Senate, the House of Representatives, and the other employing offices (chiefly related to the mandate at section 203(c)(3) of the CAA, 2 U.S.C. 1313(c)(3), regarding ''covered employees whose work schedules directly depend on the schedule of the House of Representatives or the Senate . . .''), the Board of Directors has identified no ''good cause'' for varying the text of these regulations. Therefore, if the proposed part 541 regulations are adopted, the prefixes ''H'', ''S'', and ''C'' will be affixed to each of the sets of regulations for the House, for the Senate, and for the other employing offices, but the text of the part 541 regulations will be identical.

How are substantive regulations proposed and approved under the CAA?

Section 203(c)(2) of the CAA, 2 U.S.C. 1313(c)(2), requires that the Board of Directors propose substantive regulations implementing the FLSA overtime requirements which are ''the same as substantive regulations promulgated by the Secretary of Labor to implement the statutory provisions . . .

except insofar as the Board may determine, for good cause shown and stated together with the regulation, that a modification of such regulation would be more effective for the implementation of the rights and protections under this section.'' Pursuant to section 304 of the CAA, 2 U.S.C. 1384, the procedure for promulgating such substantive regulations requires that: (1) the Board of Directors adopt proposed substantive regulations and publish a general notice of proposed rulemaking in the Congressional Record; (2) there be a comment period of at least 30 days after the date of publication of the general notice of proposed rulemaking; (3) after consideration of comments by the Board of Directors, that the Board adopt regulations and transmit notice of such action together with the regulations and a recommendation regarding the method for Congressional approval of the regulations to the Speaker of the House and President pro tempore of the Senate for publication in the Congressional Record; (4) committee referral and action on the proposed regulations by resolution in each House, concurrent resolution, or by joint resolution; and (5) final publication of the approved regulations in the Congressional Record, with an effective date prescribed in the final publication. For more detail, please reference the text of 2 U.S.C. 1384. This Notice of Proposed Rulemaking is step (1) of the outline set forth above. Unless and until all of the steps of the outline set forth above are completed, all employing offices and covered employees continue to be required to follow the existing 1996 Substantive Regulations thereby denying many Legislative Branch employees of overtime benefits that they would likely be entitled to pursuant to the current Department of Labor overtime regulations.

How does the Board of Directors recommend that Congress approve these proposed regulations?

Pursuant to section 304(b)(4) of the CAA, 2 U.S.C. 1384(b)(4), the Board of Directors is required to ''include a recommendation in the general notice of proposed rulemaking and in the regulations as to whether the regulations should be approved by resolution of the Senate, by resolution of the House of Representatives, by concurrent resolution, or by joint resolution.'' The Board of Directors recommends that the procedure used in 1996 be used to adopt these proposed overtime exemption regulations: the House of Representatives adopted the ''H'' version of the regulations by resolution; the Senate adopted the ''S'' version of the regulations by resolution; and the House and Senate adopted the ''C'' version of the regulations applied to the other employing offices by a concurrent resolution.

Are these proposed regulations also recommended by the Office of Congressional Workplace Rights' Executive Director, the Deputy Executive Director for the House of Representatives, and the Deputy Executive Director for the Senate?

Yes, as required by section 304(b)(1) of the CAA, 2 U.S.C. 1384(b)(1), the substance of these regulations is also recommended by the Executive Director and Deputy Executive Directors of the Office of Congressional Workplace Rights.

How similar are the proposed CAA regulations with the current Secretary of Labor regulations?

Except for certain required changes to refer to the Legislative Branch instead of the Executive Branch, which are shown in the accompanying proposed regulations, the Board of Directors has repeated the text of the regulations at 29 CFR Part 541 verbatim. ''Good cause'' for modification of the existing regulations of the Secretary of Labor, as required by section 203(c)(2) of the CAA, 2 U.S.C. 1313(c)(2), consists of those changes needed to reflect the authority of the CAA as the enabling statute for these regulations, the requirement at section 225(d)(3) of the CAA, 2 U.S.C. 1361(d)(3), that the CAA ''shall not be construed to authorize enforcement by the executive branch of this Act. . . .''. If there is any additional good cause for a particular proposed variation from the Secretary of Labor's regulations, it is set out adjacent to that provision of the proposed regulation.

Are these proposed CAA regulations available to persons with disabilities in an alternate format?

This Notice of Proposed Rulemaking is available on the Office of Congressional Workplace Rights' web site, www.ocwr.gov which is compliant with section 508 of the Rehabilitation Act of 1973 as amended, 29 U.S.C. 794(d). This Notice can also be made available in large print, Braille, or other alternative format. Requests for this Notice in an alternative format should be made via email to: adaaccess@ocwr.gov.

30-DAY COMMENT PERIOD REGARDING THE PROPOSED REGULATIONS

How can I submit comments regarding the proposed regulations?

Comments regarding the proposed new overtime exemption regulations of the Office of Congressional Workplace Rights set forth in this NOTICE are invited for a period of thirty (30) days following the date of the appearance of this NOTICE in the Congressional Record. Submission of comments must be made in writing to the Executive Director, Office of Congressional Workplace Rights, via email at rule-comments@ocwr.gov. Copies of submitted comments will be available for review on the Office's web site at www.ocwr.gov.

Supplementary Information:

The Congressional Accountability Act of 1995 (CAA), PL 10–91, was enacted into law on January 23, 1995. The CAA applies the rights and protections of 12 federal labor and employment statutes to covered employees and employing offices within the Legislative Branch of Government. Section 301 of the CAA (2 U.S.C. 1381), as amended, establishes the Office of Congressional Workplace Rights as an independent office within the Legislative Branch.

HOW TO READ THE PROPOSED AMENDMENTS

The text of the proposed amendments reproduces the text of the current regulations promulgated by the Secretary of Labor at 29 CFR Part 541, and shows changes proposed for the CAA version of these same regulations. Changes proposed by the Board of Directors of the Office of Congressional Workplace Rights are shown as follows: deletions are marked with a [bracket] and added text is bolded within angled <<brackets>>. Therefore, if these regulations are approved as proposed, the deletion within bracketed text will disappear from the regulations and the added text within angled brackets will remain but not in bold. If these regulations are approved for the House of Representatives by resolution of the House, they will be promulgated with the prefix ''H'' appearing before each regulations section number. If these regulations are approved for the Senate by resolution of the Senate, they will be promulgated with the prefix ''S'' appearing before each regulations section number. If these regulations are approved for the other employing offices by joint or concurrent resolution of the House of Representatives and the Senate, they will be promulgated with the prefix ''C'' appearing before each regulations section number.

PROPOSED OVERTIME EXEMPTION REGULATIONS

Part 541—Defining and Delimiting the Exemptions for Executive, Administrative, Professional, and Computer [and Outside Sales] Employees

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SUBPART A—GENERAL REGULATIONS (§§ 541.0–541.4)

§ 541.0 Introductory statement.

(a) Section 13(a)(1) of the Fair Labor Standards Act, as amended, provides an exemption from the Act's minimum wage and overtime requirements for any employee employed in a bona fide executive, administrative, or professional capacity (including any employee employed in the capacity of academic administrative personnel or teacher in

elementary or secondary schools)[, or in the capacity of an outside sales employee, as such terms are defined and delimited from time to time by regulations of the Secretary, subject to the provisions of the Administrative Procedure Act.] Section 13(a)(17) of the Act provides an exemption from the minimum wage and overtime requirements for computer systems analysts, computer programmers, software engineers, and other similarly skilled computer employees.

(b) The requirements for these exemptions are contained in this part as follows: executive employees, subpart B; administrative employees, subpart C; professional employees, subpart D; computer employees, subpart E[; outside sales employees, subpart F]. Subpart G contains regulations regarding salary requirements applicable to most of the exemptions, including salary levels and the salary basis test. Subpart G also contains a provision for exempting certain highly compensated employees. Subpart H contains definitions and other miscellaneous provisions applicable to all or several of the exemptions.

(c) Effective July 1, 1972, the Fair Labor Standards Act was amended to include within the protection of the equal pay provisions those employees exempt from the minimum wage and overtime pay provisions as bona fide executive, administrative, and professional employees (including any employee employed in the capacity of academic administrative personnel or teacher in elementary or secondary schools)[, or in the capacity of an outside sales employee under section 13(a)(1) of the Act]. The equal pay provisions in section 6(d) of the Fair Labor Standards Act are administered and enforced by the [United States Equal Employment Opportunity Commission] <<**Office of Congressional Workplace Rights**>>.

§ 541.1 Terms used in regulations.

Act means the Fair Labor Standards Act of 1938, as amended.

[Administrator means the Administrator of the Wage and Hour Division, United States Department of Labor. The Secretary of Labor has delegated to the Administrator the functions vested in the Secretary under sections 13(a)(1) and 13(a)(17) of the Fair Labor Standards Act.] <<**CAA means Congressional Accountability Act of 1995, as amended. Office means the Office of Congressional Workplace Rights. Employee means a "covered employee" as defined in section 101(3) through (8) of the CAA, 2 U.S.C. 1301(3) through (8), but not an "intern" as defined in section 203(a)(2) of the CAA, 2 U.S.C. 1313(a)(2). Employer, company, business, or enterprise each mean an "employing office" as defined in section 101(9) of the CAA, 2 U.S.C. 1301(9)**.>>

§ 541.2 Job titles insufficient.

A job title alone is insufficient to establish the exempt status of an employee. The exempt or nonexempt status of any particular employee must be determined on the basis of whether the employee's salary and duties meet the requirements of the regulations in this part.

§ 541.3 Scope of the section 13(a)(1) exemptions.

(a) The section 13(a)(1) exemptions and the regulations in this part do not apply to manual laborers or other ''blue collar'' workers who perform work involving repetitive operations with their hands, physical skill and energy. Such nonexempt ''blue collar'' employees gain the skills and knowledge required for performance of their routine manual and physical work through apprenticeships and on-the-job training, not through the prolonged course of specialized intellectual instruction required for exempt learned professional employees such as medical doctors, architects and archeologists. Thus, for example, non-management production-line employees and non-management employees in maintenance, construction and similar occupations such as carpenters, electricians, mechanics, plumbers, iron workers, craftsmen, operating engineers, longshoremen, construction workers and laborers are entitled to minimum wage and overtime premium pay under the Fair Labor Standards Act, and are not exempt under the regulations in this part no matter how highly paid they might be.

(b)(1) The section 13(a)(1) exemptions and the regulations in this part also do not apply to police officers, detectives, deputy sheriffs, state troopers, highway patrol officers, investigators, inspectors, correctional officers, parole or probation officers, park rangers, fire fighters, paramedics, emergency medical technicians, ambulance personnel, rescue workers, hazardous materials workers and similar employees, regardless of rank or pay level, who perform work such as preventing, controlling or extinguishing fires of any type; rescuing fire, crime or accident victims; preventing or detecting crimes; conducting investigations or inspections for violations of law; performing surveillance; pursuing, restraining and apprehending suspects; detaining or supervising suspected and convicted criminals, including those on probation or parole; interviewing witnesses; interrogating and fingerprinting suspects; preparing investigative reports; or other similar work.

(2) Such employees do not qualify as exempt executive employees because their primary duty is not management of the enterprise in which the employee is employed or a customarily recognized department or subdivision thereof as required under § 541.100. Thus, for example, a police officer or fire fighter whose primary duty is to investigate crimes or fight fires is not exempt under section 13(a)(1) of the Act merely because the police officer or fire fighter also directs the work of other employees in the conduct of an investigation or fighting a fire.

(3) Such employees do not qualify as exempt administrative employees because their primary duty is not the performance of work directly related to the management or general business operations of the employer or the employer's customers as required under § 541.200.

(4) Such employees do not qualify as exempt professionals because their primary duty is not the performance of work requiring knowledge of an advanced type in a field of science or learning customarily acquired by a prolonged course of specialized intellectual instruction or the performance of work requiring invention, imagination, originality or talent in a recognized field of artistic or creative endeavor as required under § 541.300. Although some police officers, fire fighters, paramedics, emergency medical technicians and similar employees have college degrees, a specialized academic degree is not a standard prerequisite for employment in such occupations.

§ 541.4 Other laws and collective bargaining agreements.

The Fair Labor Standards Act provides minimum standards that may be exceeded, but cannot be waived or reduced. Employers must comply, for example, with any Federal, State or municipal laws, regulations or ordinances establishing a higher minimum wage or lower maximum workweek than those established under the Act. Similarly, employers, on their own initiative or under a collective bargaining agreement with a labor union, are not precluded by the Act from providing a wage higher than the statutory minimum, a shorter workweek than the statutory maximum, or a higher overtime premium (double time, for example) than provided by the Act. While collective bargaining agreements cannot waive or reduce the Act's protections, nothing in the Act or the regulations in this part relieves employers from their contractual obligations under collective bargaining agreements.

SUBPART B—EXECUTIVE EMPLOYEES (§§ 541.100–541.106)

§ 541.100 General rule for executive employees.

(a) The term ''employee employed in a bona fide executive capacity'' in section 13(a)(1) of the Act shall mean any employee:

(1) Compensated on a salary basis pursuant to § 541.600 at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging or other facilities;

(2) Whose primary duty is management of the enterprise in which the employee is employed or of a customarily recognized department or subdivision thereof;

(3) Who customarily and regularly directs the work of two or more other employees; and

(4) Who has the authority to hire or fire other employees or whose suggestions and recommendations as to the hiring, firing, advancement, promotion or any other change of status of other employees are given particular weight.

(b) The phrase ''salary basis'' is defined at § 541.602; ''board, lodging or other facilities'' is defined at § 541.606; ''primary duty'' is defined at § 541.700; and ''customarily and regularly'' is defined at § 541.701.

[§ 541.101 Business owner.

The term ''employee employed in a bona fide executive capacity'' in section 13(a)(1) of the Act also includes any employee who owns at least a bona fide 20-percent equity interest in the enterprise in which the employee is employed, regardless of whether the business is a corporate or other type of organization, and who is actively engaged in its management. The term ''management'' is defined in § 541.102. The requirements of Subpart G (salary requirements) of this part do not apply to the business owners described in this section.]

§ 541.102 Management.

Generally, ''management'' includes, but is not limited to, activities such as interviewing, selecting, and training of employees; setting and adjusting their rates of pay and hours of work; directing the work of employees; maintaining production or sales records for use in supervision or control; appraising employees' productivity and efficiency for the purpose of recommending promotions or other changes in status; handling employee complaints and grievances; disciplining employees; planning the work; determining the techniques to be used; apportioning the work among the employees; determining the type of materials, supplies, machinery, equipment or tools to be used or merchandise to be bought, stocked and sold; controlling the flow and distribution of materials or merchandise and supplies; providing for the safety and security of the employees or the property; planning and controlling the budget; and monitoring or implementing legal compliance measures.

§ 541.103 Department or subdivision.

(a) The phrase ''a customarily recognized department or subdivision'' is intended to

distinguish between a mere collection of employees assigned from time to time to a specific job or series of jobs and a unit with permanent status and function. A customarily recognized department or subdivision must have a permanent status and a continuing function. For example, a large employer's human resources department might have subdivisions for labor relations, pensions and other benefits, equal employment opportunity, and personnel management, each of which has a permanent status and function.

(b) When an enterprise has more than one establishment, the employee in charge of each establishment may be considered in charge of a recognized subdivision of the enterprise.

(c) A recognized department or subdivision need not be physically within the employer's establishment and may move from place to place. The mere fact that the employee works in more than one location does not invalidate the exemption if other factors show that the employee is actually in charge of a recognized unit with a continuing function in the organization.

(d) Continuity of the same subordinate personnel is not essential to the existence of a recognized unit with a continuing function. An otherwise exempt employee will not lose the exemption merely because the employee draws and supervises workers from a pool or supervises a team of workers drawn from other recognized units, if other factors are present that indicate that the employee is in charge of a recognized unit with a continuing function.

§ 541.104 Two or more other employees.

(a) To qualify as an exempt executive under §541.100, the employee must customarily and regularly direct the work of two or more other employees. The phrase ''two or more other employees'' means two full-time employees or their equivalent. One full-time and two half-time employees, for example, are equivalent to two full-time employees. Four half-time employees are also equivalent.

(b) The supervision can be distributed among two, three or more employees, but each such employee must customarily and regularly direct the work of two or more other full-time employees or the equivalent. Thus, for example, a department with five full-time nonexempt workers may have up to two exempt supervisors if each such supervisor customarily and regularly directs the work of two of those workers.

(c) An employee who merely assists the manager of a particular department and supervises two or more employees only in the actual manager's absence does not meet this requirement.

(d) Hours worked by an employee cannot be credited more than once for different executives. Thus, a shared responsibility for the supervision of the same two employees in the same department does not satisfy this requirement. However, a full-time employee who works four hours for one supervisor and four hours for a different supervisor, for example, can be credited as a half-time employee for both supervisors.

§ 541.105 Particular weight.

To determine whether an employee's suggestions and recommendations are given ''particular weight,'' factors to be considered include, but are not limited to, whether it is part of the employee's job duties to make such suggestions and recommendations; the frequency with which such suggestions and recommendations are made or requested; and the frequency with which the employee's suggestions and recommendations are relied upon. Generally, an executive's suggestions and recommendations must pertain to employees whom the executive customarily and regularly directs. It does not include an occasional suggestion with regard to the change in status of a co-worker. An employee's suggestions and recommendations may still be deemed to have ''particular weight'' even if a higher level manager's recommendation has more importance and even if the employee does not have authority to make the ultimate decision as to the employee's change in status.

§ 541.106 Concurrent duties.

(a) Concurrent performance of exempt and nonexempt work does not disqualify an employee from the executive exemption if the requirements of §541.100 are otherwise met. Whether an employee meets the requirements of §541.100 when the employee performs concurrent duties is determined on a case-by-case basis and based on the factors set forth in §541.700. Generally, exempt executives make the decision regarding when to perform nonexempt duties and remain responsible for the success or failure of business operations under their management while performing the nonexempt work. In contrast, the nonexempt employee generally is directed by a supervisor to perform the exempt work or performs the exempt work for defined time periods. An employee whose primary duty is ordinary production work or routine, recurrent or repetitive tasks cannot qualify for exemption as an executive.

(b) For example, an assistant manager in a retail establishment may perform work such as serving customers, cooking food, stocking shelves and cleaning the establishment, but performance of such nonexempt work does not preclude the exemption if the assistant manager's primary duty is management. An assistant manager can supervise employees and serve customers at the same time without losing the exemption. An exempt employee can also simultaneously direct the work of other employees and stock shelves.

(c) In contrast, a relief supervisor or working supervisor whose primary duty is performing nonexempt work on the production line in a manufacturing plant does not become exempt merely because the nonexempt production line employee occasionally has some responsibility for directing the work of other nonexempt production line employees when, for example, the exempt supervisor is unavailable. Similarly, an employee whose primary duty is to work as an electrician is not an exempt executive even if the employee also directs the work of other employees on the job site, orders parts and materials for the job, and handles requests from the prime contractor.

SUBPART C—ADMINISTRATIVE EMPLOYEES (§§ 541.200–541.204)

§ 541.200 General rule for administrative employees.

(a) The term ''employee employed in a bona fide administrative capacity'' in section 13(a)(1) of the Act shall mean any employee:

(1) Compensated on a salary or fee basis pursuant to §541.600 at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging or other facilities;

(2) Whose primary duty is the performance of office or non-manual work directly related to the management or general business operations of the employer or the employer's customers; and

(3) Whose primary duty includes the exercise of discretion and independent judgment with respect to matters of significance.

(b) The term ''salary basis'' is defined at §541.602; ''fee basis'' is defined at §541.605; ''board, lodging or other facilities'' is defined at §541.606; and ''primary duty'' is defined at §541.700.

§ 541.201 Directly related to management or general business operations.

(a) To qualify for the administrative exemption, an employee's primary duty must be the performance of work directly related to the management or general business operations of the employer or the employer's customers. The phrase ''directly related to the management or general business operations'' refers to the type of work performed by the employee. To meet this requirement, an employee must perform work directly related to assisting with the running or servicing of the business, as distinguished, for example, from working on a manufacturing production line or selling a product in a retail or service establishment.

(b) Work directly related to management or general business operations includes, but is not limited to, work in functional areas such as tax; finance; accounting; budgeting; auditing; insurance; quality control; purchasing; procurement; advertising; marketing; research; safety and health; personnel management; human resources; employee benefits; labor relations; public relations, government relations; computer network, internet and database administration; legal and regulatory compliance; and similar activities. Some of these activities may be performed by employees who also would qualify for another exemption.

(c) An employee may qualify for the administrative exemption if the employee's primary duty is the performance of work directly related to the management or general business operations of the employer's customers. Thus, for example, employees acting as advisers or consultants to their employer's clients or customers (as tax experts or financial consultants, for example) may be exempt.

§ 541.202 Discretion and independent judgment.

(a) To qualify for the administrative exemption, an employee's primary duty must include the exercise of discretion and independent judgment with respect to matters of significance. In general, the exercise of discretion and independent judgment involves the comparison and the evaluation of possible courses of conduct, and acting or making a decision after the various possibilities have been considered. The term ''matters of significance'' refers to the level of importance or consequence of the work performed.

(b) The phrase ''discretion and independent judgment'' must be applied in the light of all the facts involved in the particular employment situation in which the question arises. Factors to consider when determining whether an employee exercises discretion and independent judgment with respect to matters of significance include, but are not limited to: whether the employee has authority to formulate, affect, interpret, or implement management policies or operating practices; whether the employee carries out major assignments in conducting the operations of the business; whether the employee performs work that affects business operations to a substantial degree, even if the employee's assignments are related to operation of a particular segment of the business; whether the employee has authority to commit the employer in matters that have significant financial impact; whether the employee has authority to waive or deviate from established policies and procedures without prior approval; whether the employee has authority to negotiate and bind the company on significant matters; whether the employee provides consultation or expert advice to management; whether the employee is involved in planning long- or short-

term business objectives; whether the employee investigates and resolves matters of significance on behalf of management; and whether the employee represents the company in handling complaints, arbitrating disputes or resolving grievances.

(c) The exercise of discretion and independent judgment implies that the employee has authority to make an independent choice, free from immediate direction or supervision. However, employees can exercise discretion and independent judgment even if their decisions or recommendations are reviewed at a higher level. Thus, the term ''discretion and independent judgment'' does not require that the decisions made by an employee have a finality that goes with unlimited authority and a complete absence of review. The decisions made as a result of the exercise of discretion and independent judgment may consist of recommendations for action rather than the actual taking of action. The fact that an employee's decision may be subject to review and that upon occasion the decisions are revised or reversed after review does not mean that the employee is not exercising discretion and independent judgment. For example, the policies formulated by the credit manager of a large corporation may be subject to review by higher company officials who may approve or disapprove these policies. The management consultant who has made a study of the operations of a business and who has drawn a proposed change in organization may have the plan reviewed or revised by superiors before it is submitted to the client.

(d) An employer's volume of business may make it necessary to employ a number of employees to perform the same or similar work. The fact that many employees perform identical work or work of the same relative importance does not mean that the work of each such employee does not involve the exercise of discretion and independent judgment with respect to matters of significance.

(e) The exercise of discretion and independent judgment must be more than the use of skill in applying well-established techniques, procedures or specific standards described in manuals or other sources. See also §541.704 regarding use of manuals. The exercise of discretion and independent judgment also does not include clerical or secretarial work, recording or tabulating data, or performing other mechanical, repetitive, recurrent or routine work. An employee who simply tabulates data is not exempt, even if labeled as a ''statistician.''

(f) An employee does not exercise discretion and independent judgment with respect to matters of significance merely because the employer will experience financial losses if the employee fails to perform the job properly. For example, a messenger who is entrusted with carrying large sums of money does not exercise discretion and independent judgment with respect to matters of significance even though serious consequences may flow from the employee's neglect. Similarly, an employee who operates very expensive equipment does not exercise discretion and independent judgment with respect to matters of significance merely because improper performance of the employee's duties may cause serious financial loss to the employer.

§541.203 Administrative exemption examples.

(a) Insurance claims adjusters generally meet the duties requirements for the administrative exemption, whether they work for an insurance company or other type of company, if their duties include activities such as interviewing insureds, witnesses and physicians; inspecting property damage; reviewing factual information to prepare damage estimates; evaluating and making recommendations regarding coverage of claims; determining liability and total value of a claim; negotiating settlements; and making recommendations regarding litigation.

(b) Employees in the financial services industry generally meet the duties requirements for the administrative exemption if their duties include work such as collecting and analyzing information regarding the customer's income, assets, investments or debts; determining which financial products best meet the customer's needs and financial circumstances; advising the customer regarding the advantages and disadvantages of different financial products; and marketing, servicing or promoting the employer's financial products. However, an employee whose primary duty is selling financial products does not qualify for the administrative exemption.

(c) An employee who leads a team of other employees assigned to complete major projects for the employer (such as purchasing, selling or closing all or part of the business, negotiating a real estate transaction or a collective bargaining agreement, or designing and implementing productivity improvements) generally meets the duties requirements for the administrative exemption, even if the employee does not have direct supervisory responsibility over the other employees on the team.

(d) An executive assistant or administrative assistant to a business owner or senior executive of a large business generally meets the duties requirements for the administrative exemption if such employee, without specific instructions or prescribed procedures, has been delegated authority regarding matters of significance.

(e) Human resources managers who formulate, interpret or implement employment policies and management consultants who study the operations of a business and propose changes in organization generally meet the duties requirements for the administrative exemption. However, personnel clerks who ''screen'' applicants to obtain data regarding their minimum qualifications and fitness for employment generally do not meet the duties requirements for the administrative exemption. Such personnel clerks typically will reject all applicants who do not meet minimum standards for the particular job or for employment by the company. The minimum standards are usually set by the exempt human resources manager or other company officials, and the decision to hire from the group of qualified applicants who do meet the minimum standards is similarly made by the exempt human resources manager or other company officials. Thus, when the interviewing and screening functions are performed by the human resources manager or personnel manager who makes the hiring decision or makes recommendations for hiring from the pool of qualified applicants, such duties constitute exempt work, even though routine, because this work is directly and closely related to the employee's exempt functions.

(f) Purchasing agents with authority to bind the company on significant purchases generally meet the duties requirements for the administrative exemption even if they must consult with top management officials when making a purchase commitment for raw materials in excess of the contemplated plant needs.

(g) Ordinary inspection work generally does not meet the duties requirements for the administrative exemption. Inspectors normally perform specialized work along standardized lines involving well-established techniques and procedures which may have been catalogued and described in manuals or other sources. Such inspectors rely on techniques and skills acquired by special training or experience. They have some leeway in the performance of their work but only within closely prescribed limits.

(h) Employees usually called examiners or graders, such as employees that grade lumber, generally do not meet the duties requirements for the administrative exemption. Such employees usually perform work involving the comparison of products with established standards which are frequently catalogued. Often, after continued reference to the written standards, or through experience, the employee acquires sufficient knowledge so that reference to written standards is unnecessary. The substitution of the employee's memory for a manual of standards does not convert the character of the work performed to exempt work requiring the exercise of discretion and independent judgment.

(i) Comparison shopping performed by an employee of a retail store who merely reports to the buyer the prices at a competitor's store does not qualify for the administrative exemption. However, the buyer who evaluates such reports on competitor prices to set the employer's prices generally meets the duties requirements for the administrative exemption.

(j) Public sector inspectors or investigators of various types, such as fire prevention or safety, building or construction, health or sanitation, environmental or soils specialists and similar employees, generally do not meet the duties requirements for the administrative exemption because their work typically does not involve work directly related to the management or general business operations of the employer. Such employees also do not qualify for the administrative exemption because their work involves the use of skills and technical abilities in gathering factual information, applying known standards or prescribed procedures, determining which procedure to follow, or determining whether prescribed standards or criteria are met.

§541.204 Educational establishments.

(a) The term ''employee employed in a bona fide administrative capacity'' in section 13(a)(1) of the Act also includes employees:

(1) Compensated on a salary or fee basis at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging, or other facilities; or on a salary basis which is at least equal to the entrance salary for teachers in the educational establishment by which employed; and

(2) Whose primary duty is performing administrative functions directly related to academic instruction or training in an educational establishment or department or subdivision thereof.

(b) The term ''educational establishment'' means an elementary or secondary school system, an institution of higher education or other educational institution. Sections 3(v) and 3(w) of the Act define elementary and secondary schools as those day or residential schools that provide elementary or secondary education, as determined under State law. Under the laws of most States, such education includes the curriculums in grades 1 through 12; under many it includes also the introductory programs in kindergarten. Such education in some States may also include nursery school programs in elementary education and junior college curriculums in secondary education. The term ''other educational establishment'' includes special schools for mentally or physically disabled

or gifted children, regardless of any classification of such schools as elementary, secondary or higher. Factors relevant in determining whether post-secondary career programs are educational institutions include whether the school is licensed by a state agency responsible for the state's educational system or accredited by a nationally recognized accrediting organization for career schools. Also, for purposes of the exemption, no distinction is drawn between public and private schools, or between those operated for profit and those that are not for profit.

(c) The phrase ''performing administrative functions directly related to academic instruction or training'' means work related to the academic operations and functions in a school rather than to administration along the lines of general business operations. Such academic administrative functions include operations directly in the field of education. Jobs relating to areas outside the educational field are not within the definition of academic administration.

(1) Employees engaged in academic administrative functions include: the superintendent or other head of an elementary or secondary school system, and any assistants, responsible for administration of such matters as curriculum, quality and methods of instructing, measuring and testing the learning potential and achievement of students, establishing and maintaining academic and grading standards, and other aspects of the teaching program; the principal and any vice-principals responsible for the operation of an elementary or secondary school; department heads in institutions of higher education responsible for the administration of the mathematics department, the English department, the foreign language department, etc.; academic counselors who perform work such as administering school testing programs, assisting students with academic problems and advising students concerning degree requirements; and other employees with similar responsibilities.

(2) Jobs relating to building management and maintenance, jobs relating to the health of the students, and academic staff such as social workers, psychologists, lunch room managers or dietitians do not perform academic administrative functions. Although such work is not considered academic administration, such employees may qualify for exemption under §541.200or under other sections of this part, provided the requirements for such exemptions are met.

SUBPART D—PROFESSIONAL EMPLOYEES (§§541.300–541.304)

§541.300 General rule for professional employees.

(a) The term ''employee employed in a bona fide professional capacity'' in section 13(a)(1) of the Act shall mean any employee:

(1) Compensated on a salary or fee basis pursuant to §541.600 at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging or other facilities; and

(2) Whose primary duty is the performance of work:

(i) Requiring knowledge of an advanced type in a field of science or learning customarily acquired by a prolonged course of specialized intellectual instruction; or

(ii) Requiring invention, imagination, originality or talent in a recognized field of artistic or creative endeavor.

(b) The term ''salary basis'' is defined at §541.602; ''fee basis'' is defined at §541.605; ''board, lodging or other facilities'' is defined at §541.606; and ''primary duty'' is defined at §541.700.

§541.301 Learned professionals.

(a) To qualify for the learned professional exemption, an employee's primary duty must be the performance of work requiring advanced knowledge in a field of science or learning customarily acquired by a prolonged course of specialized intellectual instruction. This primary duty test includes three elements:

(1) The employee must perform work requiring advanced knowledge;

(2) The advanced knowledge must be in a field of science or learning; and

(3) The advanced knowledge must be customarily acquired by a prolonged course of specialized intellectual instruction.

(b) The phrase ''work requiring advanced knowledge'' means work which is predominantly intellectual in character, and which includes work requiring the consistent exercise of discretion and judgment, as distinguished from performance of routine mental, manual, mechanical or physical work. An employee who performs work requiring advanced knowledge generally uses the advanced knowledge to analyze, interpret or make deductions from varying facts or circumstances. Advanced knowledge cannot be attained at the high school level.

(c) The phrase ''field of science or learning'' includes the traditional professions of law, medicine, theology, accounting, actuarial computation, engineering, architecture, teaching, various types of physical, chemical and biological sciences, pharmacy and other similar occupations that have a recognized professional status as distinguished from the mechanical arts or skilled trades where in some instances the knowledge is of a fairly advanced type, but is not in a field of science or learning.

(d) The phrase ''customarily acquired by a prolonged course of specialized intellectual instruction'' restricts the exemption to professions where specialized academic training is a standard prerequisite for entrance into the profession. The best prima facie evidence that an employee meets this requirement is possession of the appropriate academic degree. However, the word ''customarily'' means that the exemption is also available to employees in such professions who have substantially the same knowledge level and perform substantially the same work as the degreed employees, but who attained the advanced knowledge through a combination of work experience and intellectual instruction. Thus, for example, the learned professional exemption is available to the occasional lawyer who has not gone to law school, or the occasional chemist who is not the possessor of a degree in chemistry. However, the learned professional exemption is not available for occupations that customarily may be performed with only the general knowledge acquired by an academic degree in any field, with knowledge acquired through an apprenticeship, or with training in the performance of routine mental, manual, mechanical or physical processes. The learned professional exemption also does not apply to occupations in which most employees have acquired their skill by experience rather than by advanced specialized intellectual instruction.

(e)(1) Registered or certified medical technologists. Registered or certified medical technologists who have successfully completed three academic years of pre-professional study in an accredited college or university plus a fourth year of professional course work in a school of medical technology approved by the Council of Medical Education of the American Medical Association generally meet the duties requirements for the learned professional exemption.

(2) Nurses. Registered nurses who are registered by the appropriate State examining board generally meet the duties requirements for the learned professional exemption. Licensed practical nurses and other similar health care employees, however, generally do not qualify as exempt learned professionals because possession of a specialized advanced academic degree is not a standard prerequisite for entry into such occupations.

(3) Dental hygienists. Dental hygienists who have successfully completed four academic years of pre-professional and professional study in an accredited college or university approved by the Commission on Accreditation of Dental and Dental Auxiliary Educational Programs of the American Dental Association generally meet the duties requirements for the learned professional exemption.

(4) Physician assistants. Physician assistants who have successfully completed four academic years of pre-professional and professional study, including graduation from a physician assistant program accredited by the Accreditation Review Commission on Education for the Physician Assistant, and who are certified by the National Commission on Certification of Physician Assistants generally meet the duties requirements for the learned professional exemption.

(5) Accountants. Certified public accountants generally meet the duties requirements for the learned professional exemption. In addition, many other accountants who are not certified public accountants but perform similar job duties may qualify as exempt learned professionals. However, accounting clerks, bookkeepers and other employees who normally perform a great deal of routine work generally will not qualify as exempt professionals.

(6) Chefs. Chefs, such as executive chefs and sous chefs, who have attained a four-year specialized academic degree in a culinary arts program, generally meet the duties requirements for the learned professional exemption. The learned professional exemption is not available to cooks who perform predominantly routine mental, manual, mechanical or physical work.

(7) Paralegals. Paralegals and legal assistants generally do not qualify as exempt learned professionals because an advanced specialized academic degree is not a standard prerequisite for entry into the field. Although many paralegals possess general four-year advanced degrees, most specialized paralegal programs are two-year associate degree programs from a community college or equivalent institution. However, the learned professional exemption is available for paralegals who possess advanced specialized degrees in other professional fields and apply advanced knowledge in that field in the performance of their duties. For example, if a law firm hires an engineer as a paralegal to provide expert advice on product liability cases or to assist on patent matters, that engineer would qualify for exemption.

(8) Athletic trainers. Athletic trainers who have successfully completed four academic years of pre-professional and professional study in a specialized curriculum accredited by the Commission on Accreditation of Allied Health Education Programs and who are certified by the Board of Certification of the National Athletic Trainers Association Board of Certification generally meet the duties requirements for the learned professional exemption.

[(9) Funeral directors or embalmers. Licensed funeral directors and embalmers who are licensed by and working in a state that requires successful completion of four academic years of pre-professional and professional study, including graduation from a

college of mortuary science accredited by the American Board of Funeral Service Education, generally meet the duties requirements for the learned professional exemption.]

(f) The areas in which the professional exemption may be available are expanding. As knowledge is developed, academic training is broadened and specialized degrees are offered in new and diverse fields, thus creating new specialists in particular fields of science or learning. When an advanced specialized degree has become a standard requirement for a particular occupation, that occupation may have acquired the characteristics of a learned profession. Accrediting and certifying organizations similar to those listed in paragraphs (e)(1), (e)(3), (e)(4) and (e)(8) of this section also may be created in the future. Such organizations may develop similar specialized curriculums and certification programs which, if a standard requirement for a particular occupation, may indicate that the occupation has acquired the characteristics of a learned profession.

§ 541.302 Creative professionals.

(a) To qualify for the creative professional exemption, an employee's primary duty must be the performance of work requiring invention, imagination, originality or talent in a recognized field of artistic or creative endeavor as opposed to routine mental, manual, mechanical or physical work. The exemption does not apply to work which can be produced by a person with general manual or intellectual ability and training.

(b) To qualify for exemption as a creative professional, the work performed must be ''in a recognized field of artistic or creative endeavor.'' This includes such fields as music, writing, acting and the graphic arts.

(c) The requirement of ''invention, imagination, originality or talent'' distinguishes the creative professions from work that primarily depends on intelligence, diligence and accuracy. The duties of employees vary widely, and exemption as a creative professional depends on the extent of the invention, imagination, originality or talent exercised by the employee. Determination of exempt creative professional status, therefore, must be made on a case-by-case basis. This requirement generally is met by actors, musicians, composers, conductors, and soloists; painters who at most are given the subject matter of their painting; cartoonists who are merely told the title or underlying concept of a cartoon and must rely on their own creative ability to express the concept; essayists, novelists, short-story writers and screen-play writers who choose their own subjects and hand in a finished piece of work to their employers (the majority of such persons are, of course, not employees but self-employed); and persons holding the more responsible writing positions in advertising agencies. This requirement generally is not met by a person who is employed as a copyist, as an ''animator'' of motion-picture cartoons, or as a retoucher of photographs, since such work is not properly described as creative in character.

(d) Journalists may satisfy the duties requirements for the creative professional exemption if their primary duty is work requiring invention, imagination, originality or talent, as opposed to work which depends primarily on intelligence, diligence and accuracy. Employees of newspapers, magazines, television and other media are not exempt creative professionals if they only collect, organize and record information that is routine or already public, or if they do not contribute a unique interpretation or analysis to a news product. Thus, for example, newspaper reporters who merely rewrite press releases or who write standard recounts of public information by gathering facts on routine community events are not exempt creative professionals. Reporters also do not qualify as exempt creative professionals if their work product is subject to substantial control by the employer. However, journalists may qualify as exempt creative professionals if their primary duty is performing on the air in radio, television or other electronic media; conducting investigative interviews; analyzing or interpreting public events; writing editorials, opinion columns or other commentary; or acting as a narrator or commentator.

§ 541.303 Teachers.

(a) The term ''employee employed in a bona fide professional capacity'' in section 13(a)(1) of the Act also means any employee with a primary duty of teaching, tutoring, instructing or lecturing in the activity of imparting knowledge and who is employed and engaged in this activity as a teacher in an educational establishment by which the employee is employed. The term ''educational establishment'' is defined in § 541.204(b).

(b) Exempt teachers include, but are not limited to: Regular academic teachers; teachers of kindergarten or nursery school pupils; teachers of gifted or disabled children; teachers of skilled and semi-skilled trades and occupations; teachers engaged in automobile driving instruction; aircraft flight instructors; home economics teachers; and vocal or instrumental music instructors. Those faculty members who are engaged as teachers but also spend a considerable amount of their time in extracurricular activities such as coaching athletic teams or acting as moderators or advisors in such areas as drama, speech, debate or journalism are engaged in teaching. Such activities are a recognized part of the schools' responsibility in contributing to the educational development of the student.

(c) The possession of an elementary or secondary teacher's certificate provides a clear means of identifying the individuals contemplated as being within the scope of the exemption for teaching professionals. Teachers who possess a teaching certificate qualify for the exemption regardless of the terminology (e.g., permanent, conditional, standard, provisional, temporary, emergency, or unlimited) used by the State to refer to different kinds of certificates. However, private schools and public schools are not uniform in requiring a certificate for employment as an elementary or secondary school teacher, and a teacher's certificate is not generally necessary for employment in institutions of higher education or other educational establishments. Therefore, a teacher who is not certified may be considered for exemption, provided that such individual is employed as a teacher by the employing school or school system.

(d) The requirements of § 541.300 and Subpart G (salary requirements) of this part do not apply to the teaching professionals described in this section.

§ 541.304 Practice of law or medicine.

(a) The term ''employee employed in a bona fide professional capacity'' in section 13(a)(1) of the Act also shall mean:

(1) Any employee who is the holder of a valid license or certificate permitting the practice of law or medicine or any of their branches and is actually engaged in the practice thereof; and

(2) Any employee who is the holder of the requisite academic degree for the general practice of medicine and is engaged in an internship or resident program pursuant to the practice of the profession.

(b) In the case of medicine, the exemption applies to physicians and other practitioners licensed and practicing in the field of medical science and healing or any of the medical specialties practiced by physicians or practitioners. The term ''physicians'' includes medical doctors including general practitioners and specialists, osteopathic physicians (doctors of osteopathy), podiatrists, dentists (doctors of dental medicine), and optometrists (doctors of optometry or bachelors of science in optometry).

(c) Employees engaged in internship or resident programs, whether or not licensed to practice prior to commencement of the program, qualify as exempt professionals if they enter such internship or resident programs after the earning of the appropriate degree required for the general practice of their profession.

(d) The requirements of § 541.300 and subpart G (salary requirements) of this part do not apply to the employees described in this section.

SUBPART E—COMPUTER EMPLOYEES (§§ 541.400–541.402)

§ 541.400 General rule for computer employees.

(a) Computer systems analysts, computer programmers, software engineers or other similarly skilled workers in the computer field are eligible for exemption as professionals under section 13(a)(1) of the Act and under section 13(a)(17) of the Act. Because job titles vary widely and change quickly in the computer industry, job titles are not determinative of the applicability of this exemption.

(b) The section 13(a)(1)exemption applies to any computer employee who is compensated on a salary or fee basis at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging, or other facilities.

The section 13(a)(17) exemption applies to any computer employee compensated on an hourly basis at a rate of not less than $27.63 an hour. In addition, under either section 13(a)(1) or section 13(a)(17) of the Act, the exemptions apply only to computer employees whose primary duty consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills.

(c) The term ''salary basis'' is defined at § 541.602; ''fee basis'' is defined at § 541.605; ''board, lodging or other facilities'' is defined at § 541.606; and ''primary duty'' is defined at § 541.700.

§ 541.401 Computer manufacture and repair.

The exemption for employees in computer occupations does not include employees engaged in the manufacture or repair of computer hardware and related equipment. Employees whose work is highly dependent upon, or facilitated by, the use of computers and computer software programs (e.g., engineers, drafters and others skilled in computer-aided design software), but who are not primarily engaged in computer systems

analysis and programming or other similarly skilled computer-related occupations identified in §541.400(b), are also not exempt computer professionals.

§541.402 Executive and administrative computer employees.

Computer employees within the scope of this exemption, as well as those employees not within its scope, may also have executive and administrative duties which qualify the employees for exemption under subpart B or subpart C of this part. For example, systems analysts and computer programmers generally meet the duties requirements for the administrative exemption if their primary duty includes work such as planning, scheduling, and coordinating activities required to develop systems to solve complex business, scientific or engineering problems of the employer or the employer's customers. Similarly, a senior or lead computer programmer who manages the work of two or more other programmers in a customarily recognized department or subdivision of the employer, and whose recommendations as to the hiring, firing, advancement, promotion or other change of status of the other programmers are given particular weight, generally meets the duties requirements for the executive exemption.

[SUBPART F—OUTSIDE SALES EMPLOYEES (§§541.500–541.504)

§541.500 General rule for outside sales employees.

(a) The term ''employee employed in the capacity of outside salesman'' in section 13(a)(1) of the Act shall mean any employee:

(1) Whose primary duty is:

(i) making sales within the meaning of section 3(k) of the Act, or

(ii) obtaining orders or contracts for services or for the use of facilities for which a consideration will be paid by the client or customer; and

(2) Who is customarily and regularly engaged away from the employer's place or places of business in performing such primary duty.

(b) The term ''primary duty'' is defined at §541.700. In determining the primary duty of an outside sales employee, work performed incidental to and in conjunction with the employee's own outside sales or solicitations, including incidental deliveries and collections, shall be regarded as exempt outside sales work. Other work that furthers the employee's sales efforts also shall be regarded as exempt work including, for example, writing sales reports, updating or revising the employee's sales or display catalogue, planning itineraries and attending sales conferences.

(c) The requirements of subpart G (salary requirements) of this part do not apply to the outside sales employees described in this section.

§541.501 Making sales or obtaining orders.

(a) Section 541.500 requires that the employee be engaged in:

(1) Making sales within the meaning of section 3(k) of the Act, or

(2) Obtaining orders or contracts for services or for the use of facilities.

(b) Sales within the meaning of section 3(k) of the Act include the transfer of title to tangible property, and in certain cases, of tangible and valuable evidences of intangible property. Section 3(k) of the Act states that ''sale'' or ''sell'' includes any sale, exchange, contract to sell, consignment for sale, shipment for sale, or other disposition.

(c) Exempt outside sales work includes not only the sales of commodities, but also ''obtaining orders or contracts for services or for the use of facilities for which a consideration will be paid by the client or customer.'' Obtaining orders for ''the use of facilities'' includes the selling of time on radio or television, the solicitation of advertising for newspapers and other periodicals, and the solicitation of freight for railroads and other transportation agencies.

(d) The word ''services'' extends the outside sales exemption to employees who sell or take orders for a service, which may be performed for the customer by someone other than the person taking the order.

§541.502 Away from employer's place of business.

An outside sales employee must be customarily and regularly engaged ''away from the employer's place or places of business.'' The outside sales employee is an employee who makes sales at the customer's place of business or, if selling door-to-door, at the customer's home. Outside sales does not include sales made by mail, telephone or the Internet unless such contact is used merely as an adjunct to personal calls. Thus, any fixed site, whether home or office, used by a salesperson as a headquarters or for telephonic solicitation of sales is considered one of the employer's places of business, even though the employer is not in any formal sense the owner or tenant of the property. However, an outside sales employee does not lose the exemption by displaying samples in hotel sample rooms during trips from city to city; these sample rooms should not be considered as the employer's places of business. Similarly, an outside sales employee does not lose the exemption by displaying the employer's products at a trade show. If selling actually occurs, rather than just sales promotion, trade shows of short duration (i.e., one or two weeks) should not be considered as the employer's place of business.

§541.503 Promotion work.

(a) Promotion work is one type of activity often performed by persons who make sales, which may or may not be exempt outside sales work, depending upon the circumstances under which it is performed. Promotional work that is actually performed incidental to and in conjunction with an employee's own outside sales or solicitations is exempt work. On the other hand, promotional work that is incidental to sales made, or to be made, by someone else is not exempt outside sales work. An employee who does not satisfy the requirements of this subpart may still qualify as an exempt employee under other subparts of this rule.

(b) A manufacturer's representative, for example, may perform various types of promotional activities such as putting up displays and posters, removing damaged or spoiled stock from the merchant's shelves or rearranging the merchandise. Such an employee can be considered an exempt outside sales employee if the employee's primary duty is making sales or contracts. Promotion activities directed toward consummation of the employee's own sales are exempt. Promotional activities designed to stimulate sales that will be made by someone else are not exempt outside sales work.

(c) Another example is a company representative who visits chain stores, arranges the merchandise on shelves, replenishes stock by replacing old with new merchandise, sets up displays and consults with the store manager when inventory runs low, but does not obtain a commitment for additional purchases. The arrangement of merchandise on the shelves or the replenishing of stock is not exempt work unless it is incidental to and in conjunction with the employee's own outside sales. Because the employee in this instance does not consummate the sale nor direct efforts toward the consummation of a sale, the work is not exempt outside sales work.

§541.504 Drivers who sell.

(a) Drivers who deliver products and also sell such products may qualify as exempt outside sales employees only if the employee has a primary duty of making sales. In determining the primary duty of drivers who sell, work performed incidental to and in conjunction with the employee's own outside sales or solicitations, including loading, driving or delivering products, shall be regarded as exempt outside sales work.

(b) Several factors should be considered in determining if a driver has a primary duty of making sales, including, but not limited to: a comparison of the driver's duties with those of other employees engaged as truck drivers and as salespersons; possession of a selling or solicitor's license when such license is required by law or ordinances; presence or absence of customary or contractual arrangements concerning amounts of products to be delivered; description of the employee's occupation in collective bargaining agreements; the employer's specifications as to qualifications for hiring; sales training; attendance at sales conferences; method of payment; and proportion of earnings directly attributable to sales.

(c) Drivers who may qualify as exempt outside sales employees include:

(1) A driver who provides the only sales contact between the employer and the customers visited, who calls on customers and takes orders for products, who delivers products from stock in the employee's vehicle or procures and delivers the product to the customer on a later trip, and who receives compensation commensurate with the volume of products sold.

(2) A driver who obtains or solicits orders for the employer's products from persons who have authority to commit the customer for purchases.

(3) A driver who calls on new prospects for customers along the employee's route and attempts to convince them of the desirability of accepting regular delivery of goods.

(4) A driver who calls on established customers along the route and persuades regular customers to accept delivery of increased amounts of goods or of new products, even though the initial sale or agreement for delivery was made by someone else.

(d) Drivers who generally would not qualify as exempt outside sales employees include:

(1) A route driver whose primary duty is to transport products sold by the employer through vending machines and to keep such machines stocked, in good operating condition, and in good locations.

(2) A driver who often calls on established customers day after day or week after week, delivering a quantity of the employer's products at each call when the sale was not significantly affected by solicitations of the customer by the delivering driver or the amount of the sale is determined by the volume of the customer's sales since the previous delivery.

(3) A driver primarily engaged in making deliveries to customers and performing activities intended to promote sales by customers (including placing point-of-sale and other advertising materials, price stamping commodities, arranging merchandise on shelves, in coolers or in cabinets, rotating stock according to date, and cleaning and otherwise servicing display cases), unless such work is in furtherance of the driver's own sales efforts.]

SUBPART G—SALARY REQUIREMENTS (§§541.600–541.607)

§541.600 Amount of salary required.

(a) To qualify as an exempt executive, administrative or professional employee under

section 13(a)(1) of the Act, an employee must be compensated on a salary basis at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal Government, or $380 per week if employed in American Samoa by employers other than the Federal Government)], exclusive of board, lodging or other facilities. Administrative and professional employees may also be paid on a fee basis, as defined in § 541.605.

(b) The required amount of compensation per week may be translated into equivalent amounts for periods longer than one week. For example, the $684-per-week requirement will be met if the employee is compensated biweekly on a salary basis of not less than $1,368, semimonthly on a salary basis of not less than $1,482, or monthly on a salary basis of not less than $2,964. However, the shortest period of payment that will meet this compensation requirement is one week.

(c) In the case of academic administrative employees, the compensation requirement also may be met by compensation on a salary basis at a rate at least equal to the entrance salary for teachers in the educational establishment by which the employee is employed, as provided in § 541.204(a)(1).

(d) In the case of computer employees, the compensation requirement also may be met by compensation on an hourly basis at a rate not less than $27.63 an hour, as provided in § 541.400(b).

(e) In the case of professional employees, the compensation requirements in this section shall not apply to employees engaged as teachers (see § 541.303); employees who hold a valid license or certificate permitting the practice of law or medicine or any of their branches and are actually engaged in the practice thereof (see § 541.304); or to employees who hold the requisite academic degree for the general practice of medicine and are engaged in an internship or resident program pursuant to the practice of the profession (see § 541.304). In the case of medical occupations, the exception from the salary or fee requirement does not apply to pharmacists, nurses, therapists, technologists, sanitarians, dietitians, social workers, psychologists, psychometrists, or other professions which service the medical profession.

SUBPART H—DEFINITIONS AND MISCELLANEOUS PROVISIONS (§§ 541.700–541.710)

§ 541.601 Highly compensated employees.

(a)(1) Beginning on January 1, 2020, an employee with total annual compensation of at least $107,432 is deemed exempt under section 13(a)(1) of the Act if the employee customarily and regularly performs any one or more of the exempt duties or responsibilities of an executive, administrative or professional employee as identified in subparts B, C or D of this part.

(2) Where the annual period covers periods both prior to and after January 1, 2020, the amount of total annual compensation due will be determined on a proportional basis.

(b)(1) ''Total annual compensation'' must include at least $684 per week paid on a salary or fee basis as set forth in §§ 541.602 and 541.605, except that § 541.602(a)(3) shall not apply to highly compensated employees. Total annual compensation may also include commissions, nondiscretionary bonuses and other nondiscretionary compensation earned during a 52-week period. Total annual compensation does not include board, lodging and other facilities as defined in § 541.606, and does not include payments for medical insurance, payments for life insurance, contributions to retirement plans and the cost of other fringe benefits.

(2) If an employee's total annual compensation does not total at least the amount specified in the applicable subsection of paragraph (a) by the last pay period of the 52-week period, the employer may, during the last pay period or within one month after the end of the 52-week period, make one final payment sufficient to achieve the required level. For example, for a 52-week period beginning January 1, 2020, an employee may earn $90,000 in base salary, and the employer may anticipate based upon past sales that the employee also will earn $17,432 in commissions. However, due to poor sales in the final quarter of the year, the employee actually only earns $12,000 in commissions. In this situation, the employer may within one month after the end of the year make a payment of at least $5,432 to the employee. Any such final payment made after the end of the 52-week period may count only toward the prior year's total annual compensation and not toward the total annual compensation in the year it was paid. If the employer fails to make such a payment, the employee does not qualify as a highly compensated employee, but may still qualify as exempt under subparts B, C, or D of this part.

(3) An employee who does not work a full year for the employer, either because the employee is newly hired after the beginning of the year or ends the employment before the end of the year, may qualify for exemption under this section if the employee receives a pro rata portion of the minimum amount established in paragraph (a) of this section, based upon the number of weeks that the employee will be or has been employed. An employer may make one final payment as under paragraph (b)(2) of this section within one month after the end of employment.

(4) The employer may utilize any 52-week period as the year, such as a calendar year, a fiscal year, or an anniversary of hire year. If the employer does not identify some other year period in advance, the calendar year will apply.

(c) A high level of compensation is a strong indicator of an employee's exempt status, thus eliminating the need for a detailed analysis of the employee's job duties. Thus, a highly compensated employee will qualify for exemption if the employee customarily and regularly performs any one or more of the exempt duties or responsibilities of an executive, administrative or professional employee identified in subparts B, C or D of this part. An employee may qualify as a highly compensated executive employee, for example, if the employee customarily and regularly directs the work of two or more other employees, even though the employee does not meet all of the other requirements for the executive exemption under § 541.100.

(d) This section applies only to employees whose primary duty includes performing office or non-manual work. Thus, for example, non-management production-line workers and non-management employees in maintenance, construction and similar occupations such as carpenters, electricians, mechanics, plumbers, iron workers, craftsmen, operating engineers, longshoremen, construction workers, laborers and other employees who perform work involving repetitive operations with their hands, physical skill and energy are not exempt under this section no matter how highly paid they might be.

§ 541.602 Salary basis.

(a) *General rule.* An employee will be considered to be paid on a ''salary basis'' within the meaning of this part if the employee regularly receives each pay period on a weekly, or less frequent basis, a predetermined amount constituting all or part of the employee's compensation, which amount is not subject to reduction because of variations in the quality or quantity of the work performed.

(1) Subject to the exceptions provided in paragraph (b) of this section, an exempt employee must receive the full salary for any week in which the employee performs any work without regard to the number of days or hours worked. Exempt employees need not be paid for any workweek in which they perform no work.

(2) An employee is not paid on a salary basis if deductions from the employee's predetermined compensation are made for absences occasioned by the employer or by the operating requirements of the business. If the employee is ready, willing and able to work, deductions may not be made for time when work is not available.

(3) Up to ten percent of the salary amount required by § 541.600(a) may be satisfied by the payment of nondiscretionary bonuses, incentives and commissions, that are paid annually or more frequently. The employer may utilize any 52-week period as the year, such as a calendar year, a fiscal year, or an anniversary of hire year. If the employer does not identify some other year period in advance, the calendar year will apply. This provision does not apply to highly compensated employees under § 541.601.

(i) If by the last pay period of the 52-week period the sum of the employee's weekly salary plus nondiscretionary bonus, incentive, and commission payments received is less than 52 times the weekly salary amount required by § 541.600(a), the employer may make one final payment sufficient to achieve the required level no later than the next pay period after the end of the year. Any such final payment made after the end of the 52–week period may count only toward the prior year's salary amount and not toward the salary amount in the year it was paid.

(ii) An employee who does not work a full 52-week period for the employer, either because the employee is newly hired after the beginning of this period or ends the employment before the end of this period, may qualify for exemption if the employee receives a *pro rata* portion of the minimum amount established in paragraph (a)(3) of this section, based upon the number of weeks that the employee will be or has been employed. An employer may make one final payment as under paragraph (a)(3)(i) of this section within one pay period after the end of employment.

(b) *Exceptions.* The prohibition against deductions from pay in the salary basis requirement is subject to the following exceptions:

(1) Deductions from pay may be made when an exempt employee is absent from work for one or more full days for personal reasons, other than sickness or disability. Thus, if an employee is absent for two full days to handle personal affairs, the employee's salaried status will not be affected if deductions are made from the salary for two full-day absences. However, if an exempt employee is absent for one and a half days for personal reasons, the employer can deduct only for the one full-day absence.

(2) Deductions from pay may be made for absences of one or more full days occasioned by sickness or disability (including work-related accidents) if the deduction is made in accordance with a bona fide plan, policy or practice of providing compensation for loss of salary occasioned by such sickness or disability. The employer is not required to pay any portion of the employee's salary for full-day absences for which the employee receives compensation under the plan, policy or practice. Deductions for such full-day absences also may be made before the employee has qualified under the plan, policy or

practice, and after the employee has exhausted the leave allowance thereunder. Thus, for example, if an employer maintains a short-term disability insurance plan providing salary replacement for 12 weeks starting on the fourth day of absence, the employer may make deductions from pay for the three days of absence before the employee qualifies for benefits under the plan; for the twelve weeks in which the employee receives salary replacement benefits under the plan; and for absences after the employee has exhausted the 12 weeks of salary replacement benefits. Similarly, an employer may make deductions from pay for absences of one or more full days if salary replacement benefits are provided under a State disability insurance law or under a State workers' compensation law.

(3) While an employer cannot make deductions from pay for absences of an exempt employee occasioned by jury duty, attendance as a witness or temporary military leave, the employer can offset any amounts received by an employee as jury fees, witness fees or military pay for a particular week against the salary due for that particular week without loss of the exemption.

(4) Deductions from pay of exempt employees may be made for penalties imposed in good faith for infractions of safety rules of major significance. Safety rules of major significance include those relating to the prevention of serious danger in the workplace or to other employees, such as rules prohibiting smoking in explosive plants, oil refineries and coal mines.

(5) Deductions from pay of exempt employees may be made for unpaid disciplinary suspensions of one or more full days imposed in good faith for infractions of workplace conduct rules. Such suspensions must be imposed pursuant to a written policy applicable to all employees. Thus, for example, an employer may suspend an exempt employee without pay for three days for violating a generally applicable written policy prohibiting sexual harassment. Similarly, an employer may suspend an exempt employee without pay for twelve days for violating a generally applicable written policy prohibiting workplace violence.

(6) An employer is not required to pay the full salary in the initial or terminal week of employment. Rather, an employer may pay a proportionate part of an employee's full salary for the time actually worked in the first and last week of employment. In such weeks, the payment of an hourly or daily equivalent of the employee's full salary for the time actually worked will meet the requirement. However, employees are not paid on a salary basis within the meaning of these regulations if they are employed occasionally for a few days, and the employer pays them a proportionate part of the weekly salary when so employed.

(7) An employer is not required to pay the full salary for weeks in which an exempt employee takes unpaid leave under the Family and Medical Leave Act. Rather, when an exempt employee takes unpaid leave under the Family and Medical Leave Act, an employer may pay a proportionate part of the full salary for time actually worked. For example, if an employee who normally works 40 hours per week uses four hours of unpaid leave under the Family and Medical Leave Act, the employer could deduct 10 percent of the employee's normal salary that week.

(c) When calculating the amount of a deduction from pay allowed under paragraph (b) of this section, the employer may use the hourly or daily equivalent of the employee's full weekly salary or any other amount proportional to the time actually missed by the employee. A deduction from pay as a penalty for violations of major safety rules under paragraph (b)(4) of this section may be made in any amount.

§ 541.603 Effect of improper deductions from salary.

(a) An employer who makes improper deductions from salary shall lose the exemption if the facts demonstrate that the employer did not intend to pay employees on a salary basis. An actual practice of making improper deductions demonstrates that the employer did not intend to pay employees on a salary basis. The factors to consider when determining whether an employer has an actual practice of making improper deductions include, but are not limited to: the number of improper deductions, particularly as compared to the number of employee infractions warranting discipline; the time period during which the employer made improper deductions; the number and geographic location of employees whose salary was improperly reduced; the number and geographic location of managers responsible for taking the improper deductions; and whether the employer has a clearly communicated policy permitting or prohibiting improper deductions.

(b) If the facts demonstrate that the employer has an actual practice of making improper deductions, the exemption is lost during the time period in which the improper deductions were made for employees in the same job classification working for the same managers responsible for the actual improper deductions. Employees in different job classifications or who work for different managers do not lose their status as exempt employees. Thus, for example, if a manager at a company facility routinely docks the pay of engineers at that facility for partial-day personal absences, then all engineers at that facility whose pay could have been improperly docked by the manager would lose the exemption; engineers at other facilities or working for other managers, however, would remain exempt.

(c) Improper deductions that are either isolated or inadvertent will not result in loss of the exemption for any employees subject to such improper deductions, if the employer reimburses the employees for such improper deductions.

(d) If an employer has a clearly communicated policy that prohibits the improper pay deductions specified in § 541.602(a) and includes a complaint mechanism, reimburses employees for any improper deductions and makes a good faith commitment to comply in the future, such employer will not lose the exemption for any employees unless the employer willfully violates the policy by continuing to make improper deductions after receiving employee complaints. If an employer fails to reimburse employees for any improper deductions or continues to make improper deductions after receiving employee complaints, the exemption is lost during the time period in which the improper deductions were made for employees in the same job classification working for the same managers responsible for the actual improper deductions. The best evidence of a clearly communicated policy is a written policy that was distributed to employees prior to the improper pay deductions by, for example, providing a copy of the policy to employees at the time of hire, publishing the policy in an employee handbook or publishing the policy on the employer's Intranet.

(e) This section shall not be construed in an unduly technical manner so as to defeat the exemption.

§ 541.604 Minimum guarantee plus extras.

(a) An employer may provide an exempt employee with additional compensation without losing the exemption or violating the salary basis requirement, if the employment arrangement also includes a guarantee of at least the minimum weekly-required amount paid on a salary basis. Thus, for example, an exempt employee guaranteed at least $684 each week paid on a salary basis may also receive additional compensation of a one percent commission on sales. An exempt employee also may receive a percentage of the sales or profits of the employer if the employment arrangement also includes a guarantee of at least $684 each week paid on a salary basis. Similarly, the exemption is not lost if an exempt employee who is guaranteed at least $684 each week paid on a salary basis also receives additional compensation based on hours worked for work beyond the normal workweek. Such additional compensation may be paid on any basis (e.g., flat sum, bonus payment, straight-time hourly amount, time and one-half or any other basis), and may include paid time off.

(b) An exempt employee's earnings may be computed on an hourly, a daily or a shift basis, without losing the exemption or violating the salary basis requirement, if the employment arrangement also includes a guarantee of at least the minimum weekly required amount paid on a salary basis regardless of the number of hours, days or shifts worked, and a reasonable relationship exists between the guaranteed amount and the amount actually earned. The reasonable relationship test will be met if the weekly guarantee is roughly equivalent to the employee's usual earnings at the assigned hourly, daily or shift rate for the employee's normal scheduled workweek. Thus, for example, an exempt employee guaranteed compensation of at least $725 for any week in which the employee performs any work, and who normally works four or five shifts each week, may be paid $210 per shift without violating the $684-per-week salary basis requirement. The reasonable relationship requirement applies only if the employee's pay is computed on an hourly, daily or shift basis. It does not apply, for example, to an exempt store manager paid a guaranteed salary per week that exceeds the current salary level who also receives a commission of one-half percent of all sales in the store or five percent of the store's profits, which in some weeks may total as much as, or even more than, the guaranteed salary.

§ 541.605 Fee basis.

(a) Administrative and professional employees may be paid on a fee basis, rather than on a salary basis. An employee will be considered to be paid on a ''fee basis'' within the meaning of these regulations if the employee is paid an agreed sum for a single job regardless of the time required for its completion. These payments resemble piecework payments with the important distinction that generally a ''fee'' is paid for the kind of job that is unique rather than for a series of jobs repeated an indefinite number of times and for which payment on an identical basis is made over and over again. Payments based on the number of hours or days worked and not on the accomplishment of a given single task are not considered payments on a fee basis.

(b) To determine whether the fee payment meets the minimum amount of salary required for exemption under these regulations, the amount paid to the employee will be tested by determining the time worked on the job and whether the fee payment is at a rate that would amount to at least the minimum salary per week, as required by §§ 541.600(a) and 541.602(a), if the employee worked 40 hours. Thus, an artist paid $350 for a picture that took 20 hours to complete meets the $684 minimum salary requirement for exemption since earnings at this rate would yield the artist $700 if 40 hours were worked.

§ 541.606 Board, lodging or other facilities.

(a) To qualify for exemption under section 13(a)(1) of the Act, an employee must earn the minimum salary amount set forth in § 541.600, ''exclusive of board, lodging or other facilities.'' The phrase ''exclusive of board, lodging or other facilities'' means ''free and clear'' or independent of any claimed credit for non-cash items of value that an employer may provide to an employee. Thus, the costs incurred by an employer to provide an employee with board, lodging or other facilities may not count towards the minimum salary amount required for exemption under this part 541. Such separate transactions are not prohibited between employers and their exempt employees, but the costs to employers associated with such transactions may not be considered when determining if an employee has received the full required minimum salary payment.

(b) Regulations defining what constitutes ''board, lodging, or other facilities'' are contained in 29 CFR part 531 <<**which are incorporated herein**>>. **[**As described in 29 CFR 531.32, the term ''other facilities'' refers to items similar to board and lodging, such as meals furnished at company restaurants or cafeterias or by hospitals, hotels, or restaurants to their employees; meals, dormitory rooms, and tuition furnished by a college to its student employees; merchandise furnished at company stores or commissaries, including articles of food, clothing, and household effects; housing furnished for dwelling purposes; and transportation furnished to employees for ordinary commuting between their homes and work.**]**

[§ 541.607] [Reserved by 85 FR 34970 Effective: June 8, 2020]

§ 541.700 Primary duty.

(a) To qualify for exemption under this part, an employee's ''primary duty'' must be the performance of exempt work. The term ''primary duty'' means the principal, main, major or most important duty that the employee performs. Determination of an employee's primary duty must be based on all the facts in a particular case, with the major emphasis on the character of the employee's job as a whole. Factors to consider when determining the primary duty of an employee include, but are not limited to, the relative importance of the exempt duties as compared with other types of duties; the amount of time spent performing exempt work; the employee's relative freedom from direct supervision; and the relationship between the employee's salary and the wages paid to other employees for the kind of nonexempt work performed by the employee.

(b) The amount of time spent performing exempt work can be a useful guide in determining whether exempt work is the primary duty of an employee. Thus, employees who spend more than 50 percent of their time performing exempt work will generally satisfy the primary duty requirement. Time alone, however, is not the sole test, and nothing in this section requires that exempt employees spend more than 50 percent of their time performing exempt work. Employees who do not spend more than 50 percent of their time performing exempt duties may nonetheless meet the primary duty requirement if the other factors support such a conclusion.

(c) Thus, for example, assistant managers in a retail establishment who perform exempt executive work such as supervising and directing the work of other employees, ordering merchandise, managing the budget and authorizing payment of bills may have management as their primary duty even if the assistant managers spend more than 50 percent of the time performing nonexempt work such as running the cash register. However, if such assistant managers are closely supervised and earn little more than the nonexempt employees, the assistant managers generally would not satisfy the primary duty requirement.

§ 541.701 Customarily and regularly.

The phrase ''customarily and regularly'' means a frequency that must be greater than occasional but which, of course, may be less than constant. Tasks or work performed ''customarily and regularly'' includes work normally and recurrently performed every workweek; it does not include isolated or one-time tasks.

§ 541.702 Exempt and nonexempt work.

The term ''exempt work'' means all work described in §§ 541.100, 541.101, 541.200, 541.300, 541.301, 541.302, 541.303, 541.304, <<**and**>> 541.400 **[**and 541.500**]**, and the activities directly and closely related to such work. All other work is considered ''nonexempt.''

§ 541.703 Directly and closely related.

(a) Work that is ''directly and closely related'' to the performance of exempt work is also considered exempt work. The phrase ''directly and closely related'' means tasks that are related to exempt duties and that contribute to or facilitate performance of exempt work. Thus, ''directly and closely related'' work may include physical tasks and menial tasks that arise out of exempt duties, and the routine work without which the exempt employee's exempt work cannot be performed properly. Work ''directly and closely related'' to the performance of exempt duties may also include recordkeeping; monitoring and adjusting machinery; taking notes; using the computer to create documents or presentations; opening the mail for the purpose of reading it and making decisions; and using a photocopier or fax machine. Work is not ''directly and closely related'' if the work is remotely related or completely unrelated to exempt duties.

(b) The following examples further illustrate the type of work that is and is not normally considered as directly and closely related to exempt work:

(1) Keeping time, production or sales records for subordinates is work directly and closely related to an exempt executive's function of managing a department and supervising employees.

(2) The distribution of materials, merchandise or supplies to maintain control of the flow of and expenditures for such items is directly and closely related to the performance of exempt duties.

(3) A supervisor who spot checks and examines the work of subordinates to determine whether they are performing their duties properly, and whether the product is satisfactory, is performing work which is directly and closely related to managerial and supervisory functions, so long as the checking is distinguishable from the work ordinarily performed by a nonexempt inspector.

(4) A supervisor who sets up a machine may be engaged in exempt work, depending upon the nature of the industry and the operation. In some cases the setup work, or adjustment of the machine for a particular job, is typically performed by the same employees who operate the machine. Such setup work is part of the production operation and is not exempt. In other cases, the setting up of the work is a highly skilled operation which the ordinary production worker or machine tender typically does not perform. In large plants, non-supervisors may perform such work. However, particularly in small plants, such work may be a regular duty of the executive and is directly and closely related to the executive's responsibility for the work performance of subordinates and for the adequacy of the final product. Under such circumstances, it is exempt work.

(5) A department manager in a retail or service establishment who walks about the sales floor observing the work of sales personnel under the employee's supervision to determine the effectiveness of their sales techniques, checks on the quality of customer service being given, or observes customer preferences is performing work which is directly and closely related to managerial and supervisory functions.

(6) A business consultant may take extensive notes recording the flow of work and materials through the office or plant of the client; after returning to the office of the employer, the consultant may personally use the computer to type a report and create a proposed table of organization. Standing alone, or separated from the primary duty, such note-taking and typing would be routine in nature. However, because this work is necessary for analyzing the data and making recommendations, the work is directly and closely related to exempt work. While it is possible to assign note-taking and typing to nonexempt employees, and in fact it is frequently the practice to do so, delegating such routine tasks is not required as a condition of exemption.

(7) A credit manager who makes and administers the credit policy of the employer, establishes credit limits for customers, authorizes the shipment of orders on credit, and makes decisions on whether to exceed credit limits would be performing work exempt under § 541.200. Work that is directly and closely related to these exempt duties may include checking the status of accounts to determine whether the credit limit would be exceeded by the shipment of a new order, removing credit reports from the files for analysis, and writing letters giving credit data and experience to other employers or credit agencies.

(8) A traffic manager in charge of planning a company's transportation, including the most economical and quickest routes for shipping merchandise to and from the plant, contracting for common-carrier and other transportation facilities, negotiating with carriers for adjustments for damages to merchandise, and making the necessary rearrangements resulting from delays, damages or irregularities in transit, is performing exempt work. If the employee also spends part of the day taking telephone orders for local deliveries, such order-taking is a routine function and is not directly and closely related to the exempt work.

(9) An example of work directly and closely related to exempt professional duties is a chemist performing menial tasks such as cleaning a test tube in the middle of an original experiment, even though such menial tasks can be assigned to laboratory assistants.

(10) A teacher performs work directly and closely related to exempt duties when, while taking students on a field trip, the teacher drives a school van or monitors the students' behavior in a restaurant.

§ 541.704 Use of manuals.

The use of manuals, guidelines or other established procedures containing or relating to highly technical, scientific, legal, financial or other similarly complex matters that can be understood or interpreted only by those with advanced or specialized knowledge or skills does not preclude exemption under section 13(a)(1) of the Act or the regulations in this part. Such manuals and procedures provide guidance in addressing difficult or novel circumstances and thus use of such reference material would not affect an employee's exempt status. The section 13(a)(1) exemptions are not available, however, for employees who simply apply well-established techniques or procedures described in manuals or other sources within

closely prescribed limits to determine the correct response to an inquiry or set of circumstances.

§ 541.705 Trainees.

The executive, administrative, professional, [outside sales] and computer employee exemptions do not apply to employees training for employment in an executive, administrative, professional, [outside sales] or computer employee capacity who are not actually performing the duties of an executive, administrative, professional, [outside sales] or computer employee.

§ 541.706 Emergencies.

(a) An exempt employee will not lose the exemption by performing work of a normally nonexempt nature because of the existence of an emergency. Thus, when emergencies arise that threaten the safety of employees, a cessation of operations or serious damage to the employer's property, any work performed in an effort to prevent such results is considered exempt work.

(b) An ''emergency'' does not include occurrences that are not beyond control or for which the employer can reasonably provide in the normal course of business. Emergencies generally occur only rarely, and are events that the employer cannot reasonably anticipate.

(c) The following examples illustrate the distinction between emergency work considered exempt work and routine work that is not exempt work:

(1) A mine superintendent who pitches in after an explosion and digs out workers who are trapped in the mine is still a bona fide executive.

(2) Assisting nonexempt employees with their work during periods of heavy workload or to handle rush orders is not exempt work.

(3) Replacing a nonexempt employee during the first day or partial day of an illness may be considered exempt emergency work depending on factors such as the size of the establishment and of the executive's department, the nature of the industry, the consequences that would flow from the failure to replace the ailing employee immediately, and the feasibility of filling the employee's place promptly.

(4) Regular repair and cleaning of equipment is not emergency work, even when necessary to prevent fire or explosion; however, repairing equipment may be emergency work if the breakdown of or damage to the equipment was caused by accident or carelessness that the employer could not reasonably anticipate.

§ 541.707 Occasional tasks.

Occasional, infrequently recurring tasks that cannot practicably be performed by nonexempt employees, but are the means for an exempt employee to properly carry out exempt functions and responsibilities, are considered exempt work. The following factors should be considered in determining whether such work is exempt work: Whether the same work is performed by any of the exempt employee's subordinates; practicability of delegating the work to a nonexempt employee; whether the exempt employee performs the task frequently or occasionally; and existence of an industry practice for the exempt employee to perform the task.

§ 541.708 Combination exemptions.

Employees who perform a combination of exempt duties as set forth in the regulations in this part for executive, administrative, professional, [outside sales] and computer employees may qualify for exemption. Thus, for example, an employee whose primary duty involves a combination of exempt administrative and exempt executive work may qualify for exemption. In other words, work that is exempt under one section of this part will not defeat the exemption under any other section.

[§ 541.709 Motion picture producing industry.

The requirement that the employee be paid ''on a salary basis'' does not apply to an employee in the motion picture producing industry who is compensated at a base rate of at least $1,043 per week (exclusive of board, lodging, or other facilities). Thus, an employee in this industry who is otherwise exempt under subparts B, C, or D of this part, and who is employed at a base rate of at least the applicable current minimum amount a week is exempt if paid a proportionate amount (based on a week of not more than 6 days) for any week in which the employee does not work a full workweek for any reason. Moreover, an otherwise exempt employee in this industry qualifies for exemption if the employee is employed at a daily rate under the following circumstances:

(a) The employee is in a job category for which a weekly base rate is not provided and the daily base rate would yield at least the minimum weekly amount if 6 days were worked; or

(b) The employee is in a job category having the minimum weekly base rate and the daily base rate is at least one-sixth of such weekly base rate.]

§ 541.710 Employees of public agencies.

(a) An employee of a public agency who otherwise meets the salary basis requirements of § 541.602 shall not be disqualified from exemption under §§ 541.100, 541.200, 541.300 or 541.400 on the basis that such employee is paid according to a pay system established by statute, ordinance or regulation, or by a policy or practice established pursuant to principles of public accountability, under which the employee accrues personal leave and sick leave and which requires the public agency employee's pay to be reduced or such employee to be placed on leave without pay for absences for personal reasons or because of illness or injury of less than one work-day when accrued leave is not used by an employee because:

(1) Permission for its use has not been sought or has been sought and denied;

(2) Accrued leave has been exhausted; or

(3) The employee chooses to use leave without pay.

(b) Deductions from the pay of an employee of a public agency for absences due to a budget-required furlough shall not disqualify the employee from being paid on a salary basis except in the workweek in which the furlough occurs and for which the employee's pay is accordingly reduced.

BUDGETARY EFFECTS OF PAYGO LEGISLATION

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 496, the Ukraine Religious Freedom Support Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 923, the Georgia Support Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 3525, the Commission To Study the Potential Creation of a National Museum of Asian Pacific American History and Culture Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 6023, the Multinational Species Conservation Funds Semipostal Stamp Reauthorization Act of 2021, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 6089, the Stop Iranian Drones Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 6201, the National Liberty Memorial Preservation Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 6930, the Asset Seizure for Ukraine Reconstruction Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

EC–3800. A letter from the Secretary, Department of Defense, transmitting a letter on the approved retirement of Vice Admiral Ronald A. Boxall, United States Navy, and his advancement to the grade of vice admiral on the retired list, pursuant to 10 U.S.C. 1370(c)(1); Public Law 96-513, Sec. 112 (as amended by Public Law 104-106, Sec. 502(b)); (110 Stat. 293); to the Committee on Armed Services.

EC–3801. A letter from the Director, Office of Congressional Affairs, Office of Nuclear Regulatory Research, U.S. Nuclear Regulatory Commission, transmitting the Commission's Regulatory Guide — Acceptability of Probabilistic Risk Assessment Results for Non-Light-Water Reactor Risk-Informed Activities Regulatory Guide 1.247, received

March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC–3802. A letter from the Chief, Regulatory Coordination Division, USCIS Office of Policy and Strategy, Department of Homeland Security and Department of Justice, transmitting the Departments' Major interim final rule with request for comments — Procedures for Credible Fear Screening and Consideration of Asylum, Witholding of Removal, and CAT Protection Claims by Asylum Officers [CIS No. 2692-21; DHS Docket No. USCIS-2021-0012] (RIN: 1615-AC67); [A.G. Order No. 5369-2022] (RIN: 1125-AB20) received April 5, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on the Judiciary.

EC–3803. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Helicopters [Docket No.: FAA-2021-0947; Project Identifier MCAI-2021-00195-R; Amendment 39-21889; AD 2022-01-01] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3804. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; The Boeing Company Airplanes [Docket No.: FAA-2022-0017; Project Identifier AD-2022-00058; Amendment 39-21937; AD 2022-03-20] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3805. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class D and Class E Airspace and Revocation of Class E Airspace; Rochester and St. Cloud, MN [Docket No.: FAA-2021-0814; Airspace Docket No.: 21-AGL-30] (RIN: 2120-AA66) received March 30, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3806. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class D and Class E Airspace; Multiple Illinois Towns [Docket No.: FAA-2021-0979; Airspace Docket No.: 21-AGL-31] (RIN: 2120-AA66) received March 30, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3807. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Schempp-Hirth Flugzugbau GmbH Gliders [Docket No. FAA-2021-0878; Project Identifier MCAI-2020-01460-G; Amendment 39-21884; AD 2021-26-25] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3808. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Gulfstream Aerospace Corporation Airplanes [Docket No. FAA-2021-0881; Project Identifier AD-2020-01062-T; Amendment 39-21912; AD 2022-02-15] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3809. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — [Docket No. FAA-2021-0189; Project Identifier AD-2020-00645-R; Amendment 39-21875; AD 2021-26-16] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3810. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Pilatus Aircraft Ltd. Airplanes [Docket No. FAA-2021-0218; Project Identifier MCAI-2020- 01519-A; Amendment 39-21880; AD 2021-AA64] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3811. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; General Electric Company Turbofan Engines [Docket No. FAA-2021-0949; Project Identifier AD-2021-00115-E; Amendment 39-21915; AD 2022-02-18] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3812. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Stemme AG Gliders [Docket No. FAA-2021-1010; Project Identifier MCAI-2020-00807-G; Amendment 39-21924; AD 2022-03-07] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3813. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule; request for comments — Airworthiness Directives; Airbus Helicopters Deutschland GmbH (AHD) Helicopters [Docket No. FAA-2022-0009; Proejct Identifier MCAI-2021-01459-R; Amendment 39-21914; AD 2022-02-17] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3814. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule; request for comments — Airworthiness Directives; The Boeing Company Airplanes [Docket No. FAA-2022-0012; Project Identifier AD-2022-00057-T; Amendment 39-21922; AD 2022-03-05] (RIN: 2021-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3815. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; The Boeing Company Airplanes [Docket No. FAA-2021-0331; Project Identifier AD-2020-01703-T; Amendment 39-21887; AD 2021-26-28] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3816. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; De Haviland Aircraft of Canada Limited (Type Certificate Previously Held By Bombardier,Inc.) Airplanes [Docket No. FAA-2021-0514; Project Identifier MCAI-2020-01570-T; Amendment 39-21890; AD 2022-01-02] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3817. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Canada Limited Partnership (Type Certificate Previously Held by C Series Aircraft Limited Partnership (CSALP); Bombardier, Inc.) Airplanes] (RIN: 2120-AA64) received March 18, 2022, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC–3818. A letter from the Chair of the Board of Directors, Office of Congressional Workplace Rights, transmitting a Notice of Proposed Rulemaking for the Congressional Accountability Act, pursuant to 2 U.S.C. 1384(b)(1); Public Law 104-1, Sec. 304(b)(1); (109 Stat. 29); jointly to the Committees on House Administration and Education and Labor.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. AGUILAR:

H.R. 7572. A bill to amend the Public Works and Economic Development Act of 1965 to establish university centers to encourage certain economic development, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. AXNE (for herself and Mr. HUDSON):

H.R. 7573. A bill to amend titles XI and XVIII of the Social Security Act to extend certain telehealth services covered by Medicare and to evaluate the impact of telehealth services on Medicare beneficiaries, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BACON (for himself and Mr. KAHELE):

H.R. 7574. A bill to require an independent study and report on the effect of pass-through budgeting on the Department of the Air Force, and for other purposes; to the Committee on Armed Services.

By Mr. DELGADO:

H.R. 7575. A bill to require the Secretary of Labor, in consultation with the Secretary of Energy and Secretary of Education, to submit a report on current and future trends and shortages in the clean energy technology industry to achieve a clean energy economy, and to provide grants to establish and enhance training programs for any occupation or field of work for which a shortage is identified, and for other purposes; to the Committee on Education and Labor.

By Ms. ESHOO (for herself and Mr. PENCE):

H.R. 7576. A bill to require SelectUSA to coordinate with State-level economic development organizations to increase foreign direct investment in semiconductor-related manufacturing and production; to the Committee on Energy and Commerce.

By Mr. GALLEGO (for himself and Mr. COLE):

H.R. 7577. A bill to improve State, local, and Tribal public health security; to the Committee on Energy and Commerce.

By Mr. GOODEN of Texas:

H.R. 7578. A bill to require the Secretary of Commerce to submit a report to Congress on data servicing operations owned by Chinese entities, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GREEN of Tennessee (for himself, Mr. SIRES, and Mrs. MILLER-MEEKS):

H.R. 7579. A bill to decrease dependency on People's Republic of China manufacturing and decrease migration due to lost regional economic opportunities; to the Committee on Ways and Means, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRIJALVA (for himself, Mr. LOWENTHAL, Mr. HUFFMAN, Ms. TLAIB, Mr. BEYER, Mr. BLUMENAUER, Ms. PORTER, Mr. DEFAZIO, Ms. MCCOLLUM, Ms. NORTON, Mr. LEVIN of California, and Mr. COHEN):

H.R. 7580. A bill to modify the requirements applicable to locatable minerals on public domain lands, consistent with the principles of self-initiation of mining claims, and for other purposes; to the Committee on Natural Resources.

By Mr. HUFFMAN:

H.R. 7581. A bill to recognize tribal cooperation in the environmental review of proposed actions affecting the revised Yurok Reservation, and for other purposes; to the Committee on Natural Resources.

By Mr. ISSA (for himself and Mr. MCCLINTOCK):

H.R. 7582. A bill to prohibit the President from negotiating or concluding any withdrawal, suspension, waiver, or modification to the Agreement on Trade-Related Aspects of Intellectual Property Rights without explicit authorization from Congress; to the Committee on Ways and Means.

By Ms. JACOBS of California (for herself and Mr. MCGOVERN):

H.R. 7583. A bill to allow funding for the International Criminal Court, require the Secretary of State to submit a report on United States policy relating to the investigation of the International Criminal Court with respect to the Situation in Ukraine, and for other purposes; to the Committee on Foreign Affairs.

By Mr. JACOBS of New York:

H.R. 7584. A bill to amend the Internal Revenue Code of 1986 to end the investment tax credit for offshore wind facilities in the inland navigable waters of the United States; to the Committee on Ways and Means.

By Ms. KELLY of Illinois (for herself, Ms. ADAMS, Ms. NORTON, Mr. BUTTERFIELD, Ms. WILSON of Florida, Mr. PAYNE, Mr. BROWN of Maryland, Ms. SCHAKOWSKY, Mr. KAHELE, Mr. DANNY K. DAVIS of Illinois, Ms. UNDERWOOD, Mr. TAKANO, Ms. MENG, Mr. GOMEZ, Mrs. HAYES, Mr. CARTER of Louisiana, Mr. HORSFORD, Ms. LEE of California, Ms. MOORE of Wisconsin, Mr. LAWSON of Florida, Ms. JAYAPAL, Mrs. WATSON COLEMAN, Ms. TITUS, Mrs. LAWRENCE, Ms. CHU, Mr. JOHNSON of Georgia, Ms. VELÁZQUEZ, Mr. EVANS, Mr. LOWENTHAL, Ms. BROWN of Ohio, Ms. PRESSLEY, Mr. RUSH, Mrs. BEATTY, Mr. CARBAJAL, Mr. CARSON, Ms. BARRAGÁN, Ms. BLUNT ROCHESTER, Ms. BONAMICI, Mr. CÁRDENAS, Mrs. CHERFILUS-MCCORMICK, Mr. CASTRO of Texas, Mrs. NAPOLITANO, Mr. SCHIFF, Ms. JOHNSON of Texas, Ms. SÁNCHEZ, Ms. STRICKLAND, Mr. LIEU, Mr. GREEN of Texas, Mr. MCEACHIN, Mr. SMITH of Washington, Mr. GALLEGO, Ms. CLARK of Massachusetts, Mr. SIRES, Mr. SAN NICOLAS, Ms. CLARKE of New York, Mr. GRIJALVA, Mr. RUIZ, Ms. PLASKETT, and Mr. MEEKS):

H.R. 7585. A bill to improve the health of minority individuals, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Agriculture, Oversight and Reform, Ways and Means, Education and Labor, the Judiciary, the Budget, Veterans' Affairs, Natural Resources, Armed Services, Homeland Security, Financial Services, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. LESKO (for herself and Mrs. MILLER-MEEKS):

H.R. 7586. A bill to amend title III of the Public Health Service Act to provide for suspension of entries and imports from designated countries to prevent the spread of communicable diseases and import into the United States of certain controlled substances; to the Committee on Energy and Commerce.

By Ms. MCCOLLUM (for herself and Mr. UPTON):

H.R. 7587. A bill to strengthen the partnership between the nonprofit organizations and the Federal Government, and for other purposes; to the Committee on Oversight and Reform, and in addition to the Committees on Education and Labor, and Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SESSIONS:

H.R. 7588. A bill to establish that a State-based education loan program is excluded from certain requirements relating to a preferred lender arrangement; to the Committee on Education and Labor.

By Mr. TAKANO:

H.R. 7589. A bill to amend title 38, United States Code, to prohibit the imposition or collection of copayments for certain mental health outpatient care visits of veterans, and for other purposes; to the Committee on Veterans' Affairs.

By Ms. TITUS:

H.R. 7590. A bill to reauthorize and improve the programs authorized by the Public Works and Economic Development Act of 1965, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. TLAIB (for herself, Mrs. DINGELL, Ms. ESHOO, and Ms. KELLY of Illinois):

H.R. 7591. A bill to amend the Public Health Service Act to include Middle Easterners and North Africans in the statutory definition of a ''racial and ethnic minority group'', and for other purposes; to the Committee on Energy and Commerce.

By Mr. TONKO:

H.R. 7592. A bill to amend the Domestic Volunteer Service Act of 1973 and the National Community Service Act of 1990 to provide training for certain individuals to identify and apply for certain Federal grants, and for other purposes; to the Committee on Education and Labor.

By Mr. TONKO:

H.R. 7593. A bill to direct the Secretary of Commerce to establish a clearinghouse to assist economic development activities in capacity-constrained communities; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. HAYES (for herself and Mr. FITZPATRICK):

H. Res. 1063. A resolution supporting the designation of the week of April 25 through April 29, 2022, as ''National Specialized Instructional Support Personnel Appreciation Week''; to the Committee on Education and Labor.

By Ms. TENNEY (for herself and Mr. GOLDEN):

H. Res. 1064. A resolution establishing the Select Committee on Older Americans; to the Committee on Rules.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. AGUILAR:

H.R. 7572.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the Constitution

By Mrs. AXNE:

H.R. 7573.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8 of the United States Constitution.

By Mr. BACON:

H.R. 7574.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8:

''Congress shall have the power to . . . make rules for the government and regulation of the land and naval forces . . . ''

By Mr. DELGADO:

H.R. 7575.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution

By Ms. ESHOO:

H.R. 7576.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8.

By Mr. GALLEGO:

H.R. 7577.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

By Mr. GOODEN of Texas:

H.R. 7578.

Congress has the power to enact this legislation pursuant to the following:

The Constitutional authority on which this bill rests is the power of Congress to lay and collect taxes, duties, imposts, and excises to pay the debts and provide for the common Defense and general welfare of the United States, as enumerated in Article I, Section 8, Clause 1. Thus, Congress has the authority not only to increase taxes, but also, to reduce taxes to promote the general welfare of the United States of America and her citizens. Additionally, Congress has the Constitutional authority to regulate commerce among the States and with Indian Tribes, as enumerated in Article I, Section 8, Clause 3.

By Mr. GREEN of Tennessee:

H.R. 7579.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. HUFFMAN:

H.R. 7581.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. ISSA:

H.R. 7582.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

By Ms. JACOBS of California:

H.R. 7583.

Congress has the power to enact this legislation pursuant to the following:

Section 8 of Article I of the Constitution.

By Mr. JACOBS of New York:

H.R. 7584.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the U.S. Constitution: The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States.

By Ms. KELLY of Illinois:

H.R. 7585.

Congress has the power to enact this legislation pursuant to the following:

Clause 18 of Section 8 of Article 1 of the Constitution

By Mrs. LESKO:

H.R. 7586.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8

By Ms. MCCOLLUM:

H.R. 7587.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the Constitution

By Mr. SESSIONS:

H.R. 7588.

Congress has the power to enact this legislation pursuant to the following:

US Constitution, Article I, Section 8

By Mr. TAKANO:

H.R. 7589.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution, authorized by Congress' power to ''provide for the common Defense and general Welfare of the United States.''

By Ms. TITUS:

H.R. 7590.

Congress has the power to enact this legislation pursuant to the following:

The Congress enacts this bill pursuant to Article I, Section 8 of the United States Constitution.

By Ms. TLAIB:

H.R. 7591.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 1 of the Constitution.

By Mr. TONKO:

H.R. 7592.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. TONKO:

H.R. 7593.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 68: Mr. COSTA and Mr. CONNOLLY.

H.R. 82: Mrs. LESKO, Mr. KELLY of Pennsylvania, and Ms. JACKSON LEE.

H.R. 95: Mr. ROY and Mrs. LESKO.

H.R. 426: Mr. ROY, Mr. BUDD, Mr. PFLUGER, and Mr. MCKINLEY.

H.R. 496: Mr. MFUME and Mr. GOTTHEIMER.

H.R. 623: Mr. CARBAJAL and Mr. GONZALEZ of Ohio.

H.R. 851: Ms. LOFGREN.

H.R. 911: Mr. VEASEY.

H.R. 1011: Mr. VALADAO and Mr. MULLIN.

H.R. 1145: Ms. WILLIAMS of Georgia.

H.R. 1297: Mr. JEFFRIES.

H.R. 1577: Mrs. LURIA and Mr. VICENTE GONZALEZ of Texas.

H.R. 1579: Mr. PANETTA.

H.R. 1607: Mr. MORELLE.

H.R. 1946: Mr. SESSIONS, Ms. HOULAHAN, Mr. CLOUD, and Mr. KHANNA.

H.R. 2035: Ms. BASS.

H.R. 2038: Ms. MENG and Ms. STANSBURY.

H.R. 2166: Mr. FERGUSON.

H.R. 2244: Mr. HORSFORD.

H.R. 2256: Mr. NORCROSS, Mr. ROGERS of Alabama, and Ms. STANSBURY.

H.R. 2354: Ms. MANNING.

H.R. 2373: Mr. LAWSON of Florida.

H.R. 2454: Mr. DELGADO.

H.R. 2735: Mr. HUFFMAN.

H.R. 2827: Ms. TITUS.

H.R. 2828: Mr. GIBBS.

H.R. 2907: Ms. ESHOO.

H.R. 3021: Mr. COSTA.

H.R. 3135: Mr. FOSTER.

H.R. 3244: Mr. PALLONE.

H.R. 3281: Mr. GOODEN of Texas.

H.R. 3312: Mr. SOTO.

H.R. 3353: Mr. SESSIONS.

H.R. 3446: Ms. JACKSON LEE.

H.R. 3577: Ms. SLOTKIN, Mr. CAREY, Ms. VELÁZQUEZ, and Mr. ZELDIN.

H.R. 3824: Ms. DELBENE, Ms. LOIS FRANKEL of Florida, Mr. TONKO, and Mr. MALINOWSKI.

H.R. 4079: Mr. LARSEN of Washington.

H.R. 4085: Ms. VAN DUYNE.

H.R. 4131: Ms. SHERRILL.

H.R. 4176: Ms. BLUNT ROCHESTER.

H.R. 4410: Mr. BACON.

H.R. 4607: Mr. BUCSHON and Mr. BURCHETT.

H.R. 4693: Ms. WILLIAMS of Georgia and Ms. MCCOLLUM.

H.R. 4695: Ms. NORTON.

H.R. 4750: Mr. NEGUSE, Ms. SCHAKOWSKY, and Ms. MALLIOTAKIS.

H.R. 4766: Mr. AGUILAR, Ms. JACKSON LEE, Mr. POCAN, Mr. SCHIFF, Mr. JEFFRIES, Mr. GOMEZ, Ms. BROWNLEY, and Ms. PORTER.

H.R. 4767: Ms. NEWMAN.

H.R. 4785: Mrs. AXNE.

H.R. 4810: Mr. CÁRDENAS.

H.R. 4826: Mr. DAVID SCOTT of Georgia and Mr. PRICE of North Carolina.

H.R. 4995: Ms. LOFGREN.

H.R. 5008: Ms. PORTER, Ms. SCHAKOWSKY, and Ms. BROWNLEY.

H.R. 5149: Mr. BACON.

H.R. 5182: Mr. COSTA.

H.R. 5184: Mr. BEYER.

H.R. 5218: Mr. BERA.

H.R. 5315: Ms. DAVIDS of Kansas and Mr. MOULTON.

H.R. 5502: Ms. LOFGREN and Mrs. CAMMACK.

H.R. 5537: Mr. GARCÍA of Illinois.

H.R. 5538: Mr. GARCÍA of Illinois.

H.R. 5539: Mr. GARCÍA of Illinois.

H.R. 5540: Mr. GARCÍA of Illinois.

H.R. 5585: Mr. LAWSON of Florida.

H.R. 5761: Mr. GOHMERT.

H.R. 5769: Ms. HOULAHAN.

H.R. 5801: Ms. ADAMS.

H.R. 5813: Mr. GOSAR.

H.R. 5981: Mr. MOOLENAAR.

H.R. 5999: Ms. LEGER FERNANDEZ.

H.R. 6089: Mr. PALLONE, Mr. VICENTE GONZALEZ of Texas, and Mr. SCHIFF.

H.R. 6132: Mr. WILLIAMS of Texas.

H.R. 6251: Ms. STANSBURY.

H.R. 6276: Mr. VARGAS and Ms. SPEIER.

H.R. 6379: Mr. CLOUD.

H.R. 6543: Mr. SOTO.

H.R. 6600: Mr. TONKO.

H.R. 6681: Mr. KINZINGER.

H.R. 6699: Mr. SAN NICOLAS.

H.R. 6787: Ms. CRAIG.

H.R. 6872: Mr. LANGEVIN and Mr. GREEN of Texas.

H.R. 6876: Ms. ESHOO, Mr. VEASEY, Ms. LOIS FRANKEL of Florida, and Miss GONZÁLEZ-COLÓN.

H.R. 6937: Mr. OBERNOLTE.

H.R. 6943: Miss GONZÁLEZ-COLÓN, Mr. LAMALFA, Mr. CRENSHAW, and Mr. SCHNEIDER.

H.R. 6945: Mr. VAN DREW and Mrs. LESKO.

H.R. 6973: Ms. CRAIG.

H.R. 7030: Mr. GOODEN of Texas and Ms. SCANLON.

H.R. 7081: Ms. DEAN.

H.R. 7211: Miss GONZÁLEZ-COLÓN.

H.R. 7213: Mr. BLUMENAUER.

H.R. 7236: Mr. BACON, Mr. SWALWELL, and Mrs. HAYES.

H.R. 7260: Mr. MEUSER, Mr. GIMENEZ, and Mr. PALMER.

H.R. 7309: Ms. ADAMS and Ms. MANNING.

H.R. 7382: Mr. MCKINLEY, Mr. PAPPAS, and Mr. ESTES.

H.R. 7426: Ms. NORTON, Ms. ROSS, and Ms. JACKSON LEE.

H.R. 7432: Ms. CRAIG.

H.R. 7477: Mr. KELLY of Pennsylvania, Mrs. AXNE, Mr. BLUMENAUER, and Mr. ESTES.

H.R. 7500: Mr. LEVIN of California.

H.R. 7502: Mr. JONES.

H.R. 7510: Mr. CRAWFORD and Mrs. LESKO.

H.R. 7524: Mr. MANN and Ms. SHERRILL.

H.R. 7525: Mr. FITZGERALD.

H.R. 7527: Mr. PERRY.

H.R. 7528: Mrs. GREENE of Georgia.

H.R. 7538: Mr. HIGGINS of Louisiana.

H.R. 7549: Mr. LEVIN of Michigan.

H.R. 7550: Mr. MORELLE.

H.J. Res. 53: Ms. SÁNCHEZ, Ms. MENG, Mr. CÁRDENAS, and Ms. ROYBAL-ALLARD.

H.J. Res. 59: Mr. LUETKEMEYER.

H. Con. Res. 33: Mr. ROSENDALE.

H. Con. Res. 86: Mr. YARMUTH.

H. Res. 338: Ms. WILLIAMS of Georgia.

H. Res. 366: Mrs. MCCLAIN, Mrs. FISCHBACH, and Mrs. AXNE.

H. Res. 565: Ms. STANSBURY.

H. Res. 568: Mr. LEVIN of Michigan and Mr. DESAULNIER.

H. Res. 582: Mr. OWENS.

H. Res. 891: Mr. RYAN.

H. Res. 951: Mr. BACON and Ms. WILD.

H. Res. 1034: Mr. MOONEY.

H. Res. 1054: Ms. CHU, Mr. PETERS, Mr. VARGAS, Ms. LOFGREN, and Mr. LOWENTHAL.

H. Res. 1057: Mr. HARRIS, Mrs. LEE of Nevada, and Mr. SCHIFF.

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Senate

The Senate met at 10 a.m. and was called to order by the Honorable RAPHAEL G. WARNOCK, a Senator from the State of Georgia.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Almighty God, who has promised to hear our prayers, incline Your ear to us, providing us with those things we have faithfully requested according to Your will.

Lord, we have asked for Your presence in Ukraine. We have desired for You to continue to be the refuge and strength for those experiencing the horrors of war, providing for their needs with Your mighty power.

We have requested that You inspire and empower our lawmakers to walk by faith and not by sight.

Lord, You are a faithful God, and we place our trust in You. Save us from the traps set by the forces of evil.

We pray in Your mighty Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. LEAHY).

The senior assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, April 26, 2022.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable RAPHAEL G. WARNOCK, a Senator from the State of Georgia, to perform the duties of the Chair.

PATRICK J. LEAHY,
President pro tempore.

Mr. WARNOCK thereupon assumed the Chair as Acting President pro tempore.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The ACTING PRESIDENT pro tempore. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will proceed to executive session and resume consideration of the following nomination, which the clerk will report.

The senior assistant legislative clerk read the nomination of Lael Brainard, of the District of Columbia, to be Vice Chairman of the Board of Governors of the Federal Reserve System for a term of four years.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

BUSINESS BEFORE THE SENATE

Mr. SCHUMER. Mr. President, as we begin this 5-week work period, Senate Democrats' focus will remain the same as it has been since last year: fighting inflation and lowering costs for American families.

At times, we will pursue this goal through legislation, as has been the case with our competition bill, with legislation to reform shipping practices that we passed recently, or finding ways to lower prescription drug costs.

And to that end, today, the Agriculture Committee is also holding a hearing on legislation to improve transparency in meat prices.

In addition to legislation, Senate Democrats will also help lower costs by confirming the right people to serve in the Federal Government. On that note, we will aim today to finish the confirmation of Lael Brainard to serve as Vice Chair of the Federal Reserve Board of Governors.

Soon, the Senate will also work to confirm another very important nominee: Mr. Alvaro Bedoya to serve as Commissioner of the FTC, the Federal Trade Commission. Of all the Agencies in the Federal Government, the FTC is among the best equipped for protecting Americans from price gougers, manipulators, and those trying to rip off American consumers—or at least the FTC would be, if it had full membership. But, sadly, the FTC has been stuck at a 2–2 deadlock for well over a year, rendering it incapable of executing the full breadth of its agenda.

We have had two Democrats, two Republicans. The Republican nominees have resisted going after Big Oil and so many of the other excesses of corporate America. And who pays the price? In a very literal sense, it is American consumers as they see prices rise on everything from groceries to the number that pops up every time they fill up their tank.

But the story is grossly different in corporate America, and an FTC with full membership could shine a light as to why. While Americans across the board are making sacrifices to support themselves and their families, corporate America is raking in record profits.

As one article from Yahoo Finance summarized earlier this year, corporate America's 2021 profits were higher than ever.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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Corporate America's profits were higher than ever.

Perhaps no sector has evoked more frustration and anger from the American people as the largest oil and gas companies and the prices they are charging.

Last year, the top 25 oil and gas companies reported $205 billion in profits. Where has that money gone? To help American consumers? No way. To ease our energy troubles? Not at all.

According to one news source yesterday, 28 of the largest oil and gas companies gave out $394 million in CEO compensation. And in the fourth quarter last year, stock buybacks among these companies rose by more than 2,000 percent—2,000 percent.

All this extra money they are making they put in the pockets of the CEOs and the wealthy shareholders who dominate in the oil company ownership. Just think about that. Americans are paying more and more at the pump and struggling to afford the basics, and oil companies, which are seeing their highest profits in years, prefer to reward executives and shareholders through corporate buybacks instead of American families.

Once we have an FTC with full membership, they will finally have the will, the means, and the power to look under the hood of America's energy sector and shine a much needed light on why Big Oil is pumping out record profits, even as consumers struggle.

So completing the membership of the FTC will be a priority, and we will work to finish the confirmation process of Mr. Bedoya as soon as we can.

UKRAINE

Mr. President, on Ukraine, later this week, President Biden is expected to send Congress another request for emergency funding to support the people of Ukraine in their fight against Russian aggression.

When the President makes his request, the Senate should be ready to work quickly to approve this funding. Every penny of American aid has been money well spent.

This fight, in a real sense, is about tyranny versus democracy itself. It is a Manichaean struggle.

It has been 2 months since Vladimir Putin began his immoral and savage war against the Ukrainian people. You see the pictures; it breaks your heart. It breaks your heart; savagery—savagery—of Mr. Putin killing women and children, innocent people.

So far, though, things have gone disastrously for Russian troops as hopes for a quick invasion have been all but dashed. The Ukrainian people, forced into a war not of their choosing and having suffered losses of inhumane proportions, have given Putin a much tougher fight than he ever bargained for, than he ever imagined. Outnumbered and out-equipped, the bravery and valiance of the Ukrainian people remain unbroken. Putin, meanwhile, is increasingly the most isolated leader in the world. Although, parenthetically, shame on the world leaders who are playing footsie with him, including China.

But the Ukrainian people still need our help. Sadly, this fight seems far from over, and losses from the Ukrainian people have been severe.

The United States has a moral obligation to help the Ukrainian people with the tools they need for as long as they need them. Again, this is about tyranny versus democracy itself.

In which direction will the world turn in this, the 21st century?

Once the President makes his request to Congress, approving additional aid for Ukraine will be a must. I expect both sides to work with swift, bipartisan cooperation to get it done.

I also expect the Senate to move quickly on the nomination of President Biden's choice for our Ambassador to Ukraine, Bridget Brink. Ms. Brink's nomination is terrific news that comes at a critical moment. She is deeply experienced. She has already won bipartisan support in this Chamber and is very much needed as the United States seeks to strengthen our diplomatic ties to the war-torn nation. Ms. Brink's nomination will be a top priority of the Senate once she comes before the Chamber.

CORONAVIRUS

Mr. President, on COVID relief: finally, there is another issue in which Republicans must work with Democrats—passing another round of COVID relief.

COVID funding is not a matter of ''nice to have if we can afford it.'' COVID funding is a must-have. It is something our Nation cannot possibly afford to go without.

Yesterday, the White House made clear that other countries like Japan, the Philippines, and Vietnam are already in front of us when it comes to purchasing new vaccines and treatments. American companies, with their ingenuity, come up with these vaccines and treatment; but because we are unwilling—our Republican colleagues so far have blocked financing this—other countries are going to buy from us.

We don't want to be in a position in the fall where we desperately need these medicines but our companies have signed contracts with other countries—other countries. That would be a huge mistake.

Given our Federal budget, it is a small amount to ask that we provide money for these therapeutics so that we can have them for our country, for our folks, as much as the rest of the world may need them, so that we have vaccines—the best vaccines—developed and ready to go and so we have enough testing and treatment.

But other countries are beating America to the punch because Republicans have blocked the Senate from approving new funding. The answer to avoiding another shutdown of our communities is very simple: Senate Republicans should work with us to quickly pass another round of COVID funding. It is not more complicated than that.

Let me say it again. If we want to keep life as close to normal down the line, if we want to keep schools and churches and businesses open if, God forbid, another aggressive variant arises, Republicans should work with us to approve more money for vaccines, testing, and lifesaving therapeutics.

The longer that Senate Republicans hold out on working with us to approve new funding, the higher the cost will be for our country down the line. And when we don't get back to normal, we can't stay at normal because of a new variant, people will know what happened.

God forbid that happens. We don't want it to happen. We want them to work with us; but, unfortunately, so far, we are not seeing that cooperation. From some we have, I must be clear. I had good discussions with several of our Republicans, but then it was blocked by the Republican leadership.

I yield the floor.

RECOGNITION OF THE MINORITY LEADER

The ACTING PRESIDENT pro tempore. The Republican leader is recognized.

BORDER SECURITY

Mr. MCCONNELL. Mr. President, the Biden administration's bad decisions have brought many crises upon our country. One of the worst is the collapse of law and order on our southern border.

Last month, Customs and Border Protection reported over 221,000 apprehensions. That is up 33 percent just since February. It is the highest monthly total in 22 years. We have already hit more than 1 million encounters in just the first half of this fiscal year. But, alas, this could still be just the beginning. The Department of Homeland Security is bracing for an even bigger surge in the weeks and months to come. Authorities are steeling for the possibility that we could see 18,000 new people showing up every single day.

In 2020, President-elect Biden said that ''end[ing] up with two million people on our border'' would be ''the last thing we need,'' but his own policies went on to produce exactly that outcome.

In 2021, on President Biden's watch, 2 million people from at least—listen to this—160 different countries were stopped along our southern border, and now immigration officials are anticipating totals that could more than triple—triple—last year's record.

Against this backdrop, with illegal immigrants and deadly fentanyl pouring into our country, any administration living in reality would be working overtime to actually secure the border. Instead, even now, President Biden is trying to throw away what little security still exists.

For 2 years, since the start of the pandemic, a legal authority called title 42 has empowered the government to simply turn around a large share of the people they catch and send them right back where they came from. Every

month, CBP uses this tool to keep tens of thousands of illegal immigrants out of the catch-and-release pipeline and send them back to their home countries, but now, unbelievably, President Biden has announced he is going to cancel these legal authorities. He wants to rip off the one remaining bandaid that has preserved at least some shred of law and order.

The Biden administration is claiming the pandemic is over and finished on our southern border. Now, they don't believe the pandemic is over, however, for American citizens—oh, no. Democrats actually want Congress to approve more funding specifically because COVID is not finished. The Biden administration's official position is that the pandemic is over for illegal immigrants but not for the American people.

Every day brings more confusing spin from President Biden and his staff. Their latest claim is that Congress needs to fix their problem for them—that if these title 42 authorities end after President Biden has announced he will end them, it will somehow be Congress's fault. That is absurd. The administration has the discretion. The legislative branch has already given them the tool. It is the same tool they have been using this whole time. They just need to have the courage to tell the radical left to take a hike and keep sending these folks back to their home countries. Apparently, that is asking too much.

The Biden administration is stumbling through this core governing responsibility with no vision, no plan, and backward priorities. Democrats would rather appease their radical base with functional open borders than conduct the bare minimum—bare minimum—in enforcement.

The administration's decision is so obviously crazy that even a number of our Senate Democratic colleagues who have been marching in lockstep with the President for more than a year are now scrambling to make it look like they are breaking ranks.

Well, I welcome our colleagues who are finally making angry noises about this border crisis. The problem is that their lockstep, Democratic votes for over a year have helped, actually, to produce it. For over a year, Senate Democrats have rubberstamped every single aspect of the Biden administration's failed border policy. Not a single Senate Democrat opposed the confirmations of the heads of DHS and HHS, who have presided over this crisis. Not a single Senate Democrat voted for commonsense Republican amendments to do things like preserve the ''Remain in Mexico'' policy and defund sanctuary cities, and the cost of their bad decisions gets worse every day.

Last week, a heroic American servicemember paid the ultimate price. Specialist Bishop E. Evans of the Texas National Guard had been assigned to help contend with the flow of immigrants across the Rio Grande. He lost his own life in trying to save people who had gotten into deadly trouble. And the White House's response? Their spokeswoman was asked yesterday about this tragic loss. She brushed it off. She said he was there on behalf of Texas, not the Federal Government. That unbelievably tone-deaf response perfectly captures the administration's failure to take responsibility.

Democrats have built this border crisis by letting the radical left run the show for more than a year. If my friends across the aisle really have experienced a conversion of heart and now believe in border security, they will have to do a lot more than issue indignant press releases and call it a day.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

DIETARY SUPPLEMENTS

Mr. DURBIN. Mr. President, if I were to ask you ''How did you start your day?'' I would imagine you would have your own answer.

Most people would say: Oh, I made a cup of coffee. I took the dog out for a walk. I went for a run.

Another answer might come to mind: Oh, I took my vitamin tablet, my dietary supplement.

In fact, 77 percent of people in America take a dietary supplement, including me. I take a multivitamin tablet. I don't know if it does me any good. I figure it won't do me any harm. I believe in it. I believe Americans ought to be able to make that choice.

I also believe that Americans who take vitamins, minerals, and herbs for their health and well-being have a right to know what is in them—pretty basic.

Many people assume if that product is sold in the United States of America, somebody has inspected it, and it must be safe. Unfortunately, that is not always true.

The Food and Drug Administration has the authority to regulate dietary supplements and take dangerous products off the market, but it lacks information that it needs to use this authority effectively.

The Food and Drug Administration can't even tell us how many dietary supplements are sold in America. They give us a range: somewhere between 50,000 different dietary supplements and 80,000—50,000 and 80,000—a gap of 30,000 products? What is going on here? They don't even know how many products are being sold, let alone what they are or what is in them.

Let's go back to 1994. That was the year Congress passed a law and gave the FDA the authority to regulate supplements. Now, we all know that the Food and Drug Administration has the most important responsibility when it comes to the drugs that we take to make sure they are two things: safe and effective—safe and effective.

But what about dietary supplements? Well, we passed something called DSHEA, the Dietary Supplement Health and Education Act. The law made some progress, but there was a problem with it. Manufacturers of dietary supplements—get this now—manufacturers of those vitamins and minerals that are for sale in all those shops and all those drugstores are not required to tell the Food and Drug Administration what products they are selling in the United States, under what names. They are not required to disclose to the FDA what is in those products or where they are manufactured. And believe me, a lot of them are manufactured outside the United States. So when it comes to dietary supplements, the Food and Drug Administration and American consumers are pretty much flying blind.

Making matters worse, since 1994, this dietary supplement industry has grown dramatically. Listen to these figures. In 1994, there were 4,000 dietary supplements sold in the United States. Today, as I said earlier, the number is as high as 80,000. So in 27, 30 years, we have seen the number of dietary supplements for sale go from 4,000 to 80,000.

Now, in 1994, dietary supplements were a $4 billion industry—today, over $50 billion in annual revenue.

Let me give you an example of one ingredient sold in dietary supplements today in the United States. It is called tianeptine. It can produce opioid-like effects. It is a prescription anti-depressant in some countries, but it is not approved for any use in the United States of America. Yet it is inexpensive and easy to produce. Some have nicknamed it ''gas station heroin'' because you can buy it easily at gas stations across America. You can buy it online—one click, delivered to your door.

It is marketed as a safe supplement that can improve users' moods and enhance concentration. How many ads do you see on television—maybe I am paying closer attention to them these days—that say: Take this supplement, and your memory is better. You can concentrate more.

You are smiling, Mr. President, because we have all seen them. They are on television all the time.

It is marketed also as a way to fight substance use disorders, this tianeptine. So last year, Consumer Reports—and I respect this magazine very much—published the results of an investigation it conducted into this supplement. It told the story of a Michigan woman who had used heroin for 10 years and survived countless overdoses and arrests. After her sister overdosed and died, she decided it was time to get clean. She was frightened. She was desperate enough to try anything. She

heard about tianeptine—maybe that could help her—so she tried it. She became hooked and dangerously ill, ending up in the hospital with a dangerous infection called sepsis.

One doctor said to her: ''I don't know if I can save your limbs, but I'll try.'' Another doctor told her she came within a day or two of dying.

She was lucky. She survived. She now speaks publicly about the dangers of the product that nearly killed her. In her words, ''This is heroin times 1,000, and it's very devastating. It's life-destroying. I don't really know how to put into words how horrible this substance is.''

In the midst of a deadly opioid epidemic and a COVID pandemic, some unscrupulous characters are hustling to make a buck off of people's pain by selling them an unregulated product that might make them sick or even kill them. And the Food and Drug Administration lacks the basic knowledge, the basic information it needs to go after the people who are peddling these dangerous, life-threatening products.

When asked about the situation, a Food and Drug Administration spokesman said the Agency has ''no systematic way of knowing what dietary supplement products are on the market.''

Think of that. The No. 1 Agency in the Federal Government, which you assume is taking a look at these products that you are buying at the vitamins and minerals store, has no way of knowing what is even for sale. As a result, the FDA, she said, is ''left trying to play catch-up'' after the bad results occur.

This week, Senator BRAUN of Indiana and I are introducing a bipartisan bill to protect Americans by requiring supplement manufacturers to register their products with the Food and Drug Administration. Our bill would require dietary supplement manufacturers to provide the FDA—listen to the information we are asking—the names of their products, the ingredients they contain, an electronic copy of the label, a list of any health claims that they have made, and more. All of this information would be available to consumers—so Americans have the right to know.

If there is a problem with a supplement, the FDA could quickly check the database to see what other products might contain the same ingredients and warn innocent consumers.

Dietary supplement makers who refuse to register with the FDA would see their products misbranded, and FDA should be given the appropriate authority to take action against them.

Now, I have been down this road before. I wanted to make sure that the dietary supplement manufacturers, when we had a report of an adverse event—somebody took their pill, thinking it was a harmless vitamin or mineral that might help them; it turned out to be dangerous; they got really sick or died—they had to report it.

I worked on the floor for years to get that passed into law. My nemesis, my challenger on the whole issue, was the late Senator from Utah, Orrin Hatch. Eventually, we worked out an agreement. Adverse event reporting was required.

Now, I might argue that it never worked quite as we expected it to, but at least it was an effort to alert people that sometimes what looks like an innocent vitamin or mineral can be dangerous. And the notion that the government has already checked it out is just plain wrong, as I have said here. But that was then.

I will tell you what happened. I went into vitamin stores in the State of Illinois and saw my picture on every cash register. I was enemy No. 1 because I asked that dangerous supplements be reported to the government if somebody got sick when they took them. But having said that, I want to make something very clear about the difference the legislation Senator BRAUN and I have introduced will face. I have been through this, as I said. I proposed a change about 10 years ago, and the dietary supplement industry hated me. They fought me tooth and nail. They hated my idea like the devil hates holy water.

In the year since Senator BRAUN and I started talking to them about this new bill, there has been a significant change, and I want to salute the industry for this change. A strong majority of the dietary supplement industry now supports responsible reporting requirements and stronger protections. Hats off to them.

The industry's largest trade association, the Council for Responsible Nutrition, has endorsed our bill. Other trade associations support enhanced reporting requirements, generally. We hope these groups will join us in the effort.

Responsible dietary supplement manufacturers should welcome this because the people who are abusing the market and endangering consumers are giving them a bad name. We are also glad for the support of Pew Charitable Trusts, which has worked diligently for years to protect consumers.

Our bill will give the FDA what they must have: the information to protect Americans from dangerous products being sold as health supplements. Our bill will give them the information and the power.

We urge our colleagues to join us in passing it as soon as possible. It is a commonsense, bipartisan compromise that will protect consumers' health and save lives.

The bottom line is, I am willing to fight to protect every Americans' right to buy safe dietary supplements. It may help them; it may not. That is not my judgment. Each individual consumer should make that choice. As long as that dietary supplement is not dangerous to you or to Americans, as long as we know that it is for sale, who made it, what is in it, I think that basic information is what the government should gather.

The vast majority of these supplements will not harm people, and the dietary supplement manufacturers know that, and that is why they are supporting our effort. I hope that more of my colleagues will join this bipartisan undertaking.

ARMY HUMVEE SAFETY AND TRAINING

Mr. President, I watched a troubling program on ''60 Minutes'' back in February. It detailed military tactical vehicle accidents. The report highlighted a terrible problem that has resulted in rollovers and other serious accidents involving the Army's most ubiquitous vehicle, the humvee.

Some of the safety upgrades, such as armor kits and other upgrades, that are designed to protect our warfighters in humvees during combat from IEDs or other threats can, in fact, make the humvees less stable and more prone to rollovers. Here is what it boiled down to.

When we went into Iraq with our humvees, we ran into these IEDs, these explosive devices that were set on the side of the road. They were triggered when humvees came by. They blew up these humvees and killed the occupants—military personnel from the United States—and they also maimed many of them as well.

The first soldier I visited, after our invasion of Iraq, out at Walter Reed was a sergeant from the Ohio National Guard who had lost half of one leg as a result of one of these IED explosions while he drove a humvee. So we decided to do something about it.

It was a dramatic emergency undertaking to put armored plating on the sides of these humvees so as they went down the road when these explosive devices went off, it would protect the people sitting inside. I know that it was an effort to do this as quickly as possible because the Rock Iron Arsenal in the State of Illinois jumped to the challenge and really responded in a matter of weeks, putting armored plating on the humvees.

Now, what happened, of course, is when we put that weighted plating on the sides to protect the occupants, it changed the camber and the balance of these vehicles, and many of them started being involved in rollover accidents. So by solving one problem, we introduced instability into the vehicle that haunted us and created more problems and even deaths.

In fact, just last year, the GAO reported that more than 3,750 noncombat accidents as a result of tactical vehicle accidents in the Army and Marine Corps occurred between fiscal years 2010 and 2019. At least 123 servicemembers died as a result of such accidents during the same timeframe.

Since then, the Army has pursued a number of improvements, including training for safety officers and inspections as part of their tactical vehicle driver's training. That has helped the situation.

The Army is also working to incorporate a variety of safe upgrades to

both brandnew and recently produced humvees, including anti-lock brake and electronic stability control safe kits to help prevent rollovers and accidents.

In fact, since 2017, all new Army humvees already have these safety kits installed. This includes humvees procured as part of our partnership at Rock Island Arsenal, where the safety kits are actually part of the integrated chassis system delivered to the arsenal.

As the Army continues its joint light tactical vehicle procurement strategy, the humvee will continue to be the workhorse of the future—the Army tactical wheeled vehicle fleet is led by these units with over 50,000 in service—for decades to come. As such, we owe it to the fighting forces to give them newer, safer humvees. And we must ensure that recently produced humvees currently in the fleet, those used across combat and training and other operational capabilities, are updated with safety kits.

The Army is also reviewing additional safety upgrades—such as airbags and restraint systems—that can help save lives as well.

All of these critical investments must be made in parallel. The ''60 Minutes'' piece has made clear the risks and costs. This is a clear call to action for all of us in Congress. The FY22 omnibus included $183 million for more safety kits on existing humvees. I look forward to continuing to work with the Army on further efforts to make the humvee safer and to keep our promise to protect the lives of our men and women in uniform.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. PADILLA). The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING ORRIN G. HATCH

Mr. THUNE. Mr. President, on Saturday, we lost a remarkable former colleague: Senator Orrin Hatch.

Orrin rose from poverty to become one of the longest serving Senators in U.S. history and the longest serving Republican Senator ever. During his more than 40-year Senate career, he built a record of accomplishment that included landmark legislation like the Americans with Disabilities Act; the Tax Cuts and Jobs Act; and the Religious Freedom Restoration Act, which he authored with his close friend from across the aisle, Senator Ted Kennedy. At the time of Orrin's retirement, no Senator alive had had as many pieces of legislation signed into law.

I was privileged to serve under Orrin's leadership at the Senate Finance Committee, one of three influential Senate committees that he chaired during his tenure in the Senate. In addition to being an outstanding legislator and a principled conservative, Orrin Hatch was also a cherished and good-humored colleague and a deeply kind human being. It is no surprise that his friendships spanned both sides of the aisle or that both the Democrat and Republican leaders paid tribute to him yesterday.

Mr. President, I know I speak for more than myself when I say that I have missed his presence in the Senate. His death is a loss for our country and especially for his beloved State of Utah, which he served so faithfully and so well during his long career.

My thoughts and prayers this week are with Orrin's wife of more than 64 years, Elaine, with Orrin's six children, and with his dozens of grandchildren and great-grandchildren.

BIDEN ADMINISTRATION

Mr. President, the first year of Democratic governance in Washington has produced surging inflation, a disastrous withdrawal from Afghanistan, and a massive border crisis. And, unfortunately, so far 2022 isn't looking much better. Our inflation crisis keeps getting worse, energy prices are soaring, and the Biden border crisis is reaching new heights.

When President Biden took office, inflation was 1.4 percent, well within the Federal Reserve's target inflation rate of 2 percent; and it might have remained there had Democrats not decided to pass a $1.9 trillion partisan spending spree under the guise of COVID relief—mere weeks, I might add, after Congress had approved a fifth bipartisan COVID relief bill that met essentially all current pressing COVID needs.

The Democrats' decision to flood the economy with unnecessary government money set off an inflation crisis that shows little sign of stopping. March saw inflation hit 8.5 percent, a 40-year high. Everywhere Americans look, they are paying more: more for groceries, more for gas, more for utilities, more for furniture, more for used cars and trucks—and the list goes on.

While wages increased in 2021, inflation outstripped wage growth, which means that instead of a pay increase, many Americans saw a de facto pay cut. Needless to say, inflation is having the biggest impact on those who can least afford it.

The President likes to tout job creation and economic growth—although most of what he takes credit for is the natural consequence of economic recovery after the pandemic—but his claims mean little to families who are wondering how they will be able to pay their soaring grocery bills or whether they can afford the gas that they need for the rest of the month.

And speaking of affording gas, thanks to Democrats, we are also rapidly approaching a full-blown energy crisis. Gas prices increased on average to an alltime high in March, according to AAA, and that is on top of the soaring inflationary costs of electricity and home gas services, among other energy commodities. As of yesterday, gas was $4.12 a gallon, up from $2.39 a gallon when President Biden took office. The administration, of course, has attempted to blame this hike on Putin, but the vast majority of the 72-percent increase in gas prices since President Biden took office predates the war in Ukraine and sanctions on Russia.

Every gallon of gas purchased at current prices hits family budgets hard, especially in rural States like South Dakota where driving long distances is the norm. Diesel averaged $2.68 a gallon in January of 2021. As of yesterday, it was $5.07. That not only hits our transportation sector and truckers but farmers across the country as they plant their fields this spring.

There is no easy solution on inflation, but the first imperative is to do no more harm. Once Democrats saw the inflationary effects of their $1.9 trillion spending bill, they should have instantly resolved to refrain from any more unnecessary government spending. Big spending, however, is a way of life for Democrats. So instead of committing to spending restraint, they spent last fall pushing for a second massive spending spree that would have made our inflation situation that much worse. And while that reckless tax-and-spending spree was mercifully halted in the Senate last December, the President's recent budget request made clear that Democrats are still intent on implementing many of their tax-and-spending spree's measures.

That is right. Democrats unleashed the worst inflation in 40 years by flooding the economy with unnecessary government money, and they still want to double down on that strategy. If Democrats have their way on government spending, our inflation crisis could last for years to come.

Mr. President, while there are few things the President and Democrats can do to speed up the end of their self-inflicted inflation crisis other than not making it worse, there are actions that Democrats can take to address the high energy costs that Americans are facing, and chief among those things is unleashing American energy production of both alternative and conventional energy. Unfortunately, the President seems pretty committed to doing the opposite when it comes to conventional energy. He has asked other countries to increase their conventional energy production, but he has made it clear that he is not interested in seeing the United States do the same.

While his administration is finally conducting sales for new onshore oil and gas leases, it has reduced the land available for such leases and substantially increased the royalty rate, sending a clear signal to American energy producers that the administration is reluctant to collaborate with it. Meanwhile, the Securities and Exchange Commission has proposed requiring costly new financial disclosures that would discourage investment in conventional energy production.

While Democrats may wish it weren't so, the fact of the matter is that our country will still need oil and natural gas for years to come; and if Democrats and the President didn't want Americans to be paying sky-high prices to fill their cars, they need to focus on encouraging responsible oil and gas production here at home, which, I might add, puts Americans to work in good-paying jobs and develops these resources with fewer emissions than are produced in other countries. Forcing our country to increase our reliance on foreign energy sources will do nothing but drive up energy prices, not to mention jeopardizing national security. Boosting domestic production, on the other hand, would drive down energy prices while ensuring that we don't have to rely on dictators or unstable countries for energy.

In addition to our energy and inflation crises, we are also facing a massive crisis at the southern border. Almost from the day the President took office, we have seen a huge surge in the number of individuals attempting to illegally make their way across the southern border. In March alone, U.S. Customs and Border Protection encountered 221,303 individuals attempting to cross our southern border illegally. In the first quarter of 2022, more than half a million individuals were apprehended while trying to get across our southern border. And the influx shows no signs of stopping.

And what has the President done to address this crisis? Next to nothing. In fact, the truth is that this is a crisis largely of the President's own making. The series of actions that he has taken to weaken border security and immigration enforcement has encouraged a flood of illegal immigration across our southern border. In fact, the President's lawyers are over at the Supreme Court today arguing against a measure to discourage illegal immigration.

And now the President is on track to make our current border crisis much worse by lifting title 42 COVID–19 restrictions that have provided for the immediate deportation of individuals who have crossed the border illegally. Once these restrictions are lifted, the Department of Homeland Security expects as many as 18,000 migrants per day—18,000 per day—to attempt to cross our southern border.

I mentioned that we have seen more than half a million attempted illegal crossings in the first 3 months of this year. Without title 42 restrictions, we could be seeing more than half a million attempted crossings each month, and it is clear that the President has no substantive plan in place to deal with such a surge.

I was relieved—as I think a lot of Americans were and I think a lot of Democrats, honestly, here in the Senate—that yesterday a Federal judge issued an order temporarily preserving title 42. But this is not a permanent solution to the problem. Title 42 should not be lifted until the President has a robust plan in place for discouraging illegal immigration, securing our border, preventing human trafficking and drug trafficking, and quickly deporting those who seek to illegally enter our country.

So here is where we are, Mr. President: We have an inflation crisis that is driving up costs for American families. We have an energy crisis, with sky-high gas prices fueling pain at the pump. And we have a security, humanitarian, and enforcement crisis at our southern border. That is what a year and a quarter of Democratic governance looks like.

And since Democrats show no signs of taking steps to address these crises, that is what Democratic governance is likely to look like for the foreseeable future. Meanwhile, the American people will continue to pay the price.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CASSIDY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING JOHNNIE JONES

Mr. CASSIDY. Mr. President, today my State and I think the entire country should both mourn the loss and celebrate the life of an American hero and dedicated civil rights leader—Johnnie Jones, who recently died at age 102 but in his 102 years fought for our country, fought for the free world, and also fought to bring civil rights to a better place.

During World War II, Johnnie Jones helped storm the beaches of Normandy as part of D-day, liberate France from Nazi occupation—along the way, being part of the Battle of the Bulge. He was injured during the D-day invasion when his ship hit a mine, and he suffered shrapnel wounds from German air attacks, but he never stopped fighting.

When he came back, he attended Southern Law School and then led civil rights efforts in Baton Rouge. He legally represented the organizers at the Baton Rouge bus boycott, which served as a forerunner or a template for the Montgomery bus boycott. Throughout his career, he took on several civil rights cases, advocating for equality under the law, and served a term in the Louisiana House of Representatives.

His commitment to service and his love of our country was not just admirable but inspiring.

Last year, I had the honor to present him with a Purple Heart for the wounds he received during the D-day invasion in 1944.

My grandson has been to the World War II Museum in New Orleans—a tremendous museum—and he is now very much into the heroism of our soldiers who were in both World War II and World War I. So I took my grandson to meet Mr. Jones because I wanted him to meet a real-life hero.

Here you see him at 102—so proud of his medals, saluting.

My grandson, just the other day, said: Papaw, remind me of that man we met. So his meeting Mr. Jones 2 years ago has inspired a 7-year-old to live his life a better way.

So, as Mr. Jones salutes us, shall we all be inspired, shall we always remember the heroism abroad and the heroism here.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

EARTH DAY

Mr. CARDIN. Mr. President, as Lady Bird Johnson said, ''The environment is where we all meet, where we all have a mutual interest; it is the one thing all of us share.''

This quote from when she served as First Lady of the United States during President Lyndon Baines Johnson's time in office, from 1963 to 1969, still resonates with us today as we commemorate Earth Day 2022 and reflect on our relationship with nature and the world we share with each of us every day.

April 22, 1970, marked the first annual Earth Day, which led to the formation of the U.S. Environmental Protection Agency—the Agency that is responsible for implementing environmental regulations and standards.

We have made great strides in protecting the environment and public health through the Clean Air Act, Clean Water Act, and Endangered Species Act, but the data and science surrounding the harmful effects of climate change are alarming. Climate change is harming our ecosystems, waterways, forests, wildlife, and our general environment.

This year's sustainable development goals theme and call to action is ''Invest in Our Planet.'' The question for climate action is no longer ''if'' or ''when'' but ''how much?'' if we want to have a healthy, habitable Earth.

Strong policies that protect our water resources, fisheries, and wildlife and address the challenges of climate change are a top priority of mine in my role as a member of the Senate Committee on Environment and Public Works.

I applaud President Biden for setting forth ambitious but attainable climate-friendly goals, driven by science, to help preserve the health and safety of our planet and the public. I applaud President Biden's Executive actions in January of 2021 to reverse steps President Trump took that weakened Federal protections under the Endangered Species Act. I applaud President Biden's commitment to conserving 30 percent of America's lands and oceans by 2030, also known as the America the Beautiful Initiative.

With the understanding that we need to meet the moment on climate change and preserve our planet, Congress passed the Infrastructure Investment and Jobs Act, which President Biden signed into law last November. This

historic legislation serves as a significant downpayment on our future as we seek to strengthen resiliency and mitigation measures against flooding and sea level rise; shift towards greener, cleaner energy and technology; and form meaningful habits to clean up the world around us by recycling, composting, and disposing of waste products properly.

The threat of sea level rise and warming temperatures is already detrimental to our coastlines and ecosystems, especially along the Chesapeake Bay. With numerous and successful restoration efforts underway, the Infrastructure Investment and Jobs Act authorizes an additional $238 million to the Chesapeake Bay Program to make even bigger reductions in nutrient pollution to improve water quality in the surrounding tributaries.

In partnership with local jurisdictions, stakeholders, and the U.S. Army Corps of Engineers, the bipartisan infrastructure act will deliver $37.5 million in Federal funding for the Mid-Chesapeake Bay Island Ecosystem Restoration Project. The purpose of the project is to rebuild the declining James and Barren Islands in Dorchester County and provide a substantial increase of habitat for a variety of fish and wildlife species by repurposing dredged material from the shipping channels for the Port of Baltimore. This is beneficial use of dredged material to keep our channels at the necessary depth for commerce but do it in a way that restores our environment. Wetlands provide natural flood control solutions as climate change brings increasingly frequent and severe weather events.

We only have one planet, which is why every decision and every failure to act matters.

I would like to thank our Federal workforce this Earth Day for its efforts to maximize this window for action on climate and environmental justice. The Biden administration has directed each Federal Agency to take strong action when it comes to dealing with our climate and environmental justice. Many civil servants are working around the clock to promulgate rules, strategy documents, and much, much more. For example, White House officials this month announced equity action plans for more than 90 Federal Agencies designed to combat systemic barriers to opportunities in underserved communities.

Each day of COP26 U.N. Climate Change Conference in Glasgow explored a new topic. Our Senate delegation had an opportunity to attend on the day that was devoted toward Nature Day. I mention that because our nature depends upon us dealing with the climate agenda.

I would just call to my colleagues' attention the series that is hosted by former President Barack Obama, ''Our Great National Parks.'' Take a look at how important it is in preserving our environment for the species around us, which affects not only their ability to live but our ability to live.

The month of April represents the opportunity to celebrate other related environmental and nature-focused holidays, such as Arbor Day, which falls on April 29 this year. My home State commemorated Maryland Arbor Day at the beginning of the month, on April 9. This year, we celebrate the 150th anniversary of Arbor Day. The goal of Arbor Day is to celebrate nature within our communities by organizing tree planting or trash and litter cleanups. As President Franklin Delano Roosevelt remarked, ''A nation that destroys its soil destroys itself. Forests are the lungs of our land, purifying the air and giving fresh strength to our people.''

The bipartisan infrastructure law also provides $275 million grant funding for the U.S. Environmental Protection Agency's Post-Consumer Materials Management Infrastructure Grant Program, which the Save Our Seas 2.0 Act established. This program will help prevent plastic waste from entering our environment in the first place. The program will provide grants to States to improve local waste management systems, including municipal recycling programs, and to improve postconsumer materials management and infrastructure to reduce plastic waste in our waterways and oceans, ultimately protecting our planet.

I agree with Paul Hawken, who said this in a commencement address at the University of Portland in 2009:

> At present, we are stealing the future, selling it in the present, and calling it gross domestic product. We can just as easily have an economy that is based on healing the future instead of stealing it. We can either create assets for the future or take the assets of the future. One is called restoration and the other [is called] exploitation. And whenever we exploit the earth we exploit people and cause untold suffering. Working for the earth is not a way to get rich, it is a way to be rich.

Protecting our planet is a collective and ongoing effort. While we still have much to do, I am encouraged by the legislative and administrative progress we have made so far. I urge my colleagues to take the next step and pass the Build Back Better Act—transformative legislation for a clean energy economy.

This Earth Day, let us heed Paul Hawken's comments: ''Working for the earth is not a way to get rich, it is a way to be rich.''

With that, Mr. President, I suggest the absence of a quorum.

I yield the floor.

The PRESIDING OFFICER (Mr. LUJÁN). The clerk will call the roll.

The bill clerk called the roll.

Mr. LEE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

NOMINATION OF ALVARO M. BEDOYA

Mr. LEE. Mr. President, if the nanny state had a mascot, it would be the Federal Trade Commission. In fact, back in the 1970s, the FTC earned the nickname the ''National Nanny''—this, after it went on a rulemaking binge, one that triggered an unprecedented congressional response.

In response to that binge, Congress defunded the Agency for several days. In fact, it refused formally to reauthorize the Commission for some 14 years after that. Thankfully, the FTC changed approach by reining in its rulemaking initiatives. Congress, however, did not learn its lesson and has continued to grant the FTC broad powers over the years. These grants of power and the lack of congressional will have helped put the FTC on a trajectory that looks eerily similar to its ''National Nanny'' era.

Under the leadership of Lina Khan, the FTC has only accelerated into this trajectory and is now being transformed into a bigger and more invasive national nanny than ever could have been imagined in the 1970s. Her vision is to transform what is an enforcement Agency into a broader, largely independent regulatory Agency. This move would reduce the congressional oversight of key economic regulation and would also have serious negative implications for countless businesses across the Nation that could find themselves subject to the whims of an unelected, arbitrary, capricious, out-of-control Agency. The FTC is on course to take significant new powers so that it can use its already broad authorities under section 5 of the Federal Trade Commission Act and elsewhere to regulate huge swaths of the American economy.

We, accordingly, need to be very careful when considering nominees to the Commission.

As a member of the Senate Commerce Committee, I took seriously my consideration of Mr. Bedoya's nomination and spoke with him on multiple occasions regarding his nomination and regarding his vision for the Federal Trade Commission. During his nomination hearing, I took careful note of my questions to Mr. Bedoya and to his responses to ascertain his vision for the Commission and his view on the scope of the FTC's power. His answers did little to calm my concerns. In fact, they did much to add to my worries, not only about his nomination but about the future of the Commission at large.

During my questioning, Mr. Bedoya signaled that he would use section 5 of the Federal Trade Commission Act to conduct unfair methods of competition rulemaking. That, of course, would be a dangerous expansion of the FTC's rulemaking power, one that would occur without a congressional grant of authority.

He refused to share his views on the FTC's repeal of its vertical merger guidelines.

He didn't answer when I asked about his views on Lina Khan's use of zombie votes, or proxy votes, of ex-commissioners after they had left the Commission.

He would not provide a clear answer on whether he supported Lina Khan's decision to remove key procedural requirements attached to FTC rulemaking—the very statutory, procedural requirements that were instituted in direct response to the Agency's flagrant abuses of its own power in the 1970s.

And he openly supports Lina Khan's decision to close out the voice of minority commissioners to approve investigations—an action that has destroyed a bipartisan hallmark of the Commission.

Mr. Bedoya did not earn my confidence in his hearing. His nomination is not designed to strengthen American business or bolster our economy. Instead, his nomination will give the Commission the majority it needs to take American economic regulation out of the hands of elected lawmakers.

We have to remember that the very first clause of the very first section of the very first article of the Constitution says that all legislative powers herein granted shall be vested in the Congress of the United States, which shall consist of a Senate and a House of Representatives. In other words, all Federal lawmaking power—legislative powers or lawmaking powers—the power to make Federal law as articulated in article I, section I, clause 1—is vested in Congress, not in an outside Agency.

Article I, section VII puts even more clarity on it in explaining that, in order to pass a Federal law, you have got to have passage by the Senate and passage by the House of the same piece of legislation, followed by presentment to the President, resulting in signature, veto, or acquiescence. Without that, you cannot make a Federal law.

When we pretend to make Federal lawmakers outside of Congress, we have got to be very careful because this is subversive of the entire purpose of the Constitution, putting in the most dangerous power—the power to make prescriptive laws, the power to make laws adding to, altering, materially changing the obligations of members of the public. You have got to go through the branch of government that is most accountable to the people at the most regular intervals.

That is why this is so concerning that you have in Mr. Bedoya, like you have in Lina Khan, someone who doesn't fear this type of unaccountable, de facto lawmaking, not only outside of what the Constitution can countenance fairly but also outside of basic standards of accountability and good government.

For all of these reasons, I fear that Mr. Bedoya will not only enable but will support the blatant attempts made by Lina Khan to return the FTC to its status as the ''National Nanny'' and, ultimately, the national enemy.

Under her leadership, the FTC has shown disregard for the input of minority commissioners and has been frustrated by the legal limits surrounding the FTC's authority. Lina Khan is not afraid to lead the Agency on a path that ignores legal, constitutional, and procedural roadblocks in its way.

I am committed to reversing the dangerous trajectory of the FTC; to making sure that we don't return to the 1970s era of the FTC's being the nanny of the nanny state; and to making sure that we restore the FTC's accountability to Congress and, ultimately, to the people.

We have to remember that true accountability in our system of government—accountability related to what the law is and how the law is written—always has to be with Congress. That is why article I is written the way that it is. It is why this is something that has to be understood appropriately as a nondelegable duty—that is, the power to make law.

We have got to restore that accountability, and I fear that Mr. Bedoya will only further enable the radical takeover of the Federal Trade Commission. I, therefore, cannot and will not support his nomination.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. LEE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:30 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Ms. SINEMA).

EXECUTIVE CALENDAR—Continued

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Madam President, I ask unanimous consent to speak for up to 90 seconds.

The PRESIDING OFFICER. Without objection, it is so ordered.

NOMINATION OF LAEL BRAINARD

Mr. BROWN. Madam President, as America faces rising prices caused by corporate greed in a global pandemic and Putin's war, having a full Fed Board has never been more vital. Today, we take the first step.

Dr. Brainard is a highly qualified economist with decades of experience. She served as a member of the Board of Governors of the Federal Reserve since 2014. She championed efforts to modernize and strengthen the Community Reinvestment Act. She is committed to addressing and staying ahead of financial risks to our economy. She has a long history of bipartisan support and collaboration. She served in administrations of both parties.

I urge my colleagues to support the nomination and to vote for Lael Brainard to the Federal Reserve.

VOTE ON BRAINARD NOMINATION

The PRESIDING OFFICER. Under the previous order, the question is, Will the Senate advise and consent to the Brainard nomination?

Mr. MENENDEZ. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from Pennsylvania (Mr. CASEY), the Senator from Delaware (Mr. COONS), the Senator from Connecticut (Mr. MURPHY), the Senator from Michigan (Mr. PETERS), and the Senator from Oregon (Mr. WYDEN) are necessarily absent.

The result was announced—yeas 52, nays 43, as follows:

[Rollcall Vote No. 136 Ex.]

YEAS—52

Baldwin	Heinrich	Rosen
Bennet	Hickenlooper	Rounds
Blumenthal	Hirono	Sanders
Booker	Kaine	Schatz
Brown	Kelly	Schumer
Cantwell	King	Shaheen
Cardin	Klobuchar	Sinema
Carper	Leahy	Smith
Collins	Luján	Stabenow
Cortez Masto	Lummis	Tester
Crapo	Manchin	Van Hollen
Duckworth	Markey	Warner
Durbin	Menendez	Warnock
Feinstein	Merkley	Warren
Gillibrand	Murray	Whitehouse
Graham	Ossoff	Young
Hagerty	Padilla	
Hassan	Reed	

NAYS—43

Barrasso	Grassley	Risch
Blackburn	Hawley	Romney
Blunt	Hoeven	Rubio
Boozman	Hyde-Smith	Sasse
Braun	Inhofe	Scott (FL)
Burr	Johnson	Scott (SC)
Capito	Kennedy	Shelby
Cassidy	Lankford	Sullivan
Cornyn	Lee	Thune
Cotton	Marshall	Tillis
Cramer	McConnell	Toomey
Cruz	Moran	Tuberville
Daines	Murkowski	Wicker
Ernst	Paul	
Fischer	Portman	

NOT VOTING—5

Casey	Murphy	Wyden
Coons	Peters	

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's actions.

The Senator from Ohio.

UNANIMOUS CONSENT REQUEST—ORDER OF PROCEDURE

Mr. BROWN. Madam President, I ask unanimous consent that notwithstanding rule XXII, the cloture vote with respect to the Cook nomination occur at a time to be determined by the majority leader following consultation with the Republican leader; further, that prior to April 29, 2022, the

Senate proceed to executive session to consider the following two nominations: Calendar No. 807, Jerome H. Powell, and Calendar No. 809, Philip Nathan Jefferson; that there be 60 minutes for debate, equally divided in the usual form, on each nomination; that upon the use or yielding back of time, the Senate proceed to vote without intervening action or debate on the nominations in the order listed; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be in order; that any related statements be printed in the Record; that the President be immediately notified of the Senate's action; and that the Senate then resume legislative session.

The PRESIDING OFFICER. Is there objection?

The Senator from Pennsylvania.

Mr. TOOMEY. Madam President, reserving the right to object, I want to be clear about what this unanimous consent request is about and what it attempts to do. It is an attempt not to vote, to not have the vote on Lisa Cook, the nominee. I have to say it is a reminder of how short memories are around here.

The irony of this situation we find ourselves in is that the vacancy on the Federal Reserve Board is only a vacancy because, when Republicans had COVID absences, our Democratic colleagues would not extend the courtesy of rescheduling the vote to confirm Judy Shelton. Instead, the vote failed, and she was not confirmed. Then, lo and behold, we have this vacancy that has been proposed to be filled by Lisa Cook.

I should also point out how persistently we tried in good faith and on multiple occasions to process Fed noms throughout this entire year. We could have confirmed Chairman Powell in January. We could have processed four out of five of the Fed noms in the Banking Committee very quickly, including Ms. Cook, but our Democratic colleagues refused to allow us to process those four out of five because we did not want to process Sarah Raskin.

Now, Ms. Raskin ended up having to withdraw because there was bipartisan opposition to the radical views that she had espoused that the regulatory apparatus of the Fed ought to be used to allocate capital throughout our economy. Fortunately, there was bipartisan opposition to this idea.

Now it appears—and I guess it is the logic of my colleagues—that we can proceed as long as we are confirming everyone but Chairman Powell first. I don't understand why that has to be, but they filed cloture before the Easter break, on Professor Cook, and now they find themselves in this awkward position.

Here is what it boils down to. It is very simple. I want to vote on all of the noms. Republicans are ready to vote on all of the noms. Our Democratic colleagues have complained about not having votes. We want to vote. We want to vote on Lisa Cook. We want to vote on Chairman Powell. We want to vote on Mr. Jefferson.

We are ready to vote, not to cancel a vote, so I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Ohio.

Mr. BROWN. Madam President, I ask unanimous consent to speak for 3 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. BROWN. Madam President, I understand that the objection holds—that the ranking member of the Senate's Banking, Housing, and Urban Affairs Committee is essentially saying he is not willing to vote on all three of these—two of them right now, the other one a bit later. I mean, it could be right now. Again, we have tried to move on these nominations.

My friend from Pennsylvania launched a boycott of a committee that I have never seen or a boycott which actually, because of the 50–50 Senate, stopped us—literally stopped us—from holding a vote. He knows that, and he knows they have done everything they can to stop Lisa Cook's nomination—everything.

I would point out also that it is not exactly an accurate version of history. Judy Shelton, whom my colleague mentioned, would have gone down if everybody had been there. He forgets that part. It wasn't just one Republican Member who was sick; it was another Republican Member who was going to vote no, and he understood the array of people in both parties who were opposed to Ms. Shelton.

In understanding that, my colleague is saying let's not vote on any of the three of them—on either the two of them today and then Lisa Cook later. I understand the rules of the Senate, and that is the way it will be.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Executive Calendar No. 844, Lisa DeNell Cook, of Michigan, to be a Member of the Board of Governors of the Federal Reserve System for the unexpired term of fourteen years from February 1, 2010.

Charles E. Schumer, Mazie K. Hirono, Martin Heinrich, Tim Kaine, Jack Reed, Jacky Rosen, Ben Ray Luján, Christopher A. Coons, Alex Padilla, Sheldon Whitehouse, Sherrod Brown, Debbie Stabenow, Christopher Murphy, Patrick J. Leahy, John W. Hickenlooper, Tammy Baldwin, Angus S. King.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of Lisa DeNell Cook, of Michigan, to be a Member of the Board of Governors of the Federal Reserve System for the unexpired term of fourteen years from February 1, 2010, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The bill clerk called the roll.

Mr. DURBIN. I announce that the Senator from Connecticut (Mr. MURPHY) and the Senator from Oregon (Mr. WYDEN), are necessarily absent.

The yeas and nays resulted—yeas 47, nays 51, as follows:

[Rollcall Vote No. 137 Ex.]

YEAS—47

Baldwin	Heinrich	Peters
Bennet	Hickenlooper	Reed
Blumenthal	Hirono	Rosen
Booker	Kaine	Sanders
Brown	Kelly	Schatz
Cantwell	King	Shaheen
Cardin	Klobuchar	Sinema
Carper	Leahy	Smith
Casey	Luján	Stabenow
Coons	Manchin	Tester
Cortez Masto	Markey	Van Hollen
Duckworth	Menendez	Warner
Durbin	Merkley	Warnock
Feinstein	Murray	Warren
Gillibrand	Ossoff	Whitehouse
Hassan	Padilla	

NAYS—51

Barrasso	Graham	Portman
Blackburn	Grassley	Risch
Blunt	Hagerty	Romney
Boozman	Hawley	Rounds
Braun	Hoeven	Rubio
Burr	Hyde-Smith	Sasse
Capito	Inhofe	Schumer
Cassidy	Johnson	Scott (FL)
Collins	Kennedy	Scott (SC)
Cornyn	Lankford	Shelby
Cotton	Lee	Sullivan
Cramer	Lummis	Thune
Crapo	Marshall	Tillis
Cruz	McConnell	Toomey
Daines	Moran	Tuberville
Ernst	Murkowski	Wicker
Fischer	Paul	Young

NOT VOTING—2

Murphy	Wyden

(Mr. KAINE assumed the Chair.)

(Mr. HICKENLOOPER assumed the Chair.)

(Mr. KING assumed the Chair.)

The PRESIDING OFFICER (Mr. MARKEY). On this vote, the yeas are 47, the nays are 51.

The motion is rejected.

The majority leader.

MOTION TO RECONSIDER

Mr. SCHUMER. Mr. President, I enter a motion to reconsider the failed cloture vote.

The PRESIDING OFFICER. The motion is entered.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE CALENDAR

Mr. SCHUMER. Mr. President, I ask unanimous consent to withdraw the cloture motion with respect to the Bedoya nomination because we have some absences due to illness.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE CALENDAR

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Senate resume consideration of Executive Calendar No. 800.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Pennsylvania.

UNANIMOUS CONSENT REQUEST—ORDER OF PROCEDURE

Mr. TOOMEY. Mr. President, the chairman of the Banking Committee spoke before this vote and made the point that he wants to have a vote on all three Fed noms. I want to have a vote on all of the three Fed noms who have been under consideration and in the exchanges today. Republicans want to vote on all three.

We just voted on one of the three our Democratic colleagues had filed cloture on. The cloture ripened—it came due—and we had the vote. So the obvious thing to do here is to set up votes on the other two. The other two are Chairman Powell, who is currently the Chairman and has been nominated by President Biden to another term as Chairman, and Philip Jefferson, who has also been nominated by President Biden. I think he would be the second African-American man in, maybe, the history of the Fed. I am not positive of that, but I think so.

It makes a lot of sense to go with both of them because there is overwhelming support for them. In fact, in the committee, Chairman Powell, I think, was reported out successfully. I think there was only one vote in opposition to Chairman Powell. He was overwhelmingly supported in the committee, and I think, very likely, overwhelmingly would be supported on the floor. Mr. Jefferson was unanimously reported out of the committee. In other words, every single Republican and Democrat on the Banking Committee supported Philip Jefferson, and I am pretty sure still does, as I do.

My point is, I think we ought to go ahead and set up the votes. We don't have to have the votes right this minute, but we should set them up, and we should do it soon. So I have a unanimous consent request which is identical to the unanimous consent request that was just proposed by our chairman but for the reference to Lisa Cook. Since we just had that vote, obviously, it doesn't make sense to include her in the unanimous consent request.

Mr. President, I ask unanimous consent that at a time to be determined by the majority leader, following consultation with the Republican leader, prior to April 29, 2022, the Senate proceed to executive session to consider the following nominations: Calendar No. 807, Jerome H. Powell, and Calendar No. 809, Philip Nathan Jefferson; that there be 60 minutes for debate, equally divided in the usual form, on each nomination; that upon the use or yielding back of time, the Senate proceed to vote, without intervening action or debate, on the nominations in the order listed; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be in order; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action; and that the Senate then resume legislative session.

The PRESIDING OFFICER. Is there objection?

The Senator from Ohio.

Mr. BROWN. Mr. President, I reserve the right to object.

I was going to say it is disappointing—I guess ''appalling'' would be the better word—but it is not at all surprising because I have watched my colleagues do everything they can to slow and delay, even boycott actual votes en bloc. I have watched what they have done to these nominees and watched them continue to play politics with our economy.

They have been AWOL on the fight against inflation for months. They talk about it a whole lot, but they don't really have solutions. Yet they haven't abandoned their tax cuts for the corporations that are raising people's prices, as the Presiding Officer knows and has spoken passionately about the companies that are making more and more and more money all the time—the biggest profits in American history. These companies continue to raise prices because they can; but my colleagues, when they have had opportunities to get talented, qualified women on the job to fight inflation at the Fed, they have blocked them.

Today, about an hour and a half, 2 hours ago, we offered to vote, right now, to get Chair Powell and Dr. Philip Jefferson on the Fed Board immediately, and part of that motion was to delay the vote on Dr. Lisa Cook until all of our Members are here and healthy.

My colleague on the Banking, Housing, and Urban Affairs Committee understands that a number of Senate Democrats were sick today and couldn't come and vote. So we just said in our motion: Yes, let's go ahead and vote on Chair Powell—I am going to vote for him—and let's go ahead and vote on Dr. Jefferson. I am going to vote for him, too, and virtually all of my colleagues are, but let's just hold off on Dr. Cook because it is a close vote.

Every single Republican is voting against a very qualified and the first African-American woman to be on the Federal Reserve in its 109-year-old history, but Senator TOOMEY objected to those two votes and with the request to just delay Dr. Cook for a time until Members could come back. He would rather play politics. He continues to denigrate this distinguished nominee—again, the first Black woman to ever be nominated to the Fed. For some reason, the Republican members of my committee take great joy in trying to embarrass this nominee by saying she is not qualified.

Not qualified? Spelman College.

Not qualified? A Marshall Scholar.

Not qualified? A Truman Scholar.

Not qualified? Studied at Oxford.

Not qualified? Has a Ph.D. from Berkeley.

These are all some of the greatest schools in the country.

Not qualified? An economist at Michigan State University—one of the great State institutions in my part of the country. That is not qualified? Dr. Cook is a leading economist, with years of research and international experience in monetary policy on banking and financial crises.

Maybe this is what my colleagues don't like: She has seen how economic policy affects all kinds of different people in different parts of the country—from the rural South, where she grew up, to the industrial Midwest, where she built a career. These are two parts of the country that have been particularly affected in a negative way by globalization.

Again, she is a Spelman College alumna, a Marshall Scholar, a Truman Scholar; studied at Oxford; has a Ph.D. from Berkeley; is a tenured professor for economics and international relations in the State just north of me—in East Lansing, MI, at Michigan State University.

Yet, despite this extensive experience and her broad support, a small but excruciatingly loud—if I could use that adverb—minority, far outside the mainstream, has engaged in a smear campaign against Dr. Cook, the same sorts of attacks that Black Americans and women have faced for far too long.

I won't recite the litany of votes in my committee against very qualified women and very qualified African-American women. Senate Republicans buy into these attacks and in some cases are making these attacks.

These naysayers absurdly claim that Lisa Cook doesn't meet the standards for this position, standards that seem to apply only to certain nominees who happen to be women, particularly Black women.

It is sort of a game of Whac-A-Mole. Each time these assertions and these allegations are rebutted, a new, more untethered one seems to arise.

Dr. Cook would be—and I would assert. I don't just assert. I am certain she will be the first Black woman on the Federal Reserve in its more than 100-year history.

Think about that. This is a country that in my State—the ranking member's State—10 to 15 percent are African Americans. In this country, about 12 or 13 percent are Black. The Federal Reserve is made up of seven people. In 1913, it was founded. In 109 years, there has never been a Black woman. We have a chance to put an outstanding, very qualified Black woman on, and for some reason, they say no.

We are going to confirm her once our Members are healthy. There are a couple of Members who missed it. I believe it is two because of COVID. They are

going to come back, and we are going to confirm her. But for some reason, the ranking member of the committee would like to just embarrass Dr. Cook a little bit more.

First, they make all these unwarranted attacks. Then they block her in committee. Then they—well, they called a boycott to stop any committee action on another very qualified woman. And I might add, parenthetically, because the oil industry didn't like her.

One of the things I particularly like about Dr. Cook is she understands—and maybe this is the objection. They want a Federal Reserve that is more sort of corporate-dominated, corporate-oriented instead of putting workers at the center of our economy.

I know Senator MERKLEY has been one of the leaders here, always understanding that workers should be the center of this economy. That is what Dr. Cook will do in the Federal Reserve.

She understands the smalltown South. She understands the industrial Midwest. She has worked on the west coast. She has worked all over this country. She is international in the way she looks at things. But, fundamentally, she comes down to ordinary, middle-class people and those who aspire to the middle class.

She is ready to get to work to protect Americans from rising prices. We need her. We need all of President Biden's nominees on the job right now.

But, again, Senate Republicans could have earlier said yes—he didn't have to object—yes, we will go forward with Powell; we will go forward with Jefferson, but we want to embarrass Dr. Cook first. We want to show that we have the political muscle to defeat a really, really, really accomplished Black woman first.

That is what they decided, that scoring political points is more important than serving the public and bringing down prices.

So today, once again, a qualified Black woman is going to have to wait. A qualified Black woman is going to have to wait and wait and wait. We are going to confirm her, but she is going to have to wait a little bit longer until the two Members of the Senate who are sick can return.

The American people are going to have to wait, all because Senate Republicans have decided their political gamesmanship is more important than the constituents they are supposed to serve.

I, one last time, say: Make no mistake, we will confirm all of these Federal Reserve nominees. We could do it a lot faster if my colleagues wanted to cooperate.

I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Pennsylvania.

Mr. TOOMEY. Mr. President, I have to say it is sad and shameful to hear the chairman suggest, which he has done repeatedly now, including on the Senate floor, that there is some kind of racial bias against Black women that is a motivation for Republicans.

I would like to point out, for the record, the fact that on the Senate Banking Committee, every single Republican Senator has voted in favor of confirming five different Black women to different posts in just this Congress, President Biden's nominees who are Black women, and they include Cecilia Rouse, Nuria Fernandez, Adrianne Todman, Alexia Latortue, and Alanna McCargo. And yet we hear this preposterous notion that somehow the race of the candidate is what is going on here.

The fact is, we have a difference of opinion about what qualifies a person to serve on the Fed. And it is not some tiny, obscure minority that is concerned about Lisa Cook's qualifications to be fighting inflation when she refused to articulate any plan for dealing with inflation; it was the majority of the Senate who just voted. We just had the vote.

I should also point out that what is the difference here? The difference is, we want to vote, and you just heard the chairman block a vote on President Biden's nominee to Chair the Fed, Jerome Powell, and Professor Philip Jefferson. The chairman doesn't want votes on either of them, apparently, and certainly not on both of them; he just objected.

I would remind everyone that for months now, we have been trying to process the Fed nominees, and our Democratic colleagues refused. What we said was, there are five nominees. Only one of them we are going to object to processing. The reason was because of her radical views about using the supervisory powers of the Fed to allocate capital throughout the economy. That was a pretty radical idea. And guess what? The majority of the Senate agreed with us, and so she withdrew her candidacy.

We had offered for months now to process the other four. Earlier today, we were willing to do all three, but I think the record should show our Democratic colleagues refuse to allow us to have a vote today or tomorrow or this week—that is what we asked for; we used the exact same language the chairman had used earlier—on the Chairman of the Federal Reserve and Professor Philip Jefferson.

I yield the floor.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Mr. President, just to be clear, we did offer just an hour, maybe 2 hours ago—the ranking member and I have spoken for maybe 20 minutes, more or less.

Just to be clear, we offered in that unanimous consent request that we vote on both Chair Powell and Dr. Jefferson and simply delay the vote on Dr. Cook because several Members who wanted to vote for her were not here.

Instead, the ranking member decided he wanted to just, one more time, try to embarrass Dr. Cook. It is not really going to work because we are going to confirm her. But just to be clear, my motion, only 2 hours ago, was let's move forward on those two. That was rejected by Senator TOOMEY.

I yield the floor.

EXECUTIVE CALENDAR

The PRESIDING OFFICER. The clerk will report the nomination.

The legislative clerk read the nomination of Sherilyn Peace Garnett, of California, to be United States District Judge for the Central District of California.

The PRESIDING OFFICER. The Senator from Oregon.

TRIBUTE TO BJ WESTLUND

Mr. MERKLEY. Mr. President, a little over 10 years ago, BJ Westlund made his way from Bend, OR, here to our Nation's Capital to serve his fellow Oregonians as a correspondence assistant in my office.

Over the last decade, BJ moved up the ranks to legislative correspondent and legislative aide and then had the opportunity to move back to Oregon, move back to Bend, as my field representative.

He has done an incredible job in that capacity, but he is now, after a number of years in that key role, ready to start a new chapter in his career.

I know that I speak for everyone on my team, whether in Washington, DC, or in Oregon, when I say that we are thrilled to see BJ continue to grow and thrive in his career, but we are also very saddened to see him go.

Ask anyone on the team, past or present, about BJ, and there are a couple of things that might jump to mind: his signature sense of style for one. He loves to wear a good vest. Whether here in DC or in Oregon, it is hard for anyone to picture BJ without a good vest. And wherever BJ is, you can bet there is a tasty cold mix of iced tea and lemonade not far away.

And BJ has taken on the role of overseeing the Team Merkley candy desk while he was here in Washington, DC, making sure it was always stashed with really good candy.

Before we changed offices in Hart, the legislative team was split between two floors. BJ was upstairs working on environmental and energy issues and referred to that area as ''Eastern Oregon.'' But without fail, you could find a steady stream of folks going up the staircase to stop by BJ's desk and grab a piece of candy and chat. It was our version of the office water cooler and a way for BJ to help build a sense of community between all the team members.

That is the fourth thing that comes to mind when people think about BJ, is his sense of community, his welcoming presence, his ability to connect. It is what made him such an effective legislative staffer, working with groups on their priorities, advocating for critical appropriations funding. And for the

last 4 years, it is what made him such an incredible representative for our office throughout Central Oregon.

When asked to share her thoughts about BJ, one of our former team members who worked very closely with him over many years had this to say:

BJ is the calm in the storm. He is a steady, intelligent, caring, supportive teammate who cares beyond measure for his constituents. He has worked tirelessly to solve problems and bring Oregon tax dollars home to Central Oregon.

She continued:

Moving to his home office during COVID while continuing to be responsive to both teammates and constituents was a smooth transition because BJ handles challenges with aplomb.

And she closed by saying:

He is a treasure and just a wonderful human being.

And I couldn't say it any better.

BJ is the calm in the storm. BJ is a wonderful human being. BJ does work tirelessly to solve problems.

That is why, when the Bootleg fire struck Oregon last year, the third largest fire in our State's history, it was BJ who took charge of reaching out to and connecting with the communities impacted by the devastation. And it is a good thing he was, because community members, Tribal leaders, landowners, business owners, local electeds, agency leaders, relief agencies, and conservationists all looked to BJ to be there for them.

They knew that he would reach out. They knew he would listen to what they needed. They knew that he would do whatever it took to be there to respond to those challenges.

BJ has been the central driver on many major projects. One was getting funding for irrigation piping projects to help Oregon farmers get more water, while simultaneously putting more water back in our rivers, a positive environmental effect.

A second was helping an Oregonian Tribe find justice by finally repealing the fraudulent 1865 treaty that robbed them of their hunting and fishing rights.

A third was almost doubling the size of the Cascade-Siskiyou National Monument for future generations of Oregonians to enjoy, a monument that comes at the intersection of three critical mountain ranges and has flora and fauna found nowhere else in the world.

BJ is the kind of person who takes extra pride in drafting a customized letter to a student or making a one-off phone call to a constituent looking for help or advice because taking that small extra step can restore their faith and their trust in government.

But anyone who knows BJ wouldn't be surprised by any of this because they know how intensely he believes in public service. It is how he was raised. It is what he saw and learned growing up from his father, who was a good friend of mine, Ben Westlund, whom I had the privilege of serving with in the Oregon statehouse before he went on to serve as an Oregon senator and Oregon treasurer.

We lost Ben about 12 years ago, before BJ came to work on my team, but I know how proud he would be if here with us today to see all the great things that his son has done and will continue to do in service to the people of Oregon.

So, BJ, thank you for all you have done throughout your time on Team Merkley to help build a better world. The team and I wish you well as you begin the next chapter of your life, and we can't wait to see all of the great things that you will continue to do and to achieve in the years to come.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. SANDERS. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Vermont.

CORPORATE GREED

Mr. SANDERS. Mr. President, the American people are increasingly outraged by the level of corporate greed that we are seeing in this country. As you know, while prices are rapidly increasing, corporate profits are soaring: in the oil industry in what we pay at the gas pumps; in the food industry in what we pay in grocery stores; in housing and in so many other areas. Meanwhile, while the very, very rich get richer, because of inflation, many workers are now seeing a decline in their real wages.

During this pandemic, unbelievably—and I hope that everybody knows this—while workers have been struggling, the billionaire class, people who are worth at least $1 billion, have seen a $2 trillion increase in their wealth; and the level of income and wealth inequality today is the highest that it has been in over 100 years.

Two people—Mr. Musk and Mr. Bezos—now own more wealth than the bottom 42 percent of American society—over 130 million people. Two people own more wealth than the bottom 130 million Americans.

In the midst of all of this—inflation, inequality, corporate greed—working people have declared loudly and clearly that enough is enough. We must end the corporate greed that is hurting so many of our families. Workers are now fighting back in a way that I have not seen for a very long time to improve their standard of living, to get the wages and benefits they desperately need, and to get a seat at the negotiating table in a way that has not taken place in a very, very long time.

Workers throughout this country are now in the process of organizing unions at a grassroots level and are prepared to go out on strike when the greed of large corporations prevents them from receiving decent wages and decent benefits. During the last couple of years, I have personally been involved in a number of union-organizing campaigns and strikes throughout the country—from John Deere, Nabisco, and Kellogg's in the Midwest to the Warrior Met strike in Alabama—which continues today—to the Kroger grocery store strike in Colorado, and many others—and I have to say that I have been incredibly impressed by the solidarity and the courage of those workers who are prepared to stand up for justice against very powerful corporate interests.

As I am sure the Presiding Officer knows, a historic union victory was achieved nearly 1 month ago by Amazon workers in Staten Island. Amazon is one of the most profitable and one of the most powerful corporations in America. It is also one of the largest employers in our country, with close to a million workers.

We are talking, when we talk about Amazon, about a company that made a record-breaking $36 billion in profit last year—$36 billion. And that was a 453-percent increase from where it was before the pandemic. In other words, Amazon today is doing unbelievably well, and, in fact, it is doing better as a company than it has ever done before.

We are talking about a company that is owned by Mr. Jeff Bezos, the second wealthiest person in America, worth $170 billion. Let me repeat that. He is not the wealthiest; he is only the second wealthiest, worth $170 billion.

And here is something that is interesting and tells you about our corrupt political system and our regressive and unfair tax system. We are talking about a company—Amazon—that makes huge profits, that paid nothing—zero—in Federal income taxes in 2017 and 2018 and paid a lower tax rate, Federal tax rate, than a nurse or a firefighter last year, after making billions in profits. The average nurse, firefighter, or grocery store worker has an effective tax rate that is higher than what Amazon's was last year.

We are also talking about Mr. Bezos as an individual, who, in a given year, despite his extraordinary wealth, has also paid zero—nothing—in Federal taxes.

It is funny. On Sunday, I was in New York City, and I stopped in a McDonald's and was talking to one of the guys who works there. I asked him how much money he made. He makes $15 an hour. And then he came back and said: Well, they take out over a dollar in Federal taxes. So a guy working in McDonald's for $15 an hour probably has a higher tax rate than the second wealthiest person in this country.

That is what happens here in Washington when you are somebody like Mr. Bezos or some other billionaire and you make a lot of campaign contributions and you have an army of accountants and lawyers who help you avoid your tax responsibilities.

Mr. President, during the pandemic the last several years, Mr. Bezos, like

many other billionaires, did very, very well. In fact, since March of 2020, Mr. Bezos became $65 billion richer, in just a couple of years—huge increase in his wealth. So, Mr. President, if you ask me why people in this country are really, really angry, I will tell you, and that has a lot to do with the reality that, in the midst of the pandemic, in the midst of the massive economic dislocation that we have seen, we have lost tens of thousands of essential workers, people who live paycheck to paycheck, who had no choice. They had to go into a warehouse. They had to go into a grocery store. They had to drive a bus. They had to do all of the things that keep America going; and as a result of that, having to go to work, thousands of them contracted COVID and many thousands actually died. That is what happens when you are an ordinary worker in America living paycheck to paycheck. You don't have a choice. You have got to go to work to feed your family.

And during that same period, the billionaires and Mr. Bezos made out like bandits. Bezos himself became $65 billion richer. Jeff Bezos has enough money to own a $500 million yacht—$500 million yacht. He has enough money to afford a $175 million estate in Beverly Hills. He has enough money to afford a $78 million, 14-acre estate in Maui. He has enough money to own a $23 million mansion right here in Washington, DC, which has 25 bathrooms. So if you are in Washington, DC, and you have to go to the bathroom, you know someplace that you can possibly go. Mr. Bezos has enough money to buy a rocket ship to blast William Shatner to the edge of outer space.

Yet even though Mr. Bezos can afford all of these mansions and his $500 million yacht and his rocket ship, Mr. Bezos refuses to pay his workers at Amazon decent wages, decent benefits, or provide decent working conditions.

That, Mr. President, is what excessive greed is all about, and that is why the American people are saying enough is enough. The American people want action from the President; they want action from Congress; and we have got to deliver.

From the very beginning of the union-organizing effort until today, Mr. Bezos and his company have done everything possible—legal and illegal—to defeat the union effort. In fact, Amazon cannot even come to grips with the reality that workers in Staten Island won their union election fair and square. In order to stall the process out, Amazon's lawyers have appealed that election result to the NLRB. Their strategy, as is often the strategy of corporate interests confronting unions, is to use their incredible resources, their unending amount of money, to stall, stall, and stall.

In every way possible, Amazon is refusing to negotiate a fair first contract with the Amazon Labor Union. In fact, Amazon has been engaged in a massive attempt to undermine the union organizing drive in direct violation of labor laws and regulations.

Let's be clear. Amazon has already been penalized more than $75 million for breaking Federal discrimination and labor laws. Amazon is currently being sued by the National Labor Relations Board to reinstate a worker who was illegally fired for organizing a union. To date, there are currently 59—59—unfair labor cases against Amazon pending at the National Labor Relations Board. Several current and former employees at Amazon have alleged that the company has engaged in illegal harassment and discrimination based on race, gender, and sexual orientation.

Amazon misclassifies delivery drivers as independent contractors rather than employees in order to evade tax, wage, and benefit responsibilities.

Amazon's inadequate workplace safety policies also pose grave risks to workers. If you can believe it—and this really is quite unbelievable—according to a New York Times investigation, Amazon warehouses have a 150-percent turnover rate—150 percent a year. Workers come into the warehouses; they are worked as hard as humanly possible. And then after they are exhausted and physically broken down, they leave and then a whole new set of workers comes in and the process continues. Further, in some locations, their workplace injury rates are more than 2½ times the industry average.

I was in Staten Island on Sunday talking to some Amazon workers, and they tell me that injuries take place every single day, and many of them go unreported. Last December, six Amazon workers died after they were required to continue working during unsafe weather conditions in a warehouse that did not have appropriate safety facilities or policies.

It is abundantly clear that time and time again, Amazon has engaged in illegal anti-union activity. Amazon may be a large and profitable corporation, it may be owned by one of the wealthiest people in America, but it cannot be allowed to continue to violate the law and the rights of its employees. If working people are asked to obey the law, they do it, or they get punished. That same principle must be upheld for a large and powerful corporation like Amazon.

That is why this morning, I sent a letter to President Biden urging him to sign an Executive order to prohibit companies like Amazon that have violated labor laws from receiving Federal contracts paid for by the taxpayers of America.

Let me quote directly from the letter:

Dear President Biden, last September, I was delighted to hear you State that you ''intend to be the most pro-union President leading the most pro-union administration in American history.''

That is from President Biden.

At a time of massive income and wealth inequality, where too many workers are falling behind, your sentiment [Mr. President] is exactly right. We need to build the trade union movement in America and allow [more] workers to engage in collective bargaining.

One of the most effective ways for you [President Biden] to begin accomplishing this important goal would be to ensure that no corporation that is engaged in illegal anti-union activities receives a contract paid for by the taxpayers of the United States.

That would be enormously effective in curtailing the illegal activities of companies like Amazon. I then continued in saying in my letter to the President:

As you will recall [Mr. President], during the presidential campaign you promised to ''institute a multi-year federal debarment for all employers who illegally oppose unions'' and to ''ensure federal contracts only go to employers who sign neutrality agreements committing not to run anti-union campaigns.

That is what President Biden said as a candidate for President.

Then I say in my letter:

That campaign promise was exactly right. Today, I am asking you to fulfill that promise . . . As you may know, Amazon, one of the largest and most profitable corporations in America, is the poster child as to why this anti-union busting Executive Order is needed now more than ever.

Mr. President, I ask unanimous consent that the full text of the letter be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

APRIL 26, 2022.

President JOSEPH R. BIDEN,
The White House,
Washington, DC.

DEAR PRESIDENT BIDEN: Last September, I was delighted to hear you state that you ''intend to be the most pro-union President leading the most pro-union administration in American history.''

At a time of massive income and wealth inequality, where too many workers are falling behind, your sentiment is exactly right. We need to build the trade union movement in America and allow more workers to engage in collective bargaining.

One of the most effective ways for you to begin accomplishing this important goal would be to ensure that no corporation that is engaged in illegal anti-union activities receives a contract paid for by the taxpayers of the United States.

As you will recall, during the presidential campaign you promised to ''institute a multi-year federal debarment for all employers who illegally oppose unions'' and to ''ensure federal contracts only go to employers who sign neutrality agreements committing not to run anti-union campaigns.'' That campaign promise was exactly right. Today, I am asking you to fulfill that promise.

The essence of your plan for strengthening union organizing was to make sure that federal dollars do not flow into the hands of unscrupulous employers who engage in union-busting, participate in wage theft, or violate labor law.

In order to implement that plan, I urge you to sign an Executive Order preventing companies that violate federal labor laws from contracting with the federal government.

As you may know, Amazon, one of the largest and most profitable corporations in America, is the poster child as to why this anti-union busting Executive Order is needed now more than ever.

According to filings with the U.S. Department of Labor (DOL), Amazon spent over $4 million on consultants last year alone in an effort to prevent its warehouses from unionizing. As part of their illegal anti-union activity, they forced workers to attend closed-door anti-union meetings and discriminated against pro-union workers. After workers in Staten Island, New York voted overwhelmingly to join the independent Amazon Labor Union, Amazon has not only refused to negotiate a first contract with them but refuses to recognize that the union exists even though the National Labor Relations Board (NLRB) certified their union victory.

Amazon has been penalized more than $75 million for breaking federal discrimination and wage laws and is currently being sued by the NLRB to reinstate a worker who was illegally fired for organizing a union. The NLRB has found multiple instances of illegal opposition to unions by Amazon, and there are currently 59 open Unfair Labor Practice cases pending before the NLRB. Numerous current and former employees have alleged that Amazon engaged in illegal harassment and discrimination based on race, gender, and sexual orientation. Amazon misclassifies delivery drivers as independent contractors rather than employees to evade tax, wage, and benefit responsibilities. Amazon's inadequate workplace safety policies also pose grave risks to workers. In some cases, their workplace injury rates are more than 2.5 times the industry average. Last December, six Amazon workers died after they were required to continue working during unsafe weather conditions in a warehouse that did not have appropriate safety facilities or policies.

Mr. President: It is abundantly clear that time and time again Amazon has engaged in illegal anti-union activity. Amazon may be a large and profitable corporation, it may be owned by one of the wealthiest people in America, but it cannot be allowed to continue to violate the law and the rights of its employees. The time has come to tell Amazon that if it wants another federal contract, it must obey the law.

Since 2004, Amazon has received thousands of federal contracts worth billions of dollars. The Washington Post, also owned by Mr. Bezos, reported that Amazon is in line to receive a cloud contract from the National Security Agency worth up to $10 billion—a contract that it should not receive as long as it continues to violate labor laws. Another Bezos-owned company, Blue Origin, may also receive a contract from NASA worth up to $10 billion to fly a spaceship to the moon after more than 20 current and former employees alleged that this company repeatedly discriminated against workers and did not adhere to safety protocols.

Mr. President: Taxpayer dollars should not go to companies like Amazon and multi-billionaires like Jeff Bezos who repeatedly break the law.

And let's be clear, it is not just Amazon and Blue Origin. According to the U.S. Government Accountability Office, federal contractors were required to pay nearly $225 million in back wages to workers for Service Contract Act violations between 2014 and 2019. An investigation completed by the Senate Committee on Health, Education, Labor, and Pensions found that nearly 30 percent of the top 200 violators of workplace safety and wage theft were government contractors.

The federal government spends more than $600 billion each year on contracts to thousands of companies who employ more than 4 million contract workers. These workers, just like every worker in America, deserve fair pay and benefits, safe workplaces, and the right to a union.

I urge you to ban companies who break federal labor laws from receiving federal contracts.

Sincerely,

BERNARD SANDERS,
U.S. Senator.

Mr. SANDERS. Mr. President, President Biden, more than any other President I can recall, has talked over and over again about being pro-union. I appreciate very much what the President has said, and I know him to be absolutely sincere when he says it. But just this afternoon, in an article published in POLITICO, an article that dealt with my letter to the President, this is what the article said:

> A White House official said that the President ''has stated consistently and firmly that every worker in every state must have a free and fair choice to join a union and the right to bargain collectively with their employer.'' The official, who declined to be named, added that Biden believes ''there should be no intimidation, no coercion, no threats, and no anti-union propaganda from employers while workers are making that vitally important choice about a union.''

That is a statement from a White House spokesman this afternoon.

What I would say is that what this official said that President Biden doesn't want is precisely what is happening in Amazon right now. There is intimidation. There is coercion. There are threats and anti-union propaganda. In fact, what President Biden says should not be happening is precisely what is happening at Amazon.

Therefore, it is my view that the time for talk is over. The time for action is now. Taxpayer dollars should not go to companies like Amazon and multibillionaires like Jeff Bezos who repeatedly break the law. No government—not the Federal Government, not the State government, and not the city government—should be handing out corporate welfare to union busters and labor law violators.

Today, I say to President Biden: You promised to prevent union busters like Amazon from receiving lucrative contracts from the Federal Government. Keep that promise.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. LEE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING ORRIN G. HATCH

Mr. LEE. Mr. President, Orrin G. Hatch will be remembered for many things. His 42 years of service in this body are marked by successes; historic and prolific legislation; and, of course, statesmanship. He served longer as a U.S. Senator than any other in the history of the State of Utah or in the history of the Republican Party.

At his retirement, he had passed more bills into law than any other legislator alive, an astounding 750. While the record of his service is remarkable and memorable, I invite the Senate and the Nation to remember Senator Orrin Hatch by the things that he remembered every day, here in the Senate and in his private life.

Every day upon entering his Senate office, Orrin Hatch would look upon a prominently hung painting depicting his Utah pioneer grandfather and great-grandfather as they were fording a stream on horseback. This image, like so much else in his life, was a reminder of Senator Hatch's pioneer legacy, his ancestry, and destiny.

In Utah, there is almost no more honorable title than that of pioneer. In the particular parlance of our State, a pioneer is not merely someone who goes where others haven't gone before. No, a pioneer looks toward the future without forgetting who he or she is. A pioneer, like those who settled the Salt Lake Valley and much of the western United States, does so not out of conquest or in search of glory; a pioneer goes and works out of duty and responsibility and faith.

Orrin Hatch always remembered his roots. Raised the son of a mechanical laborer, he grew up in a family of little means. Orrin was one of nine children raised in a cramped Depression-era home without indoor plumbing. Two of Orrin's siblings died young. Another, his older brother Jesse, gave the ultimate sacrifice as a turret gunner flying over Austria mere months before the Allied victory in Europe.

Orrin always remembered this example of work and sacrifice from his parents and from his brother Jesse. The sense of duty to God, family, and Nation was the primary driver throughout his life.

He served a 2-year mission for the Church of Jesus Christ of Latter-day Saints in Ohio. He became the first in his family to graduate from college, attending Brigham Young University. He met Elaine Hansen, and the couple married in 1957. They later returned to Pittsburgh, PA, and Orrin completed law school at the University of Pittsburgh School of Law, while living in what had previously served as a chicken coop in his parents' backyard. He worked as a metalworker and as a janitor to provide for his family while attending law school.

Never one to make much of a fuss about it, Orrin Hatch just did the work that was expected of him, and he did it remarkably well. He knew that life was not easy and that he couldn't expect handouts. He developed the reputation of a fighter, and while a dedicated friend with an inviting laugh, he would never forget the lessons he had learned young while in the amateur boxing ring.

After moving back to Utah and running a successful law practice in Salt Lake City, Orrin ran for the Senate to fight for the moral fiber and everyday work ethic of Americans that he felt was not being represented adequately in Washington, DC. He won, and he set out to defend family values and constitutional principles.

He would remember to do so throughout his career, pioneering the Hatch

Amendment, a proposed constitutional amendment that sought to correct the erroneous claim that there is a constitutional right to abortion, one that prohibits States from protecting unborn human life, and steadfastly advocating for a balanced budget amendment to the U.S. Constitution.

Orrin Hatch defended life, religious liberty, economic responsibility, and personal freedom throughout his entire service in the U.S. Senate. His 750 proposals that became law cover everything from welfare reform to regulatory restructuring, to laws adjusting the Federal judiciary, to hallmark tax cuts. Hatch's tenure in the Senate was marked by his chairmanship of the Health, Education, Labor, and Pensions Committee, the Committee on the Judiciary, and the Finance Committee, before serving as President Pro Tempore.

Senator Hatch helped rein in activist Federal judges and reformed the entire Federal judiciary, and has helped restore the true meaning of the Constitution as applied and interpreted by our courts.

Senator Hatch played a prime role in the nomination of every Supreme Court Justice for decades. He defended the Court and the honor of Justices serving and presenting themselves with different judicial philosophies.

Beyond his countless political accomplishments, Orrin Hatch was a dedicated father, grandfather, great-grandfather, and man of faith. He always remembered the most important things in life. He composed countless songs of praise and of patriotism. He served as a volunteer leader in his church congregations and in his communities. He founded the Orrin G. Hatch Foundation to carry on and remember his work and advocacy for collegiality and bipartisanship after his retirement from the Senate.

Orrin Hatch always remembered Utah. On weekends, you could find him at the grocery store, in his church congregation, rubbing elbows with people he knew and loved. He would talk about the politics of the day but also the news affecting communities and families he cared for. Those who knew him felt the care and the interest that he had.

After I had served as his Senate page, as a high school student, there were just a couple of photos on my wall as a teenager. One was of Karl Malone in his Utah Jazz jersey and another was a photo of me with Senator Orrin Hatch, one of my prized possessions.

Later, when I was serving as a missionary along the U.S.-Mexico border, on the Texas side, Senator Hatch sent me a note, along with a $10 check, suggesting that I use it to go get a good lunch. I cherished the note and never could cash the check. You see, the memory and the memento were worth so much more than the lunch it could buy. I still have that check. It is a prized possession.

Orrin Hatch also remembered to work. He would come to the Senate early and stay late. He would think years ahead and persistently, methodically, pursue his plans. He would take the time to build coalitions behind ideas and bring about needed reforms. Senator Hatch knew that the Senate was designed to be the cooling saucer, where ideas would steep and percolate, often over the course of years and even decades.

Yet Orrin always remembered the people behind the politics. He was a mentor and a friend to Senators from both sides of the aisle, and he built deep friendships with people of all political backgrounds. He cherished a friendship with Senator Ted Kennedy and called the late Justice Ruth Bader Ginsburg a dear friend.

He instilled his hallmark good humor and sense of duty on the newer Members of the Senate. I was one of them. He greeted and accepted me warmly—mentioning only a few times over the years the fact that I had, decades previously, served as his Senate page.

He was a force for collegiality and cooperation, and while he remained dedicated to the principles and people who brought him to the Senate, he would work with anyone and everyone to get the job done.

Orrin Hatch was a giant of the Senate and a veritable pillar in Utah. His influence, his hearty laugh, and powerful advice are missed by us here in the Senate and by millions in Utah. I know I speak for the entire Senate in sending our deepest condolences and warmest appreciation to Elaine and to their children—Brent, Marcia, Scott, Kimberly, Alysa, and Jess, as well as their grandchildren and great-grandchildren.

The gift of Senator Hatch's life of service has made our State and our Nation better.

As I said, there is perhaps no more noble title in Utah than that of pioneer. Orrin Hatch was a pioneer, through and through—not just the descendant of pioneers but a pioneer in his own right. He followed in the footsteps of his forebearers, and he left a legacy of dedication, of service, and of truth.

I commend his memory to the history of our Republic, in the words of a beloved hymn fittingly entitled ''They the Builders of the Nation.'' Here is how it goes:

They, the builders of the nation,
Blazing trails along the way;
Stepping-stones for generations
Were their deeds of every day.
Building new and firm foundations,
Pushing on the wild frontier,
Forging onward, ever onward,
Blessed, honored Pioneer!

I bid my friend Senator Orrin Hatch onward, ever onward. May we as a nation forever remember his legacy is my prayer.

The PRESIDING OFFICER (Mr. PETERS). The Senator from Tennessee.

BIDEN ADMINISTRATION

Mrs. BLACKBURN. Mr. President, from the second that they wake up in the morning to the moment they put their heads on the pillow at night, the American people are burning through cash. And, as I have spent the last 2 weeks talking with Tennesseans, talking with people in the real world, this is a sentiment that they continue to talk about.

Now, they know inflation is real. It wasn't temporary. It wasn't something that was just a problem for the rich. It is a problem that hits every single individual, and the spin that is coming out of the White House really is not resonating with hard-working taxpayers anymore.

When I am out and about in Tennessee, people are talking about inflation, the border, and the sense of despair that they see taking over their communities. And they cannot get over the lengths to which this White House and this administration have gone to try to convince them that everything is OK, you don't have anything to worry about, and things are better than they have ever been.

They can't believe it. They can't believe that this administration is living in the land of denial, because they know that this message doesn't add up with the reality of their lives, and they have spent 16 months digging themselves out from under massive gas and grocery bills. Every time they fill up the tank or they fill up the grocery cart, they know that it is probably more than 8 percent inflation. Every time they go to the hardware store, they see it. When they are buying a gallon of paint or fertilizer for their garden, they see it. And the few discretionary dollars they used to allow themselves for some new clothes or the occasional food delivery now go to essentials, and, even then, they still are making tough choices. As I said, from the second they wake up in the morning to the moment their heads hit the pillow at night, the American people are burning through cash almost as fast as Joe Biden and the Democrats are burning through our taxpayer dollars.

The Biden administration might not take this seriously. They may say: We will just go print more money.

Look at the amount of debt they have run up. Tennesseans do take this issue seriously, and at this point, they laugh at the alternate reality coming from DC, and they know that the ''Putin price hike'' is something that is so divorced from reality.

It wasn't enough for Joe Biden to abandon his responsibilities. He had to take the extra step of exploiting the more than 2,500 innocent civilians Vladimir Putin has murdered in Ukraine. It is just disgusting. But that is the Democrats' playbook—isn't it?—never let a crisis go to waste; pick up words that you can use in your spin.

If the White House had stopped to think about what American taxpayers do when they are broke, when they have gotten to the end of their money before they get to the end of their month, when they have debt rolling

over them, then the White House might have realized that now is not the time to spend more money on programs that the taxpayers do not want.

Now, every Tennessean who has good common sense—we have got hundreds of thousands of them—they know that nobody would commit to a self-destructive agenda just because they thought they could force somebody else to go pick up the tab and pay for it.

It doesn't make sense, but that is what this administration is doing, and I think this is one of those things that, in their playbook, they think sounds great. But with the American people, this is going to backfire.

And through all of this, the President has shown the people who he is and what priorities really matter to him. Instead of exercising some much needed self-control, he decided to beg for the Green New Deal, wasteful social spending, and an election takeover. His allies in Congress have even come back to Washington ready to make a deal with the devil to resurrect his ''Build Back Broke'' agenda.

In the interest of bipartisanship, I would like to offer some thoughts to my Democratic colleagues. Next time that you go home, go over to the grocery store and ask a busy mom who is holding a shopping list in one hand and digital coupons on her phone in the other just how they are managing through this inflation crisis.

Ask them: Do you think it is stuck at 8 percent inflation? Do you think it is closer to 15 percent inflation?

Then, follow their advice, because I can guarantee you that they will choose to give you an earful. They are about fed up.

There are thousands of moms and grandmoms who know what they are doing, and, more importantly, they know how they are going to spend every single penny that they have itemized in their budget for groceries, for gas, for the summer garden. They know how they are going to spend that money.

They wish Washington would be as careful with taxpayer money as they are being with their hard-earned dollars.

It really makes them shake their heads when they hear that the caretakers of the most powerful Nation in the world have no vision for the future and no plan for how to get us to a vision.

All that this administration and the White House and the Democrats—who, by the way, are in charge of all the government here in Washington, DC—all they have is an agenda. They have got a to-do list. They are wanting to check the boxes, and that agenda is heavy on spending and light on everything else that matters to the American people.

And, by the way, all that heavy spending is not Federal Government money, mind you. It is money that is coming out of the pockets of hard-working taxpayers—every penny of it.

We know border security isn't on the Biden administration's list of priorities. It is not on the to-do list. It is not on the thinking-about-it list.

In the alternate reality that this White House is operating in, the only immigration policy that matters is guaranteeing an open border—the sooner they can get it, the better. They are all about it. We all know how well that policy has worked out so far.

On behalf of a lot of Tennesseans back home, I would like to inject a little reality into this conversation also.

Since day one of this administration, Joe Biden has done everything in his power to sabotage the Border Patrol and local law enforcement officials. His open borders rhetoric invited massive caravans of migrants to overwhelm the border. And just when we thought things couldn't get worse, he turned his back on President Trump's successful ''Remain in Mexico'' program. As a result, last month, encounters along our southern border were up 33 percent. That is right—up 33 percent in 1 month.

CBP regularly seizes millions of dollars' worth of meth, fentanyl, and heroin that would have otherwise landed in ''Small Town, USA.'' And, now, President Biden wants to abandon title 42, which is the last best defense we have against this wave of illegal immigration. We already know that if he goes through with this, he will lose control of the border to the cartels.

The Border Patrol estimates that 18,000 people a day will try to make it across the border. Now, currently, there are 6,000 people a day. Those are record numbers. Think of what is going to happen if 18,000 people a day are rushing our southern border.

Now, let me give you a little perspective on this. Tennessee has 345 towns and cities. So we checked to see how many of these towns and cities are 18,000 people or less. Well, 90 percent of the towns and cities in the State of Tennessee are 18,000 people—18,000 residents or fewer than that.

Now, think about that. It is like a Tennessee town—that number of people coming across the border every day.

I would think that, you know, that it is the same thing, Mr. President, in Michigan. I don't know the number of towns and cities you have, but I would imagine that the majority of those are there also, 18,000 or fewer residents.

Think about this impact. How many days can you do that? How many weeks? How many years before you completely disrupt what is going on in your towns, in your State?

I have to ask you: What is so compassionate about subjecting 18,000 people a day—18,000—to the risk of exploitation by a drug cartel? And what is so compassionate about standing by while 18,000 people a day risk death by exposure in the desert? Is sticking to your talking points worth the lives of National Guardsmen like Bishop Evans, who drowned last week while trying to rescue migrants crossing the Rio Grande River?

The decision to abandon title 42 is dangerous, and, frankly, anyone who supports it should be ashamed of themselves.

Last month, I joined several of my colleagues on a letter to Chairman DURBIN, asking him to allow the Judiciary Committee to get some answers about how the administration plans to deal with this. The committee must use its oversight authority to summon Secretary Mayorkas for a hearing so he can explain his plan to prevent chaos on the border.

If that plan exists, we don't know about it. But, certainly, tripling the number of people per day at the southern border is going to create a chaotic situation.

I want to make it clear that this use of our oversight authority is the bare minimum, and, as of now, Chairman DURBIN has not indicated that he is willing to meet this very minimum bar.

We must not allow the administration to hide behind their title 42 talking points. The American people won't stand for it because they know that until Joe Biden secures the border, until he puts back in place the ''Remain in Mexico'' policy, until he keeps title 42, every town will be a border town and every State will be a border State.

When I am in Tennessee and talking with Tennesseans, what we know is that they are like a lot of people all across this country. They don't trust their government to have their interests at heart. They don't take the actions of their government seriously because in the Democratic-controlled government—all branches here in DC—they don't seem to take their jobs seriously. They are certainly not looking out for the American people. They are not taking actions that are going to reduce the cost of a gallon of gas at the pump or the cost of food at the grocery store or the cost of paint, the cost of fertilizer, the cost of tools—the list goes on and on.

But what they do believe is that it is time for this administration to make inflation, to make border security, to make the sovereignty of this Nation a priority and to begin to build a vision for this Nation, not just a to-do list.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Ms. HASSAN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE CALENDAR

Ms. HASSAN. Mr. President, I ask unanimous consent to withdraw the cloture motion with respect to the Gomez nomination.

The PRESIDING OFFICER. Without objection, it is so ordered.

LEGISLATIVE SESSION

MORNING BUSINESS

Ms. HASSAN. Mr. President, I ask unanimous consent that the Senate proceed to legislative session and be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

VOTE EXPLANATION

Mr. PETERS. Mr. President, while returning with Senate colleagues from a delegation trip to Europe to further strengthen the trans-Atlantic alliance in the context of Vladimir Putin's war against the Ukrainian people, our plane was grounded by mechanical failure. As a result, I was unable to attend vote No. 135 on the motion to invoke cloture on Executive Calendar No. 808, Lael Brainard, of the District of Columbia, to be Vice Chairman of the Board of Governors of the Federal Reserve System.

I would have voted yea on the motion to invoke cloture had I been able to attend the vote.

While returning with Senate colleagues from a delegation trip to Europe to further strengthen the trans-Atlantic alliance in the context of Vladimir Putin's war against the Ukrainian people, our plane was grounded by mechanical failure. As a result, I was unable to attend today's vote on No. 136 on confirmation of Executive Calendar No. 808, Lael Brainard, of the District of Columbia, to Vice Chairman of the Board of Governors of the Federal Reserve System.

I would have voted yea on the confirmation had I been able to attend the vote.

REMEMBERING DR. JON WEFALD

Mr. MARSHALL. Mr. President, I rise today to memorialize and honor one of my great friends and mentor, our former Kansas State University President Dr. Jon Wefald who passed away on April 16 after a long and illustrious life serving higher education and the State of Kansas. His work at K-State brought the university to great heights, and his realized dreams will live on forever in K-State lore.

My wife and I first met Dr. Wefald at a student recruitment dinner in Great Bend we were cohosting, where his energy was contagious and palpable. He was a young university president with a vision and a purpose we all wanted to be part of. He made every student in the room know they were each important, and K-State would help them realize their dreams. We remained friends up until the time of his passing with regular communications and advice. I will miss him.

Dr. Wefald served as K-State's 12th president from 1986 to 2009 and is credited with growing the university into a top 10 land-grant university. During his 23 years of leadership, the university added 2.2 million square feet of new buildings. He also helped philanthropy increase from $6 million a year to nearly $100 million annually.

Under his leadership, K-State quickly became one of the Nation's distinguished research and doctoral universities. Enrollment increased from 16,000 students to more than 23,000 under his tenure, and with the growth in students came a monumental growth in research funding from $18 million annually to nearly $134 million. Both of these increases have led to astounding innovations from all parts of the university. Last, but not least of his achievements, Dr. Wefald was also in charge of hiring the iconic football coach Bill Snyder, which led to the greatest turnaround in NCAA sports history.

We all mourn the loss of this beloved K-State president who shaped countless students' and faculty members' lives. His leadership, passion, and dedication to K-State and the great State of Kansas will never be forgotten. My thoughts and prayers go out to his family, friends, and K-State family. I ask my colleagues to join me in recognizing the wonderful career and life of Mr. Jon Wefald. A true inspiration to the State of Kansas, fighting ever fighting for a wildcat victory.

TRIBUTE TO JERRY FARLEY

Mr. MARSHALL. Mr. President, I rise today to honor and recognize Jerry Farley, the president of Washburn University. Dr. Farley announced his plans to retire and transition to a president emeritus role, where he and his signature bow tie will remain a part of fundraising and international student recruitment.

Farley was born in Oklahoma, but moved to Topeka in 1997 after spending 25 years in various administrative roles in Oklahoma, including the role of vice president at Oklahoma University. On July 1, 1997, Farley became Washburn University's 16th president. During his leadership, Farley's vision to change Washburn from a commuter school to one that prioritized campus life has become a reality. With his wife Susan serving by his side through the years, they have helped influence and nurture student to work hard and leave the university as leaders.

During his tenure, Washburn University added several buildings to its campus, including the $20 million Living Learning Center residential hall, as well as the addition of Washburn Tech, the Kansas Bureau of Investigation Laboratory, and a statue honoring one of the Ichobods' favorite sons, the late great Senator Bob Dole.

In addition to his hard work and dedication to help build the reputation of the University, Dr. Farley always did an outstanding job of representing the State of Kansas and Washburn University as a whole. His leadership does not go unnoticed. As we celebrate his legacy, I ask my colleagues to join me in recognizing the wonderful career of Dr. Jerry Farley and wish him and Susan nothing but joy and happiness in his next chapter of life.

TRIBUTE TO CALEB SMITH

Mr. MARSHALL. Mr. President, I rise today to honor and recognize Caleb Smith of Newton, KS. Caleb is the recipient of the 2021–2022 Kansas principal of the year.

Caleb has shown outstanding leadership at Newton High School in order to earn this award. His passion for the students, working with the staff, and creative ideas to enhance technology at the school all contributed to this great success. Caleb found out about this honor Monday, April 11, following a school scavenger hunt where he walked all over the campus to find his students presenting the award to him. Superintendent Fred Van Ranken celebrated Caleb saying, ''Mr. Smith has done an outstanding job of trying to create an amazing culture at Newton High School and within the Newton communities, and it shows. I am so happy for Caleb to be recognized at the state level for what he and his team are doing at USD 373.''

This is an honor that Caleb should be immensely proud of. After reading through countless quotes from fellow teachers and Newton students, it is clear that Caleb has a true passion—and immense talent—for teaching our future leaders. This award is a testament to all of his hard work in providing outstanding education for all students that walk through his classroom. I am ecstatic to hear about the impact this great Kansan is having on our future generations. I ask my colleagues to join me in recognizing Caleb Smith of Newton, KS.

ADDITIONAL STATEMENTS

TRIBUTE TO FARHAT QAZI

● Ms. STABENOW. Mr. President, I rise today to honor a Michigander who is working every day to build bridges and bring people together at a very important time for our country and our world.

Farhat Qazi of West Bloomfield is an entrepreneur and a philanthropist. She is also a woman of deep faith who believes that religion can be a powerful force for peace and unity in the world.

In pursuit of this noble goal, Qazi created Children of Abraham Day, which was recognized in Michigan on December 4, 2020. The day is an opportunity for Jews, Muslims, and Christians to celebrate their shared origins as descendants of the Prophet Abraham; their reverence for the city of Jerusalem; and their common beliefs in love, charity, and moral behavior.

Far too often throughout history, religious differences have led to strife,

conflict, and war. By focusing on shared backgrounds and beliefs—and rededicating ourselves to religious understanding and tolerance—Qazi believes that people of diverse faiths can build a stronger, more peaceful, and more prosperous world. I couldn't agree with her more.

''I believe teaching our children the common origins and shared heritage of the Abrahamic faiths is key to future global unity, peace, and harmony,'' said Qazi. ''Children of Abraham Day is about showing how we can come together, celebrate, and appreciate a common bond.''

Farhat Qazi's belief in the power of Children of Abraham Day—and her tireless work to bring people of diverse religions together—deserves to be commended. It is my hope and prayer that this seed of understanding she has planted will continue to blossom and grow.●

MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Mr. Swann, one of his secretaries.

EXECUTIVE MESSAGE REFERRED

In executive session the Presiding Officer laid before the Senate a message from the President of the United States submitting a nomination which was referred to the Committee on Foreign Relations.

(The message received today is printed at the end of the Senate proceedings.)

MESSAGE FROM THE HOUSE

At 2:27 p.m., a message from the House of Representatives delivered by Mrs. Alli, one of its reading clerks, announced that pursuant to 20 U.S.C. 4303, and the order of the House of January 4, 2021, the Speaker appoints the following members of the House of Representatives to the Board of Trustees of Gallaudet University: Ms. MCCOLLUM of Minnesota and Mr. BUCSHON of Indiana.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

S. 4088. A bill to prohibit the Secretary of Health and Human Services from lessening the stringency of, and to prohibit the Secretary of Homeland Security from ceasing or lessening implementation of, the COVID–19 border health provisions through the end of the COVID–19 pandemic, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–3712. A communication from the Director, Office of Management and Budget, Executive Office of the President, transmitting, pursuant to law, a report entitled ''OMB Sequestration Report to Congress for Fiscal Year 2023''; to the Special Committee on Aging; Agriculture, Nutrition, and Forestry; Appropriations; Armed Services; Banking, Housing, and Urban Affairs; the Budget; Commerce, Science, and Transportation; Energy and Natural Resources; Environment and Public Works; Select Committee on Ethics; Finance; Foreign Relations; Health, Education, Labor, and Pensions; Homeland Security and Governmental Affairs; Indian Affairs; Select Committee on Intelligence; Joint Committee on Taxation; the Judiciary; Rules and Administration; Small Business and Entrepreneurship; and Veterans' Affairs.

EC–3713. A communication from the President of the United States, transmitting, pursuant to law, the Budget of the United States Government for Fiscal Year 2023; referred jointly, pursuant to the order of January 30, 1975, as modified by the order of April 11, 1986; to the Committees on the Budget; and Appropriations.

EC–3714. A communication from the President of the United States, transmitting, pursuant to law, the Economic Report of the President together with the annual report of the Council of Economic Advisors; to the Joint Economic Committee.

EC–3715. A communication from the Assistant to the Director of the Office of Regulatory Affairs and Collaborative Action, Bureau of Indian Affairs, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Civil Penalties Inflation Adjustments; Annual Adjustments'' (RIN1076–AF70) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Indian Affairs.

EC–3716. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Bacillus subtilis strain AFS032321; Exemption from the Requirement of a Tolerance'' (FRL No. 8920–01–OCSPP) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3717. A communication from the Administrator, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''National Organic Program; Origin of Livestock'' ((RIN0581–AD89) (Docket No. AMS–NOP–11–0009)) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3718. A communication from the Alternate Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: New Qualifying County-Lithuania (DFARS Case 2022–D012)'' (RIN0750–AL48) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Armed Services.

EC–3719. A communication from the Alternate Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Evaluation Factor for Employing or Subcontracting with Members of the Selected Reserve (DFARS Case 2021–D013)'' (RIN0750–AL48) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Armed Services.

EC–3720. A communication from the Alternate Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Postaward Debriefings (DFARS Case 2018–D009)'' (RIN0750–AJ73) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Armed Services.

EC–3721. A communication from the Under Secretary of Defense (Comptroller), transmitting, pursuant to law, a report entitled ''Department of Defense Annual Report on Audit for Fiscal Year 2021''; to the Committee on Armed Services.

EC–3722. A communication from the President of the United States, transmitting, pursuant to law, a report of the continuation of the national emergency with respect to specified harmful activities of the Government of the Russian Federation that was originally declared in Executive Order 14024 of April 15, 2021; to the Committee on Banking, Housing, and Urban Affairs.

EC–3723. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency that was declared in Executive Order 14024 with respect to specified harmful foreign activities of the Government of the Russian Federation; to the Committee on Banking, Housing, and Urban Affairs.

EC–3724. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency that was declared in Executive Order 13611 with respect to Yemen; to the Committee on Banking, Housing, and Urban Affairs.

EC–3725. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency that was declared in Executive Order 14024 with respect to the Central African Republic; to the Committee on Banking, Housing, and Urban Affairs.

EC–3726. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency that was declared in Executive Order 13338 with respect to Syria; to the Committee on Banking, Housing, and Urban Affairs.

EC–3727. A communication from the Chief Counsel, Federal Emergency Management Agency, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''National Flood Insurance Program: Removal of Best's Financial Size Category From Write-Your-Own Participation Criteria'' (RIN1660–AB13) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Banking, Housing, and Urban Affairs.

EC–3728. A communication from the Congressional Affairs Director, Export-Import Bank of the United States, transmitting, pursuant to law, the report of a vacancy in the position of First Vice President, Export-Import Bank of the United States, received in the Office of the President of the Senate on April 6, 2022; to the Committee on Banking, Housing, and Urban Affairs.

EC–3729. A communication from the Federal Register Liaison Officer, Bureau of Safety and Environmental Enforcement, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Oil and Gas and Sulfur Operations in the Outer Continental Shelf—Adjustment of Service Fees'' (RIN1014–AA54) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Energy and Natural Resources.

EC–3730. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the

report of a rule entitled ''Air Plan Approval; Wisconsin; Redesignation of the Wisconsin Portion of the Chicago-Naperville, Illinois-Indiana-Wisconsin Area to Attainment of the 2008 Ozone Standard'' (FRL No. 9523–02–R5) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Environment and Public Works.

EC–3731. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Montana; 2015 Ozone NAAQS Interstate Transport Requirements'' (FRL No. 9299–02–R8) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Environment and Public Works.

EC–3732. A communication from the Associate Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Addition of 1-Bromopropane to the list of CERCLA Hazardous Substances; List of Hazardous Substances; Technical Corrections'' (FRL No. 9335–01–OLEM) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Environment and Public Works.

EC–3733. A communication from the Director of the Legal Processing Division, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Announcement and Report Concerning Advance Pricing Agreements'' (Announcement 2022–7) received in the Office of the President of the Senate on April 25, 2022; to the Committee on Finance.

EC–3734. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2022–0052—2022–0069); to the Committee on Foreign Relations.

EC–3735. A communication from the Senior Bureau Official, Bureau of Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to emigration laws and policies of Azerbaijan, Kazakhstan, Tajikistan, and Uzbekistan; to the Committee on Foreign Relations.

EC–3736. A communication from the Senior Bureau Official, Bureau of Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to U.S. compliance with the authorization for use of military force in Iraq; to the Committee on Foreign Relations.

EC–3737. A communication from the Senior Bureau Official, Bureau of Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to U.S. compliance with the authorization for use of military force in Iraq; to the Committee on Foreign Relations.

EC–3738. A communication from the Senior Bureau Official, Bureau of Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to data mining activities by Federal Agencies; to the Committee on Foreign Relations.

EC–3739. A communication from the Senior Bureau Official, Bureau of Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to Iran-related multilateral sanctions regime efforts; to the Committee on Foreign Relations.

EC–3740. A communication from the Senior Bureau Official, Bureau of Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to observer status for Taiwan at the summit of the World Health Organization; to the Committee on Foreign Relations.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. REED for the Committee on Armed Services.

Space Force nomination of Brig. Gen. Douglas A. Schiess, to be Major General.

Space Force nomination of Brig. Gen. Douglas A. Schiess, to be Brigadier General.

Air Force nominations beginning with Col. Christopher M. Blomquist and ending with Col. Todd A. Wiles, which nominations were received by the Senate and appeared in the Congressional Record on January 31, 2022. (minus 2 nominees: Col. Daniel R. Fowler; Col. Michael E. Lockette)

Air Force nominations beginning with Col. Kirsten G. Aguilar and ending with Col. Michael J. Zuhlsdorf, which nominations were received by the Senate and appeared in the Congressional Record on February 28, 2022. (minus 2 nominees: Col. David C. Epperson; Col. Brian R. Moore)

Air Force nomination of Brig. Gen. Rebecca R. Vernon, to be Major General.

*Army nomination of Lt. Gen. Randy A. George, to be General.

*Army nomination of Lt. Gen. Andrew P. Poppas, to be General.

*Army nomination of Maj. Gen. Sean C. Bernabe, to be Lieutenant General.

*Air Force nomination of Lt. Gen. Duke Z. Richardson, to be General.

*Air Force nomination of Lt. Gen. Mary F. O'Brien, to be Lieutenant General.

*Air Force nomination of Lt. Gen. Brian S. Robinson, to be Lieutenant General.

*Air Force nomination of Maj. Gen. Randall Reed, to be Lieutenant General.

*Air Force nomination of Lt. Gen. David S. Nahom, to be Lieutenant General.

*Air Force nomination of Lt. Gen. Tom D. Miller, to be Lieutenant General.

Air Force nomination of Col. Amy D. Holbeck, to be Brigadier General.

Air Force nomination of Col. David N. Unruh, to be Brigadier General.

*Marine Corps nomination of Maj. Gen. Dimitri Henry, to be Lieutenant General.

Mr. REED. Mr. President, for the Committee on Armed Services I report favorably the following nomination lists which were printed in the RECORDS on the dates indicated, and ask unanimous consent, to save the expense of reprinting on the Executive Calendar that these nominations lie at the Secretary's desk for the information of Senators .

The PRESIDING OFFICER. Without objection, it is so ordered.

Air Force nominations beginning with Michael A. Armstrong and ending with John S. Wu, which nominations were received by the Senate and appeared in the Congressional Record on January 31, 2022.

Air Force nominations beginning with Jonathan P. Dietz and ending with Jordan C. Tremblay, which nominations were received by the Senate and appeared in the Congressional Record on April 4, 2022.

Air Force nominations beginning with Alan K. Chan and ending with Benjamin R. Pereus, which nominations were received by the Senate and appeared in the Congressional Record on April 4, 2022.

Air Force nomination of Alec S. Williams, to be Major.

Army nomination of Derwin Brayboy, to be Colonel.

Army nominations beginning with Yonatan S. Abebie and ending with D011475, which nominations were received by the Senate and appeared in the Congressional Record on April 4, 2022.

Army nominations beginning with David H. Aamidor and ending with D016442, which nominations were received by the Senate and appeared in the Congressional Record on April 4, 2022.

Army nominations beginning with Michael S. Abbott and ending with D015907, which nominations were received by the Senate and appeared in the Congressional Record on April 4, 2022.

Army nominations beginning with Rachell H. Baca and ending with D014087, which nominations were received by the Senate and appeared in the Congressional Record on April 4, 2022.

Army nomination of Charles J. Bulva, to be Lieutenant Colonel.

Army nomination of David L. Armeson, to be Lieutenant Colonel.

Marine Corps nominations beginning with Jeremy D. Adams and ending with Jonathan S. Zasadny, which nominations were received by the Senate and appeared in the Congressional Record on December 1, 2021.

Marine Corps nomination of Jon C. Peterson, to be Lieutenant Colonel.

Marine Corps nomination of Andrew E. Cheatum, to be Lieutenant Colonel.

Marine Corps nomination of Christopher J. Voss, to be Major.

Marine Corps nominations beginning with Dustin E. Guerpo and ending with Steven A. Scott, which nominations were received by the Senate and appeared in the Congressional Record on January 5, 2022.

Navy nominations beginning with Joseph L. Campbell and ending with David J. Woods, which nominations were received by the Senate and appeared in the Congressional Record on April 4, 2022.

Space Force nominations beginning with Matthew B. Christensen and ending with David A. Heinz, which nominations were received by the Senate and appeared in the Congressional Record on April 4, 2022

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Ms. BALDWIN:

S. 4081. A bill to amend the Consolidated Farm and Rural Development Act to establish a grant program to assist with the purchase, installation, and maintenance of point-of-entry and point-of-use drinking water quality improvement products, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. BOOZMAN (for himself, Mr. TILLIS, Mr. RUBIO, Mr. CORNYN, Mr. INHOFE, Mr. DAINES, Mr. THUNE, Mrs. HYDE-SMITH, Mrs. FISCHER, Mr. COTTON, Mr. HAGERTY, and Ms. ERNST):

S. 4082. A bill to prohibit the use by the Department of Veterans Affairs of funds to provide emergency assistance at the southern border of the United States resulting from the repeal of certain public health orders, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. HEINRICH (for himself, Mr. BENNET, Mr. MERKLEY, Mr. LUJÁN,

Mr. BOOKER, Mr. WYDEN, and Mr. MARKEY):

S. 4083. A bill to modify the requirements applicable to locatable minerals on public domain land, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. LUJÁN (for himself and Mrs. BLACKBURN):

S. 4084. A bill to support the lab-embedded entrepreneurship program under the Department of Energy, and for other purposes; to the Committee on Energy and Natural Resources.

By Ms. DUCKWORTH (for herself, Mrs. FEINSTEIN, Mr. WHITEHOUSE, Ms. HIRONO, Mr. BLUMENTHAL, Mr. BENNET, Mr. BROWN, Mr. MURPHY, Ms. SMITH, Mr. VAN HOLLEN, Mr. WYDEN, Mr. CASEY, and Mr. MARKEY):

S. 4085. A bill to amend the National Voter Registration Act of 1993 to require each State to implement a process under which individuals who are 16 years of age may apply to register to vote in elections for Federal office in the State, to direct the Election Assistance Commission to make grants to States to increase the involvement of minors in public election activities, and for other purposes; to the Committee on Rules and Administration.

By Ms. ROSEN (for herself and Mr. SCOTT of South Carolina):

S. 4086. A bill to amend the Employee Retirement Income Security Act of 1974 to better enable plan sponsors to implement beneficial plan features; to the Committee on Health, Education, Labor, and Pensions.

By Mrs. MURRAY (for herself, Ms. SMITH, and Ms. BALDWIN):

S. 4087. A bill to require pension plans that offer participants and beneficiaries the option of receiving lifetime annuity payments as lump sum payments, to meet certain notice and disclosure requirements; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CRUZ:

S. 4088. A bill to prohibit the Secretary of Health and Human Services from lessening the stringency of, and to prohibit the Secretary of Homeland Security from ceasing or lessening implementation of, the COVID–19 border health provisions through the end of the COVID–19 pandemic, and for other purposes; read the first time.

By Mr. DURBIN:

S. 4089. A bill to restore entitlement to educational assistance under Veterans Rapid Retraining Program in cases of a closure of an educational institution or a disapproval of a program of education, and for other purposes; considered and passed.

By Mr. DURBIN (for himself and Mr. BRAUN):

S. 4090. A bill to improve transparency and availability of information regarding dietary supplements by amending the Federal Food, Drug, and Cosmetic Act to require manufacturers of dietary supplements to list dietary supplements with the Food and Drug Administration; to the Committee on Health, Education, Labor, and Pensions.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. MANCHIN (for himself, Mr. WICKER, Mr. CASEY, Mrs. CAPITO, Mr. HEINRICH, and Mr. GRASSLEY):

S. Res. 595. A resolution designating the week of April 18 through April 24, 2022, as ''National Osteopathic Medicine Week''; considered and agreed to.

ADDITIONAL COSPONSORS

S. 201

At the request of Ms. ROSEN, the name of the Senator from Oregon (Mr. WYDEN) was added as a cosponsor of S. 201, a bill to establish a program ensuring access to accredited continuing medical education for primary care physicians and other health care providers at Federally-qualified health centers and rural health clinics, to provide training and clinical support for primary care providers to practice at their full scope and improve access to care for patients in underserved areas.

S. 511

At the request of Mr. DURBIN, the name of the Senator from Illinois (Ms. DUCKWORTH) was added as a cosponsor of S. 511, a bill to establish the Bronzeville-Black Metropolis National Heritage Area in the State of Illinois, and for other purposes.

S. 777

At the request of Mr. MARSHALL, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 777, a bill to prohibit taxpayer-funded gender reassignment medical interventions, and for other purposes.

S. 778

At the request of Mr. MARSHALL, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 778, a bill to amend chapter 110 of title 18, United States Code, to prohibit gender reassignment medical interventions on minors, and for other purposes.

S. 1158

At the request of Mr. SCHATZ, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 1158, a bill to provide paid family and medical leave to Federal employees, and for other purposes.

S. 1280

At the request of Mrs. MURRAY, the name of the Senator from Colorado (Mr. HICKENLOOPER) was added as a cosponsor of S. 1280, a bill to improve the reproductive assistance provided by the Department of Defense and the Department of Veterans Affairs to certain members of the Armed Forces, veterans, and their spouses or partners, and for other purposes.

S. 1315

At the request of Ms. CANTWELL, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of S. 1315, a bill to amend title XVIII of the Social Security Act to provide for coverage of certain lymphedema compression treatment items under the Medicare program.

S. 1467

At the request of Mr. SULLIVAN, the name of the Senator from Indiana (Mr. YOUNG) was added as a cosponsor of S. 1467, a bill to direct the Secretary of Veterans Affairs to carry out a series of clinical trials on the effects of cannabis on certain health outcomes of veterans with chronic pain and post-traumatic stress disorder, and for other purposes.

S. 1489

At the request of Mr. MENENDEZ, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 1489, a bill to amend the Inspector General Act of 1978 to establish an Inspector General of the Office of the United States Trade Representative, and for other purposes.

S. 1801

At the request of Mr. LEAHY, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 1801, a bill to amend section 923 of title 18, United States Code, to require an electronic, searchable database of the importation, production, shipment, receipt, sale, or other disposition of firearms.

S. 1888

At the request of Mr. BOOKER, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of S. 1888, a bill to amend title 5, United States Code, to include certain Federal positions within the definition of law enforcement officer for retirement purposes, and for other purposes.

S. 1937

At the request of Mr. BOOKER, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 1937, a bill to require the Secretary of Veterans Affairs to establish a pilot program to furnish doula services to veterans.

S. 1977

At the request of Mr. CASEY, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 1977, a bill to amend title XIX of the Social Security Act to provide Medicaid coverage for all pregnant and postpartum women, to provide coverage under the Medicaid program for services provided by doulas, midwives, and lactation consultants, and for other purposes.

S. 2013

At the request of Mr. CASEY, the name of the Senator from Michigan (Mr. PETERS) was added as a cosponsor of S. 2013, a bill to provide for the coverage of medically necessary food and vitamins and individual amino acids for digestive and inherited metabolic disorder under Federal health programs and private health insurance, to ensure State and Federal protection for existing coverage, and for other purposes.

S. 2037

At the request of Ms. CORTEZ MASTO, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 2037, a bill to amend title XVIII to strengthen ambulance services furnished under part B of the Medicare program.

S. 2326

At the request of Mr. LUJÁN, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 2326, a bill to amend the Indian Child Protection and Family Violence Prevention Act to reauthorize

programs under that Act, and for other purposes.

S. 2408

At the request of Mr. DAINES, the names of the Senator from Nebraska (Mrs. FISCHER), the Senator from Ohio (Mr. PORTMAN) and the Senator from Florida (Mr. SCOTT) were added as cosponsors of S. 2408, a bill to prohibit the award of Federal funds to an institution of higher education that hosts or is affiliated with a student-based service site that provides abortion drugs or abortions to students of the institution or to employees of the institution or site, and for other purposes.

S. 2700

At the request of Ms. ROSEN, the name of the Senator from New Hampshire (Ms. HASSAN) was added as a cosponsor of S. 2700, a bill to require the Secretary of Health and Human Services to improve the detection, prevention, and treatment of mental health issues among public safety officers, and for other purposes.

S. 2937

At the request of Mr. CARDIN, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. 2937, a bill to authorize humanitarian assistance and civil society support, promote democracy and human rights, and impose targeted sanctions with respect to human rights abuses in Burma, and for other purposes.

S. 3080

At the request of Ms. SMITH, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 3080, a bill to amend the Employee Retirement Income Security Act of 1974 to require a group health plan (or health insurance coverage offered in connection with such a plan) to provide for cost-sharing for oral anticancer drugs on terms no less favorable than the cost-sharing provided for anticancer medications administered by a health care provider.

S. 3173

At the request of Mr. KENNEDY, the name of the Senator from Louisiana (Mr. CASSIDY) was added as a cosponsor of S. 3173, a bill to amend the Internal Revenue Code of 1986 to provide special rules for personal casualty losses arising from major disasters.

S. 3235

At the request of Mr. MENENDEZ, the name of the Senator from Nevada (Ms. CORTEZ MASTO) was added as a cosponsor of S. 3235, a bill to apply the Truth in Lending Act to small business financing, and for other purposes.

S. 3384

At the request of Mr. BOOKER, the name of the Senator from Maryland (Mr. VAN HOLLEN) was added as a cosponsor of S. 3384, a bill to establish in the Department of State the Office to Monitor and Combat Islamophobia, and for other purposes.

S. 3397

At the request of Ms. ROSEN, the name of the Senator from Colorado (Mr. HICKENLOOPER) was added as a cosponsor of S. 3397, a bill to direct the Secretary of Veterans Affairs to establish the Zero Suicide Initiative pilot program of the Department of Veterans Affairs.

S. 3412

At the request of Mr. THUNE, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S. 3412, a bill to prohibit the use of Federal funds to enforce the rule submitted by the Department of Health and Human Services relating to COVID–19 vaccine and mask requirements for Head Start programs.

S. 3448

At the request of Mr. WARNOCK, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 3448, a bill to award a Congressional Gold Medal to the Freedom Riders, collectively, in recognition of their unique contribution to Civil Rights, which inspired a revolutionary movement for equality in interstate travel.

S. 3518

At the request of Mr. SCHATZ, the name of the Senator from New Mexico (Mr. LUJÁN) was added as a cosponsor of S. 3518, a bill to increase the rates of pay under the statutory pay systems and for prevailing rate employees by 5.1 percent, and for other purposes.

S. 3531

At the request of Mr. COONS, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 3531, a bill to require the Federal Government to produce a national climate adaptation and resilience strategy, and for other purposes.

S. 3609

At the request of Mr. KELLY, the name of the Senator from Washington (Mrs. MURRAY) was added as a cosponsor of S. 3609, a bill to amend the Internal Revenue Code of 1986 to provide a gasoline tax holiday.

S. 3700

At the request of Mr. WARNOCK, the names of the Senator from New Mexico (Mr. LUJÁN) and the Senator from Delaware (Mr. CARPER) were added as cosponsors of S. 3700, a bill to provide for appropriate cost-sharing for insulin products covered under Medicare part D and private health plans.

S. 3766

At the request of Mr. BROWN, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 3766, a bill to increase the benefits guaranteed in connection with certain pension plans, and for other purposes.

S. 3915

At the request of Mr. BARRASSO, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 3915, a bill to require the Secretary of Energy to provide technology grants to strengthen domestic mining education, and for other purposes.

S. 3950

At the request of Mr. DURBIN, the name of the Senator from Nevada (Ms. ROSEN) was added as a cosponsor of S. 3950, a bill to establish the Baltic Security and Economic Enhancement Initiative for the purpose of increasing security and economic ties with the Baltic countries and to establish the Baltic Security Initiative for the purpose of deepening security cooperation with the Baltic countries, and for other purposes.

S. 4042

At the request of Mr. BLUMENTHAL, the names of the Senator from North Dakota (Mr. HOEVEN) and the Senator from Montana (Mr. DAINES) were added as cosponsors of S. 4042, a bill to amend title XVIII of the Social Security Act to provide Medicare coverage for all physicians' services furnished by doctors of chiropractic within the scope of their license, and for other purposes.

S.J. RES. 39

At the request of Mr. THUNE, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S.J. Res. 39, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of Health and Human Services relating to ''Vaccine and Mask Requirements To Mitigate the Spread of COVID–19 in Head Start Programs.

S.J. RES. 41

At the request of Mr. RUBIO, the name of the Senator from Indiana (Mr. YOUNG) was added as a cosponsor of S.J. Res. 41, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of Health and Human Services relating to ''Ensuring Access to Equitable, Affordable, Client-Centered, Quality Family Planning Services''.

S.J. RES. 43

At the request of Mrs. HYDE-SMITH, the names of the Senator from Indiana (Mr. YOUNG) and the Senator from North Dakota (Mr. CRAMER) were added as cosponsors of S.J. Res. 43, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of the Treasury and the Centers for Medicare & Medicaid Services relating to ''Patient Protection and Affordable Care Act; Updating Payment Parameters, Section 1332 Waiver Implementing Regulations, and Improving Health Insurance Markets for 2022 and Beyond''.

S. CON. RES. 9

At the request of Mr. HEINRICH, the name of the Senator from Arizona (Ms. SINEMA) was added as a cosponsor of S. Con. Res. 9, a concurrent resolution supporting the Local Radio Freedom Act.

S. RES. 568

At the request of Mrs. FEINSTEIN, the name of the Senator from California (Mr. PADILLA) was added as a cosponsor of S. Res. 568, a resolution supporting the goals and ideals of ''Countering

International Parental Child Abduction Month'' and expressing the sense of the Senate that Congress should raise awareness of the harm caused by international parental child abduction.

S. RES. 585

At the request of Mr. MENENDEZ, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. Res. 585, a resolution honoring the life, achievements, and legacy of the Honorable Madeleine K. Albright.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. DURBIN:

S. 4089. A bill to restore entitlement to educational assistance under Veterans Rapid Retraining Program in cases of a closure of an educational institution or a disapproval of a program of education, and for other purposes; considered and passed.

Mr. DURBIN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

Without objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 4089

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Veterans Rapid Retraining Assistance Program Restoration and Recovery Act of 2022''.

SEC. 2. RESTORATION OF ENTITLEMENT UNDER VETERANS RAPID RETRAINING ASSISTANCE PROGRAM.

(a) IN GENERAL.—Section 8006 of the American Rescue Plan Act of 2021 (Public Law 117–2), as amended by the Training in High-demand Roles to Improve Veteran Employment Act (Public Law 117–16), is further amended—

(1) by redesignating subsection (n) as subsection (o); and

(2) by inserting after subsection (m), the following new subsection (n):

''(n) EFFECTS OF CLOSURE OF AN EDUCATIONAL INSTITUTION OR DISAPPROVAL OF A PROGRAM OF EDUCATION.—

''(1) IN GENERAL.—Any payment of retraining assistance under subsection (d)(1) shall not be charged against any entitlement to retraining assistance described in subsection (a) if the Secretary determines that an individual was unable to complete a course or program of education as a result of —

''(A) the closure of an educational institution; or

''(B) the disapproval of a program of education by the State approving agency or the Secretary when acting in the role of the State approving agency.

''(2) PERIOD NOT CHARGED.—The period for which, by reason of this subsection, retraining assistance is not charged shall be equal to the full amount of retraining assistance provided for enrollment in the program of education.

''(3) HALT OF PAYMENTS TO CERTAIN EDUCATIONAL INSTITUTIONS.—In the event of a closure or disapproval, as described in paragraph (1), the educational institution shall not receive any further payments under subsection (d).

''(4) RECOVERY OF FUNDS.—In the event of a closure or disapproval, as described in paragraph (1), any payment already made under subsection (d) to the educational institution shall be considered an overpayment and constitute a liability of such institution to the United States.''.

(b) CONFORMING AMENDMENT.—In subsection (b)(3) of such section, strike the period and insert '', except for an individual described in subsection (n).''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply as if included in the American Rescue Plan Act of 2021 (Public Law 117–2).

By Mr. DURBIN (for himself and Mr. BRAUN):

S. 4090. A bill to improve transparency and availability of information regarding dietary supplements by amending the Federal Food, Drug, and Cosmetic Act to require manufacturers of dietary supplements to list dietary supplements with the Food and Drug Administration; to the Committee on Health, Education, Labor, and Pensions.

Mr. DURBIN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

Without objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 4090

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Dietary Supplement Listing Act of 2022''.

SEC. 2. REGULATION OF DIETARY SUPPLEMENTS.

(a) IN GENERAL.—Chapter IV of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 341 et seq.) is amended by inserting after section 403C of such Act the following:

''SEC. 403D. DIETARY SUPPLEMENT LISTING REQUIREMENT.

''(a) IN GENERAL.—Each dietary supplement shall be listed with the Secretary in accordance with this section.

''(b) LISTING SUBMISSIONS.—

''(1) IN GENERAL.—Each responsible person, or, if the responsible person is a foreign entity, the United States agent, shall submit to the Secretary in accordance with this section the following information for each dietary supplement that will be marketed:

''(A) Any proprietary name of the dietary supplement and the statement of identity, including brand name and specified flavors, if applicable.

''(B) The full name, address, and telephone number for the responsible person, and the name and e-mail address of the owner, operator, or agent in charge of the responsible person.

''(C) The full name, address, telephone number, and e-mail address for the United States agent, if the responsible person is a foreign entity.

''(D) The full business name and address of all locations at which the responsible person manufactures, packages, labels, or holds the dietary supplement.

''(E) An electronic copy of the label for the dietary supplement, and an electronic copy of the package insert, if any.

''(F) A list of all ingredients in the dietary supplement required to appear on the label under sections 101.4 and 101.36 of title 21, Code of Federal Regulations, including—

''(i) the amount per serving of each listed ingredient, if such information is required to appear on the label; and

''(ii) if required by section 101.36 of title 21, Code of Federal Regulations, the percent of the daily value of each listed ingredient.

''(G) The number of servings per container for each container size.

''(H) The conditions of use.

''(I) Warnings and precautions.

''(J) Statements regarding major food allergens, as defined in section 201(qq) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321(qq)).

''(K) The dosage form, such as pill, capsule, liquid, or powder.

''(L) Any claim that—

''(i) characterizes the relationship of any nutrient which is of the type required by section 403(q)(1) or section (q)(2) to be in the label or labeling of the food to a disease or a health-related condition; or

''(ii) is subject to notification under section 403(r)(6) that appears in the supplement's labeling.

''(M) The unique dietary supplement identifier for the product, provided in accordance with paragraph (3).

''(2) FORMAT.—A listing submitted under this section shall be in such electronic form and manner as the Secretary may prescribe. The Secretary shall promptly confirm, electronically, receipt of a complete listing under this section.

''(3) UNIQUE LISTING IDENTIFICATION NUMBERS.—

''(A) IN GENERAL.—The Secretary shall establish a unique dietary supplement identifier system that shall be used by the responsible person under this section.

''(B) RESERVATION OF NUMBERS.—The system shall allow a responsible person to reserve multiple dietary supplement identifier numbers in advance of listing.

''(C) USE REQUIREMENT.—Any unique dietary supplement identifier shall be used only in connection with the product for which the identifier was used during the listing process.

''(4) SUBMISSION DATES.—A responsible person under this section shall report to the Secretary the listing information described in paragraph (1) pursuant to the following timelines:

''(A) IN GENERAL.—

''(i) EXISTING DIETARY SUPPLEMENTS.—In the case of a dietary supplement that is being offered in interstate commerce on the date that is 18 months after the date of enactment of the Dietary Supplement Listing Act of 2022, a listing for each such dietary supplement formulation introduced or delivered for introduction into interstate commerce by the responsible person for commercial distribution shall be submitted by the responsible person with the Secretary under this section not later than 60 days after the date that is 18 months after the date of enactment of such Act.

''(ii) NEW DIETARY SUPPLEMENTS.—In the case of a dietary supplement that is not being offered in interstate commerce on the date that is 18 months after the date of enactment. of the Dietary Supplement Listing Act of 2022, a listing for each such dietary supplement formulation introduced or delivered for introduction into interstate commerce by the responsible person for commercial distribution which has not been included in any listing previously submitted by the responsible person to the Secretary under this section shall be submitted to the Secretary prior to introducing the dietary supplement into interstate commerce.

''(B) REFORMULATIONS.—A listing of each dietary supplement formulation introduced by the responsible person for commercial distribution that has a label that differs for such dietary supplement from the representative label provided under subsection (a) with respect to the product name, amount of dietary ingredients, or other distinguishing characteristics such as dosage form (such as pill, capsule, liquid, or powder) shall be submitted to the Secretary not later than 15 business days after introducing the dietary

supplement with the change into interstate commerce.

''(C) DISCONTINUED DIETARY SUPPLEMENTS.—If the responsible person has discontinued the commercial marketing of a dietary supplement formulation included in a listing submitted by the responsible person under subparagraph (A) or (B), the responsible person shall report to the Secretary the date of such discontinuance, within 90 days of the discontinuance of the dietary supplement.

''(5) SUPPLIER INFORMATION RECORD KEEPING REQUIREMENT.—Each responsible person subject to the requirements of this subsection shall maintain a record of the full business name and address from which the responsible person receives any dietary ingredient or combination of dietary ingredients that the responsible person uses in the manufacture of the dietary supplement, or, if applicable, from which the responsible person receives the dietary supplement. The responsible person shall make this information available to the Secretary within 72 hours of request from the Secretary.

''(c) ELECTRONIC DATABASE.—Beginning not later than 2 years after the Secretary specifies a unique dietary supplement identifier system pursuant to subsection (b)(3), the Secretary shall maintain an electronic database that—

''(1) is publicly accessible;

''(2) is populated with information regarding dietary supplements that is provided under this section or any other provision of this Act; and

''(3) enables the public to search the database by a dietary supplement's unique dietary supplement identifier or other field of information or combination of fields.

''(d) AUTHORIZATION OF APPROPRIATIONS.—For purposes of conducting activities under this section and hiring personnel to carry out this section, there are authorized to be appropriated $4,000,000 for fiscal year 2022 and $1,000,000 for each of fiscal years 2023 through 2026.''.

(b) MISBRANDING.—Section 403 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 343) is amended by adding at the end the following:

''(z) If it is a dietary supplement for which a responsible person is required to file a listing under section 403D and such responsible person has not made a listing with respect to such dietary supplement.''.

(c) NEW PROHIBITED ACT.—Section 301 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 331) is amended by adding at the end the following:

''(fff) The introduction or delivery for introduction into interstate commerce of a dietary supplement that has been prepared, packed, or held using the assistance of, or at the direction of, a person debarred under section 306.''.

(d) RULE OF CONSTRUCTION.—Nothing in the amendments made by subsections (a) through subsection (c) shall be construed to expand the existing authorities of the Food and Drug Administration, other than as specified in such amendments. This subsection shall not be construed to—

(1) limit the existing authorities of the Food and Drug Administration; or

(2) limit the authorities specified in the amendments made by subsections (a) through subsection (c).

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 595—DESIGNATING THE WEEK OF APRIL 18 THROUGH APRIL 24, 2022, AS ''NATIONAL OSTEOPATHIC MEDICINE WEEK''

Mr. MANCHIN (for himself, Mr. WICKER, Mr. CASEY, Mrs. CAPITO, Mr. HEINRICH, and Mr. GRASSLEY) submitted the following resolution; which was considered and agreed to:

S. RES. 595

Whereas there are more than 134,000 osteopathic physicians and 33,800 osteopathic medical students in the United States;

Whereas osteopathic physicians and medical students train at high-caliber schools of osteopathic medicine across the United States, including in rural communities;

Whereas osteopathic physicians have made significant contributions to the United States healthcare system since the founding of the field of osteopathic medicine;

Whereas osteopathic medicine emphasizes a patient-centered approach to healthcare, and osteopathic physicians play an important role in the United States healthcare system;

Whereas osteopathic physicians have been critical in the fight against the coronavirus 2019 pandemic and have worked on the front lines treating patients;

Whereas osteopathic physicians practice in all specialty areas and practice settings of medicine;

Whereas osteopathic physicians and medical students in the United States are dedicated to improving the health of their communities through efforts to increase education and awareness and by delivering high-quality health services; and

Whereas osteopathic physicians currently practice in every State: Now, therefore, be it

Resolved, That the Senate—

(1) designates the week of April 18 through April 24, 2022, as ''National Osteopathic Medicine Week'';

(2) recognizes the contributions of osteopathic physicians to the United States healthcare system; and

(3) celebrates the role that schools of osteopathic medicine play in training the next generation of osteopathic physicians.

AUTHORITY FOR COMMITTEES TO MEET

Ms. HASSAN. Mr. President, I have 10 requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority Leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON AGRICULTURE, NUTRITION, AND FORESTRY

The Committee on Agriculture, Nutrition, and Forestry is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 10 a.m., to conduct a hearing.

COMMITTEE ON ARMED SERVICES

The Committee on Armed Services is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 9:30 a.m., to conduct a hearing.

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

The Committee on Banking, Housing, and Urban Affairs is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 10 a.m., to conduct a hearing.

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

The Committee on Banking, Housing, and Urban Affairs is authorized to meet in executive session during the session of the Senate on Tuesday, April 26, 2022, to vote on nominations.

COMMITTEE ON FOREIGN RELATIONS

The Committee on Foreign Relations is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 10 a.m., to conduct a hearing.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

The Committee on Health, Education, Labor, and Pensions is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 10 a.m., to conduct a hearing.

SELECT COMMITTEE ON INTELLIGENCE

The Select Committee on Intelligence is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 2:30 p.m., to conduct a closed briefing.

SUBCOMMITTEE ON ECONOMIC POLICY

The Subcommittee on Economic Policy of the Committee on Banking, Housing, and Urban Affairs is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 2:30 p.m., to conduct a hearing.

PERMANENT SUBCOMMITTEE ON INVESTIGATIONS

The Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 10 a.m., to conduct a hearing.

SUBCOMMITTEE ON SEAPOWER

The Subcommittee on Seapower of the Committee on Armed Services is authorized to meet during the session of the Senate on Tuesday, April 26, 2022, at 2:30 p.m., to conduct a hearing.

UNANIMOUS CONSENT AGREEMENT

Ms. HASSAN. Mr. President, I ask unanimous consent that the notice of proposed rulemaking from the Office of Congressional Workplace Rights be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

NOTICE OF PROPOSED RULEMAKING

U.S. CONGRESS,
OFFICE OF CONGRESSIONAL WORKPLACE RIGHTS,
Washington, DC, April 26, 2022.

Hon. PATRICK J. LEAHY,
President Pro Tempore of the Senate, Washington, DC.

DEAR MR. PRESIDENT: Section 203(c)(1) of the Congressional Accountability Act (CAA),

2 U.S.C. 1313(c)(1), requires the Board of Directors of the Office of Congressional Workplace Rights (''the Board'') to issue regulations implementing Section 203 of the CAA relating to the Fair Labor Standards Act of 1938 (''FLSA''), 29 U.S.C. 206 et seq., made applicable to the legislative branch by the CAA. 2 U.S.C. 1313(a)(1).

Section 304(b)(1) of the CAA, 2 U.S.C. 1384(b)(1), requires that the Board issue a general notice of proposed rulemaking by transmitting ''such notice to the Speaker of the House of Representatives and the President Pro Tempore of the Senate for publication in the Congressional Record on the first day of which both Houses are in session following such transmittal.''

On behalf of the Board, I am hereby transmitting the attached notice of proposed rulemaking to the President Pro Tempore of the U.S. Senate. I request that this notice be published in the Senate section of the Congressional Record on the first day on which both Houses are in session following receipt of this transmittal. In compliance with Section 304(b)(2) of the CAA, a comment period of 30 days after the publication of this notice of proposed rulemaking is being provided before adoption of the rules.

Any inquiries regarding this notice should be addressed to Teresa James, Acting Executive Director of the Office of Congressional Workplace Rights, 110 Second Street, S.E., Room LA–200, Washington, DC 20540–1999; telephone: 202–724–9250.

Sincerely,

BARBARA CHILDS WALLACE,
Chair of the Board of Directors, Office of Congressional Workplace Rights.

Attachment.

FROM THE BOARD OF DIRECTORS OF THE OFFICE OF CONGRESSIONAL WORKPLACE RIGHTS

Implementing Certain Substantive Rights and Protections of the Fair Labor Standards Act of 1938, as Required by Section 203 of the Congressional Accountability Act of 1995 (CAA), 2 U.S.C. 1313.

NOTICE OF PROPOSED RULEMAKING

Background:

The purpose of this Notice is to initiate the process for replacing existing legislative branch Fair Labor Standards Act (FLSA) overtime substantive regulations under section 203 of the Congressional Accountability Act (CAA), 2 U.S.C. 1302 et seq., which were adopted by the Board and approved by the House and the Senate in 1996, with new regulations that substantially mirror the overtime exemption regulations promulgated by the Secretary of Labor thereafter and presently in effect. These modifications are necessary in order to bring existing legislative branch FLSA overtime regulations in line with multiple regulatory changes that have occurred since 1996. The regulations that presently implement the FLSA for the Legislative Branch are woefully out of date because the Secretary of Labor's updated FLSA regulations do not automatically apply to employing offices and employees covered by the CAA. As a result, the employees of the Legislative Branch are presently held to FLSA overtime standards that are no longer realistic in today's economy.

Do FLSA overtime pay requirements apply via the CAA to Legislative Branch employing offices?

Yes. Section 203(a)(1) of the CAA states: ''[t]he rights and protections established by subsections (a)(1) and (d) of section 6, section 7, and section 12(c) of the [FLSA] . . . (29 U.S.C. 206(a)(1), 207, 212(c)) shall apply to covered employees.'' Section 7 of the FLSA, 29 U.S.C. 207, includes the requirements regarding the payment of time and one half overtime pay to employees.

Are there existing overtime exemption regulations already in force under the CAA?

Yes. In 1996, the Board of Directors of the Office of Compliance—now the Office of Congressional Workplace Rights—promulgated the existing CAA overtime exemption regulations based on Department of Labor's regulations that were in effect at the time. Those regulations were adopted pursuant to the CAA section 304 procedure outlined herein below. Those regulations are found at Parts H541 (applicable to the House of Representatives), S541 (applicable to the Senate), and C541 (applicable to the other employing offices covered by section 203 of the CAA) of the FLSA Regulations of the (then) Office of Compliance. Those regulations remain in force in the Legislative Branch until replaced by new regulations. The 1996 FLSA Substantive regulations can be accessed via the Office of Congressional Workplace Rights web site: www.ocwr.gov.

What is the history of the FLSA overtime salary threshold test?

Historically, the salary threshold test contained in the Department of Labor's regulations has been a fixed amount that has not changed with inflation. In 2004, the Department of Labor promulgated regulations increasing the salary threshold test so that employees with low salaries would not be deprived of overtime pay. Thus, in 2004, the Board of Directors adopted and submitted for publication in the Congressional Record amendments to its 1996 substantive regulations regarding the FLSA overtime exemptions. 150 Cong. Rec. H7850–07, S9917–01 (daily ed. September 29, 2004).

The 2004 Amendments to the Legislative Branch substantive regulations adopted by the Board mirrored new overtime exemption regulations promulgated by the Department of Labor, Vol. 69 of the Federal Register, No. 79, at pp. 22122 et seq., which substantially changed the prior overtime exemptions. More specifically, the 2004 FLSA amendments adopted by the Board of Directors reflected the new Part 541 in the updated DOL regulations then in effect, which restructured much of the regulatory framework for determining whether a particular employee is exempt from FLSA overtime requirements. The 2004 changes included: (1) eliminating the ''short'' and ''long tests and revising the standard duties test for each exemption category; (2) significantly increasing the salary level under DOL's revised standard duties test to $455 per week for executive, administrative, and professional employee exemptions and (3) creating a ''highly compensated executive'' category in which employees who are paid total annual compensation of at least $100,000 (which must include at least $455 per week paid on a salary or fee basis) are exempt from the FLSA's overtime requirements if they customarily and regularly perform at least one of the exempt duties or responsibilities of an executive, administrative, or professional employee identified in the standard tests for exemption.

However, because Congress did not approve the 2004 amendments adopted by the Board, the 2004 DOL regulations containing FLSA exemption updates were not made applicable to the Legislative Branch. The regulations proposed by the Board in this Notice of Proposed Rulemaking incorporate the 2004 amendments previously adopted by the Board after public notice and comment, and further update the overtime exemption regulations to mirror further Department of Labor changes in 2016, 2019, and 2020.

Why is this Notice being issued?

Over the past 25 years, the Secretary of Labor has substantially rewritten and expanded Part 541 and has repeatedly increased the salary threshold test. However, the Secretary of Labor's regulations do not automatically apply to employing offices and employees covered by the CAA. Because the 2004 amendments adopted by the Board were not approved by Congress, unlike the Department of Labor's current regulations, the present salary threshold test within the Legislative Branch sets the salary below the poverty level. Specifically, the 1996 Substantive Regulations has a salary basis test of ''not less than $155 per week'' which is an annual salary of less than $8000.00 per year. In other sections of the 1996 Substantive Regulations that remain applicable to the Legislative Branch, the salary basis test is ''not less than $250 per week'' which is yearly salary of approximately $13,000.00. This Notice is being issued, in part, to modify this substantially lower salary test set by the 1996 FLSA Substantive Regulations that are financially outdated and yet remain in effect.

This Notice of Proposed Rulemaking is occasioned by the promulgation of new overtime exemption regulations by the Secretary of Labor at Vol. 69 of the Federal Register, No. 79, at pp. 22122 et seq., on August 23, 2004; Vol. 81 of the Federal Register, at pp. 32391 et seq., on May 23, 2016; Vol. 84 of the Federal Register, at pp. 51230 et seq., on September 27, 2019; and Vol. 85 of the Federal Register, at pp. 34970–01 et seq., on June 8, 2020. The new regulations of the Secretary of Labor as set out at 29 U.S.C. Part 541, reflect the substantial restructuring of overtime exemptions described above, which to date have not yet been made applicable to the Legislative Branch.

Is the Board proposing to adopt the current Department of Labor Regulations verbatim?

The Board has deliberated regarding the question of whether ''good cause'' exists pursuant to section 203(c)(2) of the CAA, 2 U.S.C. 1313(c)(2), for varying these proposed regulations from the Department of Labor regulations. The Board reconsidered comments submitted in response to the Notice of Proposed Rulemaking in 2004 and now agrees that subsections that refer to occupations that do not apply in any manner to the Congressional branch, e.g., §541.101—Business owner and Subpart F—Outside Sales Employees, should not be retained as part of the regulations adopted and/or approved for the Legislative branch. Substantive Regulations that are focused solely on occupations existing within the Legislative Branch would be more effective for the implementation of the rights and protections under this section. As a result, these sections are delineated with bold brackets in this Notice.

Why are there separate sets of existing FLSA regulations for the House of Representatives, the Senate, and the other employing offices covered by the CAA?

Section 304(a)(2)(B) of the CAA, 2 U.S.C. 1384(a)(2)(B), requires that the substantive rules of the Board of Directors ''shall consist of 3 separate bodies of regulations, which shall apply, respectively, to—(i) the Senate and employees of the Senate; (ii) the House of Representatives and employees of the House of Representatives; and (iii) the other covered employees and employing offices.'' In 1996, the House of Representatives (H. Res. 400) and the Senate (S. Res. 242) each adopted by resolution the FLSA regulations applicable to each body. The Senate and House of Representatives adopted by concurrent resolution (S. Con. Res. 51) the regulations applicable to other employing offices and employees.

Are there substantive differences in the proposed regulations for the House of Representatives, the Senate, and the other employing offices?

No. While there are some differences in other parts of the existing FLSA regulations

applicable to the Senate, the House of Representatives, and the other employing offices (chiefly related to the mandate at section 203(c)(3) of the CAA, 2 U.S.C. 1313(c)(3), regarding ''covered employees whose work schedules directly depend on the schedule of the House of Representatives or the Senate . . .''), the Board of Directors has identified no ''good cause'' for varying the text of these regulations. Therefore, if the proposed part 541 regulations are adopted, the prefixes ''H'', ''S'', and ''C'' will be affixed to each of the sets of regulations for the House, for the Senate, and for the other employing offices, but the text of the part 541 regulations will be identical.

How are substantive regulations proposed and approved under the CAA?

Section 203(c)(2) of the CAA, 2 U.S.C. 1313(c)(2), requires that the Board of Directors propose substantive regulations implementing the FLSA overtime requirements which are ''the same as substantive regulations promulgated by the Secretary of Labor to implement the statutory provisions . . . except insofar as the Board may determine, for good cause shown and stated together with the regulation, that a modification of such regulation would be more effective for the implementation of the rights and protections under this section.'' Pursuant to section 304 of the CAA, 2 U.S.C. 1384, the procedure for promulgating such substantive regulations requires that: (1) the Board of Directors adopt proposed substantive regulations and publish a general notice of proposed rulemaking in the Congressional Record; (2) there be a comment period of at least 30 days after the date of publication of the general notice of proposed rulemaking; (3) after consideration of comments by the Board of Directors, that the Board adopt regulations and transmit notice of such action together with the regulations and a recommendation regarding the method for Congressional approval of the regulations to the Speaker of the House and President pro tempore of the Senate for publication in the Congressional Record; (4) committee referral and action on the proposed regulations by resolution in each House, concurrent resolution, or by joint resolution; and (5) final publication of the approved regulations in the Congressional Record, with an effective date prescribed in the final publication. For more detail, please reference the text of 2 U.S.C. 1384. This Notice of Proposed Rulemaking is step (1) of the outline set forth above. Unless and until all of the steps of the outline set forth above are completed, all employing offices and covered employees continue to be required to follow the existing 1996 Substantive Regulations thereby denying many Legislative Branch employees of overtime benefits that they would likely be entitled to pursuant to the current Department of Labor overtime regulations.

How does the Board of Directors recommend that Congress approve these proposed regulations?

Pursuant to section 304(b)(4) of the CAA, 2 U.S.C. 1384(b)(4), the Board of Directors is required to ''include a recommendation in the general notice of proposed rulemaking and in the regulations as to whether the regulations should be approved by resolution of the Senate, by resolution of the House of Representatives, by concurrent resolution, or by joint resolution.'' The Board of Directors recommends that the procedure used in 1996 be used to adopt these proposed overtime exemption regulations: the House of Representatives adopted the ''H'' version of the regulations by resolution; the Senate adopted the ''S'' version of the regulations by resolution; and the House and Senate adopted the ''C'' version of the regulations applied to the other employing offices by a concurrent resolution.

Are these proposed regulations also recommended by the Office of Congressional Workplace Rights' Executive Director, the Deputy Executive Director for the House of Representatives, and the Deputy Executive Director for the Senate?

Yes, as required by section 304(b)(1) of the CAA, 2 U.S.C. 1384(b)(1), the substance of these regulations is also recommended by the Executive Director and Deputy Executive Directors of the Office of Congressional Workplace Rights.

How similar are the proposed CAA regulations with the current Secretary of Labor regulations?

Except for certain required changes to refer to the Legislative Branch instead of the Executive Branch, which are shown in the accompanying proposed regulations, the Board of Directors has repeated the text of the regulations at 29 CFR Part 541 verbatim. ''Good cause'' for modification of the existing regulations of the Secretary of Labor, as required by section 203(c)(2) of the CAA, 2 U.S.C. 1313(c)(2), consists of those changes needed to reflect the authority of the CAA as the enabling statute for these regulations, the requirement at section 225(d)(3) of the CAA, 2 U.S.C. 1361(d)(3), that the CAA ''shall not be construed to authorize enforcement by the executive branch of this Act. . . .''. If there is any additional good cause for a particular proposed variation from the Secretary of Labor's regulations, it is set out adjacent to that provision of the proposed regulation.

Are these proposed CAA regulations available to persons with disabilities in an alternate format?

This Notice of Proposed Rulemaking is available on the Office of Congressional Workplace Rights' web site, www.ocwr.gov which is compliant with section 508 of the Rehabilitation Act of 1973 as amended, 29 U.S.C. 794(d). This Notice can also be made available in large print, Braille, or other alternative format. Requests for this Notice in an alternative format should be made via email to: adaaccess@ocwr.gov.

30-DAY COMMENT PERIOD REGARDING THE PROPOSED REGULATIONS

How can I submit comments regarding the proposed regulations?

Comments regarding the proposed new overtime exemption regulations of the Office of Congressional Workplace Rights set forth in this NOTICE are invited for a period of thirty (30) days following the date of the appearance of this NOTICE in the Congressional Record. Submission of comments must be made in writing to the Executive Director, Office of Congressional Workplace Rights, via email at rule-comments@ocwr.gov. Copies of submitted comments will be available for review on the Office's web site at www.ocwr.gov.

Supplementary Information:

The Congressional Accountability Act of 1995 (CAA), PL 10–91, was enacted into law on January 23, 1995. The CAA applies the rights and protections of 12 federal labor and employment statutes to covered employees and employing offices within the Legislative Branch of Government. Section 301 of the CAA (2 U.S.C. 1381), as amended, establishes the Office of Congressional Workplace Rights as an independent office within the Legislative Branch.

HOW TO READ THE PROPOSED AMENDMENTS

The text of the proposed amendments reproduces the text of the current regulations promulgated by the Secretary of Labor at 29 CFR Part 541, and shows changes proposed for the CAA version of these same regulations. Changes proposed by the Board of Directors of the Office of Congressional Workplace Rights are shown as follows: deletions are marked with a [bracket] and added text is bolded within angled <<brackets>>. Therefore, if these regulations are approved as proposed, the deletion within bracketed text will disappear from the regulations and the added text within angled brackets will remain but not in bold. If these regulations are approved for the House of Representatives by resolution of the House, they will be promulgated with the prefix ''H'' appearing before each regulations section number. If these regulations are approved for the Senate by resolution of the Senate, they will be promulgated with the prefix ''S'' appearing before each regulations section number. If these regulations are approved for the other employing offices by joint or concurrent resolution of the House of Representatives and the Senate, they will be promulgated with the prefix ''C'' appearing before each regulations section number.

PROPOSED OVERTIME EXEMPTION REGULATIONS

Part 541—Defining and Delimiting the Exemptions for Executive, Administrative, Professional, and Computer [and Outside Sales] Employees

SUBPART A—GENERAL REGULATIONS
Sec.
541.0 Introductory statement.
541.1 Terms used in regulations.
541.2 Job titles insufficient.
541.3 Scope of the section 13(a)(1) exemptions.
541.4 Other laws and collective bargaining agreements.
SUBPART B—EXECUTIVE EMPLOYEES
541.100 General rule for executive employees.
[541.101 Business owner.]
541.102 Management.
541.103 Department or subdivision.
541.104 Two or more other employees.
541.105 Particular weight.
541.106 Concurrent duties.
SUBPART C—ADMINISTRATIVE EMPLOYEES
541.200 General rule for administrative employees.
541.201 Directly related to management or general business operations.
541.202 Discretion and independent judgment.
541.203 Administrative exemption examples.
541.204 Educational establishments.
SUBPART D—PROFESSIONAL EMPLOYEES
541.300 General rule for professional employees.
541.301 Learned professionals.
541.302 Creative professionals.
541.303 Teachers.
541.304 Practice of law or medicine.
SUBPART E—COMPUTER EMPLOYEES
541.400 General rule for computer employees.
541.401 Computer manufacture and repair.
541.402 Executive and administrative computer employees.
[SUBPART F—OUTSIDE SALES EMPLOYEES]
[541.500 General rule for outside sales employees.]
[541.501 Making sales or obtaining orders.]
[541.502 Away from employer's place of business.]
[541.503 Promotion work.]
[541.504 Drivers who sell.]
SUBPART G—SALARY REQUIREMENTS
541.600 Amount of salary required.
541.601 Highly compensated employees.
541.602 Salary basis.
541.603 Effect of improper deductions from salary.
541.604 Minimum guarantee plus extras.
541.605 Fee basis.
541.606 Board, lodging or other facilities.
SUBPART H—DEFINITIONS AND MISCELLANEOUS PROVISIONS
541.700 Primary duty.
541.701 Customarily and regularly.
541.702 Exempt and nonexempt work.
541.703 Directly and closely related.
541.704 Use of manuals.
541.705 Trainees.
541.706 Emergencies.
541.707 Occasional tasks.
541.708 Combination exemptions.
[541.709 Motion picture producing industry.]
541.710 Employees of public agencies.

SUBPART A—GENERAL REGULATIONS (§§ 541.0–541.4)

§ 541.0 Introductory statement.

(a) Section 13(a)(1) of the Fair Labor Standards Act, as amended, provides an exemption from the Act's minimum wage and overtime requirements for any employee employed in a bona fide executive, administrative, or professional capacity (including any employee employed in the capacity of academic administrative personnel or teacher in elementary or secondary schools)**[**, or in the capacity of an outside sales employee, as such terms are defined and delimited from time to time by regulations of the Secretary, subject to the provisions of the Administrative Procedure Act.**]** Section 13(a)(17) of the Act provides an exemption from the minimum wage and overtime requirements for computer systems analysts, computer programmers, software engineers, and other similarly skilled computer employees.

(b) The requirements for these exemptions are contained in this part as follows: executive employees, subpart B; administrative employees, subpart C; professional employees, subpart D; computer employees, subpart E**[**; outside sales employees, subpart F**]**. Subpart G contains regulations regarding salary requirements applicable to most of the exemptions, including salary levels and the salary basis test. Subpart G also contains a provision for exempting certain highly compensated employees. Subpart H contains definitions and other miscellaneous provisions applicable to all or several of the exemptions.

(c) Effective July 1, 1972, the Fair Labor Standards Act was amended to include within the protection of the equal pay provisions those employees exempt from the minimum wage and overtime pay provisions as bona fide executive, administrative, and professional employees (including any employee employed in the capacity of academic administrative personnel or teacher in elementary or secondary schools)**[**, or in the capacity of an outside sales employee under section 13(a)(1) of the Act**]**. The equal pay provisions in section 6(d) of the Fair Labor Standards Act are administered and enforced by the **[**United States Equal Employment Opportunity Commission**]** <<**Office of Congressional Workplace Rights**>>.

§ 541.1 Terms used in regulations.

Act means the Fair Labor Standards Act of 1938, as amended.

[Administrator means the Administrator of the Wage and Hour Division, United States Department of Labor. The Secretary of Labor has delegated to the Administrator the functions vested in the Secretary under sections 13(a)(1) and 13(a)(17) of the Fair Labor Standards Act.**]** <<**CAA means Congressional Accountability Act of 1995, as amended. Office means the Office of Congressional Workplace Rights. Employee means a "covered employee" as defined in section 101(3) through (8) of the CAA, 2 U.S.C. 1301(3) through (8), but not an "intern" as defined in section 203(a)(2) of the CAA, 2 U.S.C. 1313(a)(2). Employer, company, business, or enterprise each mean an "employing office" as defined in section 101(9) of the CAA, 2 U.S.C. 1301(9)**.>>

§ 541.2 Job titles insufficient.

A job title alone is insufficient to establish the exempt status of an employee. The exempt or nonexempt status of any particular employee must be determined on the basis of whether the employee's salary and duties meet the requirements of the regulations in this part.

§ 541.3 Scope of the section 13(a)(1) exemptions.

(a) The section 13(a)(1) exemptions and the regulations in this part do not apply to manual laborers or other ''blue collar'' workers who perform work involving repetitive operations with their hands, physical skill and energy. Such nonexempt ''blue collar'' employees gain the skills and knowledge required for performance of their routine manual and physical work through apprenticeships and on-the-job training, not through the prolonged course of specialized intellectual instruction required for exempt learned professional employees such as medical doctors, architects and archeologists. Thus, for example, non-management production-line employees and non-management employees in maintenance, construction and similar occupations such as carpenters, electricians, mechanics, plumbers, iron workers, craftsmen, operating engineers, longshoremen, construction workers and laborers are entitled to minimum wage and overtime premium pay under the Fair Labor Standards Act, and are not exempt under the regulations in this part no matter how highly paid they might be.

(b)(1) The section 13(a)(1) exemptions and the regulations in this part also do not apply to police officers, detectives, deputy sheriffs, state troopers, highway patrol officers, investigators, inspectors, correctional officers, parole or probation officers, park rangers, fire fighters, paramedics, emergency medical technicians, ambulance personnel, rescue workers, hazardous materials workers and similar employees, regardless of rank or pay level, who perform work such as preventing, controlling or extinguishing fires of any type; rescuing fire, crime or accident victims; preventing or detecting crimes; conducting investigations or inspections for violations of law; performing surveillance; pursuing, restraining and apprehending suspects; detaining or supervising suspected and convicted criminals, including those on probation or parole; interviewing witnesses; interrogating and fingerprinting suspects; preparing investigative reports; or other similar work.

(2) Such employees do not qualify as exempt executive employees because their primary duty is not management of the enterprise in which the employee is employed or a customarily recognized department or subdivision thereof as required under § 541.100. Thus, for example, a police officer or fire fighter whose primary duty is to investigate crimes or fight fires is not exempt under section 13(a)(1) of the Act merely because the police officer or fire fighter also directs the work of other employees in the conduct of an investigation or fighting a fire.

(3) Such employees do not qualify as exempt administrative employees because their primary duty is not the performance of work directly related to the management or general business operations of the employer or the employer's customers as required under § 541.200.

(4) Such employees do not qualify as exempt professionals because their primary duty is not the performance of work requiring knowledge of an advanced type in a field of science or learning customarily acquired by a prolonged course of specialized intellectual instruction or the performance of work requiring invention, imagination, originality or talent in a recognized field of artistic or creative endeavor as required under § 541.300. Although some police officers, fire fighters, paramedics, emergency medical technicians and similar employees have college degrees, a specialized academic degree is not a standard prerequisite for employment in such occupations.

§ 541.4 Other laws and collective bargaining agreements.

The Fair Labor Standards Act provides minimum standards that may be exceeded, but cannot be waived or reduced. Employers must comply, for example, with any Federal, State or municipal laws, regulations or ordinances establishing a higher minimum wage or lower maximum workweek than those established under the Act. Similarly, employers, on their own initiative or under a collective bargaining agreement with a labor union, are not precluded by the Act from providing a wage higher than the statutory

minimum, a shorter workweek than the statutory maximum, or a higher overtime premium (double time, for example) than provided by the Act. While collective bargaining agreements cannot waive or reduce the Act's protections, nothing in the Act or the regulations in this part relieves employers from their contractual obligations under collective bargaining agreements.

SUBPART B—EXECUTIVE EMPLOYEES (§§ 541.100–541.106)

§ 541.100 General rule for executive employees.

(a) The term ''employee employed in a bona fide executive capacity'' in section 13(a)(1) of the Act shall mean any employee:

(1) Compensated on a salary basis pursuant to § 541.600 at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging or other facilities;

(2) Whose primary duty is management of the enterprise in which the employee is employed or of a customarily recognized department or subdivision thereof;

(3) Who customarily and regularly directs the work of two or more other employees; and

(4) Who has the authority to hire or fire other employees or whose suggestions and recommendations as to the hiring, firing, advancement, promotion or any other change of status of other employees are given particular weight.

(b) The phrase ''salary basis'' is defined at § 541.602; ''board, lodging or other facilities'' is defined at § 541.606; ''primary duty'' is defined at § 541.700; and ''customarily and regularly'' is defined at § 541.701.

[§ 541.101 Business owner.

The term ''employee employed in a bona fide executive capacity'' in section 13(a)(1) of the Act also includes any employee who owns at least a bona fide 20-percent equity interest in the enterprise in which the employee is employed, regardless of whether the business is a corporate or other type of organization, and who is actively engaged in its management. The term ''management'' is defined in § 541.102. The requirements of Subpart G (salary requirements) of this part do not apply to the business owners described in this section.]

§ 541.102 Management.

Generally, ''management'' includes, but is not limited to, activities such as interviewing, selecting, and training of employees; setting and adjusting their rates of pay and hours of work; directing the work of employees; maintaining production or sales records for use in supervision or control; appraising employees' productivity and efficiency for the purpose of recommending promotions or other changes in status; handling employee complaints and grievances; disciplining employees; planning the work; determining the techniques to be used; apportioning the work among the employees; determining the type of materials, supplies, machinery, equipment or tools to be used or merchandise to be bought, stocked and sold; controlling the flow and distribution of materials or merchandise and supplies; providing for the safety and security of the employees or the property; planning and controlling the budget; and monitoring or implementing legal compliance measures.

§ 541.103 Department or subdivision.

(a) The phrase ''a customarily recognized department or subdivision'' is intended to distinguish between a mere collection of employees assigned from time to time to a specific job or series of jobs and a unit with permanent status and function. A customarily recognized department or subdivision must have a permanent status and a continuing function. For example, a large employer's human resources department might have subdivisions for labor relations, pensions and other benefits, equal employment opportunity, and personnel management, each of which has a permanent status and function.

(b) When an enterprise has more than one establishment, the employee in charge of each establishment may be considered in charge of a recognized subdivision of the enterprise.

(c) A recognized department or subdivision need not be physically within the employer's establishment and may move from place to place. The mere fact that the employee works in more than one location does not invalidate the exemption if other factors show that the employee is actually in charge of a recognized unit with a continuing function in the organization.

(d) Continuity of the same subordinate personnel is not essential to the existence of a recognized unit with a continuing function. An otherwise exempt employee will not lose the exemption merely because the employee draws and supervises workers from a pool or supervises a team of workers drawn from other recognized units, if other factors are present that indicate that the employee is in charge of a recognized unit with a continuing function.

§ 541.104 Two or more other employees.

(a) To qualify as an exempt executive under § 541.100, the employee must customarily and regularly direct the work of two or more other employees. The phrase ''two or more other employees'' means two full-time employees or their equivalent. One full-time and two half-time employees, for example, are equivalent to two full-time employees. Four half-time employees are also equivalent.

(b) The supervision can be distributed among two, three or more employees, but each such employee must customarily and regularly direct the work of two or more other full-time employees or the equivalent. Thus, for example, a department with five full-time nonexempt workers may have up to two exempt supervisors if each such supervisor customarily and regularly directs the work of two of those workers.

(c) An employee who merely assists the manager of a particular department and supervises two or more employees only in the actual manager's absence does not meet this requirement.

(d) Hours worked by an employee cannot be credited more than once for different executives. Thus, a shared responsibility for the supervision of the same two employees in the same department does not satisfy this requirement. However, a full-time employee who works four hours for one supervisor and four hours for a different supervisor, for example, can be credited as a half-time employee for both supervisors.

§ 541.105 Particular weight.

To determine whether an employee's suggestions and recommendations are given ''particular weight,'' factors to be considered include, but are not limited to, whether it is part of the employee's job duties to make such suggestions and recommendations; the frequency with which such suggestions and recommendations are made or requested; and the frequency with which the employee's suggestions and recommendations are relied upon. Generally, an executive's suggestions and recommendations must pertain to employees whom the executive customarily and regularly directs. It does not include an occasional suggestion with regard to the change in status of a co-worker. An employee's suggestions and recommendations may still be deemed to have ''particular weight'' even if a higher level manager's recommendation has more importance and even if the employee does not have authority to make the ultimate decision as to the employee's change in status.

§ 541.106 Concurrent duties.

(a) Concurrent performance of exempt and nonexempt work does not disqualify an employee from the executive exemption if the requirements of § 541.100 are otherwise met. Whether an employee meets the requirements of § 541.100 when the employee performs concurrent duties is determined on a case-by-case basis and based on the factors set forth in § 541.700. Generally, exempt executives make the decision regarding when to perform nonexempt duties and remain responsible for the success or failure of business operations under their management while performing the nonexempt work. In contrast, the nonexempt employee generally is directed by a supervisor to perform the exempt work or performs the exempt work for defined time periods. An employee whose primary duty is ordinary production work or routine, recurrent or repetitive tasks cannot qualify for exemption as an executive.

(b) For example, an assistant manager in a retail establishment may perform work such as serving customers, cooking food, stocking shelves and cleaning the establishment, but performance of such nonexempt work does not preclude the exemption if the assistant manager's primary duty is management. An assistant manager can supervise employees and serve customers at the same time without losing the exemption. An exempt employee can also simultaneously direct the work of other employees and stock shelves.

(c) In contrast, a relief supervisor or working supervisor whose primary duty is performing nonexempt work on the production line in a manufacturing plant does not become exempt merely because the nonexempt production line employee occasionally has some responsibility for directing the work of other nonexempt production line employees when, for example, the exempt supervisor is unavailable. Similarly, an employee whose primary duty is to work as an electrician is not an exempt executive even if the employee also directs the work of other employees on the job site, orders parts and materials for the job, and handles requests from the prime contractor.

SUBPART C—ADMINISTRATIVE EMPLOYEES (§§ 541.200–541.204)

§ 541.200 General rule for administrative employees.

(a) The term ''employee employed in a bona fide administrative capacity'' in section 13(a)(1) of the Act shall mean any employee:

(1) Compensated on a salary or fee basis pursuant to § 541.600 at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging or other facilities;

(2) Whose primary duty is the performance of office or non-manual work directly related to the management or general business operations of the employer or the employer's customers; and

(3) Whose primary duty includes the exercise of discretion and independent judgment with respect to matters of significance.

(b) The term ''salary basis'' is defined at § 541.602; ''fee basis'' is defined at § 541.605;

''board, lodging or other facilities'' is defined at §541.606; and ''primary duty'' is defined at §541.700.

§541.201 Directly related to management or general business operations.

(a) To qualify for the administrative exemption, an employee's primary duty must be the performance of work directly related to the management or general business operations of the employer or the employer's customers. The phrase ''directly related to the management or general business operations'' refers to the type of work performed by the employee. To meet this requirement, an employee must perform work directly related to assisting with the running or servicing of the business, as distinguished, for example, from working on a manufacturing production line or selling a product in a retail or service establishment.

(b) Work directly related to management or general business operations includes, but is not limited to, work in functional areas such as tax; finance; accounting; budgeting; auditing; insurance; quality control; purchasing; procurement; advertising; marketing; research; safety and health; personnel management; human resources; employee benefits; labor relations; public relations, government relations; computer network, internet and database administration; legal and regulatory compliance; and similar activities. Some of these activities may be performed by employees who also would qualify for another exemption.

(c) An employee may qualify for the administrative exemption if the employee's primary duty is the performance of work directly related to the management or general business operations of the employer's customers. Thus, for example, employees acting as advisers or consultants to their employer's clients or customers (as tax experts or financial consultants, for example) may be exempt.

§541.202 Discretion and independent judgment.

(a) To qualify for the administrative exemption, an employee's primary duty must include the exercise of discretion and independent judgment with respect to matters of significance. In general, the exercise of discretion and independent judgment involves the comparison and the evaluation of possible courses of conduct, and acting or making a decision after the various possibilities have been considered. The term ''matters of significance'' refers to the level of importance or consequence of the work performed.

(b) The phrase ''discretion and independent judgment'' must be applied in the light of all the facts involved in the particular employment situation in which the question arises. Factors to consider when determining whether an employee exercises discretion and independent judgment with respect to matters of significance include, but are not limited to: whether the employee has authority to formulate, affect, interpret, or implement management policies or operating practices; whether the employee carries out major assignments in conducting the operations of the business; whether the employee performs work that affects business operations to a substantial degree, even if the employee's assignments are related to operation of a particular segment of the business; whether the employee has authority to commit the employer in matters that have significant financial impact; whether the employee has authority to waive or deviate from established policies and procedures without prior approval; whether the employee has authority to negotiate and bind the company on significant matters; whether the employee provides consultation or expert advice to management; whether the employee is involved in planning long- or short-term business objectives; whether the employee investigates and resolves matters of significance on behalf of management; and whether the employee represents the company in handling complaints, arbitrating disputes or resolving grievances.

(c) The exercise of discretion and independent judgment implies that the employee has authority to make an independent choice, free from immediate direction or supervision. However, employees can exercise discretion and independent judgment even if their decisions or recommendations are reviewed at a higher level. Thus, the term ''discretion and independent judgment'' does not require that the decisions made by an employee have a finality that goes with unlimited authority and a complete absence of review. The decisions made as a result of the exercise of discretion and independent judgment may consist of recommendations for action rather than the actual taking of action. The fact that an employee's decision may be subject to review and that upon occasion the decisions are revised or reversed after review does not mean that the employee is not exercising discretion and independent judgment. For example, the policies formulated by the credit manager of a large corporation may be subject to review by higher company officials who may approve or disapprove these policies. The management consultant who has made a study of the operations of a business and who has drawn a proposed change in organization may have the plan reviewed or revised by superiors before it is submitted to the client.

(d) An employer's volume of business may make it necessary to employ a number of employees to perform the same or similar work. The fact that many employees perform identical work or work of the same relative importance does not mean that the work of each such employee does not involve the exercise of discretion and independent judgment with respect to matters of significance.

(e) The exercise of discretion and independent judgment must be more than the use of skill in applying well-established techniques, procedures or specific standards described in manuals or other sources. See also §541.704 regarding use of manuals. The exercise of discretion and independent judgment also does not include clerical or secretarial work, recording or tabulating data, or performing other mechanical, repetitive, recurrent or routine work. An employee who simply tabulates data is not exempt, even if labeled as a ''statistician.''

(f) An employee does not exercise discretion and independent judgment with respect to matters of significance merely because the employer will experience financial losses if the employee fails to perform the job properly. For example, a messenger who is entrusted with carrying large sums of money does not exercise discretion and independent judgment with respect to matters of significance even though serious consequences may flow from the employee's neglect. Similarly, an employee who operates very expensive equipment does not exercise discretion and independent judgment with respect to matters of significance merely because improper performance of the employee's duties may cause serious financial loss to the employer.

§541.203 Administrative exemption examples.

(a) Insurance claims adjusters generally meet the duties requirements for the administrative exemption, whether they work for an insurance company or other type of company, if their duties include activities such as interviewing insureds, witnesses and physicians; inspecting property damage; reviewing factual information to prepare damage estimates; evaluating and making recommendations regarding coverage of claims; determining liability and total value of a claim; negotiating settlements; and making recommendations regarding litigation.

(b) Employees in the financial services industry generally meet the duties requirements for the administrative exemption if their duties include work such as collecting and analyzing information regarding the customer's income, assets, investments or debts; determining which financial products best meet the customer's needs and financial circumstances; advising the customer regarding the advantages and disadvantages of different financial products; and marketing, servicing or promoting the employer's financial products. However, an employee whose primary duty is selling financial products does not qualify for the administrative exemption.

(c) An employee who leads a team of other employees assigned to complete major projects for the employer (such as purchasing, selling or closing all or part of the business, negotiating a real estate transaction or a collective bargaining agreement, or designing and implementing productivity improvements) generally meets the duties requirements for the administrative exemption, even if the employee does not have direct supervisory responsibility over the other employees on the team.

(d) An executive assistant or administrative assistant to a business owner or senior executive of a large business generally meets the duties requirements for the administrative exemption if such employee, without specific instructions or prescribed procedures, has been delegated authority regarding matters of significance.

(e) Human resources managers who formulate, interpret or implement employment policies and management consultants who study the operations of a business and propose changes in organization generally meet the duties requirements for the administrative exemption. However, personnel clerks who ''screen'' applicants to obtain data regarding their minimum qualifications and fitness for employment generally do not meet the duties requirements for the administrative exemption. Such personnel clerks typically will reject all applicants who do not meet minimum standards for the particular job or for employment by the company. The minimum standards are usually set by the exempt human resources manager or other company officials, and the decision to hire from the group of qualified applicants who do meet the minimum standards is similarly made by the exempt human resources manager or other company officials. Thus, when the interviewing and screening functions are performed by the human resources manager or personnel manager who makes the hiring decision or makes recommendations for hiring from the pool of qualified applicants, such duties constitute exempt work, even though routine, because this work is directly and closely related to the employee's exempt functions.

(f) Purchasing agents with authority to bind the company on significant purchases generally meet the duties requirements for the administrative exemption even if they must consult with top management officials when making a purchase commitment for raw materials in excess of the contemplated plant needs.

(g) Ordinary inspection work generally does not meet the duties requirements for the administrative exemption. Inspectors normally perform specialized work along standardized lines involving well-established techniques and procedures which may have been catalogued and described in manuals or other sources. Such inspectors rely on techniques and skills acquired by special training

or experience. They have some leeway in the performance of their work but only within closely prescribed limits.

(h) Employees usually called examiners or graders, such as employees that grade lumber, generally do not meet the duties requirements for the administrative exemption. Such employees usually perform work involving the comparison of products with established standards which are frequently catalogued. Often, after continued reference to the written standards, or through experience, the employee acquires sufficient knowledge so that reference to written standards is unnecessary. The substitution of the employee's memory for a manual of standards does not convert the character of the work performed to exempt work requiring the exercise of discretion and independent judgment.

(i) Comparison shopping performed by an employee of a retail store who merely reports to the buyer the prices at a competitor's store does not qualify for the administrative exemption. However, the buyer who evaluates such reports on competitor prices to set the employer's prices generally meets the duties requirements for the administrative exemption.

(j) Public sector inspectors or investigators of various types, such as fire prevention or safety, building or construction, health or sanitation, environmental or soils specialists and similar employees, generally do not meet the duties requirements for the administrative exemption because their work typically does not involve work directly related to the management or general business operations of the employer. Such employees also do not qualify for the administrative exemption because their work involves the use of skills and technical abilities in gathering factual information, applying known standards or prescribed procedures, determining which procedure to follow, or determining whether prescribed standards or criteria are met.

§ 541.204 Educational establishments.

(a) The term ''employee employed in a bona fide administrative capacity'' in section 13(a)(1) of the Act also includes employees:

(1) Compensated on a salary or fee basis at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging, or other facilities; or on a salary basis which is at least equal to the entrance salary for teachers in the educational establishment by which employed; and

(2) Whose primary duty is performing administrative functions directly related to academic instruction or training in an educational establishment or department or subdivision thereof.

(b) The term ''educational establishment'' means an elementary or secondary school system, an institution of higher education or other educational institution. Sections 3(v) and 3(w) of the Act define elementary and secondary schools as those day or residential schools that provide elementary or secondary education, as determined under State law. Under the laws of most States, such education includes the curriculums in grades 1 through 12; under many it includes also the introductory programs in kindergarten. Such education in some States may also include nursery school programs in elementary education and junior college curriculums in secondary education. The term ''other educational establishment'' includes special schools for mentally or physically disabled or gifted children, regardless of any classification of such schools as elementary, secondary or higher. Factors relevant in determining whether post-secondary career programs are educational institutions include whether the school is licensed by a state agency responsible for the state's educational system or accredited by a nationally recognized accrediting organization for career schools. Also, for purposes of the exemption, no distinction is drawn between public and private schools, or between those operated for profit and those that are not for profit.

(c) The phrase ''performing administrative functions directly related to academic instruction or training'' means work related to the academic operations and functions in a school rather than to administration along the lines of general business operations. Such academic administrative functions include operations directly in the field of education. Jobs relating to areas outside the educational field are not within the definition of academic administration.

(1) Employees engaged in academic administrative functions include: the superintendent or other head of an elementary or secondary school system, and any assistants, responsible for administration of such matters as curriculum, quality and methods of instructing, measuring and testing the learning potential and achievement of students, establishing and maintaining academic and grading standards, and other aspects of the teaching program; the principal and any vice-principals responsible for the operation of an elementary or secondary school; department heads in institutions of higher education responsible for the administration of the mathematics department, the English department, the foreign language department, etc.; academic counselors who perform work such as administering school testing programs, assisting students with academic problems and advising students concerning degree requirements; and other employees with similar responsibilities.

(2) Jobs relating to building management and maintenance, jobs relating to the health of the students, and academic staff such as social workers, psychologists, lunch room managers or dietitians do not perform academic administrative functions. Although such work is not considered academic administration, such employees may qualify for exemption under § 541.200or under other sections of this part, provided the requirements for such exemptions are met.

SUBPART D—PROFESSIONAL EMPLOYEES (§§ 541.300–541.304)

§ 541.300 General rule for professional employees.

(a) The term ''employee employed in a bona fide professional capacity'' in section 13(a)(1) of the Act shall mean any employee:

(1) Compensated on a salary or fee basis pursuant to § 541.600 at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging or other facilities; and

(2) Whose primary duty is the performance of work:

(i) Requiring knowledge of an advanced type in a field of science or learning customarily acquired by a prolonged course of specialized intellectual instruction; or

(ii) Requiring invention, imagination, originality or talent in a recognized field of artistic or creative endeavor.

(b) The term ''salary basis'' is defined at § 541.602; ''fee basis'' is defined at § 541.605; ''board, lodging or other facilities'' is defined at § 541.606; and ''primary duty'' is defined at § 541.700.

§ 541.301 Learned professionals.

(a) To qualify for the learned professional exemption, an employee's primary duty must be the performance of work requiring advanced knowledge in a field of science or learning customarily acquired by a prolonged course of specialized intellectual instruction. This primary duty test includes three elements:

(1) The employee must perform work requiring advanced knowledge;

(2) The advanced knowledge must be in a field of science or learning; and

(3) The advanced knowledge must be customarily acquired by a prolonged course of specialized intellectual instruction.

(b) The phrase ''work requiring advanced knowledge'' means work which is predominantly intellectual in character, and which includes work requiring the consistent exercise of discretion and judgment, as distinguished from performance of routine mental, manual, mechanical or physical work. An employee who performs work requiring advanced knowledge generally uses the advanced knowledge to analyze, interpret or make deductions from varying facts or circumstances. Advanced knowledge cannot be attained at the high school level.

(c) The phrase ''field of science or learning'' includes the traditional professions of law, medicine, theology, accounting, actuarial computation, engineering, architecture, teaching, various types of physical, chemical and biological sciences, pharmacy and other similar occupations that have a recognized professional status as distinguished from the mechanical arts or skilled trades where in some instances the knowledge is of a fairly advanced type, but is not in a field of science or learning.

(d) The phrase ''customarily acquired by a prolonged course of specialized intellectual instruction'' restricts the exemption to professions where specialized academic training is a standard prerequisite for entrance into the profession. The best prima facie evidence that an employee meets this requirement is possession of the appropriate academic degree. However, the word ''customarily'' means that the exemption is also available to employees in such professions who have substantially the same knowledge level and perform substantially the same work as the degreed employees, but who attained the advanced knowledge through a combination of work experience and intellectual instruction. Thus, for example, the learned professional exemption is available to the occasional lawyer who has not gone to law school, or the occasional chemist who is not the possessor of a degree in chemistry. However, the learned professional exemption is not available for occupations that customarily may be performed with only the general knowledge acquired by an academic degree in any field, with knowledge acquired through an apprenticeship, or with training in the performance of routine mental, manual, mechanical or physical processes. The learned professional exemption also does not apply to occupations in which most employees have acquired their skill by experience rather than by advanced specialized intellectual instruction.

(e)(1) Registered or certified medical technologists. Registered or certified medical technologists who have successfully completed three academic years of pre-professional study in an accredited college or university plus a fourth year of professional course work in a school of medical technology approved by the Council of Medical Education of the American Medical Association generally meet the duties requirements for the learned professional exemption.

(2) Nurses. Registered nurses who are registered by the appropriate State examining board generally meet the duties requirements for the learned professional exemption. Licensed practical nurses and other similar health care employees, however, generally do not qualify as exempt learned professionals because possession of a specialized advanced academic degree is not a standard prerequisite for entry into such occupations.

(3) Dental hygienists. Dental hygienists who have successfully completed four academic years of pre-professional and professional study in an accredited college or university approved by the Commission on Accreditation of Dental and Dental Auxiliary Educational Programs of the American Dental Association generally meet the duties requirements for the learned professional exemption.

(4) Physician assistants. Physician assistants who have successfully completed four academic years of pre-professional and professional study, including graduation from a physician assistant program accredited by the Accreditation Review Commission on Education for the Physician Assistant, and who are certified by the National Commission on Certification of Physician Assistants generally meet the duties requirements for the learned professional exemption.

(5) Accountants. Certified public accountants generally meet the duties requirements for the learned professional exemption. In addition, many other accountants who are not certified public accountants but perform similar job duties may qualify as exempt learned professionals. However, accounting clerks, bookkeepers and other employees who normally perform a great deal of routine work generally will not qualify as exempt professionals.

(6) Chefs. Chefs, such as executive chefs and sous chefs, who have attained a four-year specialized academic degree in a culinary arts program, generally meet the duties requirements for the learned professional exemption. The learned professional exemption is not available to cooks who perform predominantly routine mental, manual, mechanical or physical work.

(7) Paralegals. Paralegals and legal assistants generally do not qualify as exempt learned professionals because an advanced specialized academic degree is not a standard prerequisite for entry into the field. Although many paralegals possess general four-year advanced degrees, most specialized paralegal programs are two-year associate degree programs from a community college or equivalent institution. However, the learned professional exemption is available for paralegals who possess advanced specialized degrees in other professional fields and apply advanced knowledge in that field in the performance of their duties. For example, if a law firm hires an engineer as a paralegal to provide expert advice on product liability cases or to assist on patent matters, that engineer would qualify for exemption.

(8) Athletic trainers. Athletic trainers who have successfully completed four academic years of pre-professional and professional study in a specialized curriculum accredited by the Commission on Accreditation of Allied Health Education Programs and who are certified by the Board of Certification of the National Athletic Trainers Association Board of Certification generally meet the duties requirements for the learned professional exemption.

[(9) Funeral directors or embalmers. Licensed funeral directors and embalmers who are licensed by and working in a state that requires successful completion of four academic years of pre-professional and professional study, including graduation from a college of mortuary science accredited by the American Board of Funeral Service Education, generally meet the duties requirements for the learned professional exemption.]

(f) The areas in which the professional exemption may be available are expanding. As knowledge is developed, academic training is broadened and specialized degrees are offered in new and diverse fields, thus creating new specialists in particular fields of science or learning. When an advanced specialized degree has become a standard requirement for a particular occupation, that occupation may have acquired the characteristics of a learned profession. Accrediting and certifying organizations similar to those listed in paragraphs (e)(1), (e)(3), (e)(4) and (e)(8) of this section also may be created in the future. Such organizations may develop similar specialized curriculums and certification programs which, if a standard requirement for a particular occupation, may indicate that the occupation has acquired the characteristics of a learned profession.

§ 541.302 Creative professionals.

(a) To qualify for the creative professional exemption, an employee's primary duty must be the performance of work requiring invention, imagination, originality or talent in a recognized field of artistic or creative endeavor as opposed to routine mental, manual, mechanical or physical work. The exemption does not apply to work which can be produced by a person with general manual or intellectual ability and training.

(b) To qualify for exemption as a creative professional, the work performed must be ''in a recognized field of artistic or creative endeavor.'' This includes such fields as music, writing, acting and the graphic arts.

(c) The requirement of ''invention, imagination, originality or talent'' distinguishes the creative professions from work that primarily depends on intelligence, diligence and accuracy. The duties of employees vary widely, and exemption as a creative professional depends on the extent of the invention, imagination, originality or talent exercised by the employee. Determination of exempt creative professional status, therefore, must be made on a case-by-case basis. This requirement generally is met by actors, musicians, composers, conductors, and soloists; painters who at most are given the subject matter of their painting; cartoonists who are merely told the title or underlying concept of a cartoon and must rely on their own creative ability to express the concept; essayists, novelists, short-story writers and screen-play writers who choose their own subjects and hand in a finished piece of work to their employers (the majority of such persons are, of course, not employees but self-employed); and persons holding the more responsible writing positions in advertising agencies. This requirement generally is not met by a person who is employed as a copyist, as an ''animator'' of motion-picture cartoons, or as a retoucher of photographs, since such work is not properly described as creative in character.

(d) Journalists may satisfy the duties requirements for the creative professional exemption if their primary duty is work requiring invention, imagination, originality or talent, as opposed to work which depends primarily on intelligence, diligence and accuracy. Employees of newspapers, magazines, television and other media are not exempt creative professionals if they only collect, organize and record information that is routine or already public, or if they do not contribute a unique interpretation or analysis to a news product. Thus, for example, newspaper reporters who merely rewrite press releases or who write standard recounts of public information by gathering facts on routine community events are not exempt creative professionals. Reporters also do not qualify as exempt creative professionals if their work product is subject to substantial control by the employer. However, journalists may qualify as exempt creative professionals if their primary duty is performing on the air in radio, television or other electronic media; conducting investigative interviews; analyzing or interpreting public events; writing editorials, opinion columns or other commentary; or acting as a narrator or commentator.

§ 541.303 Teachers.

(a) The term ''employee employed in a bona fide professional capacity'' in section 13(a)(1) of the Act also means any employee with a primary duty of teaching, tutoring, instructing or lecturing in the activity of imparting knowledge and who is employed and engaged in this activity as a teacher in an educational establishment by which the employee is employed. The term ''educational establishment'' is defined in § 541.204(b).

(b) Exempt teachers include, but are not limited to: Regular academic teachers; teachers of kindergarten or nursery school pupils; teachers of gifted or disabled children; teachers of skilled and semi-skilled trades and occupations; teachers engaged in automobile driving instruction; aircraft flight instructors; home economics teachers; and vocal or instrumental music instructors. Those faculty members who are engaged as teachers but also spend a considerable amount of their time in extracurricular activities such as coaching athletic teams or acting as moderators or advisors in such areas as drama, speech, debate or journalism are engaged in teaching. Such activities are a recognized part of the schools' responsibility in contributing to the educational development of the student.

(c) The possession of an elementary or secondary teacher's certificate provides a clear means of identifying the individuals contemplated as being within the scope of the exemption for teaching professionals. Teachers who possess a teaching certificate qualify for the exemption regardless of the terminology (e.g., permanent, conditional, standard, provisional, temporary, emergency, or unlimited) used by the State to refer to different kinds of certificates. However, private schools and public schools are not uniform in requiring a certificate for employment as an elementary or secondary school teacher, and a teacher's certificate is not generally necessary for employment in institutions of higher education or other educational establishments. Therefore, a teacher who is not certified may be considered for exemption, provided that such individual is employed as a teacher by the employing school or school system.

(d) The requirements of § 541.300 and Subpart G (salary requirements) of this part do not apply to the teaching professionals described in this section.

§ 541.304 Practice of law or medicine.

(a) The term ''employee employed in a bona fide professional capacity'' in section 13(a)(1) of the Act also shall mean:

(1) Any employee who is the holder of a valid license or certificate permitting the practice of law or medicine or any of their branches and is actually engaged in the practice thereof; and

(2) Any employee who is the holder of the requisite academic degree for the general practice of medicine and is engaged in an internship or resident program pursuant to the practice of the profession.

(b) In the case of medicine, the exemption applies to physicians and other practitioners licensed and practicing in the field of medical science and healing or any of the medical specialties practiced by physicians or

practitioners. The term ''physicians'' includes medical doctors including general practitioners and specialists, osteopathic physicians (doctors of osteopathy), podiatrists, dentists (doctors of dental medicine), and optometrists (doctors of optometry or bachelors of science in optometry).

(c) Employees engaged in internship or resident programs, whether or not licensed to practice prior to commencement of the program, qualify as exempt professionals if they enter such internship or resident programs after the earning of the appropriate degree required for the general practice of their profession.

(d) The requirements of §541.300 and subpart G (salary requirements) of this part do not apply to the employees described in this section.

SUBPART E—COMPUTER EMPLOYEES (§§541.400–541.402)

§541.400 General rule for computer employees.

(a) Computer systems analysts, computer programmers, software engineers or other similarly skilled workers in the computer field are eligible for exemption as professionals under section 13(a)(1) of the Act and under section 13(a)(17) of the Act. Because job titles vary widely and change quickly in the computer industry, job titles are not determinative of the applicability of this exemption.

(b) The section 13(a)(1)exemption applies to any computer employee who is compensated on a salary or fee basis at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal government, or $380 per week if employed in American Samoa by employers other than the Federal government)], exclusive of board, lodging, or other facilities.

The section 13(a)(17) exemption applies to any computer employee compensated on an hourly basis at a rate of not less than $27.63 an hour. In addition, under either section 13(a)(1) or section 13(a)(17) of the Act, the exemptions apply only to computer employees whose primary duty consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills.

(c) The term ''salary basis'' is defined at §541.602; ''fee basis'' is defined at §541.605; ''board, lodging or other facilities'' is defined at §541.606; and ''primary duty'' is defined at §541.700.

§541.401 Computer manufacture and repair.

The exemption for employees in computer occupations does not include employees engaged in the manufacture or repair of computer hardware and related equipment. Employees whose work is highly dependent upon, or facilitated by, the use of computers and computer software programs (e.g., engineers, drafters and others skilled in computer-aided design software), but who are not primarily engaged in computer systems analysis and programming or other similarly skilled computer-related occupations identified in §541.400(b), are also not exempt computer professionals.

§541.402 Executive and administrative computer employees.

Computer employees within the scope of this exemption, as well as those employees not within its scope, may also have executive and administrative duties which qualify the employees for exemption under subpart B or subpart C of this part. For example, systems analysts and computer programmers generally meet the duties requirements for the administrative exemption if their primary duty includes work such as planning, scheduling, and coordinating activities required to develop systems to solve complex business, scientific or engineering problems of the employer or the employer's customers. Similarly, a senior or lead computer programmer who manages the work of two or more other programmers in a customarily recognized department or subdivision of the employer, and whose recommendations as to the hiring, firing, advancement, promotion or other change of status of the other programmers are given particular weight, generally meets the duties requirements for the executive exemption.

[SUBPART F—OUTSIDE SALES EMPLOYEES (§§541.500–541.504)

§541.500 General rule for outside sales employees.

(a) The term ''employee employed in the capacity of outside salesman'' in section 13(a)(1) of the Act shall mean any employee:

(1) Whose primary duty is:

(i) making sales within the meaning of section 3(k) of the Act, or

(ii) obtaining orders or contracts for services or for the use of facilities for which a consideration will be paid by the client or customer; and

(2) Who is customarily and regularly engaged away from the employer's place or places of business in performing such primary duty.

(b) The term ''primary duty'' is defined at §541.700. In determining the primary duty of an outside sales employee, work performed incidental to and in conjunction with the employee's own outside sales or solicitations, including incidental deliveries and collections, shall be regarded as exempt outside sales work. Other work that furthers the employee's sales efforts also shall be regarded as exempt work including, for example, writing sales reports, updating or revising the employee's sales or display catalogue, planning itineraries and attending sales conferences.

(c) The requirements of subpart G (salary requirements) of this part do not apply to the outside sales employees described in this section.

§541.501 Making sales or obtaining orders.

(a) Section 541.500 requires that the employee be engaged in:

(1) Making sales within the meaning of section 3(k) of the Act, or

(2) Obtaining orders or contracts for services or for the use of facilities.

(b) Sales within the meaning of section 3(k) of the Act include the transfer of title to tangible property, and in certain cases, of tangible and valuable evidences of intangible property. Section 3(k) of the Act states that ''sale'' or ''sell'' includes any sale, exchange, contract to sell, consignment for sale, shipment for sale, or other disposition.

(c) Exempt outside sales work includes not only the sales of commodities, but also ''obtaining orders or contracts for services or for the use of facilities for which a consideration will be paid by the client or customer.'' Obtaining orders for ''the use of facilities'' includes the selling of time on radio or television, the solicitation of advertising for newspapers and other periodicals, and the solicitation of freight for railroads and other transportation agencies.

(d) The word ''services'' extends the outside sales exemption to employees who sell or take orders for a service, which may be performed for the customer by someone other than the person taking the order.

§541.502 Away from employer's place of business.

An outside sales employee must be customarily and regularly engaged ''away from the employer's place or places of business.'' The outside sales employee is an employee who makes sales at the customer's place of business or, if selling door-to-door, at the customer's home. Outside sales does not include sales made by mail, telephone or the Internet unless such contact is used merely as an adjunct to personal calls. Thus, any fixed site, whether home or office, used by a salesperson as a headquarters or for telephonic solicitation of sales is considered one of the employer's places of business, even though the employer is not in any formal sense the owner or tenant of the property. However, an outside sales employee does not lose the exemption by displaying samples in hotel sample rooms during trips from city to city; these sample rooms should not be considered as the employer's places of business. Similarly, an outside sales employee does not lose the exemption by displaying the employer's products at a trade show. If selling actually occurs, rather than just sales promotion, trade shows of short duration (i.e., one or two weeks) should not be considered as the employer's place of business.

§541.503 Promotion work.

(a) Promotion work is one type of activity often performed by persons who make sales, which may or may not be exempt outside sales work, depending upon the circumstances under which it is performed. Promotional work that is actually performed incidental to and in conjunction with an employee's own outside sales or solicitations is exempt work. On the other hand, promotional work that is incidental to sales made, or to be made, by someone else is not exempt outside sales work. An employee who does not satisfy the requirements of this subpart may still qualify as an exempt employee under other subparts of this rule.

(b) A manufacturer's representative, for example, may perform various types of promotional activities such as putting up displays and posters, removing damaged or spoiled stock from the merchant's shelves or rearranging the merchandise. Such an employee can be considered an exempt outside sales employee if the employee's primary duty is making sales or contracts. Promotion activities directed toward consummation of the employee's own sales are exempt. Promotional activities designed to stimulate sales that will be made by someone else are not exempt outside sales work.

(c) Another example is a company representative who visits chain stores, arranges the merchandise on shelves, replenishes stock by replacing old with new merchandise, sets up displays and consults with the store manager when inventory runs low, but does not obtain a commitment for additional purchases. The arrangement of merchandise on the shelves or the replenishing of stock is not exempt work unless it is incidental to and in conjunction with the employee's own outside sales. Because the employee in this instance does not consummate the sale nor direct efforts toward the consummation of a sale, the work is not exempt outside sales work.

§541.504 Drivers who sell.

(a) Drivers who deliver products and also sell such products may qualify as exempt

outside sales employees only if the employee has a primary duty of making sales. In determining the primary duty of drivers who sell, work performed incidental to and in conjunction with the employee's own outside sales or solicitations, including loading, driving or delivering products, shall be regarded as exempt outside sales work.

(b) Several factors should be considered in determining if a driver has a primary duty of making sales, including, but not limited to: a comparison of the driver's duties with those of other employees engaged as truck drivers and as salespersons; possession of a selling or solicitor's license when such license is required by law or ordinances; presence or absence of customary or contractual arrangements concerning amounts of products to be delivered; description of the employee's occupation in collective bargaining agreements; the employer's specifications as to qualifications for hiring; sales training; attendance at sales conferences; method of payment; and proportion of earnings directly attributable to sales.

(c) Drivers who may qualify as exempt outside sales employees include:

(1) A driver who provides the only sales contact between the employer and the customers visited, who calls on customers and takes orders for products, who delivers products from stock in the employee's vehicle or procures and delivers the product to the customer on a later trip, and who receives compensation commensurate with the volume of products sold.

(2) A driver who obtains or solicits orders for the employer's products from persons who have authority to commit the customer for purchases.

(3) A driver who calls on new prospects for customers along the employee's route and attempts to convince them of the desirability of accepting regular delivery of goods.

(4) A driver who calls on established customers along the route and persuades regular customers to accept delivery of increased amounts of goods or of new products, even though the initial sale or agreement for delivery was made by someone else.

(d) Drivers who generally would not qualify as exempt outside sales employees include:

(1) A route driver whose primary duty is to transport products sold by the employer through vending machines and to keep such machines stocked, in good operating condition, and in good locations.

(2) A driver who often calls on established customers day after day or week after week, delivering a quantity of the employer's products at each call when the sale was not significantly affected by solicitations of the customer by the delivering driver or the amount of the sale is determined by the volume of the customer's sales since the previous delivery.

(3) A driver primarily engaged in making deliveries to customers and performing activities intended to promote sales by customers (including placing point-of-sale and other advertising materials, price stamping commodities, arranging merchandise on shelves, in coolers or in cabinets, rotating stock according to date, and cleaning and otherwise servicing display cases), unless such work is in furtherance of the driver's own sales efforts.]

SUBPART G—SALARY REQUIREMENTS (§§ 541.600–541.607)

§ 541.600 Amount of salary required.

(a) To qualify as an exempt executive, administrative or professional employee under section 13(a)(1) of the Act, an employee must be compensated on a salary basis at a rate of not less than $684 per week [(or $455 per week if employed in the Commonwealth of the Northern Mariana Islands, Guam, Puerto Rico, or the U.S. Virgin Islands by employers other than the Federal Government, or $380 per week if employed in American Samoa by employers other than the Federal Government)], exclusive of board, lodging or other facilities. Administrative and professional employees may also be paid on a fee basis, as defined in § 541.605.

(b) The required amount of compensation per week may be translated into equivalent amounts for periods longer than one week. For example, the $684-per-week requirement will be met if the employee is compensated biweekly on a salary basis of not less than $1,368, semimonthly on a salary basis of not less than $1,482, or monthly on a salary basis of not less than $2,964. However, the shortest period of payment that will meet this compensation requirement is one week.

(c) In the case of academic administrative employees, the compensation requirement also may be met by compensation on a salary basis at a rate at least equal to the entrance salary for teachers in the educational establishment by which the employee is employed, as provided in § 541.204(a)(1).

(d) In the case of computer employees, the compensation requirement also may be met by compensation on an hourly basis at a rate not less than $27.63 an hour, as provided in § 541.400(b).

(e) In the case of professional employees, the compensation requirements in this section shall not apply to employees engaged as teachers (see § 541.303); employees who hold a valid license or certificate permitting the practice of law or medicine or any of their branches and are actually engaged in the practice thereof (see § 541.304); or to employees who hold the requisite academic degree for the general practice of medicine and are engaged in an internship or resident program pursuant to the practice of the profession (see § 541.304). In the case of medical occupations, the exception from the salary or fee requirement does not apply to pharmacists, nurses, therapists, technologists, sanitarians, dietitians, social workers, psychologists, psychometrists, or other professions which service the medical profession.

SUBPART H—DEFINITIONS AND MISCELLANEOUS PROVISIONS (§§ 541.700–541.710)

§ 541.601 Highly compensated employees.

(a)(1) Beginning on January 1, 2020, an employee with total annual compensation of at least $107,432 is deemed exempt under section 13(a)(1) of the Act if the employee customarily and regularly performs any one or more of the exempt duties or responsibilities of an executive, administrative or professional employee as identified in subparts B, C or D of this part.

(2) Where the annual period covers periods both prior to and after January 1, 2020, the amount of total annual compensation due will be determined on a proportional basis.

(b)(1) ''Total annual compensation'' must include at least $684 per week paid on a salary or fee basis as set forth in §§ 541.602 and 541.605, except that § 541.602(a)(3) shall not apply to highly compensated employees. Total annual compensation may also include commissions, nondiscretionary bonuses and other nondiscretionary compensation earned during a 52-week period. Total annual compensation does not include board, lodging and other facilities as defined in § 541.606, and does not include payments for medical insurance, payments for life insurance, contributions to retirement plans and the cost of other fringe benefits.

(2) If an employee's total annual compensation does not total at least the amount specified in the applicable subsection of paragraph (a) by the last pay period of the 52-week period, the employer may, during the last pay period or within one month after the end of the 52-week period, make one final payment sufficient to achieve the required level. For example, for a 52-week period beginning January 1, 2020, an employee may earn $90,000 in base salary, and the employer may anticipate based upon past sales that the employee also will earn $17,432 in commissions. However, due to poor sales in the final quarter of the year, the employee actually only earns $12,000 in commissions. In this situation, the employer may within one month after the end of the year make a payment of at least $5,432 to the employee. Any such final payment made after the end of the 52-week period may count only toward the prior year's total annual compensation and not toward the total annual compensation in the year it was paid. If the employer fails to make such a payment, the employee does not qualify as a highly compensated employee, but may still qualify as exempt under subparts B, C, or D of this part.

(3) An employee who does not work a full year for the employer, either because the employee is newly hired after the beginning of the year or ends the employment before the end of the year, may qualify for exemption under this section if the employee receives a pro rata portion of the minimum amount established in paragraph (a) of this section, based upon the number of weeks that the employee will be or has been employed. An employer may make one final payment as under paragraph (b)(2) of this section within one month after the end of employment.

(4) The employer may utilize any 52-week period as the year, such as a calendar year, a fiscal year, or an anniversary of hire year. If the employer does not identify some other year period in advance, the calendar year will apply.

(c) A high level of compensation is a strong indicator of an employee's exempt status, thus eliminating the need for a detailed analysis of the employee's job duties. Thus, a highly compensated employee will qualify for exemption if the employee customarily and regularly performs any one or more of the exempt duties or responsibilities of an executive, administrative or professional employee identified in subparts B, C or D of this part. An employee may qualify as a highly compensated executive employee, for example, if the employee customarily and regularly directs the work of two or more other employees, even though the employee does not meet all of the other requirements for the executive exemption under § 541.100.

(d) This section applies only to employees whose primary duty includes performing office or non-manual work. Thus, for example, non-management production-line workers and non-management employees in maintenance, construction and similar occupations such as carpenters, electricians, mechanics, plumbers, iron workers, craftsmen, operating engineers, longshoremen, construction workers, laborers and other employees who perform work involving repetitive operations with their hands, physical skill and energy are not exempt under this section no matter how highly paid they might be.

§ 541.602 Salary basis.

(a) *General rule.* An employee will be considered to be paid on a ''salary basis'' within the meaning of this part if the employee regularly receives each pay period on a weekly, or less frequent basis, a predetermined amount constituting all or part of the employee's compensation, which amount is not subject to reduction because of variations in the quality or quantity of the work performed.

(1) Subject to the exceptions provided in paragraph (b) of this section, an exempt employee must receive the full salary for any week in which the employee performs any work without regard to the number of days or hours worked. Exempt employees need not be paid for any workweek in which they perform no work.

(2) An employee is not paid on a salary basis if deductions from the employee's predetermined compensation are made for absences occasioned by the employer or by the operating requirements of the business. If the employee is ready, willing and able to work, deductions may not be made for time when work is not available.

(3) Up to ten percent of the salary amount required by §541.600(a) may be satisfied by the payment of nondiscretionary bonuses, incentives and commissions, that are paid annually or more frequently. The employer may utilize any 52-week period as the year, such as a calendar year, a fiscal year, or an anniversary of hire year. If the employer does not identify some other year period in advance, the calendar year will apply. This provision does not apply to highly compensated employees under §541.601.

(i) If by the last pay period of the 52-week period the sum of the employee's weekly salary plus nondiscretionary bonus, incentive, and commission payments received is less than 52 times the weekly salary amount required by §541.600(a), the employer may make one final payment sufficient to achieve the required level no later than the next pay period after the end of the year. Any such final payment made after the end of the 52–week period may count only toward the prior year's salary amount and not toward the salary amount in the year it was paid.

(ii) An employee who does not work a full 52-week period for the employer, either because the employee is newly hired after the beginning of this period or ends the employment before the end of this period, may qualify for exemption if the employee receives a *pro rata* portion of the minimum amount established in paragraph (a)(3) of this section, based upon the number of weeks that the employee will be or has been employed. An employer may make one final payment as under paragraph (a)(3)(i) of this section within one pay period after the end of employment.

(b) *Exceptions.* The prohibition against deductions from pay in the salary basis requirement is subject to the following exceptions:

(1) Deductions from pay may be made when an exempt employee is absent from work for one or more full days for personal reasons, other than sickness or disability. Thus, if an employee is absent for two full days to handle personal affairs, the employee's salaried status will not be affected if deductions are made from the salary for two full-day absences. However, if an exempt employee is absent for one and a half days for personal reasons, the employer can deduct only for the one full-day absence.

(2) Deductions from pay may be made for absences of one or more full days occasioned by sickness or disability (including work-related accidents) if the deduction is made in accordance with a bona fide plan, policy or practice of providing compensation for loss of salary occasioned by such sickness or disability. The employer is not required to pay any portion of the employee's salary for full-day absences for which the employee receives compensation under the plan, policy or practice. Deductions for such full-day absences also may be made before the employee has qualified under the plan, policy or practice, and after the employee has exhausted the leave allowance thereunder. Thus, for example, if an employer maintains a short-term disability insurance plan providing salary replacement for 12 weeks starting on the fourth day of absence, the employer may make deductions from pay for the three days of absence before the employee qualifies for benefits under the plan; for the twelve weeks in which the employee receives salary replacement benefits under the plan; and for absences after the employee has exhausted the 12 weeks of salary replacement benefits. Similarly, an employer may make deductions from pay for absences of one or more full days if salary replacement benefits are provided under a State disability insurance law or under a State workers' compensation law.

(3) While an employer cannot make deductions from pay for absences of an exempt employee occasioned by jury duty, attendance as a witness or temporary military leave, the employer can offset any amounts received by an employee as jury fees, witness fees or military pay for a particular week against the salary due for that particular week without loss of the exemption.

(4) Deductions from pay of exempt employees may be made for penalties imposed in good faith for infractions of safety rules of major significance. Safety rules of major significance include those relating to the prevention of serious danger in the workplace or to other employees, such as rules prohibiting smoking in explosive plants, oil refineries and coal mines.

(5) Deductions from pay of exempt employees may be made for unpaid disciplinary suspensions of one or more full days imposed in good faith for infractions of workplace conduct rules. Such suspensions must be imposed pursuant to a written policy applicable to all employees. Thus, for example, an employer may suspend an exempt employee without pay for three days for violating a generally applicable written policy prohibiting sexual harassment. Similarly, an employer may suspend an exempt employee without pay for twelve days for violating a generally applicable written policy prohibiting workplace violence.

(6) An employer is not required to pay the full salary in the initial or terminal week of employment. Rather, an employer may pay a proportionate part of an employee's full salary for the time actually worked in the first and last week of employment. In such weeks, the payment of an hourly or daily equivalent of the employee's full salary for the time actually worked will meet the requirement. However, employees are not paid on a salary basis within the meaning of these regulations if they are employed occasionally for a few days, and the employer pays them a proportionate part of the weekly salary when so employed.

(7) An employer is not required to pay the full salary for weeks in which an exempt employee takes unpaid leave under the Family and Medical Leave Act. Rather, when an exempt employee takes unpaid leave under the Family and Medical Leave Act, an employer may pay a proportionate part of the full salary for time actually worked. For example, if an employee who normally works 40 hours per week uses four hours of unpaid leave under the Family and Medical Leave Act, the employer could deduct 10 percent of the employee's normal salary that week.

(c) When calculating the amount of a deduction from pay allowed under paragraph (b) of this section, the employer may use the hourly or daily equivalent of the employee's full weekly salary or any other amount proportional to the time actually missed by the employee. A deduction from pay as a penalty for violations of major safety rules under paragraph (b)(4) of this section may be made in any amount.

§541.603 Effect of improper deductions from salary.

(a) An employer who makes improper deductions from salary shall lose the exemption if the facts demonstrate that the employer did not intend to pay employees on a salary basis. An actual practice of making improper deductions demonstrates that the employer did not intend to pay employees on a salary basis. The factors to consider when determining whether an employer has an actual practice of making improper deductions include, but are not limited to: the number of improper deductions, particularly as compared to the number of employee infractions warranting discipline; the time period during which the employer made improper deductions; the number and geographic location of employees whose salary was improperly reduced; the number and geographic location of managers responsible for taking the improper deductions; and whether the employer has a clearly communicated policy permitting or prohibiting improper deductions.

(b) If the facts demonstrate that the employer has an actual practice of making improper deductions, the exemption is lost during the time period in which the improper deductions were made for employees in the same job classification working for the same managers responsible for the actual improper deductions. Employees in different job classifications or who work for different managers do not lose their status as exempt employees. Thus, for example, if a manager at a company facility routinely docks the pay of engineers at that facility for partial-day personal absences, then all engineers at that facility whose pay could have been improperly docked by the manager would lose the exemption; engineers at other facilities or working for other managers, however, would remain exempt.

(c) Improper deductions that are either isolated or inadvertent will not result in loss of the exemption for any employees subject to such improper deductions, if the employer reimburses the employees for such improper deductions.

(d) If an employer has a clearly communicated policy that prohibits the improper pay deductions specified in §541.602(a) and includes a complaint mechanism, reimburses employees for any improper deductions and makes a good faith commitment to comply in the future, such employer will not lose the exemption for any employees unless the employer willfully violates the policy by continuing to make improper deductions after receiving employee complaints. If an employer fails to reimburse employees for any improper deductions or continues to make improper deductions after receiving employee complaints, the exemption is lost during the time period in which the improper deductions were made for employees in the same job classification working for the same managers responsible for the actual improper deductions. The best evidence of a clearly communicated policy is a written policy that was distributed to employees prior to the improper pay deductions by, for example, providing a copy of the policy to employees at the time of hire, publishing the policy in an employee handbook or publishing the policy on the employer's Intranet.

(e) This section shall not be construed in an unduly technical manner so as to defeat the exemption.

§541.604 Minimum guarantee plus extras.

(a) An employer may provide an exempt employee with additional compensation without losing the exemption or violating the salary basis requirement, if the employment arrangement also includes a guarantee of at least the minimum weekly-required

amount paid on a salary basis. Thus, for example, an exempt employee guaranteed at least $684 each week paid on a salary basis may also receive additional compensation of a one percent commission on sales. An exempt employee also may receive a percentage of the sales or profits of the employer if the employment arrangement also includes a guarantee of at least $684 each week paid on a salary basis. Similarly, the exemption is not lost if an exempt employee who is guaranteed at least $684 each week paid on a salary basis also receives additional compensation based on hours worked for work beyond the normal workweek. Such additional compensation may be paid on any basis (e.g., flat sum, bonus payment, straight-time hourly amount, time and one-half or any other basis), and may include paid time off.

(b) An exempt employee's earnings may be computed on an hourly, a daily or a shift basis, without losing the exemption or violating the salary basis requirement, if the employment arrangement also includes a guarantee of at least the minimum weekly required amount paid on a salary basis regardless of the number of hours, days or shifts worked, and a reasonable relationship exists between the guaranteed amount and the amount actually earned. The reasonable relationship test will be met if the weekly guarantee is roughly equivalent to the employee's usual earnings at the assigned hourly, daily or shift rate for the employee's normal scheduled workweek. Thus, for example, an exempt employee guaranteed compensation of at least $725 for any week in which the employee performs any work, and who normally works four or five shifts each week, may be paid $210 per shift without violating the $684-per-week salary basis requirement. The reasonable relationship requirement applies only if the employee's pay is computed on an hourly, daily or shift basis. It does not apply, for example, to an exempt store manager paid a guaranteed salary per week that exceeds the current salary level who also receives a commission of one-half percent of all sales in the store or five percent of the store's profits, which in some weeks may total as much as, or even more than, the guaranteed salary.

§ 541.605 Fee basis.

(a) Administrative and professional employees may be paid on a fee basis, rather than on a salary basis. An employee will be considered to be paid on a ''fee basis'' within the meaning of these regulations if the employee is paid an agreed sum for a single job regardless of the time required for its completion. These payments resemble piecework payments with the important distinction that generally a ''fee'' is paid for the kind of job that is unique rather than for a series of jobs repeated an indefinite number of times and for which payment on an identical basis is made over and over again. Payments based on the number of hours or days worked and not on the accomplishment of a given single task are not considered payments on a fee basis.

(b) To determine whether the fee payment meets the minimum amount of salary required for exemption under these regulations, the amount paid to the employee will be tested by determining the time worked on the job and whether the fee payment is at a rate that would amount to at least the minimum salary per week, as required by §§ 541.600(a) and 541.602(a), if the employee worked 40 hours. Thus, an artist paid $350 for a picture that took 20 hours to complete meets the $684 minimum salary requirement for exemption since earnings at this rate would yield the artist $700 if 40 hours were worked.

§ 541.606 Board, lodging or other facilities.

(a) To qualify for exemption under section 13(a)(1) of the Act, an employee must earn the minimum salary amount set forth in § 541.600, ''exclusive of board, lodging or other facilities.'' The phrase ''exclusive of board, lodging or other facilities'' means ''free and clear'' or independent of any claimed credit for non-cash items of value that an employer may provide to an employee. Thus, the costs incurred by an employer to provide an employee with board, lodging or other facilities may not count towards the minimum salary amount required for exemption under this part 541. Such separate transactions are not prohibited between employers and their exempt employees, but the costs to employers associated with such transactions may not be considered when determining if an employee has received the full required minimum salary payment.

(b) Regulations defining what constitutes ''board, lodging, or other facilities'' are contained in 29 CFR part 531 <<**which are incorporated herein**>>. **[**As described in 29 CFR 531.32, the term ''other facilities'' refers to items similar to board and lodging, such as meals furnished at company restaurants or cafeterias or by hospitals, hotels, or restaurants to their employees; meals, dormitory rooms, and tuition furnished by a college to its student employees; merchandise furnished at company stores or commissaries, including articles of food, clothing, and household effects; housing furnished for dwelling purposes; and transportation furnished to employees for ordinary commuting between their homes and work.**]**

[§ 541.607] [Reserved by 85 FR 34970 Effective: June 8, 2020]

§ 541.700 Primary duty.

(a) To qualify for exemption under this part, an employee's ''primary duty'' must be the performance of exempt work. The term ''primary duty'' means the principal, main, major or most important duty that the employee performs. Determination of an employee's primary duty must be based on all the facts in a particular case, with the major emphasis on the character of the employee's job as a whole. Factors to consider when determining the primary duty of an employee include, but are not limited to, the relative importance of the exempt duties as compared with other types of duties; the amount of time spent performing exempt work; the employee's relative freedom from direct supervision; and the relationship between the employee's salary and the wages paid to other employees for the kind of nonexempt work performed by the employee.

(b) The amount of time spent performing exempt work can be a useful guide in determining whether exempt work is the primary duty of an employee. Thus, employees who spend more than 50 percent of their time performing exempt work will generally satisfy the primary duty requirement. Time alone, however, is not the sole test, and nothing in this section requires that exempt employees spend more than 50 percent of their time performing exempt work. Employees who do not spend more than 50 percent of their time performing exempt duties may nonetheless meet the primary duty requirement if the other factors support such a conclusion.

(c) Thus, for example, assistant managers in a retail establishment who perform exempt executive work such as supervising and directing the work of other employees, ordering merchandise, managing the budget and authorizing payment of bills may have management as their primary duty even if the assistant managers spend more than 50 percent of the time performing nonexempt work such as running the cash register. However, if such assistant managers are closely supervised and earn little more than the nonexempt employees, the assistant managers generally would not satisfy the primary duty requirement.

§ 541.701 Customarily and regularly.

The phrase ''customarily and regularly'' means a frequency that must be greater than occasional but which, of course, may be less than constant. Tasks or work performed ''customarily and regularly'' includes work normally and recurrently performed every workweek; it does not include isolated or one-time tasks.

§ 541.702 Exempt and nonexempt work.

The term ''exempt work'' means all work described in §§ 541.100, 541.101, 541.200, 541.300, 541.301, 541.302, 541.303, 541.304, <<**and**>> 541.400 **[**and 541.500**]**, and the activities directly and closely related to such work. All other work is considered ''nonexempt.''

§ 541.703 Directly and closely related.

(a) Work that is ''directly and closely related'' to the performance of exempt work is also considered exempt work. The phrase ''directly and closely related'' means tasks that are related to exempt duties and that contribute to or facilitate performance of exempt work. Thus, ''directly and closely related'' work may include physical tasks and menial tasks that arise out of exempt duties, and the routine work without which the exempt employee's exempt work cannot be performed properly. Work ''directly and closely related'' to the performance of exempt duties may also include recordkeeping; monitoring and adjusting machinery; taking notes; using the computer to create documents or presentations; opening the mail for the purpose of reading it and making decisions; and using a photocopier or fax machine. Work is not ''directly and closely related'' if the work is remotely related or completely unrelated to exempt duties.

(b) The following examples further illustrate the type of work that is and is not normally considered as directly and closely related to exempt work:

(1) Keeping time, production or sales records for subordinates is work directly and closely related to an exempt executive's function of managing a department and supervising employees.

(2) The distribution of materials, merchandise or supplies to maintain control of the flow of and expenditures for such items is directly and closely related to the performance of exempt duties.

(3) A supervisor who spot checks and examines the work of subordinates to determine whether they are performing their duties properly, and whether the product is satisfactory, is performing work which is directly and closely related to managerial and supervisory functions, so long as the checking is distinguishable from the work ordinarily performed by a nonexempt inspector.

(4) A supervisor who sets up a machine may be engaged in exempt work, depending upon the nature of the industry and the operation. In some cases the setup work, or adjustment of the machine for a particular job, is typically performed by the same employees who operate the machine. Such setup work is part of the production operation and is not exempt. In other cases, the setting up of the work is a highly skilled operation which the ordinary production worker or machine tender typically does not perform. In large plants, non-supervisors may perform such work. However, particularly in small plants, such work may be a regular duty of the executive and is directly and closely related to the executive's responsibility for the work performance of subordinates and for the adequacy of the final product. Under such circumstances, it is exempt work.

(5) A department manager in a retail or service establishment who walks about the sales floor observing the work of sales personnel under the employee's supervision to determine the effectiveness of their sales techniques, checks on the quality of customer service being given, or observes customer preferences is performing work which is directly and closely related to managerial and supervisory functions.

(6) A business consultant may take extensive notes recording the flow of work and materials through the office or plant of the client; after returning to the office of the employer, the consultant may personally use the computer to type a report and create a proposed table of organization. Standing alone, or separated from the primary duty, such note-taking and typing would be routine in nature. However, because this work is necessary for analyzing the data and making recommendations, the work is directly and closely related to exempt work. While it is possible to assign note-taking and typing to nonexempt employees, and in fact it is frequently the practice to do so, delegating such routine tasks is not required as a condition of exemption.

(7) A credit manager who makes and administers the credit policy of the employer, establishes credit limits for customers, authorizes the shipment of orders on credit, and makes decisions on whether to exceed credit limits would be performing work exempt under §541.200. Work that is directly and closely related to these exempt duties may include checking the status of accounts to determine whether the credit limit would be exceeded by the shipment of a new order, removing credit reports from the files for analysis, and writing letters giving credit data and experience to other employers or credit agencies.

(8) A traffic manager in charge of planning a company's transportation, including the most economical and quickest routes for shipping merchandise to and from the plant, contracting for common-carrier and other transportation facilities, negotiating with carriers for adjustments for damages to merchandise, and making the necessary rearrangements resulting from delays, damages or irregularities in transit, is performing exempt work. If the employee also spends part of the day taking telephone orders for local deliveries, such order-taking is a routine function and is not directly and closely related to the exempt work.

(9) An example of work directly and closely related to exempt professional duties is a chemist performing menial tasks such as cleaning a test tube in the middle of an original experiment, even though such menial tasks can be assigned to laboratory assistants.

(10) A teacher performs work directly and closely related to exempt duties when, while taking students on a field trip, the teacher drives a school van or monitors the students' behavior in a restaurant.

§541.704 Use of manuals.

The use of manuals, guidelines or other established procedures containing or relating to highly technical, scientific, legal, financial or other similarly complex matters that can be understood or interpreted only by those with advanced or specialized knowledge or skills does not preclude exemption under section 13(a)(1) of the Act or the regulations in this part. Such manuals and procedures provide guidance in addressing difficult or novel circumstances and thus use of such reference material would not affect an employee's exempt status. The section 13(a)(1) exemptions are not available, however, for employees who simply apply well-established techniques or procedures described in manuals or other sources within closely prescribed limits to determine the correct response to an inquiry or set of circumstances.

§541.705 Trainees.

The executive, administrative, professional, [outside sales] and computer employee exemptions do not apply to employees training for employment in an executive, administrative, professional, [outside sales] or computer employee capacity who are not actually performing the duties of an executive, administrative, professional, [outside sales] or computer employee.

§541.706 Emergencies.

(a) An exempt employee will not lose the exemption by performing work of a normally nonexempt nature because of the existence of an emergency. Thus, when emergencies arise that threaten the safety of employees, a cessation of operations or serious damage to the employer's property, any work performed in an effort to prevent such results is considered exempt work.

(b) An ''emergency'' does not include occurrences that are not beyond control or for which the employer can reasonably provide in the normal course of business. Emergencies generally occur only rarely, and are events that the employer cannot reasonably anticipate.

(c) The following examples illustrate the distinction between emergency work considered exempt work and routine work that is not exempt work:

(1) A mine superintendent who pitches in after an explosion and digs out workers who are trapped in the mine is still a bona fide executive.

(2) Assisting nonexempt employees with their work during periods of heavy workload or to handle rush orders is not exempt work.

(3) Replacing a nonexempt employee during the first day or partial day of an illness may be considered exempt emergency work depending on factors such as the size of the establishment and of the executive's department, the nature of the industry, the consequences that would flow from the failure to replace the ailing employee immediately, and the feasibility of filling the employee's place promptly.

(4) Regular repair and cleaning of equipment is not emergency work, even when necessary to prevent fire or explosion; however, repairing equipment may be emergency work if the breakdown of or damage to the equipment was caused by accident or carelessness that the employer could not reasonably anticipate.

§541.707 Occasional tasks.

Occasional, infrequently recurring tasks that cannot practicably be performed by nonexempt employees, but are the means for an exempt employee to properly carry out exempt functions and responsibilities, are considered exempt work. The following factors should be considered in determining whether such work is exempt work: Whether the same work is performed by any of the exempt employee's subordinates; practicability of delegating the work to a nonexempt employee; whether the exempt employee performs the task frequently or occasionally; and existence of an industry practice for the exempt employee to perform the task.

§541.708 Combination exemptions.

Employees who perform a combination of exempt duties as set forth in the regulations in this part for executive, administrative, professional, [outside sales] and computer employees may qualify for exemption. Thus, for example, an employee whose primary duty involves a combination of exempt administrative and exempt executive work may qualify for exemption. In other words, work that is exempt under one section of this part will not defeat the exemption under any other section.

[§541.709 Motion picture producing industry.

The requirement that the employee be paid ''on a salary basis'' does not apply to an employee in the motion picture producing industry who is compensated at a base rate of at least $1,043 per week (exclusive of board, lodging, or other facilities). Thus, an employee in this industry who is otherwise exempt under subparts B, C, or D of this part, and who is employed at a base rate of at least the applicable current minimum amount a week is exempt if paid a proportionate amount (based on a week of not more than 6 days) for any week in which the employee does not work a full workweek for any reason. Moreover, an otherwise exempt employee in this industry qualifies for exemption if the employee is employed at a daily rate under the following circumstances:

(a) The employee is in a job category for which a weekly base rate is not provided and the daily base rate would yield at least the minimum weekly amount if 6 days were worked; or

(b) The employee is in a job category having the minimum weekly base rate and the daily base rate is at least one-sixth of such weekly base rate.]

§541.710 Employees of public agencies.

(a) An employee of a public agency who otherwise meets the salary basis requirements of §541.602 shall not be disqualified from exemption under §§541.100, 541.200, 541.300 or 541.400 on the basis that such employee is paid according to a pay system established by statute, ordinance or regulation, or by a policy or practice established pursuant to principles of public accountability, under which the employee accrues personal leave and sick leave and which requires the public agency employee's pay to be reduced or such employee to be placed on leave without pay for absences for personal reasons or because of illness or injury of less than one work-day when accrued leave is not used by an employee because:

(1) Permission for its use has not been sought or has been sought and denied;

(2) Accrued leave has been exhausted; or

(3) The employee chooses to use leave without pay.

(b) Deductions from the pay of an employee of a public agency for absences due to a budget-required furlough shall not disqualify the employee from being paid on a salary basis except in the workweek in which the furlough occurs and for which the employee's pay is accordingly reduced.

MEASURE READ THE FIRST TIME—S. 4088

Ms. HASSAN. Mr. President, I understand that there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The senior assistant legislative clerk read as follows:

A bill (S. 4088) to prohibit the Secretary of Health and Human Services from lessening the stringency of, and to prohibit the Secretary of Homeland Security from ceasing or lessening implementation of, the COVID–19 border health provisions through the end of the COVID–19 pandemic, and for other purposes.

Ms. HASSAN. I now ask for a second reading, and in order to place the bill

on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard.

The bill will receive its second reading on the next legislative day.

VETERANS RAPID RETRAINING ASSISTANCE PROGRAM RESTORATION AND RECOVERY ACT OF 2022

Ms. HASSAN. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S. 4089, which was introduced earlier today.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 4089) to restore entitlement to educational assistance under Veterans Rapid Retraining Program in cases of a closure of an educational institution or a disapproval of a program of education, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Ms. HASSAN. I further ask unanimous consent that the bill be considered read three times.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill was ordered to be engrossed for a third reading and was read the third time.

Ms. HASSAN. I know of no further debate on the bill.

The PRESIDING OFFICER. If there is no further debate and the bill having been read the third time, the question is, Shall the bill pass?

The bill (S. 4089) was passed, as follows:

S. 4089

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Veterans Rapid Retraining Assistance Program Restoration and Recovery Act of 2022''.

SEC. 2. RESTORATION OF ENTITLEMENT UNDER VETERANS RAPID RETRAINING ASSISTANCE PROGRAM.

(a) IN GENERAL.—Section 8006 of the American Rescue Plan Act of 2021 (Public Law 117–2), as amended by the Training in High-demand Roles to Improve Veteran Employment Act (Public Law 117–16), is further amended—

(1) by redesignating subsection (n) as subsection (o); and

(2) by inserting after subsection (m), the following new subsection (n):

''(n) EFFECTS OF CLOSURE OF AN EDUCATIONAL INSTITUTION OR DISAPPROVAL OF A PROGRAM OF EDUCATION.—

''(1) IN GENERAL.—Any payment of retraining assistance under subsection (d)(1) shall not be charged against any entitlement to retraining assistance described in subsection (a) if the Secretary determines that an individual was unable to complete a course or program of education as a result of —

''(A) the closure of an educational institution; or

''(B) the disapproval of a program of education by the State approving agency or the Secretary when acting in the role of the State approving agency.

''(2) PERIOD NOT CHARGED.—The period for which, by reason of this subsection, retraining assistance is not charged shall be equal to the full amount of retraining assistance provided for enrollment in the program of education.

''(3) HALT OF PAYMENTS TO CERTAIN EDUCATIONAL INSTITUTIONS.—In the event of a closure or disapproval, as described in paragraph (1), the educational institution shall not receive any further payments under subsection (d).

''(4) RECOVERY OF FUNDS.—In the event of a closure or disapproval, as described in paragraph (1), any payment already made under subsection (d) to the educational institution shall be considered an overpayment and constitute a liability of such institution to the United States.''.

(b) CONFORMING AMENDMENT.—In subsection (b)(3) of such section, strike the period and insert '', except for an individual described in subsection (n).''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply as if included in the American Rescue Plan Act of 2021 (Public Law 117–2).

Ms. HASSAN. I ask unanimous consent that the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

HONORING THE LIFE, ACHIEVEMENTS, AND LEGACY OF THE HONORABLE MADELEINE K. ALBRIGHT

Ms. HASSAN. Mr. President, I ask unanimous consent that the Committee on the Judiciary be discharged from further consideration and the Senate now proceed to S. Res. 585.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 585) honoring the life, achievements, and legacy of the Honorable Madeleine K. Albright.

There being no objection, the committee was discharged, and the Senate proceeded to consider the resolution.

Ms. HASSAN. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 585) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of April 7, 2022, under ''Submitted Resolutions.'')

NATIONAL OSTEOPATHIC MEDICINE WEEK

Ms. HASSAN. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 595, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 595) designating the week of April 18 through April 24, 2022, as ''National Osteopathic Medicine Week.''

There being no objection, the Senate proceeded to consider the resolution.

Ms. HASSAN. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 595) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

AUTHORIZING THE USE OF THE CAPITOL GROUNDS FOR THE NATIONAL PEACE OFFICERS MEMORIAL SERVICE AND THE NATIONAL HONOR GUARD AND PIPE BAND EXHIBITION

Ms. HASSAN. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of H. Con. Res. 74, which was received from the House and is at the desk.

The PRESIDING OFFICER. The clerk will report the concurrent resolution by title.

The senior assistant legislative clerk read as follows:

A concurrent resolution (H. Con. Res. 74) authorizing the use of the Capitol Grounds for the National Peace Officers Memorial Service and the National Honor Guard and Pipe Band Exhibition.

There being no objection, the Senate proceeded to consider the concurrent resolution.

Ms. HASSAN. I ask unanimous consent that the concurrent resolution be agreed to and the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The concurrent resolution (H. Con. Res. 74) was agreed to.

ORDERS FOR WEDNESDAY, APRIL 27, 2022

Ms. HASSAN. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 2 p.m. on Wednesday, April 27; and that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, the time for the two leaders be reserved for their use later in the day, and morning business be closed; that upon the conclusion of morning business, the Senate proceed to executive session to resume consideration of the Garnett nomination; further, that the cloture motions filed during yesterday's session ripen at 3:30 p.m.; finally, that if any nominations

are confirmed during Wednesday's session, the motions to reconsider be considered made and laid upon the table and the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 2 P.M. TOMORROW

Ms. HASSAN. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 6:38 p.m., adjourned until Wednesday, April 27, 2022, at 2 p.m.

NOMINATIONS

Executive nomination received by the Senate:

DEPARTMENT OF STATE

BRIDGET A. BRINK, OF MICHIGAN, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO UKRAINE.

CONFIRMATION

Executive nomination confirmed by the Senate April 26, 2022:

FEDERAL RESERVE SYSTEM

LAEL BRAINARD, OF THE DISTRICT OF COLUMBIA, TO BE VICE CHAIRMAN OF THE BOARD OF GOVERNORS OF THE FEDERAL RESERVE SYSTEM FOR A TERM OF FOUR YEARS.

EXTENSIONS OF REMARKS

HONORING THE 200TH ANNIVERSARY OF THE BIRTH OF FREDERICK LAW OLMSTED

HON. J. FRENCH HILL
OF ARKANSAS
IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. HILL. Madam Speaker, April 26, 2022, marks the 200th anniversary of the birth of Frederick Law Olmsted.

Over a lengthy career, Olmsted was an author, journalist, public official, city planner, landscape architect, and creative genius who transformed the American landscape.

Olmsted's philosophy and designs influenced the development of beautiful and functional landscapes, including parks and parkways, college campuses, planned communities, estates, cemeteries, recreation areas, and specialized landscapes for arboreta and expositions including, the U.S. Capitol grounds, New York City's Central Park, Yosemite Valley, Hot Springs National Park, and Stanford University.

Olmsted is remembered as the premier landscape architect in the United States during the 19th century and is considered to be the founder of landscape architecture in the United States. He was also one of the first individuals to promote the idea of national parks in his 1865 Yosemite Report.

Olmsted believed that thoughtful landscape designs should promote community, advance democracy, provide recreational opportunities in urban environments, nurture and invigorate public health, and encourage the development of livable communities.

Olmsted's associates, sons, and successor firms carried out his philosophy and designs well into the 20th century, leaving a tremendous legacy of historic landscapes that continues to benefit the people of the United States and visitors throughout the world.

Olmsted inspired the development of large parks and park systems for public benefit in urban areas, creating a legacy of parks that are a singular feature of the urban experience.

Olmsted's landscape designs play a vital role in the enrichment of quality of life in hundreds of communities across the United States who are celebrating this bicentennial anniversary as part of a coordinated national and local celebration.

I commend this occasion and celebrate the 200th anniversary of the birth of Frederick Law Olmsted.

HONORING THE RETIREMENT OF J. DARREN STEWART

HON. JOE COURTNEY
OF CONNECTICUT
IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. COURTNEY. Madam Speaker, I rise today to recognize and celebrate the distinguished service of Chief Darren Stewart of Pawcatuck, Connecticut. As the Chief of Police in Stonington, Stewart led an esteemed career that spanned over 38 years since he joined the force at the age of 19. In leading the division for the last 14 years, Chief Stewart has embodied the spirit of a perfect role model and leader—one that I am sure that future chiefs, not just in Stonington but also across the entire district, will look to in praise and admiration.

In addition to serving in the police department, Stewart also pursued a passion for learning and teaching. In 2000, he earned a Bachelor of General Studies from the University of Connecticut in Storrs and continued his studies at Salve Regina University of Rhode Island to earn his Master of Business Administration in Management. Armed with these degrees and a passion for helping others grow, Darren began a secondary career as a professor for his alma maters and the Connecticut State Police Academy in 2004. Since his first day as a professor, Stewart has proved a patient and wise teacher committed to educating future community members.

Chief Stewart's dual-path as an educator and community leader proved to make him a natural, steady-handed Chief of the Stonington Police Department. Passionate about the protection of his local community, Stewart's dedication and impressive work ethic earned him the promotion of Chief of Police in 2008. As someone whose career originated with the force, he came into the role with a clear understanding of the greatest opportunities for improvement. It was with this background in mind that prioritizing an efficient and resource-rich workforce became the first, second and third priority.

One-by-one, Chief Stewart marked off his checklist of goals for the force, equipping his officers with the tools that they needed to succeed. This included updating mechanical systems and computer technology, acquiring a new police boat, and creating a chaplain program to assist his officers with the toughest part of the job—notifying immediate family of the tragic loss of one of their colleagues. Notably, it was also with much thanks to Chief Stewart's efforts that Stonington led the movement to invest in local communications infrastructure and tie the agency into the state's superior radio system. As a result of Chief Stewart's initiative and the town's major upgrade in terms of safe and efficient communication, Stonington earned the 2018 Municipal Excellence Award from the Connecticut Conference of Municipalities. With Chief Stewart at the helm, the Stonington Police Department also entered a parentship with Safe Futures, a social services agency based in nearby New London, Connecticut, which now supports the town in assisting victims of domestic violence. My office has worked with the Stonington Police Department to obtain federal competitive grant funding in the past and I can personally attest that the department would not be nearly as well equipped and successful as it is today without Chief Stewart's hard work and advocacy for his fellow officers.

Madam Speaker, I am so proud to represent such selfless and committed constituents as Darren Stewart in the second district of Connecticut. Inspired by his wife, Beth, three daughters, and the difference made by his own colleagues, Chief Stewart set out to ensure the Stonington Police Department worked for their partners: the People of Stonington. Though his transition into his new role undoubtedly leaves large shoes to fill, we find gratitude in the fact that he has left the department in incredible standing, in capable hands, and that Chief Stewart will remain an active member of the local community. To that end, as he embarks on this next chapter with his family, I ask my colleagues in the House to join me in honoring Chief J. Darren Stewart, an inspiring leader and impeccable role model, for his huge successes in the police department and impact on the countless lives of others, extending the legacy of his career.

HONORING THE CAREER OF CHRIS WILDER

HON. ZOE LOFGREN
OF CALIFORNIA
IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Ms. LOFGREN. Madam Speaker, I rise today to honor Chris Wilder who is retiring after 18 years as the President and Executive Director of the Valley Medical Center Foundation. His impact and contributions can be seen throughout our community.

In 2004, Chris Wilder joined the Valley Medical Center Foundation, which is the nonprofit organization that acts as the community fundraising arm for Santa Clara County Valley Medical Center. This center provides care to 1 in 4 valley residents and is home to San Jose's only top-level trauma center. Since joining the foundation, Chris has raised more than $100 million for our safety net health system. In his first two years alone in the position, he led two multimillion-dollar capital campaigns that allowed for the completion of the Parisi House on the Hill and the purchase of a new linear accelerator for the Sobrato Cancer Center. He also was a major champion for Measure A, which generated $840 million to build Sobrato Pavillion, the new adult hospital building and a major health center in downtown San Jose. Chris was integral in Santa Clara County's COVID–19 response, where he helped secure over $30 million in funds and donated supplies to protect healthcare workers, expand testing, and support vaccination efforts.

I have been honored to see his work firsthand and am so grateful for his steadfast resolve to help ensure that our safety net remains strong. He's been rightfully called a ''nonprofit superhero'' as his efforts can be seen throughout the Valley Medical Center campus. Please join me in thanking Mr. Wilder for his years of dedication and wishing him the very best in his retirement.

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.
Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

HONORING VICTORIA BRANDON

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. THOMPSON of California. Madam Speaker, I rise today to honor Victoria Brandon, whom I have named the 5th Congressional District's 2022 Climate Crisis Champion from Lake County for her inspiring leadership in combatting the climate crisis currently gripping our communities.

Victoria Brandon was born in New York City and attended Brandeis University. She has been a California resident since 1976, and she has resided in Lake County since 1981.

Ms. Brandon has been an active community member, beginning her service in 2004 as Secretary of the Chi Council for the Clear Lake Hitch, where she served until 2020. The next year, she increased her involvement by joining the Sierra Club Lake Group, followed by the Tuleyome Board of Directors and then the Sierra Club Redwood Chapter, which she still serves to this day. From 2009 to 2015, Ms. Brandon represented the Sierra Club on the California Invasive Species Advisory Committee, which she chaired in 2013. Additionally, she chaired the Sierra Club Agriculture and Food Task Force from 2014 to 2015. Ms. Brandon was also a member of the Sierra Club national political team from 2013 to 2021, serving as the chair from 2016 to 2021.

Ms. Brandon has worked on many essential environmental projects, such as the designation of Cache Creek as Wild and Scenic River in 2005, the adoption of California Strategic Framework on invasive species in 2010, the development of Sierra Club policy on Agriculture and Food in 2015, and the designation of Berryessa Snow Mountain National monument in 2015. Ms. Brandon founded the Sierra Club Grassroots Network Team on Food and Agriculture in 2016 and organized the data on Clear Lake Hitch spawning migrations from 2004 until 2020. When Ms. Brandon is not fighting for climate justice, she enjoys reading, gardening, and other outdoor activities.

Madam Speaker, it is evident that Victoria Brandon has dedicated her life to combating the climate crisis in our communities. Therefore, it is fitting and proper that we honor her here today.

DON CHILDEARS

HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. PERLMUTTER. Madam Speaker, I rise today to recognize Don Childears of the Colorado Bankers Association on his retirement.

For more than forty years, Don has served the Colorado banking community in his role as Chief Executive Officer of the Colorado Bankers Association. He got his start in public policy on Capitol Hill in Washington D.C. and managed several successful congressional campaigns before joining CBA in 1975. During his time at CBA, Don navigated the adoption of branch banking in Colorado and was instrumental in creating the Executive Development Institute at the Graduate School of Banking at Colorado. He also worked with Congress on legislation such as the Sarbanes-Oxley Act, the Dodd-Frank Act, and federal legislation to protect banks and other businesses from liability surrounding Y2K issues. Don has been a national leader in helping banks navigate the conflict between state and federal cannabis laws, and he has been a strong supporter of the SAFE Banking Act.

In addition, Don has served on several boards and committees including BancInsure Board of Directors and Reinsurance Committee; Graduate School of Banking at University of Colorado; Trustee and Treasurer, Graduate School of Banking (University of Wisconsin-Madison); and Board Member of the American Bankers Association along with participation on several subcommittees and task forces. Don has a passion for education, and he teaches and lectures to many banking and law schools including the University of Denver, University of Colorado, and George Mason University's Antonin Scalia Law School. His vast presence and ongoing contribution to the banking community here and across the country earned him the Denver Business Journal's Pinnacle Award for The Most Admired CEO in November 2020. Don has also been recognized with industry awards including the Scarboro Award from CU's Graduate School of Banking.

In addition to Don's work professionally, he has served his community in other capacities. He has served on the Common Sense Institute board, Vice-Chair of Let Colorado Vote, and Chair of the Colorado Competitive Council, to name a few. He remains active on many other campaigns and initiatives, task forces, nominating committees, advisory boards, and charitable and political committees.

I have had the privilege of working with Don on many different occasions and always appreciate his advice and insight on many issues. His hard work and dedication to the banking industry is tremendous. I wish Don all the best in retirement and send gratitude for his service to our community, the State of Colorado, and the United States of America.

HONORING THE LIFE OF AGAMYRAT AGAMBAYEZ

HON. PAUL A. GOSAR

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. GOSAR. Madam Speaker, I rise today to remember and honor the life of Dr. Agamyrat Agambayez. This man, still in the prime of his life, was ruthlessly murdered in broad daylight in Tempe, Arizona. The killer took the life of a husband, a father, and an incredible immigrant to this country who was all set to start his new career working at Intel.

This young man was loved by many and led an impressive life that will not go unnoticed.

Dr. Agamyrat Agambayez was an impressive scholar receiving his second Ph.D at Arizona State University. He had also recently accepted an engineering job at Intel that he worked so diligently to get. But most importantly, Dr. Agamyrat Agambayez was a friend to many, an extraordinary husband and a dedicated father to his two year old son. Dr. Agamyrat's wife, Sumeyra Agambayez states, ''He had a real bright future . . . he was dedicated, smart, and studied tirelessly for years at universities to start giving back to the community here and abroad in Turkmenistan.''

I condemn the crime here, and the loss to humanity. I am appalled at the growing crime and homeless problems in Tempe and Phoenix. Our people need to be assured they can live and work in a community without fear of a murderous car jacker lurking to take one's life and property.

I mourn for his young family. His son will be left with little memory of his father. But I hope one day his son will read these words, and the words of others, and know that his father was a bright star in the sky and made the world a better place. He lived and died with honor.

My thoughts and prayers are with his loved ones and shall Dr. Agamyrat Agambayez never be forgotten.

CONGRATULATING EMILY BEAR OF ROCKFORD FOR WINNING A GRAMMY AWARD

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mrs. BUSTOS. Madam Speaker, I rise today to celebrate Emily Bear on her Grammy Award for ''Best Musical Theater Album.''

A graduate of Guilford High School, 20-year-old Emily Bear is a native of Rockford, Illinois. Since graduating in 2017, she has released numerous albums, scored major films with Warner Brothers and has performed at internationally renowned settings, such as the Lincoln Center, the Hollywood Bowl and Carnegie Hall. This year, Emily won her first Grammy Award with Abigail Barlow for Best Musical Theater Album for ''The Unofficial Bridgerton Musical.'' Last year, Emily and Abigail began the project inspired by the popular Netflix series by going through the show's plot as if it were a musical. With her hard work, Emily has turned a viral social media sensation into a Grammy Award.

Madam Speaker, I am proud to congratulate Emily Bear on her first Grammy Award and wish her much success in her life and career.

RECOGNIZING ANNIE BURNS-HICKS

HON. FRANK J. MRVAN

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. MRVAN. Madam Speaker, it is with great respect and admiration that I take this time to recognize one of Northwest Indiana's true pioneers, Annie Burns-Hicks, the School City of Hammond's first African American teacher. Earlier this year, the Hammond School Board voted unanimously to rename Maywood Elementary School, which she attended in her youth and at which she taught for the majority of her career, to Annie Burns-Hicks Elementary School. The School City of Hammond will be honoring Ms. Burns-Hicks at a special event taking place on April 28, 2022.

The eldest of thirteen children, Annie's family relocated from Mississippi to Hammond, Indiana, in 1944. Her parents, Albert and Mary Burns, sought a better life for their children

after her father witnessed the brutal lynching of two young black boys. Annie recalls her father telling her and her siblings of his expectation that they strive to make the world a better place, a lesson that has remained with her throughout her lifetime. It was this desire to make a positive change in her community that likely led to her graduation from Ball State Teachers College in hopes of returning to teach in Hammond.

Unfortunately, Annie's desire to improve her community by educating the city's children would not come without opposition. Despite being five years after the landmark Brown v. Board of Education of Topeka ruling of the Supreme Court to end segregation in schools, Ms. Burns-Hicks's application for a teaching position was rejected without consideration, as she was told the city was ''not ready for a colored teacher.'' Undeterred, and remembering her father's inspirational words encouraging her to be a force of change, Annie pressed on through the courts and won, thus allowing her to become the first African American teacher in the city of Hammond in 1960 and paving the way for the many future teachers who would follow in her footsteps. During her tenure, Ms. Burns-Hicks co-authored the first full-day kindergarten program in the city, a contribution that truly enhanced the educational opportunities for the community's young children.

Madam Speaker, at this time, I ask that you and my other distinguished colleagues join me in honoring Annie Burns-Hicks. Ms. Burns-Hicks broke barriers as Hammond's first African American teacher, and in doing so, has been a true inspiration and a source of tremendous pride to her community. Throughout her more than forty years of teaching, she touched countless lives. It is fitting that the school now bears her name for the generations to come.

IN HONOR OF LOUIS BURKOT

HON. ANN M. KUSTER

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Ms. KUSTER. Madam Speaker, I rise today to recognize Louis Burkot as he celebrates 40 years as the founding artistic director of Opera North in Lebanon, NH.

Among his accomplishments, Louis has conducted the Dartmouth College Glee Club and more than 700 Opera North Resident Artists from around the world. His expertise in vocal and choral music has contributed significantly to the Upper Valley community and beyond. Louis' knowledge of vocal and operatic music has been invaluable for many young singers, many of whom have gone on to major careers around the world.

On behalf of my constituents in New Hampshire's Second Congressional District, I thank Louis for his many years of service, and for being a part of what makes the Granite State so great. I am honored to recognize and congratulate Louis on 40 years of incredible work, and I wish him many more.

VIRGINIA THEATRE, CHAMPAIGN, IL 100 YEAR ANNIVERSARY

HON. RODNEY DAVIS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. RODNEY DAVIS of Illinois. Madam Speaker, I rise today to recognize the Virginia Theatre in Champaign, Illinois, which celebrated 100 years of business on December 28, 2021.

In 1921, Charles ''C.C.'' Pyle made the decision to build a major entertainment venue in downtown Champaign, an area that had been known as a cultural hotspot. He initially had a vision of a 12-story hotel with a large theatre space, but that quickly changed. The final building resulted in a stand-alone, multipurpose performing arts center.

In January of 2000, the Champaign Park District made countless efforts to prevent this landmark from demolition. Once they assumed control of the theatre, it went on to grow into a $10 million restoration project to bring the theatre back to life.

Through the years, the Virginia Theatre has been the ''place to be'' for friends, families, and colleagues in the community. The Theatre hosts local productions, concerts, movies, live theatrical plays, stand-up comedy events, and many more.

Congratulations to the Virginia Theatre on their 100th anniversary, and I wish them all the best in the years to come.

HONORING THE LIFE AND LEGACY OF PRIVATE OLIVER CROMWELL

HON. ANDY KIM

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. KIM of New Jersey. Madam Speaker, I rise today to honor the life and legacy of Private Oliver Cromwell, one of the most decorated Black soldiers who served in the American Revolutionary War.

Private Cromwell was born in 1753 in Mansfield Township, New Jersey, and in 1776 he enlisted in the 2nd New Jersey Regiment. He crossed the Delaware River with General George Washington and went on to fight for American independence in the battles of Trenton, Princeton, Brandywine, Monmouth, Short Hills, and Yorktown. At the conclusion of the war, Cromwell received the Badge of Merit for six years of faithful service to the Army and was honorably discharged by General Washington in 1783.

Following his service, Cromwell fathered 15 children in Burlington Country and loved to share stories of his time as a ''Drummer in the Revolution'' with his family and the community. Cromwell passed away at 101 years old in 1853, and he is buried in Burlington at the Broad Street Methodist Church cemetery. Oliver Cromwell risked everything fighting for freedom in a country that did not recognize his own right to freedom. For these sacrifices, Oliver Cromwell should be eternally remembered for his contributions toward America's independence. Burlington County is grateful for Private Cromwell's dedication, sacrifice, patriotism, and honorable personal conduct.

Nine generations of his descendants have resided in Burlington County, some of whom still reside in the 3rd District today and continue to honor their familial legacy through community engagement, service, and historic preservation. I am grateful for Private Cromwell's descendants' continued contributions to our community and am proud to be honoring the life and legacy of their ancestor on this day.

HONORING THE LIFE AND LEGACY OF MARVIN YELLOWHAIR

HON. TOM O'HALLERAN

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. O'HALLERAN. Madam Speaker, I rise today to honor the life and legacy of Marvin Yellowhair, a beloved Navajo community leader who passed away in March.

Throughout Marvin's life, he made immense contributions to numerous fields, and is remembered as a devoted son, brother, father, husband, uncle, nephew, grandfather, coach, author, musician, actor, storyteller, runner, carpenter, politician, Council Delegate, and School Board Member.

After graduating from Rough Rock High School and attending Mesa Community College, Dine College, Northern Arizona University, and the University of New Mexico, he dedicated his life to the advancement of Navajo language, culture, and history developing bilingual and bicultural curriculum materials and publishing several books of his own.

He continued his efforts developing Navajo language materials and books throughout his career, translating for notable artists, authors, and craftsmen. Among many accomplishments, he was the voice actor for Darth Vader from the Navajo version of the movie Star Wars, and worked with Oxford University out of New York to develop an English and Navajo picture dictionary and Rosetta Stone audio recordings to support the teaching and learning of the Navajo language.

Throughout 30 years at Rough Rock Community School, as both a teacher of Navajo language, and a beloved basketball, football, and baseball coach, Marvin was well-known by colleagues and students for his passion for Navajo culture and history, and his gift for storytelling and leadership.

A devoted advocate for Navajo self-determination in education and strong supporter of Navajo Nation veterans, his legacy in the Rough Rock and Black Mesa communities will live on for generations to come.

The Navajo Nation and the state of Arizona have lost a great leader. My wife and I are keeping his many loved ones, friends, students, and colleagues in our hearts as they mourn his passing.

WHAT CAN JWB DO FOR CD 13?

HON. CHARLIE CRIST

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. CRIST. Madam Speaker, I rise today to recognize the tremendous accomplishments of the Juvenile Welfare Board of Pinellas County.

For 75 years, this organization has dedicated itself to the betterment of Pinellas County's future, which lies in the hands of our community's children.

The Juvenile Welfare Board works with our county's children from an early age to ensure that both they, and their parents, caregivers, and family members receive a solid foundation on which to build their education. The Board's School Readiness program prepares children for their critical kindergarten education, which is crucial for their future success in the classroom. The JWB supports our county's youth throughout their education, with the programs they fund driving them to meet not only important developmental milestones but promoting behaviors and attitudes necessary for learning and engagement.

Beyond the classroom, the JWB works tirelessly to strengthen the communities from which our future leaders grow. Focusing on the mental health of our children is one of the Board's primary goals, making sure any type of mental illness is diagnosed and treated before it becomes an impediment for their future success. They also work to stop preventable deaths within the county, combating unsafe sleep practices for infants, child drowning, and head trauma, so that no family must deal with the tremendous loss of a child.

The JWB's mission also includes providing relief for the families of Pinellas County when they need it. From rental and food assistance, eviction prevention services, and helping with affordable childcare, the JWB ensures that any family that needs a helping hand is given one.

The Juvenile Welfare Board of Pinellas County is a powerful example of the power we can have on our communities if we simply dare to try. Their efforts deserve veneration in this Congress, not only in appreciation of their efforts, but as an example of the power of community.

IN RECOGNITION OF ALS RESEARCH AT THE DEPARTMENT OF VETERANS AFFAIRS

HON. NEAL P. DUNN

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. DUNN. Madam Speaker, as the son of a veteran, father of a veteran, and a veteran myself, I rise in support of important work being done at the Department of Veterans Affairs (VA) regarding research and development of treatments for amyotrophic lateral sclerosis (ALS) and other neurodegenerative diseases.

This work is combining the capabilities of National Polytrauma Centers, like the James A. Haley Veterans' Hospital in Tampa, Florida, with the expertise of the private sector to give hope to veterans who are battling these illnesses, everywhere.

Veterans are 60 percent more likely to be diagnosed with ALS compared to the general population.

More research needs to be done to understand the connection, which goes back at least 100 years, between military service and ALS, as well as to ensure we are able to achieve the best possible outcomes for our veterans.

I applaud the VA for continuing to make this a priority and look forward to seeing the potential of these partnerships.

HONORING CHIEF RAINER J. NAVARRO

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. THOMPSON of California. Madam Speaker, I rise today to honor Chief Rainer J. Navarro in celebration of his outstanding career in the Santa Rosa Police Department.

Chief Navarro was born in Lynwood, California, in 1969 to Rainer and Cecilia Navarro. He served in the United States Navy from 1987 to 1989. After his time in the Navy, he attended Santa Rosa Junior College and earned an associate of arts degree in 1991. He later earned a bachelor's degree in criminal justice administration from Sonoma State University in 1996 and a master's degree in law enforcement and public safety from the University of San Diego in 2018.

Chief Navarro began his career in the Santa Rose Police Department in 1992 as a patrol officer. In 2006, he was promoted to Sergeant and six years later, was again promoted. As a Lieutenant, he oversaw the Traffic and Special Events Bureau and served as Watch Commander. Chief Navarro made Captain in 2015 and supervised both the Special Services Division and Field Services Division. After over 25 years of service, the city named him Chief of the Santa Rosa Police Department in 2019.

Chief Navarro's personal values focus on his faith, family, and service. He volunteers with Special Olympics, Shop with a Cop, Roseland Unified School District, and Rosewood Gospel Mission. Chief Navarro also has served on the Santa Rosa Violence Prevention Partnership Policy Team, California Police Chiefs Association, CHOPS Teen Club Board of Directors, Social Advocates for Youth Board of Directors, and the Sonoma County Juvenile Justice Coordinating Council.

Chief Navarro has been a dedicated member of the Santa Rosa Bible Church. He married his high school sweetheart, Diedre, in 1989 and they have been happily married for 33 years. Together, they have two children, Trent and Alexa, and two grandchildren, Caspian and Griffin.

Madam Speaker, it is evident that Chief Navarro has dedicated his life to serving the people of Santa Rosa through his career in law enforcement. Therefore, it is fitting and proper that we honor him here today.

IN RECOGNITION OF MAYOR CHARLOTTE WILCOX

HON. MICHAEL C. BURGESS

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. BURGESS. Madam Speaker, I rise today to recognize the distinguished career of Charlotte Wilcox, the Mayor of the City of Highland Village, Texas. Mayor Wilcox is retiring following her seven-year long tenure in mayoral office, and almost two decades of public service in Highland Village city government.

Mayor Wilcox and her family moved to Highland Village in 1995. In 2006, she was appointed to the city's Zoning and Development Commission, before being elected to Place 3 of the Highland Village City Council three years later. She served in this position until her fellow councilmembers appointed her to mayoral office in 2015 following the retirement of her predecessor. In May 2015, she was elected as Mayor, and due to term limitations, will conclude her service on the Highland Village City Council in May 2022.

Throughout her service in her public office, Mayor Wilcox has worked tirelessly for the economic and physical well-being of her constituency. She has been instrumental in ensuring funding for vital improvements to Highland Village's highway infrastructure, as well as the establishment of half a dozen parks and recreational facilities throughout the city. Thanks to Mayor Wilcox's efforts, many trails, parks, roads, and walkways have been constructed and expanded to maximize her city's quality of life.

Furthermore, Mayor Wilcox oversaw the opening of many new businesses and the remodeling of many older ones to strengthen and expand the City's tax base. Under her fiscal leadership, the city achieved a AAA Bond Rating.

Mayor Wilcox, in addition to overseeing the City's impressive record of financial stability and economic development, has also served as a strong advocate for Highland Village's highly esteemed city staff. Under her administration, the Council approved two new paid holidays and secured a competitive benefits package for city employees.

As Mayor Wilcox concludes her estimable tenure as Mayor, I join the residents and businesses of Highland Village in applauding her dedication to city improvement, governmental transparency, and community involvement. She has truly been a valuable contributor to our North Texas community, and I wish her all the best in her future endeavors.

RECOGNIZING THE EFFORTS OF THE JUVENILE JUSTICE CENTER ON GLOBAL YOUTH SERVICE DAY

HON. VERONICA ESCOBAR

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Ms. ESCOBAR. Madam Speaker, I rise today to recognize the participation of the El Paso Juvenile Justice Center in this year's Global Youth Service Day.

The El Paso Juvenile Center has dedicated the month of April 2022 to engage and educate local youth to speak out against violence in our El Paso community. Through events with stakeholders, leaders, and community members, our young people are creating solutions on how to prevent hate crimes and violence using art. They are concluding the month with paying tribute at the El Paso Healing Garden to the 23 victims who lost their life and the 22 injured victims of the horrific Walmart shooting of 2019.

I praise the work that the Juvenile Justice Center is doing to help our young people

thrive and be active community members. Our young people of today will be our leaders of tomorrow and they will be equipped to solve problems our community faces.

HONORING NASCAR TEAM OWNER CHIP GANASSI FOR HIS EXEMPLARY CAREER

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. HUDSON. Madam Speaker, I rise today to honor NASCAR team owner Chip Ganassi for twenty years as the owner of Chip Ganassi Racing.

After a successful career as a racer, Mr. Ganassi purchased the SABCO team in 2001 and quickly renamed it Chip Ganassi Racing. Over the next 20 years, his team achieved a combined 40 wins in the NASCAR Cup Series and the NASCAR Xfinity series. Most notably, Chip Ganassi Racing experienced great success in the NASCAR Cup Series where it achieved 20 victories along with 36 pole positions, 196 top-five finishes, and 474 top-10 finishes.

Mr. Ganassi's experience and knowledge immediately propelled his team to great success. In Mr. Ganassi's inaugural season as owner, Sterling Marlin finished in third place in the 2001 NASCAR Cup Series championship. This success quickly established a culture of winning at Chip Ganassi Racing that attracted some of NASCAR's best drivers. While racing for Ganassi, Jamie McMurray became the first driver to win NASCAR's Indianapolis 500 and IndyCar's Daytona 500 in the same year. Additionally, household-name Kyle Larson earned four first place finishes in a single season as a member of Ganassi's team. Furthermore, Mr. Ganassi's achievements extend beyond results on the racetrack. His unique and effective business sense set new precedents for success in NASCAR. Unlike many other team owners, team ownership was his only business. He also maintained an impressive 28-year relationship with Target and secured it as a long-time sponsor for Chip Ganassi Racing.

After retiring this past Fall, Mr. Ganassi leaves behind an impressive legacy that I am proud to acknowledge today. He is highly regarded by other team owners and racers alike. His accomplishments reflect his dedication to racing and his intense desire for improvement. I know I speak for our entire community in wishing him and his family continued success and happiness in his retirement.

Madam Speaker, please join me today in honoring Mr. Chip Ganassi for his outstanding accomplishments and contributions as a racing team owner.

HONORING POLICE CHIEF MANJIT SAPPAL

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. THOMPSON of California. Madam Speaker, I rise today along with Congressman JOHN GARAMENDI, to honor Chief Manjit Sappal as he retires from his outstanding, six-year service as the Chief of Police for the city of Martinez, California.

Born in the United Kingdom, Chief Sappal and his family immigrated to the United States in 1981 and settled in the Bay Area, where he has lived ever since. In the late 1990s, Chief Sappal began his 26-year-long career in law enforcement as a police officer in Pittsburg, California. Later, he moved to the Richmond Police Department, where he worked for 18 years and became a captain. While working as a police officer, Mr. Sappal graduated from Golden Gate University with highest honors, earning a master's degree in public administration. He also graduated from the prestigious FBI National Academy and the Police Executive Research Forum's Senior Management Institute for Police.

Chief Sappal's rigorous work ethic and impressive credentials propelled him to the office of Chief of Police of Martinez in 2015, a position from which he retired from on March 17, 2022. Throughout his career in law enforcement, Chief Sappal has worked in several positions. From Homicide Investigator to Guns and Gang Detective, he has always put himself on the line to make his community safer. While these experiences were memorable, Chief Sappal considers his time as Chief of Police, working with an amazing, high-performing team, to be the highlight of his career. Chief Sappal's service extends beyond law enforcement. As a member of the Contra Costa Council for Homelessness and the Martinez Rotary and Kiwanis, Chief Sappal has worked hard to maintain trust with the community and keep the public safe.

After retirement, Chief Sappal looks forward to spending more time with his wife, Tina, and their two teenage children, Alexis Lily and Andrew Tyler. While the people of Martinez will miss his excellent police work and leadership, the sense of empathy and compassion he established in the community will last a lifetime.

Madam Speaker, it is evident that Chief Manjit Sappal has served our community through his exceptional career in law enforcement. Therefore, it is fitting and proper that we honor him here today.

HONORING THE LIFE AND PATRIOTIC SERVICE OF KENNETH DUNCAN DICKSON

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. FALLON. Madam Speaker, I rise today to honor and commemorate the life and service of Kenneth Duncan Dickson. Ken strove each and every day of his extraordinary life to leave a better world for his children and grandchildren. He was received into the Arms of the Lord after a hard-fought battle against COVID–19 on August 19, 2021. This great American, and proud Texan, is survived by his loving wife of forty-four years, Judith Dion Dickson; his sons Kenneth Craig Dickson (wife Lynne) and Jason Keith Dickson (wife Lauren); and his grandchildren Abigail Peavey (husband Rafe), Macy Dickson, Cohen Dickson and Savannah Dickson; and many other family members and friends.

Ken was born on December 29, 1938, to Kenneth Taylor Dickson and Trixie Duncan Dickson. After graduating from W.W. Samuell High School in 1957, he went on to earn a degree in Business and Agriculture from East Texas State University in Commerce, Texas. As a man instilled with the virtue of patriotism, Ken served in the United States Army National Guard in the 49th Armored Division after graduation. He started his career in insurance and apparel manufacturing wherein he owned and operated a number of showrooms at the Dallas Apparel Mart. Subsequently, in the 1980s, Ken was introduced to the lively oil and gas industry into which he would pour his professional talents for the rest of his life. Even at the ripe age of eighty-two, one might have found Ken researching new technologies, making phone calls, and consulting greenhorns in the industry. Ken was also a gubernatorially appointed member of the Interstate Oil and Gas Compact Commission.

As a pillar of the Rockwall community, Ken led the charge for over forty years to protect the American Dream and the foundational values that make this country great. He was a founding member of the Rockwall County Republicans, served four years as a City Councilman, was a Republican Precinct Chair, Election Judge, and a Delegate to the Republican State Conventions. Moreover, among the greatest services he provided was to work with Congressman Ralph Hall during Mr. Hall's election campaigns. Ken received the Ralph M. Hall Chairman's Award for his lifetime of dedication to the cause of the Republican Party.

Madam Speaker, I have shared with the House today only a small portion of this great American's life. His accomplishments, the joy he has brought, the services he has wrought, and the extraordinary love that he had for his family and friends could fill volumes. I have requested the United States flag be flown over our Nation's Capitol to recognize Kenneth Duncan Dickson's patriotism and devotion to God, Family, and Country. Furthermore, Madam Speaker, I extend my personal condolences to the Dickson family for the loss of such an extraordinary man of service and duty. May God bless his soul.

IN MEMORY OF REBECCA ADELMAN

HON. HALEY M. STEVENS

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Ms. STEVENS. Madam Speaker, I rise today to honor the incredible life of Rebecca M. Adelman, an accomplished young woman and personal friend who passed away in April of 2020. Rebecca would have become 39 years old on May 14, 2022 and is adored and missed as ever before. Rebecca is remembered by many as a caring healthcare provider, passionate academic, and noble public servant. In addition to these accolades, Rebecca was proud to be the daughter to Patricia and Howard Adelman, sister to Mara (Pat) and Mike (Dani) Adelman, devoted spouse of Caroline Lemelin, and loving mother of her greatest joys, twin sons Rory and Finn Adelman, who turn four years old this Spring. I am honored to join with Rebecca's loving family to recognize her impactful life.

Upon Rebecca graduating from Wellesley College in 2005, she had a world of opportunity ahead of her. She headed to Washington to work for ABC News and eventually joined the Obama presidential campaign's staff, energetically serving the Vice President's press team as the general election approached. After President Obama and then-Vice President Biden's landslide election in 2009, Rebecca was given a position on the President's transition team, managing press at the inauguration, and then joined the Department of Health and Human Services (DHHS) as one of the Administration's first DHHS staff placements. Ms. Adelman rose throughout the agency, serving as the Special Assistant to the Administrator at the Health Resources and Services Administration (HRSA), as DHHS's Deputy Liaison to the White House, and Acting Chief of Staff to the Deputy Secretary.

Inspired by her HHS colleagues to be a "doer rather than a talker," as well as by the idea of direct healthcare service, she achieved her status as a Registered Nurse (RN) and earned a Master of Public Health degree with Honors from Johns Hopkins University. Her nursing career began in New York as a neonatal intensive care unit nurse at Mount Sinai, before advancing to become Clinical Nurse Manager and then Patient Care Director at New York Presbyterian Hospital. No matter the professional arena or personal circumstances, her intuition and broad skill set enabled her to perform at the highest level of proficiency. At the time of Ms. Adelman's passing, she was the Nurse Manager responsible for running the entire neonatal intensive care unit at New York-Presbyterian, an incredible achievement to her career journey.

Madam Speaker, Rebecca M. Adelman accomplished so much and earned the love and respect of so many during her short time with us, and she is truly missed. Her family and all who knew her and benefitted from her many contributions to the community can attest to her remarkable impact and inspiration, as well as her enduring optimism and commitment to community. Two years after her passing, Rebecca Adelman's incredible legacy continues to improve the lives of others and will last for a long time to come. Our nation is better off because of the service of Ms. Rebecca M. Adelman, and we are forever grateful for her many contributions.

CASSIE TANNER

HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. PERLMUTTER. Madam Speaker, I rise today to recognize and applaud Cassie Tanner for her service to the West Metro Fire Protection District.

Cassie has served on the Board of Directors of the West Metro Fire Protection District for eight years. During her tenure, she has provided strong leadership through a number of significant changes and is currently serving as Board President.

During her tenure on the Board, Cassie oversaw the budget and policy decisions for the West Metro Fire District. In this role, she supported local firefighters who dedicate their lives to serving and protecting people, property and the and community at-large. Her background in banking, finance, employee relations as well as her common sense, problem-solving skills helped make her a valuable member of the Board.

I have known Cassie for many years and know her to be a hardworking, dedicated member of our community. I extend my deepest thanks and appreciation to Cassie Tanner for her service to the West Metro Fire District and to our local community. I know she will continue on to do great things in our community and I wish her well in all of her future endeavors.

HONORING RUE MAPP

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. THOMPSON of California. Madam Speaker, I rise today to honor Rue Mapp, whom I have named the 5th Congressional District's 2022 Climate Crisis Champion for her inspiring leadership in combatting the climate crisis currently gripping our communities.

Ms. Mapp was born in Oakland, California. She earned a bachelor's degree in the history of art, with a minor in city and regional planning from the University of California, Berkeley. She also earned a Women in Leadership Certificate from Mills College, Institute for Civic Leadership in her hometown of Oakland.

Ms. Mapp founded Outdoor Afro in 2009 to celebrate and inspire Black people to connect with each other through nature. For the past five years, Outdoor Afro has included a policy and education cohort that has advocated for environmental protection legislation, including the Land Water Conservation Fund, which funds parks and public land. Today, Outdoor Afro includes over 60,000 participants and over 100 volunteer leaders who promote and participate in outdoor activities, such as hiking, fishing, biking and more.

Ms. Mapp has received various honors for her environmental work. Ms. Mapp has been appointed to the California State Parks and Recreation Commission, and the Pacific Forest and Watershed Lands Stewardship Council's Foundation for Youth Investment, where she serves as program officer. Ms. Mapp is also on the board of the Outdoor Industry Association Governance Committee and the vice-chair of The Wilderness Society Governing Council. Additionally, she was invited to the White House by the Obama Administration for the America's Great Outdoors Conference.

In her free time, Ms. Mapp is an avid outdoorswoman, Recreational Vehicle enthusiast, hunter, and fisher. She loves to cook, sew, write, and spend time with her loved ones. Ms. Mapp's family includes her husband, Darin; her three children, Seth, Delaney, and William; her grandchild, Kendrick; and her beloved Pitbull, Lulu.

Madam Speaker, it is evident that Rue Mapp has dedicated her life to combating the climate crisis in our communities through Outdoor Afro. Therefore, it is fitting and proper that we honor her here today.

HONORING THE SERVICE OF JERRICA PROFERES

HON. MARK E. GREEN

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. GREEN of Tennessee. Madam Speaker, I rise today to recognize Jerrica Proferes for her distinguished career in service to this Nation and to the people of Tennessee's Seventh Congressional District.

As a Military Police Officer stationed at Fort Drum, Jerrica began her career of service with the 23rd Military Police Company. For over three years, Jerrica provided law enforcement and support for more than 40,000 soldiers, civilians, and families. In Iraq, she served valiantly as a member of the Immediate Reaction Force team and Riot Response team as a Corrections Officer.

Shortly thereafter, Jerrica joined the 8th Army Headquarters in Seoul, South Korea, as a Human Resource Specialist and Operations Manager. Through her service in South Korea, Jerrica embraced the important operations role and admirably performed her duties. She conducted countless briefs, statistic reports, meetings, and training courses during her time in Seoul, and managed overseas job placements for over 2,500 soldiers throughout South Korea.

Jerrica later joined the Defense Language Institute in Monterey, California, as a Small Group Leader and Operations Manager. For nearly two years, she managed the operations and logistics side of the Institute, ensuring that our servicemembers were properly trained in languages of vital national security interests, such as Persian Farsi and Afghan-Dari.

Following her military career, she continued her habit of service by assisting veterans through VetSuccess on Campus (VSOC) at Austin Peay State University. As veterans struggled to transition to life after service, Jerrica helped ease their transition by assisting them in submitting campus applications, registering for courses, creating educational goals, and maintaining successful study plans. Her time with VSOC as a mentor, tutor, and Administrative Assistant left an indelible mark on the lives of servicemembers that will not be forgotten.

As a State Senator for the Tennessee General Assembly, I had the pleasure of working with Jerrica while she served as our legislative intern. Through her efficiency, hard work, and clear skill, I knew that I needed to hire her as a permanent staffer. When I was elected to Congress and putting together a team to serve the people of Tennessee's Seventh Congressional District, Jerrica was at the top of my list. Since January 2019, Jerrica has been the indispensable core of my office. From the innumerable tasks required to set up a congressional office, to creating efficient systems and ensuring the smooth flow of all operations, Jerrica has gone above and beyond in her work, demonstrating the meaning of servant-leadership by example. Our ability to serve the 7th district would not be where it is without her hard work and dedication as Director of Scheduling and Operations.

Jerrica is passionate about what she believes, observant of other people's needs, and, above all, serves others. Even now, as she transitions from my office, she turns to another

avenue of service to this Nation: educating its youth.

Reflecting on her three and a half years of service in my office, Jerrica has performed her role with all honor and distinction. It has been an honor and a privilege to have her as a member of my staff.

On behalf of the United States House of Representatives, with some regret that she is leaving but immense gratitude for her presence in our office, I commend Jerrica Proferes for pursuing the great responsibility of educating the next generation, and I thank her for her faithful-and diligent service to the people of Tennessee's Seventh Congressional District.

CONGRATULATING HUNGARIAN PRIME MINISTER VIKTOR ORBAN ON RE-ELECTION

HON. PAUL A. GOSAR

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. GOSAR. Madam Speaker, I rise today to congratulate Hungarian Prime Minister Viktor Orban on his resounding reelection. The people of Hungary, in a super majority, not only supported him, but his party. In my view, the recipe to his success in Hungary is simple: put Hungary first, always. By focusing on what is good for Hungarians, Mr. Orban rejected internationalism, socialism, and subservience to non-sensical European Union mandates. It is a model, quite frankly, we should follow in the United States, where we seal our borders to protect our citizens and our economy, where we focus on rebuilding families, where we focus on the spirit of our people through God, not just material pursuits, and where we make economic policies that protect our own people and do not subsidize others.

I am also including in the RECORD the following statement from Judicial Watch and Mr. Tom Fitton, its President. They sent a team of election observers to Hungary and found it was a well run, orderly, and fair election, with no corruption. The same cannot be said about our own elections. Congratulations to Mr. Orban, and Mr. Fitton, for the good work they are doing.

JUDICIAL WATCH TEAM OBSERVES HUNGARY ELECTIONS—PRAISES ELECTION DAY PROCESSES

WASHINGTON, DC.—Judicial Watch announced today that it sent a six-member team to observe Election Day procedures during the April 3, 2022, Hungarian parliamentary and referendum national elections. A Judicial Watch report on the Hungarian election concluded that the administration of the vote on Election Day was efficient, orderly, and unremarkable.

The team was led by attorneys who previously worked for the Department of Justice's Voting Section monitoring state and federal elections in the United States. The team also included lawyers who had monitored elections for Judicial Watch.

Judicial Watch's representatives observed voting in 52 precincts at 27 locations in and around Budapest. The Judicial Watch team did not observe any meaningful problems throughout the day. Despite a high national turnout rate approaching 70%, lines were usually brief and only rarely exceeded 15 minutes. The Hungarian electoral practice of including representatives of every party of any size at each voter registration desk appears to have contributed to a low-controversy environment. In some ways, according to the report, the administration of the vote was more effective, and less chaotic, than what team members had observed in previous elections in parts of the United States.

Judicial Watch's monitoring methodology emphasizes ballot access, meaning the ability of citizens to easily register and cast an equal vote in an election. It particularly focuses on recording specific Election Day problems concerning unlawful electioneering, arbitrary variations in the rules for voting, aggressive voting assistance, unusual ballot handling, voter intimidation or confrontations, and voter ''turn aways.''

Judicial Watch noted that its methodology contrasted with the approach adopted by other international observers, who often criticized the Hungarian elections based on value judgments about matters like media bias, negative campaigning, campaign finance policy, and the prevalence of women candidates. The report stated that these ''are matters more appropriately addressed by editorial boards, not election monitoring teams.''

''The transnational Left swarmed Hungary in order to try to create controversy about the election of their ideological opponent, Viktor Orban. By contrast, Judicial Watch's expert election observer team found virtually no issues in the conduct of the elections in Hungary,'' stated Judicial Watch President Tom Fitton.

CONGRATULATING GRAMMY AWARDED ROCKFORD NATIVE ROBERT ISTAD

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mrs. BUSTOS. Madam Speaker, I rise today to celebrate Robert Istad for receiving a Grammy Award for ''Best Choral Performance.''

Robert Istad is a native of Rockford, Illinois and a graduate of the Christian Life High School. Now a professor of Choral Studies and a conductor at Cal State Fullerton, Robert's passion for music has become a fulfilling career. This year, Robert won a Grammy Award for ''Best Choral Performance'' for his work on the classical piece Mahler Symphony Number 8, Symphony of a Thousand. It is the first Grammy Award for Robert and his renowned choir, the resident chorus at Segerstrom Center for the Arts.

Madam Speaker, I am proud to, again, formally congratulate Robert Istad on his first Grammy Award, and wish him much success in his life and career.

HONORING JOHN WILLIAMS

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. THOMPSON of California. Madam Speaker, I rise today to honor John Williams, whom I have named the 5th Congressional District's 2022 Climate Crisis Champion from Napa County for his inspiring leadership in combatting the climate crisis currently gripping our communities.

Born in Clymer, New York, Mr. Williams earned his bachelor's degree from Cornell University and his master's degree in Oenology from University of California, Davis. Mr. Williams founded Frog's Leap Winery over 40 years ago, working as a cellar hand at Stag's Leap Winery and Spring Mountain Winery to finance the first vintage of Frog's Leap wine.

On top of his deep passion for making excellent wine, Mr. Williams has made Frog's Leap Winery a pioneer of organic viticulture practices by abstaining from chemical fertilizers and pesticides, reducing irrigation, and installing solar technology. In fact, he brought a solar installation to Frog's Leap before any other winery in Napa County, starting a climate-friendly trend in the industry.

Mr. Williams participates in various community activities that work to combat climate change. He is a founding member of the Napa Valley Grapegrowers Environment and Climate Committee and also serves on the organization's Industry Issues Committee, which works to educate on climate-smart farming practices and setting measurable climate action goals for the wine industry. He was the 2020 Porto Protocols Speaker on Climate Change and the recipient of the coveted ''Susty'' award from the Ecological Farming Conference. Mr. Williams has also played a major role in the Napa Valley River Restoration project.

Mr. Williams' family have only good things to say about his amazing climate work and environmental business practices. John and his wife Tori have been married for 12 years, and collectively are the proud parents of Rory, Kylor, Kelly and Owen and four grandchildren, Hal, Alma, Casey and Sophie.

Madam Speaker, it is evident that John Williams has dedicated his life to combating the climate crisis in our communities. Therefore, it is fitting and proper that we honor him here today.

IN MEMORY OF MOTOR MACHINIST MATE 2ND CLASS ROGER H. SPOONER

HON. SANFORD D. BISHOP, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. BISHOP of Georgia. Madam Speaker, it is with a heavy heart and solemn remembrance that I rise today, to pay tribute to an extraordinary sailor, World War II veteran, and dedicated civil servant, Mr. Roger H. Spooner, who transitioned from labor to reward on Thursday, February 24, 2022, at the age of 99. His funeral service was held on Sunday, February 27, 2022, at 3:00 p.m. under the ''Spooner Oak'' on Bartow Gibson Highway in Seminole County, Georgia.

Roger Hern Spooner was born November 18, 1922, as one of eight children to the union of Lewis and Delia Spooner.

In his pursuit of a life outside of farming, Roger answered the call to serve his nation when he enlisted in the U.S. Navy in October of 1941 at the age of 18. After completing boot camp, he was sent to the aircraft carrier,

U.S.S. *Yorktown*, with a destination of Pearl Harbor, which had just been bombed. After arriving at Pearl Harbor and witnessing the remnants of damage and lingering smoke from the invasion, the crew of 2,500 sailors headed to the coast of Australia. In May of 1942, during the Battle of the Coral Sea, Roger saw action when the U.S.S. *Yorktown* endured damage, and the crew suffered 61 casualties. Following the gruesome battle, the carrier and crew returned to the Navy yard at Pearl Harbor for repairs. Once repairs were made, the crew made their way to Midway Island to join other ships in preparation for the Battle of Midway, which took place in June of 1942. Many historians consider it to be the most important battle in the Pacific during World War II as it was a clash between the U.S. Navy and the Imperial Japanese Navy six months after the attack on Pearl Harbor.

During the Battle of Midway, the U.S.S. *Yorktown* incurred a massive hit beyond repair, and the crew was told to abandon ship. One-by-one every crew member went down a line into the water with their life preservers into water that was so oily that once they were covered, you could only see the whites of their eyes. After being stranded afloat for a day, Roger and his crewmates were rescued.

Roger served another four years in the Navy, where he attended submarine school and completed nine war patrols out of Perth, Australia. He was later discharged from the Navy as a Motor Machinist Mate Second Class, after being involved in a motorcycle accident. Following his military service, he continued to serve his community and make an impact in the lives of others by serving his fellow Veterans as a member of the American Legion Post 157, Donalsonville.

In addition to serving, farming, and raising his family, Roger also ventured into the trucking industry. He worked for a company for almost 18 months before he decided to go into trucking for himself in 1948. From there, he started his company, Spooner Farms Trucking, LLC. His first truck was a 1940s model ''gas burner'' GMC, but over the years, he acquired several Kenworths and Peterbilts. Roger's sons, David and Dennis; and his grandson Jake, joined his trucking business, which had as many as seven trucks running and always transported produce within a 125-mile radius of the shop.

Roger's love for his wife, his service, and his passion remained active until his passing. As such, he made sure to renew his licenses and maintain the upkeep for his 1999 Peterbilt 379 affectionately named ''Miss Eloise'', which he used to haul agricultural products, including bagged and liquid commodities. The truck's number (CV5) represented the U.S.S. *Yorktown's* identification number with a 12.7 Detroit engine and a 10-speed.

Mr. Roger H. Spooner lived his life by the Golden Rule which states ''Do unto others as you would have them do unto you.'' A man of great morals, he demonstrated this principle throughout his career and life, outstanding achievement, service, and public distinction. Our community, our state, and our nation are better because of him.

Roger accomplished much in his life, but none of it would have been possible without the Grace of God and the love and support of his family including his late wife, Eloise; and his sons; Roger, Lewis, Thomas, David and Dennis; and his grandchildren.

Madam Speaker, I ask my colleagues in the House of Representatives to join my wife, Vivian, and me, along with the more than 730,000 people of Georgia's Second Congressional District, in honoring the life and legacy of Mr. Roger H. Spooner for his remarkable service to his community, his nation and to humankind. Moreover, we extend our deepest sympathies to his family, friends, loved ones, and all who grieve during this difficult time of bereavement. We pray that they will be consoled and comforted by an abiding faith and the Holy Spirit in the weeks, months, and years ahead.

RECOGNIZING WORLD CIVILITY DAY

HON. FRANK J. MRVAN

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. MRVAN. Madam Speaker, it is with great honor and respect that I recognize the Community Civility Counts Initiative as the organization celebrates its annual World Civility Day on April 27, 2022, along with the Gary Chamber of Commerce, the entire community of Northwest Indiana, and beyond. World Civility Day is a day in which we are asked to become aware of our behavior towards others and to become mindful of our thoughts, words, and actions. It is a day to remember that we can be better people in every aspect of life, and to remember that our actions serve as an example for generations to come. In observance of this special event, a day of civility-themed activities will be held in Merrillville, Indiana, at the Dean and Barbara White Community Center, followed by an awards banquet at Avalon Manor.

In 2015, Chuck Hughes, Executive Director of the Gary Chamber of Commerce, and Dr. Gordon E. Bradshaw, Chairman of the Public Policy Committee, worked together through the Gary Chamber to create the Civility Counts Initiative. The organization's mission is to build public awareness of civility and to help transform communities through positive programs and relationships. The Initiative works to raise the consciousness level of individuals and groups of people, as so many of us face incidents of disrespect, intolerance, bullying, or violence. For striving to make a difference in our communities, the organization and its supporters are to be commended.

This year, the organization welcomes many significant and remarkable speakers and guests who have worked to promote the powerful message of peace and civility throughout their careers, all of whom are truly worthy of our sincere admiration. The keynote speaker for the ceremony is Robert A. Rohm, Ph.D., who has been a noteworthy teacher, principal, and director of curriculum development. Dr. Rohm is also a very successful author who has written over twenty books, including numerous top sellers. In addition, the workshop speakers include Reverend Dr. Janette Wilson, founder and Executive Director of PUSH for Excellence, Inc. and a senior advisor to Reverend Jesse L. Jackson, Sr., as well as Art Norman, NBC 5 News ambassador and Vice President of the National Association of Black Journalists. The organization will also honor special guest Dr. Clyde Rivers, who is the founder and President of IChange Nations and an Ambassador-at-Large for the Republic of Burundi, Africa.

Madam Speaker, I ask you and my other colleagues to join me in honoring and congratulating the Community Civility Counts Initiative and in celebrating World Civility Day. The significance of this movement will have a positive impact for generations to come. For their influence, passion, and dedication to the community of Northwest Indiana and beyond, the leaders and supporters of the Community Civility Counts Initiative are worthy of the highest praise.

CHIEF BEN MAJETICH

HON. DAN NEWHOUSE

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. NEWHOUSE. Madam Speaker, I rise today to recognize Chief Ben Majetich, who is retiring as West Richland's Police Chief after 34 years of service to the Tri-Cities.

Ben came to Central Washington in 1980 and spent the next 26 years with the Pasco Police Department. He worked in multiple leadership roles, from street patrol division to leading investigations, to being the lead defensive tactics instructor for the city.

His hard work and dedication did not go unnoticed, and he was soon promoted to captain of West Richland's Police Department, where he would take the lead in developing their newly-opened, state-of-the-art facility.

Chief Majetich truly represents the best of Central Washington: a man of courage and grit, a man not afraid to roll up his sleeves to get the job done. He has proudly served the Tri-Cities for 34 years, going above and beyond to ensure the safety of our community. He is leaving the department in good hands with his successor, Captain Thomas Grego, but he will certainly be missed.

I extend my sincerest gratitude to Chief Majetich for his leadership and wish him the best in his retirement.

HONORING JOSEPH SILVI

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. THOMPSON of California. Madam Speaker, I rise today to honor Joseph Silvi, whom I have named the 5th Congressional District's 2022 Climate Crisis Champion from Sonoma County for his inspiring leadership in combatting the climate crisis currently gripping our communities.

Joseph was born in Sonoma, California, and attended Sonoma Valley High School, from which he graduated as valedictorian in 2021. While in high school, Joseph participated in various extracurriculars, many of which related to environmental causes. He was the founder and President of Sonoma Valley High School's Campus Beautification Club, which organized club workdays to plant trees and flowers, coordinated with the school's art club to design campus murals, and secured funding from local charitable organizations. Joseph also

spearheaded the environmental sustainability program at Crescent Montessori School in Sonoma, implementing several low-cost, regenerative gardening projects.

Joseph mentored incoming freshmen students at Sonoma Valley High through the school's Link Crew Program, offering them advice, resources, emotional support, and academic support. He also volunteered through the Interact Club, the socio-civic nonprofit organization La Luz, First Baptist Church of Sonoma, Food for the Hungry, Sonoma Valley High's Wildlife Club, Skiing for Change, and Operation Christmas Child.

Joseph is currently a freshman at the University of California, Berkeley, College of Engineering, where he studies environmental engineering. He is a member of the UC Berkeley Biofuels Technology Club and serves in various roles within the club, such as Club Officer, Scale-Up Team Lead, and Head of Fuel Production. Joseph is integral in the club's work on producing biodiesel from local restaurants cooking oil with the goal of eventually fueling campus and student vehicles with renewable fuel. He is currently leading the gardening and environmental program at the Crescent Montessori School of Sonoma, which teaches young children about sustainable gardening.

Madam Speaker, it is evident that Joseph Silvi has dedicated his life to combating the climate crisis in our communities. Therefore, it is fitting and proper that we honor him here today.

IN HONOR OF MIKE CLAFLIN

HON. ANN M. KUSTER

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Ms. KUSTER. Madam Speaker, I rise today to recognize Mike Claflin on the occasion of his retirement as Executive Director of Affordable Housing Education & Development Education (AHEAD).

Mike has long been at the forefront of constructing affordable housing in New Hampshire's North Country. It has been an honor to work alongside Mike and his team to see so many impactful projects come to fruition, like the Friendship House and Lloyd's Hills Apartments in Bethlehem. Mike's leadership and advocacy have delivered more options for those suffering from substance abuse disorders as well as countless new housing opportunities for working families to a region that needs our steadfast support now more than ever before.

I commend Mike on his retirement after nearly a decade with AHEAD and on his unwavering dedication and commitment to our North Country. On behalf of my constituents in New Hampshire's Second Congressional District, I thank Mike for his many years of service, and for being a part of what makes the Granite State so great. I am honored to recognize and congratulate Mike on his retirement and wish him the best of luck in the years ahead.

HONORING LOUISE CALLOWAY

HON. ANDY KIM

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. KIM of New Jersey. Madam Speaker, I rise today to honor Louise Calloway, Founder and Curator of the Underground Railroad Museum in Burlington County, and a beloved member of our community.

Ms. Calloway has committed her life to serving others. Prior to founding the Underground Railroad Museum, she dedicated 50 years to a career in social work and taught college courses in Africa. At a young age, preserving Black history became a passion that's grown into much more. A history buff at 9 years old, she would make scrapbooks using article clippings of African Americans who contributed to our local community.

Despite her first museum closing in 2013, Ms. Calloway worked with local groups to reopen the Underground Railroad Museum in Smithville, New Jersey as part of the Burlington County Parks System. The museum offers its visitors a visual experience of the Underground Railroad, highlighting the role free African Americans and Quakers played at 16 different locations across Burlington County in helping escaped slaves travel to freedom. She hopes that visitors will leave the museum with a greater understanding of mankind, our capacity to be both cruel and kind, and that while we may have different skin colors, we all belong to one human race.

I am proud of the role New Jersey and Burlington County have played in preserving and uplifting Black History. By focusing on the stories of individuals like William Allinson, who operated Wheatley's Pharmacy in Burlington City, New Jersey as a station on the Underground Railroad, future generations will be able to have a connection to the past. Ms. Calloway's remarkable contributions to our community personify Burlington County's slogan, "The Cradle of Emancipation".

In addition to sharing history, Ms. Calloway volunteers at numerous community charities and organizations, including the Bethlehem African Methodist Episcopal church of Burlington. In 2011, she was recognized by the New Jersey Conference of the NAACP for her lifetime work as an educator with the Distinguished Educators Award.

I am grateful to Ms. Calloway for her contributions to our community, and I know I speak on behalf of my constituents when I say her dedication and service are appreciated.

RECOGNITION OF THE ACHIEVEMENTS OF MRS. KATHRYN MCINNIS

HON. NEAL P. DUNN

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. DUNN. Madam Speaker, I rise today to honor Mrs. Kathryn McInnis of Old Town, Florida.

Mrs. McInnis is a pillar in her community and a role model for many. A member of multiple advisory boards, she has dedicated her life to serving and improving the lives of others. Mrs. McInnis is especially dedicated to our youth. She knows firsthand the challenges presented in rural communities and has been an advocate and mentor to every student she has encountered.

She is an active member with the Dixie County Education Foundation and has also served on the North Central Florida Regional Planning Council. For more than two decades, she has served on the Florida Gateway College Board of Trustees. Earlier this month, Florida Gateway College dedicated a building in her honor so that her impact will be remembered for years to come.

Mrs. McInnis' heart for serving others is unmatched, and her energetic spirit is infectious. I want to personally thank this incredible woman for her contribution to Dixie County and Florida's Second Congressional District as a whole.

HONORING JOHN MUIR LAND TRUST

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Mr. THOMPSON of California. Madam Speaker, I rise today to honor the John Muir Land Trust, whom I have named the 5th Congressional District's 2022 Climate Crisis Champion for their inspiring leadership in combatting the climate crisis currently gripping our communities.

John Muir Land Trust was founded in 1989 by residents of Martinez to protect the Alhambra Valley Open Space known as Stonehurst. Since then, the organization has permanently protected over 3,500 acres of natural space to be used for passive recreation, wildlife habitat, clean drinking water protection, and scenic views. The organization's guiding principle is that natural, open spaces are essential to the health of our earth, air, water, plants, animals, and all of us.

The organization has taken on many large-scale environmental projects in the area, such as the addition of Mount Wanda to the John Muir National Historical Site, stewardship of the Contra Costa Goldfields preserve, the acquisition of Almond Ranch, the merging of Franklin Canyon into Fernandez Ranch, the public opening of Acalanes Ridge, the campaign to save Carr Ranch and the permanent protection of Painted Rock.

Currently, the organization has partnered with the Contra Costa County Flood Control District and the East Bay Regional Park District to restore the wildlife habitat and wetland activity of Pacheco Marsh in Martinez. Pacheco Marsh is home to ten special-status plant and animal species that require protected land to ensure the continued survival of their species. The marsh is planned to become a refuge for migrating birds, spawning fish, and the threatened salt-marsh harvest mouse. The site will include 2.4 miles of walking trails, elevated vistas, bird blinds, kayak launches, interpretive signs, and an environmental educational facility.

Madam Speaker, it is evident that John Muir Land Trust has dedicated its work to combating the climate crisis in our communities for the last 30 years. Therefore, it is fitting and proper that we honor the organization and its staff here today.

TRIBUTE TO HATTIE DANIELS RUSH

HON. GWEN MOORE
OF WISCONSIN
IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 26, 2022

Ms. MOORE of Wisconsin. Madam Speaker, I rise today to recognize the life and service of Commissioner Hattie Daniels Rush, an innovator, entrepreneur, business consultant and former White House appointed Commissioner to the Commission on Presidential Scholars. It saddens me to say that this amazing community leader passed away on April 17, 2022.

Commissioner Rush started her journey as a trailblazer when she was just a child. She was one of the first African American children to attend 35th Street School and began to desegregate the Milwaukee Public School System. She did encounter racism and learned to confront and mediate such situations. The early lessons she experienced as a child helped mold her into the strong and inspirational woman she became as an adult.

Commissioner Rush was a graduate of the HBCU Lincoln University in Jefferson City, Missouri. She always understood the importance of education. Commissioner Rush committed her life to public service, serving as a cheerful educator and licensed family therapist in the City of Milwaukee for many years. She also had a deep commitment to her faith in God and served in many roles with her church, Holy Redeemer. Her combination of skill sets from being a trained teacher and her work with the church put her in the perfect position to help Holy Redeemer open the first African American Christian school in the city, Holy Redeemer Christian Academy, where she served as the school's Program Director. Under the leadership of Commissioner Rush, the Holy Redeemer campus expanded to five separate schools and a range of social service institutions providing impoverished children with educational opportunities across Milwaukee.

One of her greatest contributions to this community was to cultivate the minds of young Black people by teaching them how to break down barriers and obstacles to achieving their goals. President Bush was so impressed with Commissioner Rush's work that he offered her a position in his administration. Commissioner Rush accepted a part-time appointment to the Commission on Presidential Scholars so she could continue her work as the Program Director for Holy Redeemer Schools.

Hattie Daniels Rush has been my friend since kindergarten and a close friend of my family. My sister Brenda and I often debated who Hattie was most fond of and I had the privilege of visiting her before her transition. Hattie had a true loving and giving spirit; she accepted people as they were and encouraged them to be the best they could be. I count it all joy to have celebrated 65 years of friendship with Hattie Daniels Rush. I will truly miss her, and the people of the 4th Congressional District and the State of Wisconsin will miss this incredible woman.

She leaves behind her beloved husband and daughter, Robert Rush and Ericka Rush, siblings that include Attorney John Daniels, Bishop Sedgwick Daniels, Valerie Daniels-Carter and a host of other relatives and friends to celebrate her life and enormous legacy of strength and determination.

Madam Speaker, for these reasons, I am honored to pay tribute to Commissioner Hattie Daniels Rush. She has helped transform the lives of so many people. May she rest in peace.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S2135–S2171

Measures Introduced: Ten bills and one resolution were introduced, as follows: S. 4081–4090, and S. Res. 595. **Pages S2153–54**

Measures Passed:

Veterans Rapid Retraining Assistance Program: Senate passed S. 4089, to restore entitlement to educational assistance under Veterans Rapid Retraining Program in cases of a closure of an educational institution or a disapproval of a program of education. **Page S2170**

Honoring the Life of Madeleine K. Albright: Committee on the Judiciary was discharged from further consideration of S. Res. 585, honoring the life, achievements, and legacy of the Honorable Madeleine K. Albright, and the resolution was then agreed to. **Page S2170**

National Osteopathic Medicine Week: Senate agreed to S. Res. 595, designating the week of April 18 through April 24, 2022, as ''National Osteopathic Medicine Week''. **Page S2170**

Authorizing the Use of the Capitol Grounds: Senate agreed to H. Con. Res. 74, authorizing the use of the Capitol Grounds for the National Peace Officers Memorial Service and the National Honor Guard and Pipe Band Exhibition. **Page S2170**

Notice of Proposed Rulemaking Printing—Agreement: A unanimous-consent agreement was reached providing that the Notice of Proposed Rulemaking from the Office of Congressional Workplace Rights be printed in the RECORD. **Pages S2157–69**

Cook Nomination: By 47 yeas to 51 nays (Vote No. EX. 137), Senate rejected the motion to close further debate on the nomination of Lisa DeNell Cook, of Michigan, to be a Member of the Board of Governors of the Federal Reserve System. **Pages S2143–45**

Senator Schumer entered a motion to reconsider the vote by which cloture was not invoked on the nomination. **Pages S2143–45**

Bedoya Nomination—Agreement: A unanimous-consent agreement was reached providing that the motion to invoke cloture on the nomination of Alvaro M. Bedoya, of Maryland, to be a Federal Trade Commissioner, be withdrawn. **Pages S2143–45**

Garnett Nomination—Agreement: Senate continued consideration of the nomination of Sherilyn Peace Garnett, of California, to be United States District Judge for the Central District of California. **Pages S2145–50**

A unanimous-consent agreement was reached providing for further consideration of the nomination at approximately 2 p.m., on Wednesday, April 27, 2022; and that the motions to invoke cloture filed during the session of Monday, April 25, 2022, ripen at 3:30 p.m., on Wednesday, April 27, 2022. **Pages S2170–71**

Gomez Nomination—Agreement: A unanimous-consent agreement was reached providing that the motion to invoke cloture on the nomination of Lisa M. Gomez, of New Jersey, to be an Assistant Secretary of Labor, be withdrawn. **Pages S2145–50**

Nomination Confirmed: Senate confirmed the following nomination:

By 52 yeas to 43 nays (Vote No. EX. 136), Lael Brainard, of the District of Columbia, to be Vice Chairman of the Board of Governors of the Federal Reserve System for a term of four years. **Pages S2135–42, S2142–43**

Nomination Received: Senate received the following nomination:

Bridget A. Brink, of Michigan, to be Ambassador to Ukraine. **Page S2171**

Messages from the House: **Page S2152**

Measures Read the First Time: **Pages S2152, S2169–70**

Executive Communications: **Pages S2152–53**

Executive Reports of Committees: **Page S2153**

Additional Cosponsors: **Pages S2154–56**

Statements on Introduced Bills/Resolutions: **Pages S2156–57**

Additional Statements: **Pages S2151–52**

Authorities for Committees to Meet: Page S2157

Record Votes: Two record votes were taken today. (Total—137) Pages S2142–43

Adjournment: Senate convened at 10 a.m. and adjourned at 6:38 p.m., until 2 p.m. on Wednesday, April 27, 2022. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S .)

Committee Meetings

(Committees not listed did not meet)

LIVESTOCK AND POULTRY LEGISLATION

Committee on Agriculture, Nutrition, and Forestry: Committee concluded a hearing to examine S. 4030, to amend the Agricultural Marketing Act of 1946 to establish a cattle contract library, and S. 3870, to establish the Office of the Special Investigator for Competition Matters within the Department of Agriculture, after receiving testimony from Andy Green, Senior Advisor on Fair and Competitive Markets, and Bruce Summers, Administrator, Agricultural Marketing Service, both of the Department of Agriculture; William R. Ruffin, Ruffin Farms, Bay Springs, Mississippi, on behalf of the United States Cattlemen's Association; Shawn Tiffany, Tiffany Cattle Company, Herington, Kansas, on behalf of the Kansas Livestock Association; Shelly Ziesch, Ziesch Ranch, Jamestown, North Dakota, on behalf of the National Farmers Union; and Stephen R. Koontz, Colorado State University Department of Agricultural and Resource Economics, Fort Collins.

APPROPRIATIONS: DOJ

Committee on Appropriations: Subcommittee on Commerce, Justice, Science, and Related Agencies concluded a hearing to examine proposed budget estimates and justification for fiscal year 2023 for the Department of Justice, after receiving testimony from Merrick B. Garland, Attorney General, Department of Justice.

APPROPRIATIONS: MDA

Committee on Appropriations: Subcommittee on Defense concluded a closed hearing to examine proposed budget estimates and justification for fiscal year 2023 for the Missile Defense Agency, after receiving testimony from Vice Admiral Jon A. Hill, Director, Missile Defense Agency, Department of Defense.

BUSINESS MEETING

Committee on Armed Services: Committee ordered favorably reported 1,652 nominations in the Army, Navy, Air Force, Marine Corps, and Space Force.

DEFENSE INDUSTRIAL BASE

Committee on Armed Services: Committee concluded a hearing to examine the health of the defense industrial base, after receiving testimony from Ellen M. Lord, former Under Secretary of Defense for Acquisition and Sustainment; and David J. Berteau, Professional Services Council, Arlington, Virginia.

NAVY AND MARINE CORPS INVESTMENT PROGRAMS

Committee on Armed Services: Subcommittee on Seapower concluded a hearing to examine Navy and Marine Corps investment programs in review of the Defense Authorization Request for fiscal year 2023 and the Future Years Defense Program, after receiving testimony from Frederick J. Stefany, Principal Civilian Deputy, Assistant Secretary of the Navy (Research, Development, and Acquisition), performing the duties of the Assistant Secretary of the Navy (Research, Development, and Acquisition), Vice Admiral Scott Conn, Deputy Chief of Naval Operations, Warfighting Requirements and Capabilities (OPNAV N9), and Lieutenant General Karsten S. Heckl, Deputy Commandant, Combat Development and Integration, Commanding General, Marine Corps Combat Development Command, all of the Department of Defense.

CFPB SEMI-ANNUAL REPORT

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine the Consumer Financial Protection Bureau's Semi-Annual Report to Congress, including, S. 3441, to amend the Community Development Banking and Financial Institutions Act of 1994 to reauthorize and improve the community development financial institutions bond guarantee program, S. 2315, to require the Secretary of Health and Human Services to establish a program to provide health care coverage to low-income adults in States that have not expanded Medicaid, and S. 2145, to ensure that irresponsible corporate executives, rather than shareholders, pay fines and penalties, after receiving testimony from Rohit Chopra, Director, Consumer Financial Protection Bureau.

CHILD CARE

Committee on Banking, Housing, and Urban Affairs: Subcommittee on Economic Policy concluded a hearing to examine child care and other policy tools to combat bottlenecks and inflation, after receiving testimony from William E. Spriggs, AFL–CIO, Washington, D.C.; Melissa Colagrosso, A Place To Grow Children's Center, Oak Hill, West Virginia; Kathleen Sgamma, Western Energy Alliance, Denver, Colorado; Brian Riedl, The Manhattan Institute for

Policy Research, New York, New York; and Walt Rowen, Small Business for America's Future, Columbia, Pennsylvania.

DEPARTMENT OF STATE BUDGET

Committee on Foreign Relations: Committee concluded a hearing to examine the President's proposed budget request for fiscal year 2023 for the Department of State, focusing on American diplomacy and global leadership, after receiving testimony from Antony J. Blinken, Secretary of State.

MILITARY FAMILIES

Committee on Homeland Security and Governmental Affairs: Permanent Subcommittee on Investigations concluded a hearing to examine mistreatment of military families in privatized housing, after receiving testimony from Captain Samuel Choe, USA, Fort Gordon Army Base, and Technical Sergeant Jack Fe Torres, USAF, Sheppard Air Force Base, both of the Department of Defense; Rachel Christian, Armed Forces Housing Advocates, Holland, Pennsylvania; Richard Taylor, and Paula Cook, both of Balfour Beatty Communities, LLC, Malvern, Pennsylvania; and Jana Wanner, Grovetown, Georgia.

FDA USER FEE AGREEMENTS

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine Food and Drug Administration user fee agreements, focusing on advancing medical product regulation and innovation for the benefit of patients and Food and Drug Administration Center Directors, after receiving testimony from Patrizia Cavazzoni, Director, Center for Drug Evaluation and Research, Peter Marks, Director, Center for Biologics Evaluation and Research, and Jeffrey E. Shuren, Director, Center for Devices and Radiological Health, all of the Food and Drug Administration, Department of Health and Human Services.

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 22 public bills, H.R. 7572–7593; 2 private bills, H. Res. 1063–1064, were introduced. **Pages H4509–10**

Additional Cosponsors: **Page H4511**

Reports Filed: There were no reports filed today.

Speaker: Read a letter from the Speaker wherein she appointed Representative Johnson (GA) to act as Speaker pro tempore for today. **Page H4461**

Suspensions: The House agreed to suspend the rules and pass the following measures:

Small Business Development Centers Improvement Act of 2022: H.R. 6445, to amend the Small Business Act to require an annual report on entrepreneurial development programs; **Pages H4463–65**

Women's Business Centers Improvement Act of 2022: H.R. 6441, to amend the Small Business Act to improve the women's business center program; **Pages H4465–70**

SCORE for Small Business Act of 2022: H.R. 6450, to amend the Small Business Act to reauthorize the SCORE program; **Pages H4470–73**

One Stop Shop for Small Business Compliance Act: H.R. 4877, to amend the Small Business Act to require the Small Business and Agriculture Regulatory Enforcement Ombudsman to create a centralized website for compliance guides; **Pages H4473–74**

Small Business Advocacy Improvements Act of 2022: H.R. 6454, to clarify the primary functions and duties of the Office of Advocacy of the Small Business Administration; **Pages H4474–75**

Brown v. Board of Education National Historical Park Expansion and Redesignation Act: S. 270, to amend the Act entitled "Act to provide for the establishment of the Brown v. Board of Education National Historic Site in the State of Kansas, and for other purposes" to provide for inclusion of additional related sites in the National Park System; **Pages H4475–77**

Highlands Conservation Reauthorization Act: H.R. 2793, to reauthorize the Highlands Conservation Act, to authorize States to use funds from that Act for administrative purposes; **Pages H4477–79**

Commission To Study the Potential Creation of a National Museum of Asian Pacific American History and Culture Act: H.R. 3525, amended, to establish the Commission to Study the Potential

Creation of a National Museum of Asian Pacific American History and Culture; **Pages H4479–82**

Great Lakes Fish and Wildlife Restoration Reauthorization Act: H.R. 5973, amended, to reauthorize the Great Lakes Fish and Wildlife Restoration Act of 1990; **Pages H4482–83**

Multinational Species Conservation Funds Semipostal Stamp Reauthorization Act: H.R. 6023, amended, to require the United States Postal Service to continue selling the Multinational Species Conservation Funds Semipostal Stamp until all remaining stamps are sold; **Pages H4483–84**

National Liberty Memorial Preservation Act: H.R. 6201, amended, to extend the authority for the establishment of a commemorative work to honor enslaved and free Black persons who served in the American Revolution; **Pages H4484–85**

Alaska Salmon Research Task Force Act: H.R. 6651, to establish an Alaska Salmon Research Task Force; **Pages H4485–86**

American Fisheries Advisory Committee Act: S. 497, to establish the American Fisheries Advisory Committee to assist in the awarding of fisheries research and development grants, by a ⅔ yea-and-nay vote of 404 yeas to 11 nays, Roll No. 126; and **Pages H4486–88, H4489–90**

Providing for the conveyance of certain property to the Tanana Tribal Council located in Tanana, Alaska: H.R. 441, amended, to provide for the conveyance of certain property to the Tanana Tribal Council located in Tanana, Alaska; **Pages H4488–89**

Agreed to amend the title so as to read: "To provide for the conveyance of certain property to the Tanana Tribal Council located in Tanana, Alaska, the conveyance of certain property to the Southeast Alaska Regional Health Consortium located in Sitka, Alaska, and the conveyance of certain property to the Alaskan Native Tribal Health Consortium located in Anchorage, Alaska, and for other purposes.". **Page H4489**

Recess: The House recessed at 4:22 p.m. and reconvened at 6:31 p.m. **Page H4489**

Discharge Petition: Representative Banks presented to the Clerk a motion to discharge the Committee on Education and Labor from the consideration of the bill, H.R. 426, to provide that for purposes of determining compliance with title IX of the Education Amendments of 1972 in athletics, sex shall be recognized based solely on a person's reproductive biology and genetics at birth, which was referred to said committee January 21st, 2021 (Discharge Petition No. 13).

Quorum Calls—Votes: One yea-and-nay vote developed during the proceedings of today and appears on pages H4489–90.

Adjournment: The House met at 2 p.m. and adjourned at 8:11 p.m.

Committee Meetings

NEXT STEPS: EXAMINING PLANS FOR THE CONTINUATION OF THE DEPARTMENT OF VETERANS AFFAIRS ELECTRONIC HEALTH RECORD MODERNIZATION PROGRAM

Committee on Veterans' Affairs: Subcommittee on Technology Modernization held a hearing entitled "Next Steps: Examining Plans for the Continuation of the Department of Veterans Affairs Electronic Health Record Modernization Program". Testimony was heard from David Case, Deputy Inspector General, Office of the Inspector General, Department of Veterans Affairs; Terry Adirim, Program Executive Director, Electronic Health Record Modernization Integration Office, Department of Veterans Affairs; and public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, APRIL 27, 2022

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on State, Foreign Operations, and Related Programs, to hold hearings to examine proposed budget estimates and justification for fiscal year 2023 for the Department of State, 2 p.m., SD–192.

Committee on Armed Services: Subcommittee on Emerging Threats and Capabilities, to hold hearings to examine United States Special Operations Command's efforts to sustain the readiness of special operations forces and transform the force for future security challenges, 2:30 p.m., SR–232A.

Subcommittee on Personnel, to hold hearings to examine military and civilian personnel programs in the Department of Defense in review of the Defense Authorization Request for fiscal year 2023 and the Future Years Defense Program, 3 p.m., SR–222.

Subcommittee on Strategic Forces, to hold hearings to examine the Department of Energy's atomic energy defense activities and Department of Defense nuclear weapons programs in review of the Defense Authorization Request for fiscal year 2023 and the Future Years Defense Program, 4:30 p.m., SD–G50.

Committee on Commerce, Science, and Transportation: to hold hearings to examine the President's proposed budget

request for fiscal year 2023 for the Department of Commerce, 9:30 a.m., SR–253.

Committee on Foreign Relations: to receive a closed briefing on recent developments in China's nuclear capabilities, 2:30 p.m., SVC–217.

Committee on the Judiciary: to hold hearings to examine the nominations of Nancy G. Abudu, to be United States Circuit Judge for the Eleventh Circuit, Julianna Michelle Childs, to be United States Circuit Judge for the District of Columbia Circuit, Nusrat Jahan Choudhury, to be United States District Judge for the Eastern District of New York, Ana Isabel de Alba, to be United States District Judge for the Eastern District of California, and Natasha C. Merle, to be United States District Judge for the Eastern District of New York, 10 a.m., SD–226.

Committee on Small Business and Entrepreneurship: to hold an oversight hearing to examine the Small Business Administration, 2:30 p.m., SR–428A.

Committee on Veterans' Affairs: to hold hearings to examine pending nominations, 3 p.m., SR–418.

House

Committee on Agriculture, Full Committee, hearing entitled ''An Examination of Price Discrepancies, Transparency, and Alleged Unfair Practices in Cattle Markets'', 10 a.m., 1300 Longworth and Zoom.

Committee on Appropriations, Subcommittee on Defense, budget hearing on the National Security Agency and U.S. Cyber Command, 10:30 a.m., H–405 Capitol. This hearing is closed.

Subcommittee on Homeland Security, budget hearing on the Department of Homeland Security, 10 a.m., 2359 Rayburn and Zoom.

Subcommittee on Legislative Branch, budget hearing on the Library of Congress, 10 a.m., Zoom.

Subcommittee on Legislative Branch, budget hearing on the Government Publishing Office, 11 a.m., Zoom.

Subcommittee on Interior, Environment, and Related Agencies, budget hearing on the U.S. Forest Service, 2 p.m., Zoom.

Subcommittee on Legislative Branch, budget hearing on the Architect of the Capitol, 2 p.m., Zoom.

Subcommittee on Military Construction, Veterans Affairs, and Related Agencies, hearing entitled ''Meeting Veterans' Full Needs: Update on Women's Health, Mental Health, Homelessness, and Other Programs'', 2 p.m., 2358–A Rayburn and Zoom.

Subcommittee on Energy and Water Development, and Related Agencies, budget hearing on the U.S. Army Corps of Engineers and the Bureau of Reclamation, 2:30 p.m., 2362–B Rayburn and Zoom.

Committee on Armed Services, Full Committee, hearing entitled ''Department of the Air Force Fiscal Year 2023 Budget Request'', 10 a.m., 2118 Rayburn and Webex.

Subcommittee on Tactical Air and Landforce, hearing entitled ''Fiscal Year 2023 Budget Request of the Department of Defense for Fixed-Wing Tactical and Training Aircraft Programs'', 2 p.m., 2118 Rayburn and Webex.

Subcommittee on Seapower and Projection Forces, hearing entitled ''Department of the Navy Fiscal Year 2023 Budget Request for Seapower and Projection Forces'', 4:30 p.m., 2118 Rayburn and Webex.

Committee on the Budget, Full Committee, hearing entitled ''Department of Defense FY 2023 Budget'', 10:30 a.m., 210 Cannon and Zoom.

Committee on Education and Labor, Subcommittee on Civil Rights and Human Services, hearing entitled ''Examining the Policies and Priorities of the Equal Employment Opportunity Commission and the Office of Federal Contract Compliance Programs'', 10:15 a.m., 2175 Rayburn and Zoom.

Committee on Energy and Commerce, Subcommittee on Health, hearing entitled ''The Fiscal Year 2023 HHS Budget'', 10:15 a.m., 2123 Rayburn and Webex.

Committee on Financial Services, Full Committee, hearing entitled ''Consumers First: Semi-Annual Report of the Consumer Financial Protection Bureau'', 10 a.m., 2128 Rayburn and Webex.

Committee on Foreign Affairs, Subcommittee on Africa, Global Health, and Global Human Rights, hearing entitled ''Understanding the African Continental Free Trade Area and How the U.S. Can Promote its Success'', 11 a.m., Webex.

Committee on Homeland Security, Full Committee, hearing entitled ''A Review of the Fiscal Year 2023 Budget Request for the Department of Homeland Security'', 2 p.m., 310 Cannon and Webex.

Committee on the Judiciary, Subcommittee on Crime, Terrorism, and Homeland Security, hearing entitled ''Oversight of Federal Efforts to Combat Human Trafficking'', 10 a.m., 2141 Rayburn and Zoom.

Subcommittee on Courts, Intellectual Property, and the Internet, hearing entitled ''Building Confidence in the Supreme Court Through Ethics and Recusal Reforms'', 2 p.m., 2141 Rayburn and Zoom.

Committee on Natural Resources, Subcommittee for Indigenous Peoples of the United States, hearing on H.R. 437, to amend the Alaska Native Claims Settlement Act to exclude certain payments to Alaska Native elders for determining eligibility for certain programs, and for other purposes; H.R. 6063, to provide for the equitable settlement of certain Indian land disputes regarding land in Illinois, and for other purposes; H.R. 6181, the ''Samish Indian Nation Land Reaffirmation Act''; S. 314, the ''Klamath Tribe Judgment Fund Repeal Act''; S. 559, to amend the Grand Ronde Reservation Act, and for other purposes; and S. 789, the ''Repealing Existing Substandard Provisions Encouraging Conciliation with Tribes Act'', 1 p.m., Webex.

Committee on Oversight and Reform, Full Committee, hearing entitled ''McKinsey and Company's Conduct and Conflicts at the Heart of the Opioid Epidemic'', 10 a.m., 2154 Rayburn and Zoom.

Committee on Rules, Full Committee, hearing on S. 3522, the ''Ukraine Democracy Defense Lend-Lease Act of 2022'', 2 p.m., H–313 Capitol and Webex.

Committee on Science, Space, and Technology, Subcommittee on Energy, hearing entitled ''Science and Energy Research Infrastructure Needs of the U.S. Department of Energy'', 11 a.m., 2318 Rayburn and Zoom.

Committee on Small Business, Full Committee, hearing entitled ''Small Business Administration's FY 2023 Budget'', 10 a.m., 2360 Rayburn and Zoom.

Committee on Transportation and Infrastructure, Subcommittee on Coast Guard and Maritime Transportation, hearing entitled ''Review of Fiscal Year 2023 Budget Request for the Coast Guard and Maritime Transportation Programs'', 10 a.m., 2167 Rayburn and Zoom.

Subcommittee on Highways and Transit, hearing entitled ''Examining Workforce Development and Job Creation in Surface Transportation Construction'', 2 p.m., 2167 Rayburn and Zoom.

Committee on Veterans' Affairs, Subcommittee on Disability Assistance and Memorial Affairs; and Subcommittee on Oversight and Investigations, joint hearing entitled ''At What Cost?—Ensuring Quality Representation in the Veteran Benefit Claims Process'', 2 p.m., HVC–210 and Zoom.

Joint Meetings

Joint Economic Committee: to hold hearings to examine investments today for a more competitive tomorrow, focusing on building on a strong foundation, 2:30 p.m., WEBEX.

Next Meeting of the **SENATE**

2 p.m., Wednesday, April 27

Senate Chamber

Program for Wednesday: Senate will continue consideration of the nomination of Sherilyn Peace Garnett, of California, to be United States District Judge for the Central District of California, and vote on the motion to invoke cloture thereon at 3:30 p.m.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, April 27

House Chamber

Program for Wednesday: Consideration of measures under suspension of the Rules.

Extensions of Remarks, as inserted in this issue

HOUSE

Bishop, Sanford D., Jr., Ga., E409
Burgess, Michael C., Tex., E406
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